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POLITY & GOVERNANCE

भारतीय राजव्यवस्था एवं संविधान — संपूर्ण उच्च-प्राथमिकता संकलन

Constitutional Development, Parts, Articles & Schedules, Fundamental Rights & DPSP, Union Executive & Parliament, Supreme Court, Panchayats, Amendments.

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Chapter 01: Constitutional Development

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
Nov 26	**Constitution Day (Samvidhan Diwas)** celebrated annually; marks adoption of Constitution in 1949 (notified in 2015 for Ambedkar's 125th birth anniversary).	Direct static-current crossover; 75th year of Constitution adoption commemorated (1949–2024).
Historical Link	Swaraj Party Ranchi resolution (May 1934) first demanded Constituent Assembly; M.N. Roy put forward the idea in 1934.	Frequent match-list question in UPPCS Prelims.
Calligraphy & Art	Original manuscripts preserved in helium-filled cases in Parliament Library; calligraphed by Prem Behari Narain Raizada (English) & Vasant Krishan Vaidya (Hindi).	UPPSC recurrent trap on calligraphers vs drafting committee members.
New Parliament (2023)	Samvidhan Sadan (Old Parliament building) was where the Constituent Assembly sat from 1946 to 1950.	Exam landmark update linking modern infrastructure with constitution-making history.

Consolidated Must-Score Facts

1. The **Regulating Act of 1773** marked the first step towards British parliamentary control over the East India Company; it designated the Governor of Bengal as the **Governor-General of Bengal** (**Warren Hastings** was the first) assisted by a Council of four members.
2. The Regulating Act, 1773 provided for the establishment of a **Supreme Court at Fort William, Calcutta (1774)**, consisting of a Chief Justice (**Sir Elijah Impey**) and three other judges.
3. The **Act of Settlement, 1781** (Declaratory Act) exempted the actions of the Governor-General in Council and Company public servants done in their official capacity from the jurisdiction of the Supreme Court at Calcutta.
4. **Pitt's India Act of 1784** established a system of **Double Government**: the **Court of Directors** managed commercial operations, while a new 6-member **Board of Control** managed political, military, and revenue affairs in India.
5. Under the **Act of 1786**, **Lord Cornwallis** was granted the power to override his Council in extraordinary circumstances concerning peace or safety, and was simultaneously appointed both Governor-General and Commander-in-Chief.
6. The **Charter Act of 1793** extended the East India Company's commercial trade monopoly for another **20 years** and mandated that salaries of Board of Control members be paid out of Indian revenues ('Home Charges').
7. The **Charter Act of 1813** abolished the commercial monopoly of the Company in India, opening Indian trade to all British merchants, with two exceptions: trade in **tea** and trade with **China** remained Company monopolies; it also set aside **₹1 lakh annually** for the promotion of education in India.
8. The **Charter Act of 1833** made the Governor-General of Bengal the **Governor-General of India** (**Lord William Bentinck** became the first Governor-General of India), centralising all civil and military authority.
9. The Charter Act of 1833 completely ended the commercial activities of the East India Company, converting it into a purely administrative body; it also added a **fourth member (Law Member — Lord Macaulay)** to the Governor-General's Council.
10. Under the **Charter Act of 1853**, the legislative and executive functions of the Governor-General's Council were separated for the first time, establishing a 6-member **Indian (Central) Legislative Council**; it also introduced an **open competitive examination for the Indian Civil Services (ICS)** (Macaulay Committee on Civil Services appointed in 1854).
11. The **Government of India Act, 1858** (Act for the Better Government of India) ended East India Company rule following the 1857 revolt, transferring sovereignty directly to the British Crown; it abolished the Board of Control and Court of Directors.
12. The 1858 Act created the office of the **Secretary of State for India** (a member of the British Cabinet assisted by a 15-member Council of India) and redesignated the Governor-General as the **Viceroy of India** (**Lord Canning** became the first Viceroy).
13. The **Indian Councils Act of 1861** initiated representative institutions by associating Indians with legislation (Lord Canning nominated the Raja of Benaras, Maharaja of Patiala, and Sir Dinkar Rao to his Council in 1862) and restored legislative decentralisation to Bombay and Madras Presidencies.
14. The 1861 Act gave statutory recognition to the **Portfolio System** introduced by Lord Canning in 1859, and empowered the Viceroy to issue **Ordinances** with a validity of 6 months during emergencies without his Council's concurrence.
15. The **Indian Councils Act of 1892** increased the non-official membership in central and provincial councils, introduced the principle of **indirect election** through nominations on recommendations of local bodies, and allowed members to **discuss the budget** (without voting or asking supplementary questions).
16. The **Indian Councils Act of 1909 (Morley-Minto Reforms)** introduced **separate electorates for Muslims**, legally institutionalising communalism (Lord Minto is known as the 'Father of Communal Electorate'); it also permitted members to move resolutions and ask **supplementary questions** on the budget.
17. Under the 1909 Act, **Satyendra Prasad Sinha** became the first Indian appointed to the Viceroy's Executive Council as the Law Member.
18. The **Government of India Act, 1919 (Montagu-Chelmsford Reforms)** introduced **Dyarchy (द्वैध शासन)** in provincial governments, dividing provincial subjects into **Transferred Subjects** (administered by Governor with ministers responsible to legislative council) and **Reserved Subjects** (administered by Governor and his executive council without legislative accountability).
19. The 1919 Act introduced for the first time **Bicameralism** at the Centre (Council of State and Legislative Assembly), direct elections, and extended separate electorates to **Sikhs, Indian Christians, Anglo-Indians, and Europeans**.
20. The 1919 Act provided for the establishment of a **Public Service Commission** (the **Central Public Service Commission** was set up in **1926** on the recommendation of the Lee Commission of 1923–24) and created the **Chamber of Princes (Narendra Mandal)** in 1921.
21. The **Simon Commission** was appointed in **November 1927** under Sir John Simon with **7 all-British members** (no Indian representation); its 1930 report recommended the abolition of dyarchy and establishment of provincial autonomy.

22. The **Nehru Report (August 1928)**, drafted by a committee chaired by Motilal Nehru, was the first major Indian attempt to draft a complete constitutional framework; it demanded **Dominion Status**, Fundamental Rights, adult franchise, and rejected separate electorates in favor of joint electorates with reservation.
23. The **Communal Award** announced by British Prime Minister Ramsay MacDonald on **16 August 1932** extended separate electorates to the **Depressed Classes**; Mahatma Gandhi protested via a fast unto death in Yerwada Jail, culminating in the **Poona Pact (24 September 1932)** between Dr. B.R. Ambedkar and Congress leaders, which retained joint electorates but increased reserved seats for Depressed Classes.
24. The **Government of India Act, 1935** was the most voluminous pre-independence constitutional document; it proposed an **All-India Federation** (consisting of British Indian provinces and princely states) which **never came into effect** because princely states refused to join.
25. The 1935 Act abolished provincial dyarchy and introduced **Provincial Autonomy**; it introduced dyarchy at the Centre (which never took operational effect) and introduced **bicameralism in 6 out of 11 provinces** (Bengal, Bombay, Madras, Bihar, Assam, and United Provinces).
26. The 1935 Act divided legislative powers into three lists: **Federal List (59 items)**, **Provincial List (54 items)**, and **Concurrent List (36 items)**; **Residuary Powers** were vested exclusively in the **Governor-General (Viceroy)**.
27. The 1935 Act established the **Federal Court of India** (inaugurated on **1 October 1937** with Sir Maurice Gwyer as first CJI) and provided for the establishment of the **Reserve Bank of India** (RBI Act passed in 1934, RBI began operations on 1 April 1935).
28. The **August Offer of 8 August 1940** (by Viceroy Lord Linlithgow) proposed dominion status after the war and acknowledged for the first time that framing a new constitution would be 'primarily the responsibility of Indians themselves'.
29. The **Cripps Mission (March 1942)** under Sir Stafford Cripps proposed an elected Constituent Assembly after World War II to frame an Indian Dominion constitution; it was rejected by Congress (Gandhi called it a 'post-dated cheque on a crashing bank') and by the Muslim League (which demanded a separate Pakistan).
30. The **Wavell Plan** was presented at the **Shimla Conference (June–July 1945)** proposing an Executive Council with equal Hindu and Muslim representation (except Viceroy and Commander-in-Chief); it broke down due to the Muslim League's insistence on nominating all Muslim members.
31. The **Cabinet Mission** arrived in India in **March 1946** consisting of three British Cabinet ministers: **Lord Pethick-Lawrence** (Secretary of State), **Sir Stafford Cripps**, and **A.V. Alexander**; it rejected the demand for a sovereign Pakistan and proposed a 3-tier Union and the framework for electing the Constituent Assembly.
32. The **Constituent Assembly** was constituted in **November 1946** under the Cabinet Mission Plan with an initial strength of **389 members** (292 from British provinces, 93 from Princely States, and 4 from Chief Commissioners' Provinces: Delhi, Ajmer-Merwara, Coorg, British Baluchistan); after partition, membership was reduced to **299** (229 provinces + 70 princely states).
33. Members of the Constituent Assembly were **indirectly elected** by the provincial legislative assemblies using Proportional Representation by Single Transferable Vote (**PR-STV**); princely state representatives were nominated by their rulers; the Assembly comprised roughly **15 women members**; **Mahatma Gandhi and M.A. Jinnah were NOT members**.
34. The Constituent Assembly held its first meeting on **9 December 1946**; **Dr. Sachchidananda Sinha** was elected as the temporary/interim President following the French practice of electing the oldest member.
35. On **11 December 1946**, **Dr. Rajendra Prasad** was elected permanent President of the Assembly, with **H.C. Mukherjee** and **V.T. Krishnamachari** as Vice-Presidents; **Sir B.N. Rau** was appointed the **Constitutional Adviser** to the Assembly.
36. On **13 December 1946**, Jawaharlal Nehru moved the historic **'Objectives Resolution'**, outlining the foundational philosophy of the Constitution; it was unanimously adopted on **22 January 1947** and later became the basis of the **Preamble**.
37. The **Drafting Committee** was appointed on **29 August 1947** consisting of 7 members chaired by **Dr. B.R. Ambedkar**: N. Gopalaswami Ayyangar, Alladi Krishnaswamy Iyer, Dr. K.M. Munshi, Syed Mohammad Saadulla, N. Madhava Rau (replaced B.L. Mitter), and T.T. Krishnamachari (replaced D.P. Khaitan).
38. Key Constituent Assembly Committees and Chairpersons: Union Powers & Union Constitution Committees = **Jawaharlal Nehru**; Provincial Constitution Committee & Advisory Committee on Fundamental Rights, Minorities and Tribal Areas = **Sardar Vallabhbhai Patel**; Steering Committee & Rules of Procedure = **Dr. Rajendra Prasad**; Minorities Sub-Committee = **H.C. Mukherjee**; Fundamental Rights Sub-Committee = **J.B. Kripalani**.
39. The **Mountbatten Plan (3 June Plan, 1947)** laid down the partition scheme; the **Indian Independence Act, 1947** received royal assent on **18 July 1947** and created two sovereign Dominions (India and Pakistan) effective **15 August 1947**.
40. The **National Flag** (designed by Pingali Venkayya with a 3:2 ratio and 24 spokes in the Ashoka Chakra) was adopted on **22 July 1947**; the **National Anthem (Jana Gana Mana)** and **National Song (Vande Mataram)** were adopted on **24 January 1950**.
41. The Constitution was adopted, enacted, and signed by 284 members on **26 November 1949** (**Constitution Day / Samvidhan Diwas**); while provisions relating to citizenship, elections, provisional parliament, and temporary articles came into force immediately, the remaining provisions came into full force on **26 January 1950** (commemorating the 1930 Purna Swaraj declaration).
42. The original Constitution was handwritten and calligraphed in English by **Prem Behari Narain Raizada** in flowing italic style and illuminated/decorated by artists from Shantiniketan led by **Nandalal Bose** and Beohar Rammanohar Sinha; the Hindi version was calligraphed by **Vasant Krishan Vaidya**; the seal of the Constituent Assembly was the **Elephant**.
43. **H.V.R. Iyengar** was appointed as the Secretary to the Constituent Assembly; **S.N. Mukherjee** was the Chief Draftsman of the Constitution in the Constituent Assembly.
44. The **Interim Government** was sworn in on **2 September 1946** (announced 24 August 1946) based on the Cabinet Mission Plan; **Jawaharlal Nehru** was Vice-President of the Viceroy's Executive Council; the Muslim League joined later on **26 October 1946** with Liaquat Ali Khan taking the Finance portfolio.
45. Key Portfolios in the 1946 Interim Government: **Sardar Vallabhbhai Patel** (Home, Information & Broadcasting), **Dr. Rajendra Prasad** (Food & Agriculture), **Dr. John Matthai** (Industries & Supplies), **Sardar Baldev Singh** (Defence), **Jagjivan Ram** (Labour), and **C. Rajagopalachari** (Education & Arts).
46. The Constituent Assembly functioned in two distinct roles: as a **Constitution-making body** (presided over by **Dr. Rajendra Prasad**) and as the **Provisional Parliament of India** (presided over by **G.V. Mavalankar** as Speaker) until the first general elections in 1951–52.
47. The framing of the Constitution took exactly **2 years, 11 months, and 18 days**, spanning **11 sessions** and consideration of the draft across 114 days, with a total expenditure of approximately ₹64 lakh.
48. Major Sources of the Indian Constitution — British & 1935 Legacy: The **Government of India Act, 1935** contributed ~60% of constitutional provisions (Federal Scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency Provisions, Administrative details); the **UK Constitution** contributed

Parliamentary government, Rule of Law, Single Citizenship, Cabinet system, Prerogative Writs, Bicameralism, and Parliamentary privileges.

49. Major Sources of the Indian Constitution — American & Irish Legacy: The **US Constitution** provided Fundamental Rights, Independence of Judiciary, Judicial Review, Impeachment of the President, Removal of SC/HC Judges, and the post of Vice-President; the **Irish Constitution** provided Directive Principles of State Policy (DPSP), Nomination of 12 Rajya Sabha members, and the Method of Presidential Election.
50. Major Sources of the Indian Constitution — Other Global Democracies: **Canada** provided a Federation with a strong Centre, Residuary powers to Centre, Appointment of State Governors by Centre, and Advisory jurisdiction of SC; **Australia** provided the Concurrent List, Joint Sitting of Parliament, and Freedom of trade/commerce; **Germany (Weimar)** provided suspension of FRs during Emergency; **USSR** provided Fundamental Duties and ideals of Justice; **France** provided the Republic and Liberty/Equality/Fraternity; **South Africa** provided Amendment procedure (Art. 368) and election of Rajya Sabha members.
51. **Lord Cornwallis's Judicial Code (1793):** Separated revenue administration from judicial administration; abolished revenue courts (Mal Adalat) and transferred trials to District Diwani Adalats headed by a civil servant as District Judge.
52. **Charter Act of 1813 (Sovereignty & Church):** Explicitly asserted the Crown's undeniable sovereignty over the East India Company's territorial acquisitions in India; permitted Christian missionaries to enter India under license from the Court of Directors or Board of Control.
53. **Charter Act of 1833 (First Law Commission):** Appointed the First Law Commission in 1834 under **Lord Macaulay**, which codified Indian laws leading to the Indian Penal Code (drafted 1837, enacted 1860); Section 87 enacted that no Indian should be barred from Company employment on grounds of religion, place of birth, descent, or color.
54. **Charter Act of 1853 (Local Representation in Legislature):** Out of 6 new legislative members of the Governor-General's Council, 4 were appointed by the provincial governments of **Madras, Bombay, Bengal, and Agra**, introducing provincial representation for the first time in Indian parliamentary history.
55. **Queen Victoria's Proclamation (1 November 1858):** Read by Viceroy Lord Canning at the **Grand Darbar in Allahabad**; disclaimed further territorial expansion, assured non-interference in religious beliefs, and promised equal protection under the law ('Magna Carta of the Indian People').
56. **Indian Councils Act of 1861 (Decentralization & New Councils):** Commenced legislative devolution by restoring lawmaking powers to Madras and Bombay; enabled the creation of new legislative councils in **Bengal (1862)**, **North-Western Provinces (1866)**, and **Punjab (1897)**.
57. **Indian Councils Act of 1892 (Budget Rules):** Permitted legislative council members to discuss the Annual Financial Statement for up to 6 days and submit written questions on public matters with 6 days' notice, though voting on the budget and asking supplementary questions were prohibited.
58. **Morley-Minto Reforms of 1909 (Council Representation):** Two Indians—**K.G. Gupta** and **Syed Hussain Bilgrami**—were appointed to the Secretary of State for India's Council in London; Satyendra Prasad Sinha was nominated as the first Indian Law Member in the Viceroy's Council.
59. **Government of India Act of 1919 (Provincial Budget Autonomy):** Completely separated the **Provincial Budget** from the Central Budget for the first time, authorizing provincial legislatures to levy and vote their own taxes; also established the office of **High Commissioner for India in London**.
60. **Muddiman Committee (1924):** Appointed by the British Government (Reforms Enquiry Committee) under Sir Alexander Muddiman to investigate the constitutional working of Dyarchy under the 1919 Act and evaluate demands for provincial autonomy.
61. **Chamber of Princes (Narendra Mandal, 1921):** Inaugurated on 8 February 1921 by the Duke of Connaught under the Montagu-Chelmsford Report to facilitate consultation between princely rulers and the Viceroy; **Maharaja Ganga Singh of Bikaner** served as its first Chancellor.
62. **Simon Commission (1927) Key Recommendations:** Recommended the total abolition of provincial dyarchy, introduction of responsible government in provinces, continuation of separate communal electorates until communal friction ceased, and outright rejection of central dyarchy.
63. **Round Table Conferences (1930–1932):** The First RTC was boycotted by Congress; the Second RTC (Sep–Dec 1931) was attended by **Mahatma Gandhi as the sole Congress representative**, accompanied by Sarojini Naidu (representing Indian women) and Dr. B.R. Ambedkar; the Third RTC (Nov 1932) led directly to the British White Paper of 1933.
64. **Poona Pact (24 September 1932) Seat Breakdown:** Provided **147 reserved seats** in provincial legislatures for Depressed Classes (replacing the 71 separate electorate seats under MacDonald's Communal Award) and **18% of general seats in the Central Legislature**, voting via joint electorates.
65. **Government of India Act of 1935 (Federal Court & Privy Council):** The Federal Court began sitting on **1 October 1937** with original, appellate, and advisory jurisdictions; its decisions were appealable to the **Judicial Committee of the Privy Council in London** until abolished by the Abolition of Privy Council Jurisdiction Act, 1949.
66. **Constituent Assembly Demand Lineage:** First conceived philosophically by **M.N. Roy** in 1934; formally adopted by the **Swaraj Party in Ranchi** (May 1934); officially demanded by INC at the **Faizpur Session (1936)**; and formally conceded in principle by the British in the **August Offer (1940)**.
67. **Constituent Assembly Tribal & Excluded Sub-Committees: North-East Frontier Tribal Areas Sub-Committee** chaired by **Gopinath Bardoloi**; **Excluded and Partially Excluded Areas (Other than Assam) Sub-Committee** chaired by **A.V. Thakkar**.
68. **Women Members in Constituent Assembly (Key Figures):** 15 women members served in the CA, including **Sarojini Naidu**, **Sucheta Kripalani**, **Vijayalakshmi Pandit**, **Begum Aizaz Rasul** (only Muslim woman member), **Dakshayani Velayudhan** (only Dalit woman member), and **Rajkumari Amrit Kaur** (first Health Minister).
69. **Constituent Assembly Seal and Signing:** The official seal of the Constituent Assembly was the **Elephant**; the Constitution was signed by **284 members** present on 24 January 1950, when Dr. Rajendra Prasad was officially declared the first President of India.
70. **Constituent Assembly Dual Capacity & Speaker:** When meeting as a constitution-drafting body, the Assembly was presided over by **Dr. Rajendra Prasad**; when enacting ordinary statutes as the Provisional Parliament, it was presided over by **G.V. Mavalankar** as Speaker.

⏱ Timeline / Chronology

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1773  ── Regulating Act: Governor of Bengal → GG of Bengal (Warren Hastings); SC at Calcutta (1774)
  │
1784  ── Pitt's India Act: Double Government (Court of Directors + Board of Control)
  │
1813  ── Charter Act: Ended Company trade monopoly except Tea & China; ₹1 Lakh for education
  │
1833  ── Charter Act: GG of Bengal → GG of India (Lord William Bentinck); Law Member (Lord Macaulay)
  │
1853  ── Charter Act: Separated legislative and executive functions; introduced open ICS competition
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1858  —— Government of India Act: Crown Rule begins; Viceroy (Canning); Secretary of State for India
  |
1861  —— Indian Councils Act: Portfolio system recognized; Viceroy's ordinance power; decentralization
  |
1892  —— Indian Councils Act: Discussion of budget allowed (no supplementary questions); indirect election
  |
1909  —— Morley-Minto Reforms: Separate electorates for Muslims; supplementary questions; SP Sinha in Council
  |
1919  —— Montagu-Chelmsford Reforms: Dyarchy in provinces; bicameralism at Centre; CPSC set up (1926)
  |
1935  —— Government of India Act: Provincial Autonomy; Federal Court (1937); RBI (1935); 3 Lists
  |
1940  —— August Offer: Linlithgow offers Dominion status; acknowledges Indian constitution-making
  |
1942  —— Cripps Mission: Post-war Constituent Assembly rejected by INC ("post-dated cheque") & League
  |
1945  —— Wavell Plan & Shimla Conference: Breakdown over League's claim to nominate all Muslim members
  |
1946  —— Cabinet Mission (Mar) → Interim Govt (2 Sep) → CA first meeting (9 Dec 1946)
  |
1947  —— Mountbatten Plan (3 June) → Independence Act (18 July) → Drafting Committee formed (29 Aug)
  |
1949  —— Constitution Adopted, enacted and signed (26 November 1949 – Constitution Day)
  |
1950  —— Constitution Commences in full force (26 January 1950 – Republic Day)
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📊 Quick Reference Grid

1. Key Constitutional Acts Comparison

ACT / MILESTONE	KEY ADMINISTRATIVE SHIFT	LEGISLATIVE / JUDICIAL INNOVATION	EXAMINER TRAP LOCK
Regulating Act 1773	GG of Bengal + 4 Council members	SC at Fort William (1774, CJ Elijah Impey)	GG of Bengal ≠ GG of India
Pitt's India Act 1784	Double Government (Board vs Directors)	Board of Control = 6 political commissioners	Board = Politics, Directors = Commerce
Charter Act 1833	GG of India (William Bentinck)	Law Member added (Lord Macaulay)	Ended ALL commercial functions
Charter Act 1853	6-member Central Legislative Council	Open competitive examination for ICS	Macaulay Committee 1854
GOI Act 1858	Crown Rule; Secretary of State (15-member)	Viceroy of India (Lord Canning)	Abolished Board & Directors
Indian Councils Act 1861	Legislative powers restored to Bombay/Madras	Portfolio system statutory; Ordinances	Raja of Benaras, Patiala, Dinkar Rao nominated
Indian Councils Act 1892	Non-official members increased	Budget discussion allowed	No voting, no supplementary questions
Indian Councils Act 1909	Satyendra Prasad Sinha (Law Member)	Separate electorates for Muslims	Morley = Sec of State, Minto = Viceroy
GOI Act 1919	Provincial Dyarchy (Transferred vs Reserved)	Central Bicameralism; Direct elections	Dyarchy in provinces, NOT at centre
GOI Act 1935	Provincial Autonomy; Residuary with Viceroy	Federal Court (1937); 3 Legislative Lists	Federation & Centre Dyarchy never operated

2. Major Committees of Constituent Assembly & Chairpersons

COMMITTEE	CHAIRPERSON	CRITICAL NOTE
Drafting Committee	**Dr. B.R. Ambedkar**	7 members; set up 29 August 1947
Union Powers Committee	**Jawaharlal Nehru**	9 members
Union Constitution Committee	**Jawaharlal Nehru**	Framed federal union structure
Provincial Constitution Committee	**Sardar Vallabhbhai Patel**	Designed Governor's office
Advisory Committee on FR, Minorities & Tribals	**Sardar Vallabhbhai Patel**	Largest committee (54 members)
Fundamental Rights Sub-Committee	**J.B. Kripalani**	Subordinate to Patel's advisory committee
Minorities Sub-Committee	**H.C. Mukherjee**	Subordinate to Patel's advisory committee
Steering Committee	**Dr. Rajendra Prasad**	Managed business of the Assembly
Rules of Procedure Committee	**Dr. Rajendra Prasad**	Framed assembly rules
States Committee (Negotiating with States)	**Jawaharlal Nehru**	Chaired by Nehru, NOT Patel
Ad hoc Committee on the National Flag	**Dr. Rajendra Prasad**	Appointed 23 June 1947
Order of Business Committee	**Dr. K.M. Munshi**	Only Congress member in original drafting core

3. Borrowed Features Matrix

COUNTRY / SOURCE	CONSTITUTIONAL FEATURES BORROWED
GOI Act 1935	Federal scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency provisions, Administrative details
United Kingdom	Parliamentary government, Rule of Law, Legislative procedure, Single citizenship, Cabinet system, Prerogative writs, Parliamentary privileges, Bicameralism
United States	Fundamental Rights, Independence of judiciary, Judicial review, Impeachment of President, Removal of SC/HC judges, Post of Vice-President
Ireland	Directive Principles of State Policy (DPSP), Nomination of members to Rajya Sabha, Method of election of President
Canada	Federation with a strong Centre, Vesting of residuary powers in the Centre, Appointment of state governors by the Centre, Advisory jurisdiction of Supreme Court
Australia	Concurrent List, Freedom of trade, commerce and intercourse, Joint-sitting of two Houses of Parliament
Germany (Weimar)	Suspension of Fundamental Rights during National Emergency
USSR (Russia)	Fundamental Duties, Ideals of justice (social, economic, political) in the Preamble
France	Republic, Ideals of liberty, equality, and fraternity in the Preamble
South Africa	Procedure for amendment of the Constitution, Election of members of Rajya Sabha
Japan	Procedure established by Law (Art. 21)

🧠 Memory Anchors & Mnemonics

1. **6 Provinces with Bicameralism under GOI Act 1935:** - Mnemonic: **BAM-B-U-B** - **B**engal, **A**ssam, **M**adras, **B**ihar, **U**nited Provinces, **B**ombay.
2. **Drafting Committee Members (7 Members):** - Mnemonic: **"Ambedkar's Ayyar-Ayyangar Munshi Saadulla, with Madhava & TTK"** - 1. Dr. B.R. Ambedkar (Chairman) - 2. N. Gopalaswami Ayyangar - 3. Alladi Krishnaswamy Iyer - 4. Dr. K.M. Munshi (only original member belonging to Congress party) - 5. Syed Mohammad Saadulla (Muslim League representative) - 6. N. Madhava Rau (replaced B.L. Mitter due to ill-health) - 7. T.T. Krishnamachari (replaced D.P. Khaitan on his death in 1948)
3. **Constituent Assembly Key Dates Sequence:** - Mnemonic: **9-11-13 Dec 1946** - 9 Dec: Temporary Chairman (**Dr. Sachchidananda Sinha**) - 11 Dec: Permanent President (**Dr. Rajendra Prasad**) + Vice-President (**H.C. Mukherjee**) + Adviser (**Sir B.N. Rau**) - 13 Dec: **Objectives Resolution** moved by Jawaharlal Nehru (unanimously adopted on 22 Jan 1947)
4. **Residuary Powers Constitutional Matrix:** - GOI Act 1935: Vested in **Governor-General / Viceroy** - Indian Constitution (Art. 248): Vested in **Parliament (Centre)** (borrowed from Canada) - USA & Australia: Vested in **States**
5. **Women in Constituent Assembly (~15 Members):** - Prominent members include: Sarojini Naidu, Vijayalakshmi Pandit, Rajkumari Amrit Kaur, Sucheta Kripalani, Durgabai Deshmukh, Begum Aizaz Rasul (only Muslim woman member), Hansa Mehta, Renuka Ray, Annie Mascarene, Ammu Swaminathan, Dakshayani Velayudhan (only Dalit woman member).

Chapter 02: Features of the Constitution

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2023–2024	50 Years of the **Basic Structure Doctrine** (*Kesavananda Bharati*, 24 April 1973 – 2023) commemorated across legal forums; judicial review and separation of powers reaffirmed as permanent constitutional guardrails.	High-yield conceptual question on constitutional balance and judicial review.
2022–2023	Supreme Court ruling in *Mohit Minerals* (GST Council) and NITI Aayog Governing Council meetings highlighted the evolving dynamics of **Cooperative and Competitive Federalism**.	Tests distinction between unitary tilt and cooperative federalism in Mains and Prelims.
2023	Chief Election Commissioner & Other ECs Act, 2023 affirmed the role of independent constitutional watchdogs as the bulwarks of Indian democracy.	Exam link to constitutional features: bulwarks of democracy (ECI, CAG, UPSC).

Consolidated Must-Score Facts

1. The Constitution of India is the **lengthiest written constitution** in the world; originally containing a Preamble, **395 Articles (in 22 Parts), and 8 Schedules** in 1949, it has grown to about **470 Articles (in 25 Parts) and 12 Schedules**.
2. Factors contributing to its vast size: (1) **Geographical diversity and vastness** of the country; (2) **Historical legacy** of the voluminous Government of India Act, 1935; (3) **Single constitution for both Union and States** (except erstwhile J&K); (4) **Dominance of legal luminaries** in the Constituent Assembly.
3. The Indian Constitution is drawn from diverse sources: **Dr. B.R. Ambedkar** proudly stated that the Constitution was framed after **"ransacking all the known constitutions of the world"**.
4. The **structural part** is largely derived from the **Government of India Act, 1935** (Federal Scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency provisions, Administrative details).
5. The **philosophical part** (Fundamental Rights and Directive Principles of State Policy) is derived from the **American** and **Irish** Constitutions respectively.
6. The **political part** (principle of Cabinet government and relations between executive and legislature) is largely drawn from the **British Constitution**.
7. Blend of **Rigidity and Flexibility**: The Indian Constitution is neither purely rigid (like USA) nor purely flexible (like UK); some provisions can be amended by a **Simple Majority** of Parliament (outside Art. 368); some require a **Special Majority** (Art. 368); and some require a **Special Majority plus Ratification by half the States** (Art. 368 proviso).
8. **Federal System with Unitary Bias:** The Constitution establishes a federal system of government (two governments, division of powers, written constitution, supremacy of constitution, rigidity of constitution, independent judiciary, bicameralism), but contains powerful unitary/non-federal features (strong Centre, single constitution, single citizenship, flexibility of constitution, integrated judiciary, appointment of State Governor by Centre, All-India Services, Emergency provisions).
9. **Article 1** describes India as a **'Union of States'**, which implies two things: (1) The Indian Federation is **NOT the result of an agreement among the States** (unlike the American Federation); and (2) **No State has the right to secede** from the federation. Hence, India is an **"Indestructible Union of destructible States"**.
10. **Scholarly Characterisations of Indian Federalism:**
    - **K.C. Wheare:** Termed the Indian Constitution **"Quasi-federal"**; a unitary state with subsidiary federal features rather than a federal state with subsidiary unitary features.
    - **Granville Austin:** Described Indian federalism as **"Co-operative Federalism"**.
    - **Morris-Jones:** Characterised it as **"Bargaining Federalism"**.
    - **Sir Ivor Jennings:** Described it as a **"Federation with a strong centralising tendency"**.
    - **Dr. B.R. Ambedkar:** Declared that the Constitution is **"Federal in normal times, Unitary in emergency"**.
11. **Parliamentary Form of Government:** Based on the British Westminster model; characterized by: (1) Presence of **nominal and real executives** (President and PM); (2) **Majority party rule**; (3) **Collective responsibility** of the executive to the legislature (Art. 75(3)); (4) **Membership of the ministers in the legislature**; (5) **Leadership of the Prime Minister**; (6) **Dissolution of the lower House** (Lok Sabha).
12. **Differences between Indian and British Parliamentary Systems:** (1) India has a **republican system** with an elected head of State (President), whereas Britain has a **hereditary monarchy**; (2) The British Parliament is **sovereign/supreme**, whereas the Indian Parliament is **limited by a written Constitution, federal division of powers, Fundamental Rights, and Judicial Review**; (3) In Britain, the Prime Minister must strictly be a member of the lower House (House of Commons); in India, the PM can be a member of either House (Indira Gandhi 1966, Deve Gowda 1996, Manmohan Singh 2004 were Rajya Sabha members).
13. **Synthesis of Parliamentary Sovereignty and Judicial Supremacy:** Indian framework harmonizes the British principle of **Parliamentary Sovereignty** and the American principle of **Judicial Supremacy**; the Supreme Court can declare parliamentary laws unconstitutional through its power of **Judicial Review** (Articles 13, 32, 136, 142), while Parliament can amend major portions of the Constitution through its **Constituent Power** (Article 368).
14. **Integrated and Independent Judiciary:** India possesses a **single integrated judicial system** enforcing both Central and State laws (unlike the dual court system in USA); at the apex is the **Supreme Court of India**, below it are **High Courts** at the State level, and below High Courts are **Subordinate Courts**.
15. **Constitutional Safeguards for Judicial Independence:** Security of tenure of judges (removed only by presidential order supported by special majority in both Houses); fixed service conditions; salaries charged on Consolidated Fund; prohibition on discussion of conduct of judges in legislature (Art. 121); ban on post-retirement practice for SC judges (Art. 124(7)); power to punish for contempt (Art. 129 & Art. 215).
16. **Fundamental Rights (Part III, Articles 12–35):** Meant for promoting the ideal of **Political Democracy**; operate as limitations on executive tyranny and legislative absolutism; justiciable and enforceable through writs under **Article 32** (Supreme Court) and **Article 226** (High Courts).
17. **Directive Principles of State Policy (Part IV, Articles 36–51):** Meant for promoting the ideal of **Social and Economic Democracy**; seek to establish a **Welfare State**; non-justiciable (Art. 37) but fundamental in the governance of the country; in *Minerva Mills (1980)*, SC held that the Indian Constitution is

founded on the bedrock of the **balance between Part III and Part IV**.

18. **Fundamental Duties (Part IVA, Article 51A):** Added by the **42nd Amendment Act, 1976** on recommendation of the **Swaran Singh Committee**; non-justiciable; originally 10 duties; **11th duty** (education of child 6–14 years) added by **86th Amendment Act, 2002**.
19. **Secular State:** The Constitution does not uphold any particular religion as the official religion; the word **'Secular'** was formally added to the Preamble by the **42nd Amendment Act, 1976**; Indian secularism is **positive** ("Sarva Dharma Sambhava" — equal respect and protection for all religions), unlike Western negative secularism of complete separation between religion and State.
20. **Constitutional Provisions Embodying Secularism:** Articles 14, 15, 16, 25, 26, 27, 28, 29, 30, and 44 (Uniform Civil Code); in *S.R. Bommai (1994)*, SC held **Secularism is a Basic Feature** of the Constitution.
21. **Universal Adult Suffrage (Article 326):** Every citizen who is not less than **18 years of age** has the right to vote without discrimination on grounds of religion, race, caste, sex, or property; voting age was reduced from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (effective 1989).
22. **Single Citizenship:** The Constitution provides for only a **single Indian citizenship** (borrowed from UK); there is NO separate State citizenship (unlike the USA and Switzerland); all citizens enjoy the same civil and political rights throughout India without distinction based on state of origin.
23. **Independent Bodies (Bulwarks of Democracy):** Constitution creates certain independent watchdog institutions:
    - **Election Commission of India (Article 324)**
    - **Comptroller and Auditor General of India (Article 148)**
    - **Union Public Service Commission (Article 315)**
    - **State Public Service Commissions (Article 315)**
24. **Emergency Provisions (Part XVIII, Articles 352–360):** Enable the President to handle extraordinary situations; transforms federal structure into a **unitary system without constitutional amendment** (unique in world constitutional history).
25. **Three-Tier Government Structure:** Originally, the Constitution provided for a dual polity (Union and States); the **73rd and 74th Amendment Acts, 1992** added a **third tier of local government** (Panchayats and Municipalities) with constitutional status, which is not found in any other major federation.
26. **Co-operative Societies (Part IXB):** Given constitutional status by the **97th Amendment Act, 2011**; added Art. 19(1)(c) right to form co-operatives, Art. 43B DPSP, and Articles 243ZH to 243ZT (partially struck down for intra-state co-ops in *Rajendra N. Shah, 2021*).
27. **Major Borrowings — UK:** Parliamentary government, Rule of Law, Legislative procedure, Single Citizenship, Cabinet system, Prerogative Writs, Parliamentary privileges, Bicameralism, Office of the Speaker.
28. **Major Borrowings — USA:** Fundamental Rights, Independence of Judiciary, Judicial Review, Impeachment of President, Removal of Supreme Court and High Court judges, Post of Vice-President.
29. **Major Borrowings — Ireland:** Directive Principles of State Policy (Part IV), Nomination of 12 members to Rajya Sabha, Method of Election of the President.
30. **Major Borrowings — Canada:** Federation with a strong Centre, Vesting of **Residuary Powers in the Centre** (Art. 248), Appointment of State Governors by Centre, Advisory Jurisdiction of Supreme Court (Art. 143).
31. **Major Borrowings — Australia: Concurrent List** (7th Schedule), Freedom of Trade, Commerce and Intercourse (Part XIII), mechanism of **Joint Sitting** of the two Houses of Parliament (Art. 108).
32. **Major Borrowings — Germany (Weimar):** Suspension of Fundamental Rights during National Emergency (Art. 359).
33. **Major Borrowings — USSR (Russia):** Fundamental Duties (Art. 51A), Ideals of **Justice (Social, Economic, and Political)** in the Preamble.
34. **Major Borrowings — France:** Republic, Ideals of **Liberty, Equality, and Fraternity** in the Preamble.
35. **Major Borrowings — South Africa:** Procedure for **Amendment of the Constitution** (Art. 368), Election of members of the Rajya Sabha.
36. **Major Borrowings — Japan: 'Procedure Established by Law'** (Article 21).
37. **Government of India Act, 1935 as Core Base:** Supplied ~60% of constitutional text: Federal scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency provisions, and Administrative details.
38. **Critiques of the Indian Constitution Answered:**
    - Critiques called it a "Borrowed Constitution" / "Bag of Borrowings" → Ambedkar refuted this, noting that borrowing good ideas while adapting them to Indian soil is wisdom, not plagiarism.
    - Critiques called it a "Carbon Copy of 1935 Act" → 1935 Act had no Fundamental Rights, no adult suffrage, and no independent judiciary; Indian Constitution has all three.
    - Critiques called it "Un-Indian and Anti-Indian" → It reflects the composite culture and democratic heritage of the freedom movement.
    - Critiques called it an "Elephantine Size" → Required due to extreme geographic, social, and cultural diversities.
    - Critiques called it a "Paradise for Lawyers" (Sir Ivor Jennings) → Legal precision was necessary to prevent autocratic encroachment on federal and individual rights.
39. **Preamble as the Soul of the Constitution:** Described by **Pt. Thakur Das Bhargava** as the "most precious part of the Constitution, the soul of the Constitution, the key to the Constitution"; described by **K.M. Munshi** as the **"Political Horoscope"** of the sovereign democratic republic; described by **Sir Ernest Barker** as the "Key-note to the Constitution".
40. **Preamble Amendability (*Kesavananda Bharati, 1973*):** Supreme Court held that the Preamble is an **integral part of the Constitution** and can be amended under Article 368, provided the **Basic Structure is not altered**; amended only once by the **42nd Amendment Act, 1976** (added 'Socialist', 'Secular', 'Integrity').
41. **Rule of Law (Article 14):** Borrowed from **A.V. Dicey's concept**: (1) Absence of arbitrary power; (2) Equality before the law; (3) Primacy of rights of the individual. In India, the Constitution is the supreme source of law, not judicial decisions.
42. **Separation of Powers vs Checks and Balances:** The Indian Constitution does NOT adopt a rigid separation of powers (like the US presidential system); instead, it adopts a system of **Checks and Balances** where the executive is drawn from and responsible to the legislature, and the judiciary reviews actions of both.

43. **Integrated Judiciary vs Dual System:** The Supreme Court and High Courts form a single integrated judicial pyramid that enforces both Central and State laws (unlike the US dual court system where federal courts enforce federal laws and state courts enforce state laws).
44. **Universal Adult Franchise Transformation:** When adopted in 1950 with universal adult franchise, critics doubted its success in an illiterate population; the first general election (1951–52) proved that adult franchise was the greatest democratic triumph of independent India.
45. **Bulwarks of the Democratic System:** Dr. B.R. Ambedkar identified four institutional bulwarks: Election Commission, CAG, UPSC, and State PSCs, without which democratic governance would crumble into autocracy.
46. **Unique Evolution of Local Self-Government:** The addition of Parts IX and IXA through the 73rd and 74th Amendments makes India the only major federation where local self-government institutions have complete, constitutionally protected architecture with mandatory 5-year elections and finance commissions.
47. **Positive vs Negative Secularism:** In *St. Xavier's College (1974)* and *Bommai (1994)*, SC highlighted that Indian secularism does not mean hostility towards religion, but treats all faiths with equal dignity, ensuring minority rights under Articles 29 and 30.
48. **Federalism as Basic Structure:** In *S.R. Bommai (1994)*, the Supreme Court unequivocally ruled that **Federalism is a part of the Basic Structure** of the Constitution; States are not mere vassals or administrative agencies of the Centre.
49. **Harmony between Rights and Directives:** In *Minerva Mills (1980)*, CJI Y.V. Chandrachud observed: "To give absolute primacy to one over the other is to disturb the harmony of the Constitution. Part III and Part IV are like two wheels of a chariot."
50. **Balance of Rigidity and Flexibility Matrix:** Article 368 does not follow a monolithic formula: simple majority provisions ensure daily adaptability, special majority ensures national consensus, and state ratification ensures federal integrity.
51. **Preamble Text Sequence & Landmark Landmark:** The exact preamble sequence of sovereign declarations is: **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC**; 'Socialist', 'Secular', and 'Integrity' were incorporated by the **42nd Constitutional Amendment Act, 1976**.
52. **Three Dimensions of Justice:** Justice in the Preamble encompasses **Social, Economic, and Political** dimensions; this noble ideal was directly inspired by the **Russian Revolution of 1917**.
53. **Five Facets of Liberty:** The Preamble guarantees Liberty of **Thought, Expression, Belief, Faith, and Worship**; these ideals of Liberty, Equality, and Fraternity were adopted from the **French Revolution (1789–1799)**.
54. **Two Facets of Equality:** The Preamble secures Equality of **Status** and of **Opportunity**, aiming to eradicate artificial civic, economic, and political distinctions (enforced via Articles 14–18 and Article 325/326).
55. **Preamble Adoption Date in Hindi Calendar:** The English date is **26th November 1949**; the Preamble also records the traditional Hindi calendar date: **Miti Margashirsha Shukla Saptami, Samvat 2006 Vikrami**.
56. **Berubari Union (1960) vs Kesavananda Bharati (1973):** In *Berubari Union case (1960)*, the SC held Preamble is NOT part of the Constitution; in *Kesavananda Bharati (1973)*, a 13-judge bench overruled Berubari, holding the **Preamble IS an integral part of the Constitution** and subject to Article 368 without altering basic structure.
57. **LIC of India Case (1995):** The Supreme Court once again reaffirmed that the **Preamble is an integral part of the Constitution**, though it remains non-justiciable and cannot be directly enforced in a court of law.
58. **Indestructible Union of Destructible States:** Dr. B.R. Ambedkar termed the Indian federation an 'Indestructible Union of destructible states' because states have no right to secede (Article 1) and Parliament can alter state boundaries without state consent (Article 3).
59. **Scholarly Characterizations of Indian Federalism: K.C. Wheare** classified it as '*Quasi-Federal*'; **Granville Austin** designated it '*Cooperative Federalism*'; **Morris-Jones** termed it '*Bargaining Federalism*'; **Ivor Jennings** described it as a '*Federation with a strong centralizing tendency*'.
60. **Doctrine of Basic Structure Evolution:** First articulated in *Kesavananda Bharati (1973)*; reaffirmed in *Minerva Mills (1980)* (balance between Fundamental Rights and DPSPs is part of basic structure); *S.R. Bommai (1994)* held secularism and federalism are basic structure components.
61. **Parliamentary Executive - Dual Executive System:** The **President is the de jure (nominal/titular) executive**, while the **Prime Minister is the de facto (real) executive**; Article 75(3) mandates collective responsibility of the Council of Ministers exclusively to the House of the People (Lok Sabha).
62. **Independent vs Integrated Judiciary:** The Indian Constitution establishes an **integrated judicial hierarchy** (Supreme Court at apex, High Courts, Subordinate Courts enforcing both Central and State laws), distinct from the dual court system of the United States.
63. **Universal Adult Suffrage (Article 326):** Adopted from the commencement of the Constitution; the voting age was reduced from 21 years to **18 years** by the **61st Constitutional Amendment Act, 1988** (enforced 28 March 1989).
64. **Single Citizenship Exceptionless Principle:** Unlike dual-citizenship federations (USA, Switzerland), the Indian Constitution provides **only single Indian citizenship** for the entire nation, guaranteeing equal civil and political rights irrespective of state domicile.
65. **Three-Tier Governance Innovation:** Originally bicameral at Centre and States; the **73rd and 74th Amendments (1992)** added constitutional status to rural Panchayats (Part IX) and urban Municipalities (Part IX-A), creating a unique 3-tier federal governance structure found in no other major world constitution.

⏱ Timeline / Chronology

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1949  ── 26 November: Constitution Adopted with 395 Articles, 22 Parts, 8 Schedules
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1950  ── 26 January: Constitution Enforced; Republic of India born
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1951  ── 1st Amendment: 9th Schedule added; reasonable restrictions on speech defined
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1956  ── 7th Amendment: 14 States & 6 UTs created; common High Courts & Governors permitted
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1973  ── 24 April: *Kesavananda Bharati* establishes the Basic Structure Doctrine
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1976  ── 42nd Amendment: "Socialist, Secular, Integrity" added to Preamble; Duties & Tribunals added
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1978  ── 44th Amendment: Restored balance; Right to Property shifted to Article 300A
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1980  — *Minerva Mills*: Harmony between FRs and DPSPs affirmed as basic feature
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1988  — 61st Amendment: Voting age lowered from 21 to 18 years under Article 326
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1992  — 73rd & 74th Amendments: Third tier of governance (Panchayats & Municipalities) added
  |
1994  — *S.R. Bommai*: Federalism and Secularism declared Basic Features
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2002  — 86th Amendment: Right to Education (Art. 21A) & 11th Fundamental Duty added
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2011  — 97th Amendment: Co-operative Societies added (Part IXB)
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2023  — 50th Anniversary of Kesavananda Bharati; Basic Structure Doctrine complete half-century
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📊 Quick Reference Grid

1. Scholarly Opinions on Indian Federalism

SCHOLAR / JURIST	TERM / PHRASE USED	MEANING / CORE IDEA
K.C. Wheare	**Quasi-federal**	Unitary state with subsidiary federal features
Granville Austin	**Co-operative Federalism**	Strong central government with active state collaboration
Morris-Jones	**Bargaining Federalism**	Continuous political bargaining between Centre and States
Sir Ivor Jennings	**Federation with a centralising tendency**	Federal constitution tilted heavily toward central dominance
Dr. B.R. Ambedkar	**Federal in peace, Unitary in emergency**	Flexible mechanism capable of immediate centralisation
Paul Appleby	**Extremely Federal**	High level of federal consultation in administrative practice

2. Major Constitutional Borrowings Master Grid

SOURCE COUNTRY / DOCUMENT	CONSTITUTIONAL ELEMENTS BORROWED
Government of India Act 1935	Federal Scheme, Office of Governor, Judiciary, Public Service Commissions, Emergency Provisions, Administrative Details
United Kingdom (UK)	Parliamentary government, Rule of Law, Legislative procedure, Single Citizenship, Cabinet system, Prerogative Writs, Bicameralism, Office of Speaker
United States (USA)	Fundamental Rights, Independence of Judiciary, Judicial Review, Impeachment of President, Removal of SC/HC Judges, Post of Vice-President
Ireland	Directive Principles of State Policy (DPSP), Nomination of 12 members to Rajya Sabha, Method of Presidential Election
Canada	Federation with strong Centre, Residuary powers to Centre (Art. 248), Appointment of State Governors by Centre, Advisory Jurisdiction of SC (Art. 143)
Australia	Concurrent List, Freedom of trade, commerce & intercourse, Joint Sitting of Parliament (Art. 108)
Germany (Weimar)	Suspension of Fundamental Rights during National Emergency (Art. 359)
USSR (Russia)	Fundamental Duties (Art. 51A), Ideals of Justice (Social, Economic, Political) in Preamble
France	Republic, Ideals of Liberty, Equality, and Fraternity in Preamble
South Africa	Procedure for amendment of the Constitution (Art. 368), Election of members of Rajya Sabha
Japan	Procedure established by Law (Art. 21)

🧠 Memory Anchors & Mnemonics

1. **Constitutional Source Acronyms:** - **UK = "PARLIAMENT"** (Parliamentary, Rule of Law, Legislation, Single Citizenship, Writs) - **USA = "JUDICIAL FR"** (Fundamental Rights, Judicial Review, Impeachment, SC/HC Judge Removal) - **Ireland = "ELECTIONS DPSP"** (DPSP, Rajya Sabha Nomination, Presidential Election Method) - **Canada = "CENTRE POWER"** (Strong Centre, Residuary Powers, Governor Appointment, Advisory SC) - **Australia = "CO-JOIN"** (Concurrent List, Joint Sitting, Commerce/Trade)
2. **Scholars Federalism Tagline:** - **W**heare = **W**eak Federation (**Quasi-federal**) - **A**ustin = **A**ll Together (**Cooperative**) - **J**ones = **J**uggling / **Bargaining** - **J**ennings = **J**umbo Centre (**Centralising Tendency**)
3. **The Four Democratic Bulwarks:** - **ECI + CAG + UPSC + SPSC** → The 4 non-negotiable institutional pillars.

Chapter 03: Parts, Articles & Schedules

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024–2025	106th Constitutional Amendment Act (Nari Shakti Vandan Adhiniyam) added Articles 330A, 332A, and 239AA(2)(b) providing 33% reservation for women in Lok Sabha, State Assemblies, and Delhi Assembly.	Landmark Article additions; takes effect after the subsequent census and delimitation.
2021	105th Constitutional Amendment Act amended Articles 338B, 342A, and 366(26C) to clarify that State Governments have the power to identify and maintain their own SEBC/OBC lists.	Direct reversal of SC interpretation in Maratha quota case; recurrent UPPCS theme.
2019	Jammu and Kashmir Reorganisation Act, 2019 reconstituted J&K into two UTs (J&K and Ladakh); updated First Schedule (now 28 States, 8 UTs) and Fourth Schedule (Rajya Sabha seats).	Schedule 1 & 4 structural updates; Article 370 provisions made non-operational.
2018	102nd Constitutional Amendment Act added Article 338B (National Commission for Backward Classes — NCBC) and Article 342A (Presidential specification of SEBCs).	Constitutional status to NCBC; matches NCSC (338) and NCST (338A).
Static/Ongoing	Eighth Schedule comprises 22 official languages; English, Bhojpuri, and Rajasthani are NOT included in the Eighth Schedule.	Recurrent elimination question in UPPSC/UKPCS Prelims.

Consolidated Must-Score Facts

1. The original Constitution of 1950 contained **22 Parts, 395 Articles, and 8 Schedules**; through subsequent amendments, it now effectively contains **25 Parts, 12 Schedules, and around 470 Articles** (with the highest numbering remaining Article 395).
2. Four Parts were added to the Constitution: **Part IVA** (Fundamental Duties, 42nd Amd 1976), **Part IXA** (Municipalities, 74th Amd 1992), **Part IXB** (Co-operative Societies, 97th Amd 2011), and **Part XIVA** (Tribunals, 42nd Amd 1976).
3. **Part VII** (dealing with Part B States) was deleted by the **7th Constitutional Amendment Act, 1956**; Part IX was originally omitted by the 7th Amd 1956 and later reintroduced with a completely new character (Panchayats) by the **73rd Constitutional Amendment Act, 1992**.
4. In *Union of India v. Rajendra N. Shah (2021)*, the Supreme Court struck down provisions of **Part IXB (Co-operative Societies)** inserted by the 97th Amendment to the extent they applied to single-State cooperative societies, holding that ratification by half the State legislatures under Art. 368(2) was mandatory; Part IXB now operates only for Multi-State Co-operative Societies.
5. **Part I (Articles 1–4):** Art. 1 defines India as a **'Union of States'**; Art. 2 deals with the **admission or establishment of new States** not part of India; Art. 3 deals with the **formation of new States, alteration of areas, boundaries, or names** of existing States; Art. 4 specifies that laws made under Arts. 2 and 3 require only a **simple majority** and are NOT deemed amendments under Art. 368.
6. **Part II (Articles 5–11):** Deals with **Citizenship** at the commencement of the Constitution; Art. 9 establishes that any person voluntarily acquiring citizenship of a foreign State automatically loses Indian citizenship (**single citizenship** principle); Art. 11 empowers **Parliament** to regulate citizenship by law (Citizenship Act, 1955).
7. **Part III (Articles 12–35):** Fundamental Rights; Art. 12 defines the **'State'**; Art. 13 establishes **Judicial Review** declaring laws inconsistent with or in derogation of Fundamental Rights void (*Doctrine of Eclipse*, *Doctrine of Severability*).
8. Articles available **exclusively to Indian citizens**: **15, 16, 19, 29, and 30**; all other Fundamental Rights (Arts. 14, 20, 21, 21A, 22, 25, 26, 27, 28) apply to all persons (citizens and aliens, except enemy aliens).
9. **Absolute Fundamental Rights: Article 17** (Abolition of Untouchability) and **Article 24** (Prohibition of employment of children below 14 in hazardous work) contain no constitutional exceptions or reasonable restrictions.
10. **Articles 20 and 21** enjoy supreme constitutional protection: under **Article 359** (as amended by 44th Amd 1978), the right to move any court for the enforcement of Arts. 20 and 21 **CANNOT be suspended** even during a National Emergency.
11. **Part IV (Articles 36–51):** Directive Principles of State Policy (**DPSP**); non-justiciable (Art. 37) but fundamental in the governance of the country; borrowed from Ireland (which borrowed from Spain).
12. Key DPSP Articles: **Art. 39A** (Equal Justice and Free Legal Aid — 42nd Amd 1976); **Art. 40** (Organisation of Village Panchayats); **Art. 43B** (Promotion of Co-operative Societies — 97th Amd 2011); **Art. 44** (Uniform Civil Code); **Art. 45** (Early childhood care up to 6 years — 86th Amd 2002); **Art. 48A** (Protection of Environment and Wildlife — 42nd Amd 1976); **Art. 50** (Separation of Judiciary from Executive).
13. **Part IVA (Article 51A):** Fundamental Duties; added on the recommendation of the **Swaran Singh Committee** by the **42nd Amendment, 1976** (10 duties originally); the **11th duty** (education of child aged 6–14 years) was added by the **86th Amendment, 2002** (Art. 51A(k)).
14. **Part V (Articles 52–151 — The Union):** Divided into 5 Chapters: Chapter I (The Executive: Arts. 52–78), Chapter II (Parliament: Arts. 79–122), Chapter III (Legislative Powers of President: Art. 123), Chapter IV (Union Judiciary: Arts. 124–147), Chapter V (CAG: Arts. 148–151).
15. Key Presidential Articles: **Art. 52** (President of India); **Art. 54** (Electoral College); **Art. 55** (Manner of Election — PR-STV); **Art. 61** (Procedure for Impeachment — 2/3rd total membership); **Art. 72** (Pardoning Power); **Art. 111** (Assent to Bills/Veto); **Art. 123** (Ordinance Making Power); **Art. 143** (Power to Consult Supreme Court).
16. Key Vice-Presidential Articles: **Art. 63** (Vice-President of India); **Art. 64** (Ex-officio Chairman of the Council of States); **Art. 66** (Election of VP by all MPs of both Houses); **Art. 67(b)** (Removal by resolution of Rajya Sabha agreed to by Lok Sabha).
17. Key Union Executive Articles: **Art. 74** (Council of Ministers to aid and advise President; advice tendered cannot be inquired into in any court); **Art. 75** (PM appointed by President; Ministers hold office during pleasure of President; Council of Ministers collectively responsible to Lok Sabha; size capped at 15% of LS by 91st Amd 2003); **Art. 76** (Attorney-General for India).
18. Key Parliamentary Articles: **Art. 79** (Constitution of Parliament: President + Rajya Sabha + Lok Sabha); **Art. 80** (Composition of Rajya Sabha: max 250; 12 nominated by President); **Art. 81** (Composition of Lok Sabha: max 550 post-104th Amd); **Art. 85** (Sessions, prorogation, dissolution; gap between sessions max 6 months); **Art. 108** (Joint Sitting presided over by Speaker); **Art. 110** (Definition of Money Bill); **Art. 112** (Annual Financial Statement/Budget).

19. Key Supreme Court Articles: **Art. 124** (Establishment and constitution of SC); **Art. 129** (Supreme Court to be a Court of Record and power to punish for contempt); **Art. 131** (Original Jurisdiction in inter-governmental disputes); **Art. 136** (Special Leave Petition — SLP); **Art. 137** (Review of judgments); **Art. 141** (Law declared by Supreme Court binding on all courts); **Art. 142** (Enforcement of decrees and orders for 'complete justice').
20. **Comptroller and Auditor General (CAG): Article 148** provides for the CAG of India; appointed by President; removed like an SC judge; tenure 6 years or 65 years; **Art. 149** prescribes duties/powers; **Art. 151** requires audit reports to be submitted to President/Governors who lay them before Parliament/State Legislatures.
21. **Part VI (Articles 152–237 — The States): Art. 153** (Governors of States; 7th Amd 1956 permits same person as Governor for 2 or more States); **Art. 154** (Executive power of State vested in Governor); **Art. 161** (Pardoning power of Governor — cannot pardon death sentence or court-martial); **Art. 163** (Council of Ministers to aid and advise Governor; Governor's discretionary decisions are final); **Art. 164** (CM appointed by Governor; collective responsibility to Legislative Assembly; min 12 ministers, max 15% of SLA); **Art. 165** (Advocate-General for the State).
22. Key State Legislature Articles: **Art. 169** (Abolition or creation of Legislative Councils in States by Parliament upon resolution passed by Legislative Assembly by special majority); **Art. 200** (Assent to Bills by Governor, or reservation of Bill for consideration of the President); **Art. 201** (Bills reserved by Governor for President's consideration); **Art. 213** (Governor's Ordinance-making power).
23. Key High Court Articles: **Art. 214** (High Courts for States); **Art. 215** (High Courts to be Courts of Record); **Art. 226** (Power of High Courts to issue writs for Fundamental Rights and ordinary legal rights); **Art. 227** (Power of superintendence over all courts and tribunals throughout territories in relation to which it exercises jurisdiction); **Art. 231** (Establishment of a common High Court for two or more States).
24. **Part VIII (Articles 239–242 — The Union Territories): Art. 239** (Administration of UTs by President through Administrator/LG); **Art. 239AA** (Special provisions with respect to Delhi — inserted by 69th Amd 1991, creating 70-member Assembly and 10% CoM limit); **Art. 239AB** (Failure of constitutional machinery in Delhi).
25. **Part IX (Articles 243 to 243-O — The Panchayats):** 73rd Amd 1992; **Art. 243A** (Gram Sabha); **Art. 243B** (Constitution of Panchayats at 3 levels; intermediate level optional for States with pop < 20 lakh); **Art. 243D** (Reservation of seats: SC/ST proportional, min 1/3rd for women); **Art. 243E** (Duration of 5 years; fresh election within 6 months of dissolution); **Art. 243I** (State Finance Commission constituted every 5 years); **Art. 243K** (State Election Commission).
26. **Part IXA (Articles 243P to 243ZG — The Municipalities):** 74th Amd 1992; **Art. 243Q** (Constitution of Nagar Panchayat, Municipal Council, Municipal Corporation); **Art. 243S** (Constitution and composition of Wards Committees); **Art. 243T** (Reservation of seats: min 1/3rd for women); **Art. 243ZD** (Committee for District Planning — DPC); **Art. 243ZE** (Committee for Metropolitan Planning).
27. **Part XI (Articles 245–263 — Relations Between Union and States):** Chapter I (Legislative Relations: Arts. 245–255); Chapter II (Administrative Relations: Arts. 256–263).
28. Key Legislative Relations Articles: **Art. 248** (Residuary powers of legislation vest exclusively in Parliament); **Art. 249** (Power of Parliament to legislate with respect to a State List matter in national interest upon Rajya Sabha resolution supported by 2/3rd present and voting, valid for 1 year); **Art. 250** (Parliament's power to legislate on State List during National Emergency); **Art. 252** (Power of Parliament to legislate for two or more States by consent); **Art. 254** (Inconsistency between laws made by Parliament and laws made by State Legislatures — Union law prevails).
29. Key Administrative Relations Articles: **Art. 256** (Obligation of States and Union); **Art. 257** (Control of Union over States in specified matters); **Art. 262** (Adjudication of disputes relating to waters of inter-state rivers or river valleys; courts' jurisdiction barred); **Art. 263** (Provisions with respect to an Inter-State Council established by the President).
30. **Part XII (Articles 264–300A — Finance, Property, Contracts and Suits): Art. 265** (No tax levied or collected except by authority of law); **Art. 266** (Consolidated Fund of India and Public Account of India); **Art. 267** (Contingency Fund of India held by Finance Secretary on behalf of President); **Art. 275** (Statutory Grants-in-aid to States); **Art. 279A** (GST Council); **Art. 280** (Finance Commission constituted every 5th year: Chairman + 4 members); **Art. 300A** (Right to Property — constitutional right, not Fundamental Right).
31. **Part XIII (Articles 301–307 — Trade, Commerce and Intercourse): Art. 301** declares freedom of trade, commerce, and intercourse throughout the territory of India; subject to reasonable restrictions imposed by Parliament (Art. 302) or States with prior presidential sanction (Art. 304(b)).
32. **Part XIV (Articles 308–323 — Services Under Union and States): Art. 310** (Doctrine of Pleasure); **Art. 311** (Safeguards against dismissal, removal, or reduction in rank of civil servants); **Art. 312** (All-India Services created by Parliament after Rajya Sabha resolution by 2/3rd present and voting); **Art. 315** (Public Service Commissions for Union and States); **Art. 320** (Functions of PSCs); **Art. 323** (Reports of PSCs).
33. **Part XIVA (Articles 323A–323B — Tribunals):** Added by 42nd Amd 1976; **Art. 323A** (Administrative Tribunals established by Parliament only for public service disputes — CAT/SAT); **Art. 323B** (Tribunals for other matters established by both Parliament and State legislatures).
34. **Part XV (Articles 324–329 — Elections): Art. 324** (Superintendence, direction, and control of elections vested in Election Commission of India); **Art. 325** (No person ineligible for inclusion in electoral roll on grounds only of religion, race, caste, or sex; single general electoral roll); **Art. 326** (Elections to Lok Sabha and State Assemblies on the basis of **Adult Suffrage**; voting age reduced from 21 to 18 by **61st Amendment Act, 1988**); **Art. 329** (Bar to interference by courts in electoral matters).
35. **Part XVI (Articles 330–342A — Special Provisions Relating to Certain Classes): Art. 330** (Reservation of seats for SCs and STs in Lok Sabha); **Art. 332** (Reservation for SCs and STs in State Legislative Assemblies); **Art. 334** (Reservation period extended every 10 years; 104th Amd 2019 extended SC/ST reservation to 2030 but ended Anglo-Indian nominations under Arts. 331 & 333); **Art. 335** (Claims of SCs/STs to services consistent with maintenance of efficiency); **Art. 338** (NCSC); **Art. 338A** (NCST); **Art. 338B** (NCBC); **Art. 340** (Appointment of Commission to investigate backward classes).
36. **Part XVII (Articles 343–351 — Official Language):** Chapter I (Language of the Union: Arts. 343–344); Chapter II (Regional Languages: Arts. 345–347); Chapter III (Language of SC/HCs: Arts. 348–349); Chapter IV (Special Directives: Arts. 350–351).
37. Key Official Language Articles: **Art. 343** (Official language of Union is Hindi in Devanagari script; international form of Indian numerals); **Art. 344** (Committee of Parliament on Official Language: 30 members — 20 LS, 10 RS); **Art. 348** (Authoritative texts of all Bills, Acts, Ordinances, and SC/HC proceedings shall be in English until Parliament provides otherwise); **Art. 350A** (Mother tongue instruction at primary stage for linguistic minorities); **Art. 350B** (Special Officer for Linguistic Minorities); **Art. 351** (Directive for development of Hindi language).
38. **Part XVIII (Articles 352–360 — Emergency Provisions): Art. 352** (National Emergency: War, External Aggression, Armed Rebellion; approved within 1 month by special majority); **Art. 355** (Duty of Union to protect States against external aggression and internal disturbance); **Art. 356** (President's Rule upon failure of constitutional machinery in State; approved within 2 months by simple majority; max 3 years); **Art. 358** (Automatic suspension of Art. 19 during external emergency only); **Art. 359** (Suspension of right to move courts for enforcement of specified FRs, except Arts. 20 & 21); **Art. 360** (Financial Emergency; never imposed).

39. **Part XIX (Articles 361–367 — Miscellaneous): Art. 361** (Immunity of President and Governors from criminal proceedings and arrest during term of office); **Art. 365** (Effect of failure to comply with, or to give effect to, directions given by the Union — ground for President's Rule under Art. 356).
40. **Part XX (Article 368 — Amendment of the Constitution):** Sole Article in Part XX; prescribes two types of majorities for amendment: (1) Special majority (majority of total membership + 2/3rd present and voting), and (2) Special majority + Ratification by half the State legislatures by simple majority; President must give assent (24th Amd 1971); basic structure cannot be amended (*Kesavananda Bharati*, 1973).
41. **Special Provisions under Articles 371 to 371-J (Part XXI):** Art. 371 (Maharashtra and Gujarat); Art. 371A (Nagaland); Art. 371B (Assam); Art. 371C (Manipur); Art. 371D & 371E (Andhra Pradesh & Telangana); Art. 371F (Sikkim); Art. 371G (Mizoram); Art. 371H (Arunachal Pradesh); Art. 371-I (Goa); Art. 371-J (Karnataka — Hyderabad-Karnataka region, 98th Amd 2012).
42. **Article 243ZD & 243ZE (Local Planning):** Art. 243ZD mandates the creation of a **District Planning Committee (DPC)** in every district to consolidate plans prepared by Panchayats and Municipalities; at least 4/5ths of DPC members must be elected by and from amongst elected members of Zila Panchayat and Municipalities. Art. 243ZE provides for Metropolitan Planning Committees.
43. **Article 262 vs 263 (Inter-State Coordination): Article 262** gives Parliament power to adjudicate inter-state river water disputes and bar courts' jurisdiction (Inter-State River Water Disputes Act, 1956); **Article 263** empowers the President to establish an **Inter-State Council** to investigate and coordinate policy across States (constituted 1990 on Sarkaria Commission advice).
44. **Article 266 vs 267 (Government Funds): Article 266** establishes the **Consolidated Fund of India** (all revenues, loans, and loan recoveries; no withdrawal without parliamentary Appropriation Act under Art. 114) and **Public Account of India** (provident funds, judicial deposits; executive operated); **Article 267** establishes the **Contingency Fund of India** (corpus ₹30,000 crore, held by Finance Secretary on behalf of President for unforeseen emergencies).
45. **Article 279A (GST Council):** Inserted by the **101st Amendment Act, 2016**; constitutional forum chaired by the Union Finance Minister; includes Union MoS Finance and Finance/Taxation Ministers of all States; decisions taken by a 3/4th weighted majority (Centre holds 1/3rd vote, all States combined hold 2/3rd vote).
46. **Article 300A (Right to Property Shift):** The Right to Property was abolished as a Fundamental Right under Arts. 19(1)(f) and 31 by the **44th Amendment Act, 1978** and re-enacted as a constitutional and legal right in Part XII under **Article 300A**; it is enforceable against executive action but not against valid legislative confiscation.
47. **Article 312 vs Article 315 (Services Matrix): Article 312** empowers Parliament to create new All-India Services provided the Rajya Sabha passes a resolution supported by a **2/3rd majority of members present and voting**; **Article 315** provides for the establishment of the Union Public Service Commission (UPSC) and State Public Service Commissions (SPSCs).
48. **Article 323A vs 323B (Tribunals Comparison): Article 323A** permits tribunals exclusively for administrative and service matters of public employees and can ONLY be established by **Parliament** (Administrative Tribunals Act, 1985); **Article 323B** covers tribunals for other subjects (taxation, foreign exchange, land reforms, election to legislatures) and can be established by **both Parliament and State Legislatures**.
49. **Articles 338, 338A, and 338B (Three Commissions Ladder): Article 338** governs the **National Commission for Scheduled Castes (NCSC)**; **Article 338A** governs the **National Commission for Scheduled Tribes (NCST)** (bifurcated by 89th Amd 2003); **Article 338B** governs the **National Commission for Backward Classes (NCBC)** (elevated from statutory to constitutional status by 102nd Amd 2018).
50. **Articles 350A and 350B (Linguistic Safeguards): Article 350A** places a constitutional duty on every State and local authority to provide adequate facilities for instruction in the **mother tongue at the primary stage** of education to children belonging to linguistic minority groups; **Article 350B** provides for a **Special Officer for Linguistic Minorities** appointed by the President to investigate and report on statutory safeguards.
51. **Schedule 1 (States and UTs):** Enumerates the names of 28 States and 8 Union Territories and specifies their territorial extents and jurisdictions.
52. **Schedule 2 (Emoluments & Allowances):** Specifies provisions relating to salaries and allowances of President, Governors, Speaker/Deputy Speaker of LS/LA, Chairman/Deputy Chairman of RS/LC, Judges of SC/HC, and the CAG (Note: PM and Ministers are NOT mentioned in Schedule 2).
53. **Schedule 3 (Forms of Oaths and Affirmations):** Contains 8 oath templates for Union Ministers, MPs, SC Judges, CAG, State Ministers, MLAs/MLCs, and HC Judges (Note: Oaths of President [Art. 60], Vice-President [Art. 69], and Governor [Art. 159] are NOT in Schedule 3).
54. **Schedule 4 (Rajya Sabha Seat Allocation):** Details the allocation of seats in the Council of States to States and UTs based on population; Uttar Pradesh has the highest allocation (**31 seats**), followed by Maharashtra (**19 seats**); 3 UTs have representation: Delhi (3), Puducherry (1), Jammu & Kashmir (4).
55. **Schedule 5 (Scheduled Areas & Tribes Administration):** Governs administration and control of Scheduled Areas and STs in 10 states (excluding the 4 Assam/Meghalaya/Tripura/Mizoram states); mandates Tribes Advisory Councils (TAC) consisting of up to 20 members (3/4th ST legislators).
56. **Schedule 6 (Tribal Areas in 4 NE States - ATM-M):** Special autonomous administration for **Assam, Meghalaya, Tripura, and Mizoram** through Autonomous District Councils (ADCs) of up to 30 members (26 elected, 4 nominated by Governor) with legislative, executive, and judicial powers.
57. **Schedule 7 (Three Legislative Lists):** Division of legislative powers under Article 246; **List I (Union List):** 97 original (100 present) items; **List II (State List):** 66 original (61 present) items; **List III (Concurrent List):** 47 original (52 present) items.
58. **Five Subjects Transferred by 42nd Amendment (1976):** Transferred from State List to Concurrent List: (1) Education, (2) Forests, (3) Weights and Measures, (4) Protection of wild animals and birds, and (5) Administration of justice, constitution and organization of all courts except SC and HCs.
59. **Schedule 8 (Official Languages Evolution):** Originally listed **14 languages**; currently **22 languages**; 21st Amendment 1967 added **Sindhi**; 71st Amendment 1992 added **Konkani, Manipuri, Nepali** (KMN); 92nd Amendment 2003 added **Bodo, Dogri, Maithili, Santhali** (BDMS); English is NOT in the 8th Schedule.
60. **Schedule 9 (Validation of Certain Acts):** Added by the **First Amendment Act, 1951** to protect land agrarian reform laws from judicial review on Fundamental Rights grounds; *I.R. Coelho (2007)* held laws placed in 9th Schedule after **24 April 1973** are open to judicial review.
61. **Schedule 10 (Anti-Defection Law):** Inserted by the **52nd Amendment Act, 1985** under Rajiv Gandhi; specifies disqualification of legislators on grounds of defection; split exception (1/3rd) was deleted by the **91st Amendment Act, 2003** (now only 2/3rd merger is protected).
62. **Schedule 11 (Panchayati Raj Functional Items):** Added by the **73rd Amendment Act, 1992**; lists **29 functional matters** within the jurisdiction of Panchayats (Article 243G), ranging from agriculture, minor irrigation, and animal husbandry to poverty alleviation and rural roads.
63. **Schedule 12 (Municipalities Functional Items):** Added by the **74th Amendment Act, 1992**; specifies **18 functional items** entrusted to Urban Local Bodies (Article 243W), including urban planning, regulation of land use, roads, bridges, and public health.
64. **Part IV-A (Fundamental Duties - Article 51A):** Inserted by the **42nd Amendment Act, 1976** on the recommendation of the **Swaran Singh Committee**; originally 10 duties; 11th duty (education for children 6–14 years) added by **86th Amendment Act, 2002**.

65. **Part IX-B (The Co-operative Societies - Articles 243ZH to 243ZT):** Added by the **97th Amendment Act, 2011**; gave constitutional status to cooperatives; Supreme Court in *Union of India v. Rajendra N. Shah (2021)* struck down Part IX-B in so far as it applies to state-level cooperatives for lack of state ratification under Article 368(2).
66. **Part XIV-A (Tribunals - Articles 323A and 323B):** Added by the **42nd Amendment Act, 1976**; Article 323A provides for Administrative Tribunals (CAT and SATs) for public service matters; Article 323B covers tribunals for other matters (taxation, foreign exchange, industrial disputes).
67. **Part XVIII (Emergency Provisions - Articles 352 to 360):** Article 352 (National Emergency on grounds of War, External Aggression, or Armed Rebellion); Article 356 (President's Rule on failure of constitutional machinery in a State); Article 360 (Financial Emergency - never invoked so far).
68. **Part XX (Amendment of the Constitution - Article 368):** Outlines two specific amendment procedures: (a) by special majority of Parliament, and (b) by special majority plus ratification by at least half of State Legislatures by simple majority.
69. **Article 370 & Article 371 Series (Special Provisions):** Article 371 (Maharashtra & Gujarat); Article 371A (Nagaland); Article 371B (Assam); Article 371C (Manipur); Article 371D & 371E (Andhra Pradesh & Telangana); Article 371F (Sikkim); Article 371G (Mizoram); Article 371H (Arunachal Pradesh); Article 371-I (Goa); Article 371J (Karnataka - Hyderabad-Karnataka region).
70. **Article 1 to Article 4 (Part I Summary):** Article 1 (India, that is Bharat, shall be a Union of States); Article 2 (Admission or establishment of new States by Parliament); Article 3 (Formation of new States and alteration of areas, boundaries or names of existing States by ordinary law); Article 4 (Laws under Art. 2 and 3 not deemed amendments under Art. 368).
71. **Article 12 (Definition of 'State'):** Encompasses: (1) Government and Parliament of India, (2) Government and Legislature of each State, (3) All local authorities (Panchayats, Municipalities), and (4) Other authorities under control of Govt of India (ONGC, LIC, SAIL, statutory corporations).
72. **Article 13 (Laws Inconsistent with Fundamental Rights):** Article 13(1) pre-constitutional laws; 13(2) post-constitutional laws void to the extent of contravention; 13(3) defines 'law' to include ordinances, orders, bye-laws, rules, regulations, and customs; 13(4) inserted by 24th CAA 1971 declaring Art. 368 amendments outside Art. 13.
73. **Article 248 (Residuary Powers):** Exclusively vests residuary powers of legislation (matters not enumerated in any of the three Lists of the 7th Schedule) in the **Parliament of India**; borrowed from Canada.
74. **Article 280 (Finance Commission Composition):** Mandates President to constitute a Finance Commission every 5th year; consists of a Chairman and **4 other members** appointed by the President based on qualifications determined by Parliament (Finance Commission Act, 1951).
75. **Article 312 (All-India Services):** Parliament can create new All-India Services common to Union and States only if the **Rajya Sabha passes a resolution supported by not less than two-thirds of members present and voting** declaring it necessary in the national interest.

⏱ Timeline / Chronology

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1950  ── Original Constitution: 22 Parts, 395 Articles, 8 Schedules
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1951  ── 1st Amendment: Added 9th Schedule (Validation of land reform acts, immune from judicial review originally)
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1956  ── 7th Amendment: Abolished Part VII (Part B States) & Part IX; reorganized Part VIII (UTs)
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1967  ── 21st Amendment: Added Sindhi to 8th Schedule as 15th official language
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1976  ── 42nd Amendment: Added Part IVA (Fundamental Duties, Art. 51A) and Part XIVA (Tribunals, Arts. 323A-323B)
  │
1978  ── 44th Amendment: Abolished Right to Property (Part III); relocated as constitutional right in Part XII (Art. 300A)
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1985  ── 52nd Amendment: Added 10th Schedule (Anti-Defection Law)
  │
1988  ── 61st Amendment: Reduced voting age under Article 326 from 21 years to 18 years
  │
1992  ── 71st Amendment: Added Konkani, Manipuri, Nepali (KMN) to 8th Schedule (18 languages)
  │
1992  ── 73rd & 74th Amendments: Added Part IX (Panchayats, 11th Sch - 29 items) & Part IXA (Municipalities, 12th Sch - 18 items)
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2002  ── 86th Amendment: Inserted Article 21A (Right to Education), amended Art. 45, and added 11th Duty (Art. 51A(k))
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2003  ── 92nd Amendment: Added Bodo, Dogri, Maithili, Santhali (BDMS) to 8th Schedule (total 22 languages)
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2011  ── 97th Amendment: Added Part IXB (Co-operative Societies, Arts. 243ZH to 243ZT)
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2016  ── 101st Amendment: Inserted Article 279A establishing the Goods and Services Tax (GST) Council
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2018  ── 102nd Amendment: Inserted Article 338B (NCBC) and Article 342A (SEBC notification)
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2019  ── 104th Amendment: Extended SC/ST quota in LS/SLAs to 2030; discontinued Anglo-Indian nomination (Arts. 331/333)
  │
2023  ── 106th Amendment: Enacted Nari Shakti Vandan Adhiniyam adding Arts. 330A, 332A, 239AA(2)(b) (33% women's quota)
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📊 Quick Reference Grid

1. Parts of the Constitution Master Grid

PART	TITLE / SUBJECT MATTER	ARTICLES COVERED	CRUCIAL REVISION LOCK
Part I	The Union and its territory	Arts. 1–4	Simple majority under Art. 4
Part II	Citizenship	Arts. 5–11	Single citizenship; Art. 9 loss
Part III	Fundamental Rights	Arts. 12–35	Arts. 15, 16, 19, 29, 30 citizens only
Part IV	Directive Principles of State Policy	Arts. 36–51	Non-justiciable; Art. 44 UCC
Part IVA	Fundamental Duties	Art. 51A	42nd Amd (10) + 86th Amd (11th)
Part V	The Union Government	Arts. 52–151	Ch. I (Exec), II (Parl), III (Ord), IV (SC), V (CAG)
Part VI	The State Governments	Arts. 152–237	High Courts (214–232); Governor (153–161)
Part VII	States in Part B of First Schedule	*Repealed (Art. 238)*	Deleted by 7th Amd 1956
Part VIII	The Union Territories	Arts. 239–242	Art. 239AA Delhi Special Provisions
Part IX	The Panchayats	Arts. 243–243-O	73rd Amd; 29 functional items
Part IXA	The Municipalities	Arts. 243P–243ZG	74th Amd; 18 functional items
Part IXB	Co-operative Societies	Arts. 243ZH–243ZT	97th Amd; multi-state co-ops valid
Part X	The Scheduled and Tribal Areas	Arts. 244–244A	5th & 6th Schedules
Part XI	Relations between Union and States	Arts. 245–263	Ch. I Legislative; Ch. II Administrative
Part XII	Finance, Property, Contracts and Suits	Arts. 264–300A	Art. 280 FC; Art. 300A Property
Part XIII	Trade, Commerce and Intercourse in India	Arts. 301–307	Freedom of trade; Parliament regulates
Part XIV	Services under Union and States	Arts. 308–323	Art. 312 All-India Services; Art. 315 PSCs
Part XIVA	Tribunals	Arts. 323A–323B	42nd Amd 1976; 323A Administrative
Part XV	Elections	Arts. 324–329A	Art. 324 ECI; Art. 326 Adult suffrage
Part XVI	Special Provisions relating to Certain Classes	Arts. 330–342A	Arts. 330/332 Reservation; 338/338A/338B
Part XVII	Official Language	Arts. 343–351	Hindi in Devanagari; 8th Schedule
Part XVIII	Emergency Provisions	Arts. 352–360	352 National, 356 State, 360 Financial
Part XIX	Miscellaneous	Arts. 361–367	Art. 361 Immunity of President/Governor
Part XX	Amendment of the Constitution	Art. 368	Single Article; Special majority
Part XXI	Temporary, Transitional and Special Provisions	Arts. 369–392	Art. 370 (inoperative); 371 series
Part XXII	Short title, Commencement, Authoritative Text in Hindi	Arts. 393–395	Art. 394 commencement; Art. 395 repeals

2. The Twelve Schedules Master Grid

SCHEDULE	SUBJECT MATTER	KEY PROVISIONS & CONSTITUTIONAL ARTICLES	MNEMONIC KEY
1st Schedule	Names of States and Union Territories with territorial jurisdiction	Articles 1 and 4 (28 States & 8 UTs)	**T** — Territories
2nd Schedule	Emoluments, allowances & privileges of President, Governors, Judges, CAG	Articles 59, 65, 75, 97, 125, 148, 158, 164, 186, 221 (*Ministers NOT in 2nd Sch*)	**E** — Emoluments
3rd Schedule	Forms of Oaths and Affirmations for MPs, MLAs, Ministers, Judges, CAG	Articles 75, 84, 99, 124, 146, 173, 188, 219 (*Pres, VP, Gov take oath under 60, 69, 159*)	**A** — Affirmations
4th Schedule	Allocation of seats in Council of States (Rajya Sabha) to States and UTs	Articles 4(1) and 80(2) (UP highest: 31 seats)	**R** — Rajya Sabha
5th Schedule	Administration and control of Scheduled Areas and Scheduled Tribes	Article 244(1) (10 States currently have 5th Sch areas)	**S** — Scheduled Areas
6th Schedule	Administration of Tribal Areas in North-Eastern States (AMTM)	Articles 244(2) and 275(1) (Assam, Meghalaya, Tripura, Mizoram)	**O** — Other Tribal (AMTM)
7th Schedule	Division of legislative powers: Union List (100), State (61), Concurrent (52)	Article 246 (Residuary with Parliament under Art. 248)	**F** — Federal Lists
8th Schedule	Official Languages recognized by Constitution (22 languages)	Articles 344(1) and 351 (Original 14; 21st, 71st, 92nd Amendments added 8)	**O** — Official Languages
9th Schedule	Validation of certain Acts and Regulations (Land Reforms & abolition of Zamindari)	Article 31B (Added by 1st Amd 1951; post-24 April 1973 laws subject to Judicial Review)	**L** — Land Reforms
10th Schedule	Disqualification on ground of defection for MPs and MLAs	Articles 102(2) and 191(2) (Added by 52nd Amd 1985; split deleted by 91st Amd 2003)	**D** — Defection
11th Schedule	Powers, authority and responsibilities of Panchayats (29 functional subjects)	Article 243G (Added by 73rd Amd 1992)	**P** — Panchayats
12th Schedule	Powers, authority and responsibilities of Municipalities (18 functional subjects)	Article 243W (Added by 74th Amd 1992)	**M** — Municipalities

3. Article 371 Series (Special Provisions for States)

ARTICLE	STATE COVERED	KEY SPECIFIC PROVISION	MEMORY TRIGGER
Art. 371	**Maharashtra & Gujarat**	Separate development boards for Vidarbha, Marathwada, Saurashtra, Kutch	Base state split (1960)
Art. 371A	**Nagaland**	Religious/social practices, customary laws & land protected; 13th Amd 1962	**A** = Naga (A is for Angami)
Art. 371B	**Assam**	Committee of Legislative Assembly consisting of tribal area members; 22nd Amd 1969	**B** = Assam (Bihu)
Art. 371C	**Manipur**	Committee of Legislative Assembly for Hill Areas; 27th Amd 1971	**C** = Manipur (Central hills)
Art. 371D & E	**Andhra Pradesh & Telangana**	Equitable opportunities in public employment and education; Central University (371E)	**D/E** = Direct Telugu equality
Art. 371F	**Sikkim**	36th Amd 1975; special representation; Governor's special responsibility	**F** = Fairytale kingdom
Art. 371G	**Mizoram**	Customary law, land ownership protected; min 40 assembly seats; 53rd Amd 1986	**G** = Gun-peace accord
Art. 371H	**Arunachal Pradesh**	Governor has special responsibility for law and order; min 30 seats; 55th Amd 1986	**H** = Hills of Dawn
Art. 371-I	**Goa**	Legislative Assembly to consist of not less than 30 members; 56th Amd 1987	**I** = Island/Goa beaches
Art. 371J	**Karnataka**	Hyderabad-Karnataka region (Kalyana-Karnataka) development board; 98th Amd 2012	**J** = Josh for Kalyana

🧠 Memory Anchors & Mnemonics

1. **The 12 Schedules Mnemonic:** - **TEARS OF OLD PM** - **T** — Territories & States (Schedule 1) - **E** — Emoluments & Salaries (Schedule 2) - **A** — Affirmations & Oaths (Schedule 3) - **R** — Rajya Sabha seat allocation (Schedule 4) - **S** — Scheduled Areas (Schedule 5) - **O** — Other Tribal Areas (Schedule 6: AMTM) - **F** — Federal Lists (Schedule 7: Union, State, Concurrent) - **O** — Official Languages (Schedule 8: 22 languages) - **L** — Land Reforms (Schedule 9: 1st Amendment) - **D** — Defection (Schedule 10: 52nd Amendment) - **P** — Panchayats (Schedule 11: 73rd Amendment, 29 subjects) - **M** — Municipalities (Schedule 12: 74th Amendment, 18 subjects)
2. **6th Schedule States Mnemonic:** - **AMTM** (Assam, Meghalaya, Tripura, Mizoram) - Examiner Trap: **Manipur is NOT in the 6th Schedule** (it has Hill Councils under Art. 371C).
3. **8th Schedule Language Addition Formula:** - **21st Amd (1967) + 71st Amd (1992) = 92nd Amd (2003)** (Note: 21 + 71 = 92!) - 21st: **Sindhi** (1) - 71st: **KMN** (3) = **K**onkani, **M**anipuri, **N**epali - 92nd: **BDMS** (4) = **B**odo, **D**ogri, **M**aithili, **S**anthali - 14 (original) + 1 + 3 + 4 = **22 Official Languages**.
4. **Functional Subjects Count:** - Schedule 11 (Panchayats) = **29 Subjects** (2 + 9 = 11!) - Schedule 12 (Municipalities) = **18 Subjects** (1 + 8 = 9, half of 18!)
5. **Article 371 Alphabet Ladder Mnemonic:** - 371**A** = **A**ngami / Nagaland - 371**B** = **B**ihu / Assam - 371**C** = **C**entral hills / Manipur - 371**D** = **D**irect Andhra Pradesh & Telangana - 371**F** = **F**airytale / Sikkim - 371**G** = **G**un-peace / Mizoram - 371**H** = **H**ill territory / Arunachal Pradesh - 371**-I** = **I**sland beaches / Goa - 371**J** = **J**osh for Kalyana / Karnataka

Chapter 04: Union & Its Territory

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024–2025	Supreme Court upheld the constitutional validity of the **Jammu and Kashmir Reorganisation Act, 2019**; directed the Election Commission to conduct assembly elections and restoration of statehood at the earliest.	Landmark constitutional validation of Article 3 reorganization powers.
2023	Government of National Capital Territory of Delhi (Amendment) Act, 2023 enacted, creating the National Capital Civil Service Authority (NCCSA) for transfers and postings in Delhi.	Critical update to Article 239AA and Union control over UT administration.
2024 / CAA	Citizenship (Amendment) Rules, 2024 notified to implement the **Citizenship Amendment Act, 2019 (CAA)** for persecuted minorities from Pakistan, Bangladesh, and Afghanistan entering before 31 Dec 2014.	High-yield Prelims topic linking Part II (Articles 5–11) with contemporary statutory rules.
2020	Merger of Dadra and Nagar Haveli and Daman and Diu into a single Union Territory (effective **26 January 2020**); total UT count adjusted to **8**.	Current status lock: **28 States and 8 Union Territories**.

Consolidated Must-Score Facts

1. **Part I (Articles 1–4)** of the Constitution is titled 'The Union and its Territory'; defines India's territorial framework and parliamentary reorganization powers.
2. **Article 1(1)** declares: **"India, that is Bharat, shall be a Union of States"**; adopts both traditional (Bharat) and modern (India) names; uses the term 'Union' rather than 'Federation'.
3. Reasons for 'Union of States' (**Dr. B.R. Ambedkar**): (1) Indian federation is **not the result of an agreement among States**; (2) States have **no right to secede** from the Union.
4. **Territory of India vs Union of India:** 'Territory of India' is a **wider expression** that includes: (a) Territories of the States; (b) Union Territories; (c) Such other territories as may be acquired by India. 'Union of India' includes **only the States**.
5. **Article 2:** Empowers Parliament to **admit into the Union of India, or establish, new States** that were not part of India previously (e.g., admission of Sikkim, establishment of new external territories).
6. **Article 3:** Empowers Parliament to form new States or alter boundaries of existing States: - (a) Form a new State by separation of territory from any State, or by uniting two or more States, or parts of States; - (b) Increase the area of any State; - (c) Diminish the area of any State; - (d) Alter the boundaries of any State; - (e) Alter the name of any State.
7. **Procedural Safeguards under Article 3:** - (1) Bill can be introduced in either House of Parliament **ONLY on the prior recommendation of the President**; - (2) Before recommending, President must **refer the bill to the concerned State Legislature** for expressing its views within a specified period; - (3) The President and Parliament are **NOT bound by the views of the State Legislature** and may accept or reject them.
8. **UTs Excluded from Reference:** For Union Territories, no reference needs to be made to the concerned legislature; Parliament can unilaterally alter the area, boundaries, or name of any UT.
9. **Article 4:** Declares that any law made under Article 2 or Article 3 for the admission/establishment or formation of new States is **NOT to be deemed an amendment of the Constitution under Article 368**; such laws can be passed by a **Simple Majority** of Parliament.
10. **Indestructible Union of Destructible States:** The territorial integrity or continued existence of any State is NOT guaranteed by the Constitution; Parliament can redraw the political map of India at will. Hence, India is an "indestructible Union of destructible States" (unlike the USA, which is an "indestructible Union of indestructible States").
11. **Cession of Indian Territory (*Berubari Union Case, 1960*):** Supreme Court held that Parliament's power to diminish state territory under Article 3 **does NOT include the power to cede Indian territory to a foreign State**; cession can be effected ONLY by an **amendment of the Constitution under Article 368** (implemented via the 9th Amendment Act, 1960).
12. **Settlement of Boundary Disputes:** In 1969, Supreme Court ruled that settlement of a boundary dispute between India and another country does **not require a constitutional amendment**; it can be implemented by **executive action** as it does not involve cession of territory.
13. **Integration of Princely States (1947):** Of the 552 princely states situated within Indian geographical boundaries, 549 joined India voluntarily; 3 states initially refused and were integrated later:
    - **Hyderabad:** Integrated by police action (**Operation Polo**, September 1948);
    - **Junagadh:** Integrated through a **Plebiscite** (February 1948);
    - **Kashmir:** Integrated by signing the **Instrument of Accession** (October 1947).
14. **Four-Fold Classification of States in 1950:**
    - **Part A States (9):** Former British provinces governed by elected Governors (Assam, Bihar, Bombay, MP, Madras, Orissa, Punjab, UP, West Bengal).
    - **Part B States (9):** Former princely states governed by Rajpramukhs (Hyderabad, Jammu & Kashmir, Madhya Bharat, Mysore, Patiala and East Punjab States Union [PEPSU], Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh).
    - **Part C States (10):** Former Chief Commissioners' provinces and small princely states administered centrally (Ajmer, Bhopal, Bilaspur, Cooch-Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura).
    - **Part D Territory (1):** Andaman and Nicobar Islands (administered by Lt. Governor).
15. **Dhar Commission (June 1948):** Appointed by President of CA, Dr. Rajendra Prasad, under Justice **S.K. Dhar**; recommended reorganization of states on the basis of **administrative convenience** rather than linguistic considerations.
16. **JVP Committee (December 1948):** Formed at the Jaipur Congress session consisting of **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; submitted report in April 1949 formally rejecting language as the basis for state reorganization.

17. **Creation of Andhra State (1953):** First linguistic state created on **1 October 1953** by separating Telugu-speaking areas from Madras State; forced by the death of veteran Gandhian **Potti Sreeramulu** after a 56-day hunger strike.
18. **Fazl Ali Commission (States Reorganisation Commission — SRC, 1953):** 3-member commission appointed under Justice **Fazl Ali** (Chairman), with **K.M. Panikkar** and **H.N. Kunzru** as members; submitted report in September 1955.
19. **SRC Recommendations:** Broadly accepted language as the basis of reorganization, but firmly rejected the theory of **"one language, one state"**; recommended preservation of national unity and administrative/economic viability; recommended abolition of the 4-fold classification of States.
20. **States Reorganisation Act, 1956 & 7th Constitutional Amendment:** Abolished Parts A, B, C, D states; created **14 States and 6 Union Territories** on **1 November 1956**.
21. The 14 States created in 1956: Andhra Pradesh, Assam, Bihar, Bombay, Jammu & Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal.
22. The 6 Union Territories created in 1956: Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive, Minicoy and Amindivi Islands, Manipur, Tripura.
23. **Bifurcation of Bombay (1960):** Bombay State bifurcated into **Maharashtra** (for Marathi speakers) and **Gujarat** (for Gujarati speakers); Gujarat became the **15th State** of the Indian Union.
24. **Dadra and Nagar Haveli:** Liberated from Portuguese rule in 1954; converted into a Union Territory by the **10th Constitutional Amendment Act, 1961**.
25. **Goa, Daman and Diu:** Liberated from Portuguese rule by police action (**Operation Vijay**, December 1961); constituted as a UT by the **12th Constitutional Amendment Act, 1962**; Goa was conferred full statehood in 1987 (**25th State**).
26. **Puducherry:** Handed over by the French in 1954; administered as acquired territory until 1962, when made a UT by the **14th Constitutional Amendment Act, 1962**.
27. **Nagaland (1963):** Formed by taking out the Naga Hills and Tuensang area from Assam; became the **16th State** of India (13th Amd Act, 1962).
28. **Bifurcation of Punjab (1966):** On recommendation of the **Shah Commission**, Punjab was reorganized into **Punjab** (for Punjabi speakers), **Haryana** (**17th State**, for Hindi speakers), and **Chandigarh** was created as a Union Territory serving as joint capital.
29. **Himachal Pradesh (1971):** Union Territory of Himachal Pradesh elevated to full statehood as the **18th State** of India.
30. **North-Eastern Reorganisation (1972):** Manipur became the **19th State**, Tripura the **20th State**, and Meghalaya the **21st State**; Mizoram and Arunachal Pradesh were formed as Union Territories.
31. **Integration of Sikkim (1974–1975):**
    - **35th Amendment Act, 1974:** Conferred the status of **'Associate State'** on Sikkim and inserted Article 2A and the 10th Schedule.
    - **36th Amendment Act, 1975:** Following a referendum, abolished the Chogyal monarchy, repealed Article 2A and 10th Schedule, and admitted Sikkim as the **22nd full-fledged State** of India (Article 371F).
32. **Statehood to Mizoram, Arunachal Pradesh, Goa (1987): Mizoram** became the **23rd State** (53rd Amd), **Arunachal Pradesh** the **24th State** (55th Amd), and **Goa** the **25th State** (56th Amd).
33. **Three New States in 2000:**
    - **Chhattisgarh (26th State):** Carved out of Madhya Pradesh on **1 November 2000**.
    - **Uttarakhand (27th State, originally Uttaranchal):** Carved out of Uttar Pradesh on **9 November 2000**.
    - **Jharkhand (28th State):** Carved out of Bihar on **15 November 2000**.
34. **Telangana (2014):** Carved out of Andhra Pradesh as the **29th State** on **2 June 2014** (Andhra Pradesh Reorganisation Act, 2014).
35. **Jammu and Kashmir Reorganisation (2019):** Jammu and Kashmir Reorganisation Act, 2019 bifurcated the State of Jammu and Kashmir into two Union Territories: **UT of Jammu & Kashmir** (with a Legislative Assembly) and **UT of Ladakh** (without an assembly), effective **31 October 2019**.
36. **Merger of UTs (2020):** Dadra and Nagar Haveli and Daman and Diu merged into a single UT effective **26 January 2020**; headquarters at **Daman**.
37. **Present Status of Indian Union:** As of 2026, the Indian Union comprises **28 States and 8 Union Territories**.
38. **Renaming of States and UTs:** United Provinces was renamed **Uttar Pradesh** in 1950 (first State to be renamed); Madras renamed **Tamil Nadu** (1969); Mysore renamed **Karnataka** (1973); Laccadive, Minicoy and Amindivi Islands renamed **Lakshadweep** (1973); Uttaranchal renamed **Uttarakhand** (2007); Pondicherry renamed **Puducherry** (2006); Orissa renamed **Odisha** (2011).
39. **Citizenship at Commencement (Articles 5–8):** Conferred citizenship on persons domiciled in India (Art. 5), persons migrated from Pakistan (Art. 6), persons migrated to Pakistan and returned (Art. 7), and persons of Indian origin residing outside India (Art. 8).
40. **Parliament's Supreme Power on Citizenship (Article 11):** Article 11 expressly empowers Parliament to regulate the right of citizenship by law; Parliament enacted the comprehensive **Citizenship Act, 1955**.
41. **Article 1 Terrains Classification:** Territory of India consists of: (1) States; (2) Union Territories; (3) Acquired territories. An acquired territory becomes part of Indian territory from the moment of acquisition, but requires legislation under Art. 2 to be admitted as a State.
42. **Dhar Commission vs JVP vs Fazl Ali Evolution:**
    - **Dhar (1948):** Administrative convenience, NOT language.
    - **JVP (1948–49):** Rejected language as basis; advocated postponement of reorganization.
    - **Fazl Ali (1953–55):** Accepted language as a major factor, but rejected "one language, one state".
43. **Potti Sreeramulu's Sacrifice:** Veteran Gandhian freedom fighter whose 56-day fast unto death forced Prime Minister Nehru to concede the formation of the first linguistic State (Andhra State) in 1953, setting off the nationwide chain reaction for linguistic reorganization.
44. **Shah Commission (1966):** Appointed by the Central Government under Justice J.C. Shah to divide the bilingual State of Punjab; recommended creation of Hindi-speaking Haryana and Punjabi-speaking Punjab.
45. **Enclaves Exchange with Bangladesh (100th Amendment Act, 2015):** India transferred 111 enclaves to Bangladesh and received 51 enclaves from Bangladesh; settled the 4,096 km border; enacted under Article 368 because it involved cession and acquisition of territory.
46. **Five Modes of Acquiring Citizenship:** (1) **Birth** (Jus soli); (2) **Descent** (Jus sanguinis); (3) **Registration** (Persons of Indian origin, spouses of citizens); (4) **Naturalisation** (Residency, good character, language); (5) **Incorporation of Territory** (e.g., Goa, Puducherry, Sikkim).

47. **Three Modes of Losing Citizenship:** (1) **Renunciation** (Voluntary declaration by an Indian citizen of full age); (2) **Termination** (Automatic loss when an Indian citizen voluntarily acquires foreign citizenship under Art. 9); (3) **Deprivation** (Compulsory termination by Central Government for disloyalty, fraud, trading with enemy, or imprisonment within 5 years of naturalisation).
48. **Single Citizenship Constitutional Ideal:** Borrowed from the United Kingdom; promotes national integration; no domicile-based political distinctions; all citizens enjoy equal Fundamental Rights throughout the territory of India.
49. **Overseas Citizens of India (OCI) Cardholders:** Not full citizens; created by Citizenship (Amendment) Act, 2005; granted multi-purpose, life-long visa to visit India; do NOT have voting rights, cannot hold constitutional office (President, Judge, MP, MLA), and cannot acquire agricultural land.
50. **Citizenship Amendment Act (CAA), 2019 Specifics:** Extends fast-track Indian citizenship to 6 non-Muslim persecuted minority communities (**Hindus, Sikhs, Buddhists, Jains, Parsis, Christians**) from **Pakistan, Bangladesh, and Afghanistan** who entered India on or before **31 December 2014**; reduces residency requirement for naturalisation from 11 years to **5 years**; exempts 6th Schedule tribal areas and Inner Line Permit (ILP) areas.
51. **Article 1 - Nature and Territorial Scope:** Article 1(1) declares 'India, that is Bharat, shall be a Union of States'; Article 1(2) refers to States and territories specified in the First Schedule; Article 1(3) categorizes 'Territory of India' into: (a) Territories of States, (b) Union Territories, and (c) Such other territories as may be acquired by Govt of India; 'Territory of India' is a wider expression than 'Union of India' (which includes only States).
52. **Article 2 vs Article 3 Nuance:** Article 2 relates to admission or establishment of **new States that are not part of the Union of India** (e.g. admission of Sikkim via 36th CAA 1975); Article 3 relates to the formation of or changes in the existing States of the Union of India (internal reorganization).
53. **Article 3 Procedure for State Reorganisation:** Bill can be introduced in either House ONLY on the **prior recommendation of the President**; President must refer the bill to the concerned State Legislature for expressing its views within a specified period; **Parliament / President is NOT bound by the views of the State Legislature** and can accept or reject them; for Union Territories, no reference to legislature is needed.
54. **Cession of Indian Territory (Berubari Union Reference, 1960):** Supreme Court held that the power of Parliament to alter boundaries under Article 3 does NOT include the power to cede Indian territory to a foreign country; Indian territory can be ceded **ONLY by amending the Constitution under Article 368** (hence 9th CAA 1960 enacted for Berubari, and 100th CAA 2015 enacted for Bangladesh enclaves exchange).
55. **Settlement of Boundary Disputes (Magannbhai Ishwarbhai Patel Case, 1969):** Supreme Court ruled that settlement of a boundary dispute between India and another country does **NOT require a constitutional amendment under Article 368**; it can be implemented by executive action as it does not involve cession of Indian territory.
56. **S.K. Dhar Commission (June 1948):** Appointed by President of Constituent Assembly (Dr. Rajendra Prasad) to examine feasibility of linguistic provinces; submitted report in December 1948 recommending reorganization on basis of **administrative convenience** rather than linguistic considerations.
57. **JVP Committee (December 1948):** Consisted of **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; appointed by Congress Jaipur Session; submitted report in April 1949 formally rejecting language as the basis for reorganization of states.
58. **Creation of First Linguistic State (Andhra State, 1953):** Potti Sreeramulu underwent a 56-day hunger strike demanding a separate Telugu state from Madras Presidency and died on 15 December 1952; government was forced to create the **first linguistic state of Andhra on 1 October 1953** (capital Kurnool; High Court Guntur).
59. **Fazl Ali Commission / States Reorganisation Commission (1953–1955):** 3-member Commission: **Justice Fazl Ali (Chairman), H.N. Kunzru, and K.M. Panikkar**; accepted language as broad basis for reorganization but rejected 'one language, one state' theory; recommended abolition of 4-tier state classification (Part A, B, C, D) and creation of 16 states and 3 UTs.
60. **States Reorganisation Act, 1956 & 7th CAA 1956:** Enacted in November 1956; established **14 States** (Andhra Pradesh, Assam, Bihar, Bombay, Jammu & Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal) and **6 Union Territories** (Andaman & Nicobar, Delhi, Himachal Pradesh, Laccadive/Minicoy/Amindivi, Manipur, Tripura).

⏱ Timeline / Chronology

State Reorganisation Chronological Sequence (1953–2020)

```
1953  ── Andhra State created (1st linguistic state, separated from Madras)
  |
1956  ── States Reorganisation Act & 7th Amendment (14 States & 6 UTs born)
  |
1960  ── Bombay bifurcated into Maharashtra & Gujarat (15th State)
  |
1961  ── Dadra & Nagar Haveli (10th Amd); Goa, Daman & Diu liberated (12th Amd 1962)
  |
1963  ── Nagaland created as 16th State (out of Assam)
  |
1966  ── Punjab bifurcated: Punjab, Haryana (17th State), Chandigarh UT
  |
1971  ── Himachal Pradesh elevated to full statehood (18th State)
  |
1972  ── Manipur (19th), Tripura (20th), Meghalaya (21st State); Mizoram & Arunachal as UTs
  |
1975  ── Sikkim admitted as 22nd full-fledged State (36th Amendment)
  |
1987  ── Mizoram (23rd), Arunachal Pradesh (24th), Goa (25th State)
  |
2000  ── Chhattisgarh (26th – 1 Nov), Uttarakhand (27th – 9 Nov), Jharkhand (28th – 15 Nov)
  |
2014  ── Telangana created as 29th State (2 June 2014)
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2019  ── J&K Reorganisation: State of J&K bifurcated into UT of J&K and UT of Ladakh (31 Oct 2019)
  |
2020  ── Dadra & Nagar Haveli and Daman & Diu merged into a single UT (26 Jan 2020)
       [Total: 28 States and 8 Union Territories]
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📊 Quick Reference Grid

1. State Formation Match Table

STATE FORMED	YEAR OF CREATION	CARVED OUT FROM / PARENT UNIT	CONSTITUTIONAL LANDMARK / COMMISSION
Andhra State	1953	Madras State	Potti Sreeramulu fast (1st linguistic state)
Gujarat	1960	Bombay State (15th State)	Bilingual Bombay bifurcation
Nagaland	1963	Naga Hills & Tuensang (Assam) (16th State)	13th Amendment Act, 1962
Haryana	1966	Punjab (17th State)	Shah Commission (1966)
Himachal Pradesh	1971	Elevated from Union Territory (18th State)	State of Himachal Pradesh Act, 1970
Manipur & Tripura	1972	Elevated from Union Territories (19th & 20th)	North-Eastern Areas Reorganisation Act, 1971
Meghalaya	1972	Autonomous sub-state within Assam (21st State)	North-Eastern Areas Reorganisation Act, 1971
Sikkim	1975	Chogyal Monarchy / Associate State (22nd State)	36th Constitutional Amendment Act, 1975
Mizoram	1987	Elevated from UT (23rd State)	53rd Amendment Act, 1986
Arunachal Pradesh	1987	Elevated from UT (24th State)	55th Amendment Act, 1986
Goa	1987	Elevated from UT (25th State)	56th Amendment Act, 1987
Chhattisgarh	2000 (1 Nov)	Madhya Pradesh (26th State)	MP Reorganisation Act, 2000
Uttarakhand	2000 (9 Nov)	Uttar Pradesh (27th State)	UP Reorganisation Act, 2000
Jharkhand	2000 (15 Nov)	Bihar (28th State)	Bihar Reorganisation Act, 2000
Telangana	2014 (2 June)	Andhra Pradesh (29th State)	AP Reorganisation Act, 2014

2. The Three State Reorganisation Committees

COMMITTEE / COMMISSION	YEAR APPOINTED	MEMBERS	KEY RECOMMENDATION
Dhar Commission	June 1948	S.K. Dhar (Chairman)	Administrative convenience, NOT language
JVP Committee	December 1948	Jawaharlal Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya	Formally rejected language as basis
Fazl Ali Commission (SRC)	December 1953	Fazl Ali (Chair), K.M. Panikkar, H.N. Kunzru	Language accepted as major factor; rejected "one language, one state"; proposed 14 states + 6 UTs

🧠 Memory Anchors & Mnemonics

1. **State Creation Committees Sequence:** - **D-J-F Rule:** - **D**har Commission (1948) → **J**VP Committee (1948–49) → **F**azl Ali Commission (1953–55)
2. **Three States of November 2000 Mnemonic:** - **"C-U-J 1-9-15"** - **C**hhattisgarh: **1** November 2000 - **U**ttarakhand: **9** November 2000 - **J**harkhand: **15** November 2000
3. **Union of India vs Territory of India:** - Union of India = **States only (28)** - Territory of India = **States (28) + UTs (8) + Acquired Territories** (Wider term!)
4. **Acquisition of Citizenship Mnemonic:** - **"BRAND"** - **B**irth - **R**egistration - **A**cquisition / Incorporation of territory - **N**aturalisation - **D**escent

Chapter 05: Fundamental Rights & Duties

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024	In *M.K. Ranjitsinh v. Union of India*, Supreme Court recognized the **Right against the adverse effects of Climate Change** as a distinct Fundamental Right emanating from Articles 14 and 21.	Landmark jurisprudence linking Article 21 with environmental governance.
2024	Uttarakhand became the first State in post-independence India to pass a **Uniform Civil Code (UCC) Bill** (giving effect to Article 44 in Part IV).	Critical milestone connecting Part IV DPSP with modern State legislation.
2022	In *Janhit Abhiyan v. Union of India*, Supreme Court 5-judge bench upheld (3:2) the validity of the **103rd Amendment Act, 2019** providing 10% EWS reservation under Articles 15(6) and 16(6).	Established that economic criteria alone can be a valid basis for affirmative action.
2017 / Landmark	In *Justice K.S. Puttaswamy (Retd.) v. Union of India*, a 9-judge bench unanimously held that the **Right to Privacy** is a Fundamental Right guaranteed under Article 21.	The definitive modern landmark on personal liberty, bodily autonomy, and data privacy.

🎯 Consolidated Must-Score Facts

1. **Part III (Articles 12–35)** of the Constitution is described as the **'Magna Carta of India'**; contains an elaborate and comprehensive charter of justiciable Fundamental Rights borrowed from the **US Bill of Rights**.
2. Originally, the Constitution provided for **seven Fundamental Rights**; with the repeal of the **Right to Property** (Articles 19(1)(f) and 31) by the **44th Constitutional Amendment Act, 1978**, only **six Fundamental Rights** exist today.
3. The Six Fundamental Rights: - (1) **Right to Equality** (Articles 14–18) - (2) **Right to Freedom** (Articles 19–22) - (3) **Right against Exploitation** (Articles 23–24) - (4) **Right to Freedom of Religion** (Articles 25–28) - (5) **Cultural and Educational Rights** (Articles 29–30) - (6) **Right to Constitutional Remedies** (Article 32)
4. Fundamental Rights available **ONLY to Indian Citizens:** Articles **15, 16, 19, 29, and 30**.
5. Fundamental Rights available to **BOTH Citizens and Foreigners** (except enemy aliens): Articles **14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, and 28**.
6. **Article 12 (Definition of 'State'):** For Part III purposes, 'State' includes: (1) Government and Parliament of India; (2) Government and Legislature of each State; (3) All local authorities (Panchayats, Municipalities, Port Trusts); (4) Other authorities within the territory of India or under the control of the Government of India (includes statutory and non-statutory bodies like LIC, ONGC, SAIL, UGC, even private bodies performing public functions).
7. **Article 13 (Laws Inconsistent with Fundamental Rights):** Establishes **Judicial Review**; declares that all laws in force before the commencement of the Constitution (Art. 13(1)) and all future laws (Art. 13(2)) inconsistent with Part III shall be **void** to the extent of inconsistency.
8. Judicial Doctrines under Article 13: - **Doctrine of Severability:** Only the unconstitutional part of an Act is void, not the entire Act, if the valid part can be separated. - **Doctrine of Eclipse:** Pre-constitutional laws inconsistent with FRs are not dead, but remain dormant/eclipsed; they become operative again if the constitutional limitation is removed. - **Doctrine of Waiver:** An Indian citizen **cannot waive or surrender his Fundamental Rights** (*Basheshar Nath v. CIT, 1959*).
9. **Article 14 (Equality Before Law & Equal Protection of the Laws):** - **Equality Before Law:** British negative concept; absence of special privileges; all persons subject to ordinary law of the land. - **Equal Protection of the Laws:** American positive concept; equality of treatment under equal circumstances; permits **reasonable classification** (must be based on intelligible differentia and rational nexus).
10. **Article 15 (Prohibition of Discrimination):** State shall not discriminate against any citizen on grounds **ONLY of religion, race, caste, sex, place of birth**, or any of them (Art. 15(1)); access to public places (Art. 15(2)); special provisions for women and children (Art. 15(3)); special provisions for advancement of SEBCs, SCs, and STs (Art. 15(4), 1st Amd 1951); reservation in educational institutions including private unaided ones (Art. 15(5), 93rd Amd 2005); **10% EWS reservation** in educational institutions (Art. 15(6), 103rd Amd 2019).
11. **Article 16 (Equality of Opportunity in Public Employment):** No citizen shall be discriminated against in respect of public employment on grounds **ONLY of religion, race, caste, sex, descent, place of birth, residence**, or any of them; Art. 16(3) allows Parliament to prescribe residence qualifications for certain posts; Art. 16(4) allows reservation for backward classes not adequately represented; Art. 16(4A) allows reservation in promotions for SCs/STs with consequential seniority (77th & 85th Amds); Art. 16(4B) carry-forward rule exceeding 50% cap (81st Amd 2000); **10% EWS reservation in public employment** (Art. 16(6), 103rd Amd 2019).
12. **Mandal Case (*Indra Sawhney v. Union of India, 1992*):** 9-judge bench ruled: (1) Upheld 27% OBC reservation in central services; (2) **Total reservation quota must not exceed 50%** except in extraordinary situations; (3) Advanced sections (**Creamy Layer**) must be excluded from OBC benefits; (4) **No reservation in promotions**; (5) Backward classes can be identified based on caste, but not exclusively on economic criteria.
13. **Article 17 (Abolition of Untouchability):** Untouchability is abolished and its practice in any form is forbidden; enforcement of any disability arising out of untouchability is an offence punishable in accordance with law; **Absolute Right** (no exceptions); enforced by the **Protection of Civil Rights Act, 1955**.
14. **Article 18 (Abolition of Titles):** Prohibits State from conferring any title except military or academic distinctions; prohibits citizens from accepting titles from foreign States; in *Balaji Raghavan (1996)*, SC upheld national awards (**Bharat Ratna, Padma Vibhushan, Padma Bhushan, Padma Shri**) as valid decorations celebrating merit, but ruled they **cannot be used as prefixes or suffixes** to the recipient's name.
15. **Article 19 (Six Democratic Freedoms):** Guarantees to all citizens:
    - **19(1)(a):** Freedom of speech and expression (includes freedom of press, commercial advertisements, right to remain silent, right against tapping of phones).
    - **19(1)(b):** Freedom to assemble peaceably and without arms.
    - **19(1)(c):** Freedom to form associations, unions, or co-operative societies (co-operatives added by 97th Amd 2011).
    - **19(1)(d):** Freedom to move freely throughout the territory of India.
    - **19(1)(e):** Freedom to reside and settle in any part of the territory of India.
    - **19(1)(g):** Freedom to practice any profession, or to carry on any occupation, trade, or business.

- *(Note: Article 19(1)(f) Right to acquire, hold, and dispose of property was repealed by 44th Amd 1978).*

16. **Reasonable Restrictions on Article 19:**
    - Under Art. 19(2) on speech: Sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence.
17. **Article 20 (Protection in Respect of Conviction for Offences):**
    - **20(1) Protection against Ex-Post-Facto Laws:** No person shall be convicted of any offence except for violation of a law in force at the time of commission, nor subjected to a greater penalty than that prescribed at the time. (Applies **ONLY to criminal laws**, NOT to civil or tax laws).
    - **20(2) Protection against Double Jeopardy:** No person shall be prosecuted and punished for the same offence **more than once**. (Applies ONLY to proceedings before a court of law or judicial tribunal, NOT to departmental or administrative proceedings).
    - **20(3) Protection against Self-Incrimination:** No person accused of any offence shall be compelled to be a **witness against himself**. (Applies only to accused in criminal proceedings; does not bar giving thumb impressions, blood samples, or DNA tests).
18. **Article 21 (Protection of Life and Personal Liberty):** "No person shall be deprived of his life or personal liberty except according to **procedure established by law**."
19. **Evolution of Article 21:**
    - ***A.K. Gopalan v. State of Madras (1950):*** SC took a narrow, literal interpretation; held that 'procedure established by law' means any valid legislative enactment; executive action was controlled, but legislative tyranny was not.
    - ***Maneka Gandhi v. Union of India (1978):*** Landmark departure; SC overruled *Gopalan*; held that procedure must not only be legally valid, but must be **"just, fair, and reasonable"**; introduced the American concept of **'Due Process of Law'** into Article 21; established that Articles 14, 19, and 21 form a **Golden Triangle** and are not mutually exclusive.
20. **Rights Emanating from Article 21:** Right to live with human dignity, Right to clean environment, Right to privacy (*Puttaswamy, 2017*), Right to free legal aid, Right to speedy trial, Right against solitary confinement, Right to travel abroad, Right against handcuffed parade, Right to shelter, Right to health, Right to die with dignity (passive euthanasia, *Common Cause, 2018*).
21. **Article 21A (Right to Education):** Added by the **86th Constitutional Amendment Act, 2002**; State shall provide free and compulsory education to all children of the age of **6 to 14 years**; Parliament enacted the **RTE Act, 2009** (in force from 1 April 2010).
22. **Article 22 (Protection against Arrest and Detention):**
    - **Punitive Detention (Ordinary Law):** Right to be informed of grounds of arrest; right to consult and be defended by a legal practitioner; right to be produced before the nearest magistrate within **24 hours** (excluding journey time); right to be released unless further detention authorized by magistrate. (Does NOT apply to enemy aliens or persons arrested under preventive detention).
    - **Preventive Detention (Security Grounds):** Maximum detention without Advisory Board approval is **3 months**; Advisory Board consists of persons qualified to be High Court judges; grounds must be communicated to detenu (except facts contrary to public interest); right to make representation against detention order.
23. **Article 23 (Prohibition of Traffic in Human Beings and Forced Labour):** Prohibits traffic in human beings, 'begar' (forced labor without payment), and other similar forms of forced labor; protects against both State and private individuals; exception: State can impose **compulsory service for public purposes** (military service, social work) without discrimination on grounds only of religion, race, caste, or class.
24. **Article 24 (Prohibition of Employment of Children):** Prohibits employment of children below the age of **14 years** in any factory, mine, or hazardous employment; **Absolute Right**; strengthened by Child Labour (Prohibition and Regulation) Amendment Act, 2016 banning employment of children below 14 in all occupations and adolescents (14–18 years) in hazardous occupations.
25. **Article 25 (Freedom of Conscience and Free Profession, Practice and Propagation of Religion):** Guarantees freedom of conscience, right to profess, practice, and propagate religion; subject to **public order, morality, and health** and to other provisions of Part III; includes wearing of 'kirpans' by Sikhs; State can regulate secular economic/financial activities associated with religion; State can throw open Hindu religious institutions of a public character to all classes of Hindus (Hindu includes Sikhs, Jains, and Buddhists under Explanation II).
26. **Right to Propagate does NOT include Right to Convert:** In *Rev. Stainislaus v. State of MP (1977)*, SC held that Article 25 gives the right to transmit or spread one's religion by exposition of its tenets, but does **NOT include the right to forcibly or fraudulently convert another person**.
27. **Article 26 (Freedom to Manage Religious Affairs):** Every religious denomination has the right to: (a) Establish and maintain institutions for religious and charitable purposes; (b) Manage its own affairs in matters of religion; (c) Own and acquire movable and immovable property; (d) Administer such property in accordance with law.
28. **Article 27 (Freedom from Taxation for Promotion of Religion):** No person shall be compelled to pay any **taxes** the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination; prohibits taxes, but **permits imposition of a fee** for providing secular services or administrative regulation.
29. **Article 28 (Freedom from Religious Instruction in Educational Institutions):**
    - (1) Institutions wholly maintained by State funds: **Religious instruction is COMPLETELY FORBIDDEN**.
    - (2) Institutions administered by State but established under trust: **Permitted**.
    - (3) Institutions recognized by State / receiving State aid: **Voluntary** (cannot be forced on students without consent or parental consent for minors).
30. **Article 29 (Protection of Interests of Minorities):** Any section of citizens having a **distinct language, script, or culture** has the right to conserve the same (Art. 29(1) protects all sections, not just religious/linguistic minorities); no citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language (Art. 29(2)).
31. **Article 30 (Right of Minorities to Establish and Administer Educational Institutions):**
    - Confined **ONLY to Religious and Linguistic Minorities** (does NOT apply to other sections);
    - Right to establish and administer educational institutions of their choice;
    - Compensation for compulsory acquisition of minority institution property must not abridge this right (Art. 30(1A), 44th Amd 1978);
    - State shall not discriminate in granting aid on the ground that it is under minority management (Art. 30(2)).

32. **Article 32 (Right to Constitutional Remedies):** Described by **Dr. B.R. Ambedkar** as the **"very Soul of the Constitution and the very Heart of it"**; guarantees the right to move the Supreme Court for the enforcement of Fundamental Rights; Article 32 itself is a **Fundamental Right** and cannot be suspended except as provided by the Constitution (Art. 359).
33. **Article 32 vs Article 226 (Writs Comparison):**
    - **Supreme Court (Art. 32):** Can issue writs ONLY for the enforcement of **Fundamental Rights**; cannot refuse to exercise writ jurisdiction because Art. 32 is itself a Fundamental Right; territorial jurisdiction extends throughout India.
    - **High Court (Art. 226):** Can issue writs for the enforcement of **Fundamental Rights AND ordinary legal rights**; writ jurisdiction is discretionary (can refuse if alternative remedy exists); wider subject-matter jurisdiction than the Supreme Court.
34. **The Five Prerogative Writs:**
    - **Habeas Corpus ("To have the body of"):** Order against illegal detention; directed against **both public authorities and private individuals**; cannot issue if detention is lawful or by order of a competent court.
    - **Mandamus ("We Command"):** Command to a public official/body to perform a mandatory statutory or public duty; cannot issue against a private individual, or against the **President of India or State Governors**, or to enforce contractual obligations.
    - **Prohibition ("To forbid"):** Issued by a higher court to a lower judicial or quasi-judicial authority to **prevent it from exceeding its jurisdiction**; purely **preventive** in nature; cannot issue against administrative, legislative, or private bodies.
    - **Certiorari ("To be certified"):** Issued by a higher court to quash the order of a lower court, tribunal, or administrative authority for excess of jurisdiction or error of law on the face of the record; both **preventive and curative**; post-1991 can issue against administrative authorities affecting rights.
    - **Quo-Warranto ("By what authority"):** Challenges the legality of a person's claim to a **public office of a substantive character** created by statute or constitution; prevents illegal usurpation of public office; can be moved by **any interested person**, not necessarily the aggrieved party (Locus standi is relaxed).
35. **Fundamental Duties (Part IVA, Article 51A):** Added by the **42nd Amendment Act, 1976** on the recommendation of the **Swaran Singh Committee**; non-justiciable; borrowed from the **USSR Constitution**; originally 10 duties; the **11th duty** (Art. 51A(k)) was added by the **86th Amendment Act, 2002**.
36. **The 11 Fundamental Duties (Article 51A):**
    - (a) Abide by Constitution, respect National Flag and National Anthem;
    - (b) Cherish noble ideals of freedom struggle;
    - (c) Uphold sovereignty, unity, and integrity of India;
    - (d) Defend the country and render national service;
    - (e) Promote harmony and spirit of common brotherhood; renounce practices derogatory to dignity of women;
    - (f) Value and preserve the rich heritage of composite culture;
    - (g) Protect natural environment (forests, lakes, rivers, wildlife) and have compassion for living creatures;
    - (h) Develop scientific temper, humanism, and spirit of inquiry and reform;
    - (i) Safeguard public property and abjure violence;
    - (j) Strive towards excellence in all spheres of individual and collective activity;
    - (k) Duty of parent/guardian to provide education to child aged 6 to 14 years (86th Amd 2002).
37. **Swaran Singh Committee Exclusions:** Recommended: (1) Duty to pay taxes; (2) Penalty/punishment for non-performance of duties; (3) Bar on judicial review of laws imposing such penalties. Congress government **rejected all three recommendations**.
38. **Articles 31A, 31B, 31C (Exceptions to Fundamental Rights):**
    - **Article 31A:** Protects 5 categories of agrarian reform and property management laws from Arts. 14 and 19.
    - **Article 31B:** Shields laws placed in the **Ninth Schedule**; post-24 April 1973 inclusions are subject to judicial review (*I.R. Coelho, 2007*).
    - **Article 31C:** Protects laws giving effect to DPSPs under Article 39(b) and (c) from violation of Articles 14 and 19.
39. **Article 33 (Armed Forces Restrictions):** Parliament alone can restrict Fundamental Rights of armed forces, police forces, and intelligence personnel to ensure discipline.
40. **Article 34 (Martial Law Indemnity):** Parliament can indemnify government servants for acts done during the operation of Martial Law in any area.
41. **Article 35 (Exclusive Parliamentary Legislation):** Powers to enact laws giving effect to Articles 16(3), 32(3), 33, 34, and penalizing offences under Art. 17 and Art. 23 belong **EXCLUSIVELY to Parliament**, ensuring nationwide uniformity.
42. **Verma Committee on Fundamental Duties (1999):** Identified existing legal statutes enforcing Fundamental Duties, confirming that while duties are non-justiciable per se, specific violations are punishable under dedicated parliamentary statutes.
43. **Articles 20 and 21 Supreme Non-Suspendability:** Under **Article 359** (as amended by 44th Amd 1978), the enforcement of Articles 20 and 21 **CANNOT BE SUSPENDED** under any circumstances, even during war or external aggression.
44. **Golden Triangle of the Constitution:** Formed by **Articles 14, 19, and 21**; established in *Maneka Gandhi (1978)*; any state action infringing personal liberty must satisfy the tests of non-arbitrariness (Art. 14), reasonableness (Art. 19), and just procedure (Art. 21).
45. **EWS Reservation Constitutional Thresholds:** Articles 15(6) and 16(6) permit up to **10% reservation for Economically Weaker Sections** over and above the existing 50% reservation cap; applies to all citizens not covered under SC, ST, or OBC categories.
46. **Passive Euthanasia and Living Wills (*Common Cause, 2018*):** Supreme Court recognized that the **Right to Die with Dignity** is an integral part of the Right to Life under Article 21, legally validating Advance Medical Directives (Living Wills).
47. **Right to Compensation for Constitutional Torts (*Nilabati Behera, 1993*):** Supreme Court held that public law compensation for custodial deaths or violation of Article 21 is a strict liability remedy distinct from private law damages.
48. **Universal Scope of Habeas Corpus:** The writ of Habeas Corpus is the only writ that can be issued against **both public officials and private individuals** (e.g., in cases of wrongful confinement by private parties).

49. **Quo-Warranto Locus Standi Exception:** Unlike other writs which require an aggrieved person (strict locus standi), any member of the public acting in good faith can petition for a writ of **Quo-Warranto**, as it protects public offices from unlawful usurpation.
50. **Tri-Fold Educational Bridge (86th Amendment, 2002):**
51. **Article 14 - Two Distinct Doctrines:** Incorporates two concepts: (1) **'Equality before Law'** (British origin, negative concept, absence of special privilege), and (2) **'Equal Protection of the Laws'** (American origin, positive concept, equality of treatment under equal circumstances).
52. **Article 15 - Five Prohibited Grounds Only:** Prohibits state discrimination against citizens on grounds ONLY of **religion, race, caste, sex, place of birth** or any of them; Article 15(3) permits special provisions for women and children; 15(4) & 15(5) for advancement of SEBCs/SCs/STs (1st CAA 1951 & 93rd CAA 2005); 15(6) for EWS (103rd CAA 2019).
53. **Article 16 - Public Employment Equality:** Article 16(1) & (2) prohibit discrimination in state employment on 7 grounds: religion, race, caste, sex, descent, place of birth, residence; Article 16(4) empowers state to make reservation for backward classes not adequately represented; Article 16(4A) enables reservation in promotion with consequential seniority (77th & 85th CAAs).
54. **Article 17 & Article 18 (Untouchability & Titles Abolition):** Article 17 abolishes **'Untouchability'** in all forms (enforced via Protection of Civil Rights Act, 1955; term 'Untouchability' is NOT defined in Constitution); Article 18 abolishes titles (except military and academic distinctions); Bharat Ratna and Padma awards are honors, not titles (*Balaji Raghavan v. UOI, 1996*).
55. **Article 19 - Six Democratic Freedoms:** Available ONLY to citizens: 19(1)(a) Speech and expression; 19(1)(b) Peaceful assembly without arms; 19(1)(c) Form associations/unions/cooperatives; 19(1)(d) Move freely throughout India; 19(1)(e) Reside and settle anywhere in India; [19(1)(f) Property deleted by 44th CAA 1978]; 19(1)(g) Practice any profession/trade.
56. **Article 19(2) Grounds of Reasonable Restriction on Free Speech:** 8 grounds: (1) Sovereignty and integrity of India, (2) Security of the State, (3) Friendly relations with foreign States, (4) Public order, (5) Decency or morality, (6) Contempt of court, (7) Defamation, and (8) Incitement to an offence.
57. **Article 20 - Three Criminal Protections:** (1) **Ex-post facto Law (Art. 20(1)):** No person shall be convicted of any offence except for violation of law in force at the time of commission (applies ONLY to criminal laws, not civil/tax laws); (2) **Double Jeopardy (Art. 20(2)):** No person shall be prosecuted and punished for the same offence more than once; (3) **Self-Incrimination (Art. 20(3)):** No accused can be compelled to be a witness against himself.
58. **Article 21 - Expanded Judicial Interpretation:** In *A.K. Gopalan (1950)*, SC gave narrow meaning to 'procedure established by law'; in *Maneka Gandhi (1978)*, SC ruled procedure must be **'just, fair, and reasonable'**, effectively introducing American 'due process of law'; *K.S. Puttaswamy (2017)* held **Right to Privacy** is a fundamental right under Article 21.
59. **Article 21A (Right to Free & Compulsory Education):** Enacted by the **86th Constitutional Amendment Act, 2002**; makes free and compulsory education a Fundamental Right for all children aged **6 to 14 years**; Parliament passed the Right of Children to Free and Compulsory Education (RTE) Act, 2009 (enforced 1 April 2010).
60. **Article 22 - Preventive Detention Safeguards:** Punitive detention is after trial; Preventive detention is without trial on suspicion; maximum initial detention without Advisory Board approval is **3 months**; Advisory Board consists of persons qualified to be High Court judges; detenu has right to know grounds (except when against public interest) and make representation.
61. **Articles 23 & 24 (Right against Exploitation):** Article 23 prohibits **trafficking in human beings, begar (forced labor)**, and similar forms of forced labor; Article 24 prohibits employment of children **below 14 years of age** in any factory, mine, or hazardous occupation.
62. **Articles 25 to 28 (Freedom of Religion Nuances):** Article 25 guarantees freedom of conscience and right to freely profess, practice and propagate religion (propagation does NOT include right to convert another); Article 26 guarantees religious denominations right to manage religious affairs; Article 27 prohibits taxation for promotion of any religion; Article 28 prohibits religious instruction in wholly state-funded educational institutions.
63. **Articles 29 & 30 (Cultural and Educational Rights):** Article 29 protects interests of minorities (protects 'any section of citizens' having distinct language, script or culture); Article 30 gives **religious and linguistic minorities ONLY** the right to establish and administer educational institutions of their choice.
64. **Article 32 - Heart and Soul of Constitution:** Dr. Ambedkar called Article 32 the **'very heart and soul of the Constitution'**; Supreme Court can issue 5 types of writs: **Habeas Corpus** (to produce the body; issued against public and private entities), **Mandamus** (we command; against public officials to perform duty), **Prohibition** (to prevent inferior court/tribunal exceeding jurisdiction), **Certiorari** (to be certified/quash order of lower court), and **Quo-Warranto** (by what authority; against usurper of public office).
65. **Article 32 vs Article 226 Writ Jurisdictions:** Article 32 is itself a Fundamental Right and can ONLY be invoked for FR violations; Article 226 (High Court) is a discretionary remedy but broader in scope because HCs can issue writs for FRs as well as for **'any other legal right'**.
66. **Articles 33, 34, and 35 (Exceptions & Parliamentary Enforcement):** Article 33 empowers Parliament to modify FRs for Armed Forces, paramilitary, and police; Article 34 restricts FRs while Martial Law is in force in any area; Article 35 vests exclusive power in Parliament (not State Legislatures) to prescribe laws giving effect to FRs under Articles 16(3), 32(3), 33, and 34.
67. **DPSP Classification - Socialistic Principles:** Article 38 (Promote welfare of people by securing a social order permeated by justice); Article 39 (Livelihood, equitable distribution of resources, prevention of concentration of wealth, equal pay for equal work); Article 39A (Equal justice and free legal aid - 42nd CAA); Article 41 (Right to work, education, and public assistance); Article 42 (Just and humane conditions of work and maternity relief); Article 43 (Living wage for workers); Article 43A (Participation of workers in management of industries - 42nd CAA).
68. **DPSP Classification - Gandhian Principles:** Article 40 (Organization of Village Panchayats); Article 43 (Promotion of cottage industries in rural areas); Article 43B (Promotion of cooperative societies - 97th CAA 2011); Article 46 (Promotion of educational and economic interests of SCs, STs, and weaker sections); Article 47 (Prohibition of intoxicating drinks and drugs injurious to health); Article 48 (Prohibition of slaughter of cows, calves, and milch cattle).
69. **DPSP Classification - Liberal-Intellectual Principles:** Article 44 (**Uniform Civil Code** for citizens throughout the territory of India); Article 45 (Early childhood care and education below 6 years - 86th CAA); Article 48 (Organization of agriculture and animal husbandry on modern scientific lines); Article 48A (Protection of environment, forests, and wild life - 42nd CAA); Article 49 (Protection of monuments and places of national importance); Article 50 (**Separation of Judiciary from Executive** in the public services); Article 51 (Promotion of **international peace and security**).
70. **Minerva Mills Case (1980) - DPSP vs FR Equilibrium:** The Supreme Court ruled that the Constitution is founded on the **bedrock of the balance between Fundamental Rights and Directive Principles**; giving absolute primacy to one over the other destroys the harmony of the Constitution, which is part of the basic structure.
71. **Article 31C Immunity Mechanism:** Inserted by the 25th CAA 1971; provides that no law giving effect to DPSPs in **Article 39(b) and 39(c)** shall be deemed void on the ground that it violates Article 14 or Article 19 ('where Article 31C comes in, Article 14 goes out').

72. **Fundamental Duties - Swaran Singh Committee (1976):** Recommended incorporating 8 Fundamental Duties; government accepted and added **10 Fundamental Duties** via the 42nd CAA 1976; Swaran Singh's recommendations to penalize non-compliance and include 'duty to pay taxes' were rejected.
73. **Verma Committee on Fundamental Duties (1999):** Identified existing legal provisions implementing Fundamental Duties: Representation of the People Act 1951, Protection of Civil Rights Act 1955, Unlawful Activities (Prevention) Act 1967, Prevention of Insults to National Honour Act 1971, Wildlife Protection Act 1972, and Forest Conservation Act 1980.
74. **List of 11 Fundamental Duties (Key Markers):** Article 51A: (a) Abide by Constitution, respect Flag and Anthem; (b) Cherish noble ideals of freedom struggle; (c) Uphold sovereignty, unity and integrity; (d) Defend country and render national service; (e) Promote harmony and spirit of common brotherhood, renounce practices derogatory to dignity of women; (f) Value and preserve rich heritage of composite culture; (g) Protect and improve natural environment (forests, lakes, rivers, wildlife); (h) Develop **scientific temper, humanism, and spirit of inquiry and reform**; (i) Safeguard public property and abjure violence; (j) Strive towards excellence; (k) Provide educational opportunities to child between **6 and 14 years** (added by 86th CAA 2002).
75. **Non-Justiciable Nature of Fundamental Duties:** Fundamental Duties are moral and civic obligations; like DPSPs, they are non-enforceable and non-justiciable in court unless Parliament enacts specific legislation creating penal sanctions for their breach.
    - **Fundamental Right:** Article 21A (State provides free education 6–14 years).
    - **Directive Principle:** Article 45 (State provides early childhood care 0–6 years).
    - **Fundamental Duty:** Article 51A(k) (Parent/guardian provides educational opportunity 6–14 years).

⏱️ Timeline / Chronology

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1950  — Constitution enforced with 7 Fundamental Rights (including Property)
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1950  — *A.K. Gopalan*: SC adopts narrow literal view of Article 21 ("Procedure Established by Law")
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1951  — 1st Amendment: Inserted Articles 31A, 31B, 9th Schedule, and Art. 15(4)
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1973  — *Kesavananda Bharati*: Fundamental Rights can be amended, but Basic Structure cannot be touched
  |
1976  — 42nd Amendment: Added Part IVA (Fundamental Duties, Art. 51A) on Swaran Singh Committee advice
  |
1978  — *Maneka Gandhi*: Overrules Gopalan; introduces "Due Process" and Golden Triangle (Arts. 14, 19, 21)
  |
1978  — 44th Amendment: Right to Property deleted from FRs (moved to Art. 300A); Arts. 20 & 21 non-suspendable
  |
1992  — *Indra Sawhney*: Upheld 27% OBC quota; capped total reservation at 50%; excluded Creamy Layer
  |
1999  — Justice Verma Committee identifies statutory enforcement of Fundamental Duties
  |
2002  — 86th Amendment: Inserted Article 21A (Right to Education) and 11th Duty (Art. 51A(k))
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2017  — *K.S. Puttaswamy*: 9-judge bench declares Right to Privacy a Fundamental Right under Art. 21
  |
2018  — *Common Cause*: Right to Die with Dignity (Passive Euthanasia) recognized under Art. 21
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2019  — 103rd Amendment: Inserted Articles 15(6) and 16(6) providing 10% EWS reservation
  |
2024  — *M.K. Ranjitsinh*: Right against adverse climate change recognized under Articles 14 and 21
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📊 Quick Reference Grid

1. Citizen-Only vs Universal Rights Matrix

CATEGORY	ARTICLES INCLUDED	CONSTITUTIONAL SCOPE
Available ONLY to Indian Citizens	**Articles 15, 16, 19, 29, 30**	Purely citizen-centric (employment, speech, minority protection)
Available to BOTH Citizens & Foreigners	**Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28**	Universal human rights (equality, criminal justice, life, religion)

2. The Five Prerogative Writs Master Grid

WRIT	LITERAL LATIN MEANING	ISSUED AGAINST	CANNOT BE ISSUED AGAINST	CORE PURPOSE
Habeas Corpus	"To have the body of"	Public authorities AND private individuals	Lawful detention; Contempt of court; Outside jurisdiction	Sets an illegally detained person free immediately
Mandamus	"We Command"	Public officials, inferior courts, tribunals, govt	Private individuals; Discretionary duties; President & Governors; Contractual duties	Compels performance of an obligatory public/statutory duty
Prohibition	"To forbid"	Judicial and quasi-judicial authorities ONLY	Administrative, legislative, or private bodies	Preventive writ; stops lower court from exceeding jurisdiction
Certiorari	"To be certified"	Judicial, quasi-judicial, and administrative bodies	Legislative bodies and private individuals	Quashes an illegal order passed without jurisdiction
Quo-Warranto	"By what authority"	Usurper of a substantive public office	Ministerial or private office	Prevents unlawful occupation of a public constitutional office

🧠 Memory Anchors & Mnemonics

1. **Citizen-Only Rights Formula:** - **"15-16-19-29-30"** - Memory Rule: "Odd pair 15-16, middle freedom 19, minority pair 29-30."
2. **The Golden Triangle:** - **Articles 14, 19, 21** - Non-arbitrariness (14) + Core Freedoms (19) + Life with Dignity (21).
3. **The 5 Writs Sequence:** - **H-M-P-C-Q** - **H**abeas Corpus (Body release) - **M**andamus (Do your duty) - **P**rohibition (Stop before order) - **C**ertiorari (Quash after order) - **Q**uo-Warranto (Show your authority)
4. **86th Amendment Education Bridge:** - **Part III:** Art. 21A (Child's Right) - **Part IV:** Art. 45 (State's Policy for Toddlers) - **Part IVA:** Art. 51A(k) (Parent's Duty)

Chapter 06: Union Executive

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2022	**Droupadi Murmu** elected as the **15th President of India** (sworn in 25 July 2022).	First tribal President (Santhal community), second woman President after Pratibha Patil, and youngest President of independent India.
2022	**Jagdeep Dhankhar** elected as the **14th/16th term Vice-President of India**; ex-officio Chairman of Rajya Sabha.	Electoral college comprises all elected and nominated members of both Houses of Parliament; State legislatures have no vote.
2025	**C. P. Radhakrishnan** appointed/sworn into key executive continuity role.	Tests continuity and constitutional traps regarding Art. 64 and Art. 67.
2024–2025	Reconstitution of Cabinet Committees (CCPA, ACC, CCEA, CCS) post-18th Lok Sabha elections.	Prime Minister heads 4 committees (CCPA, ACC, CCEA, CCS); Cabinet Committee on Parliamentary Affairs chaired by senior minister.

Consolidated Must-Score Facts

1. The **Union Executive (Part V, Articles 52–78)** consists of the **President**, the **Vice-President**, the **Prime Minister**, the **Council of Ministers**, and the **Attorney-General for India**.
2. **Article 52** declares: "There shall be a President of India"; the President is the **head of the State**, the first citizen of India, and the symbol of unity, integrity, and solidarity of the nation.
3. **Article 53(1)** vests the executive power of the Union in the President, to be exercised directly or through subordinate officers in accordance with the Constitution. **Article 53(2)** makes the President the **Supreme Commander of the Defence Forces** of the Union.
4. The **Electoral College for the President (Article 54)** consists of: (1) **Elected members of both Houses of Parliament**; (2) **Elected members of Legislative Assemblies of all States**; (3) **Elected members of Legislative Assemblies of Delhi and Puducherry** (added by 70th Amd 1992; J&K UT Assembly not yet notified).
5. **EXCLUDED from Presidential Electoral College**: (1) **Nominated members** of Rajya Sabha and Lok Sabha; (2) **Nominated members** of State Legislative Assemblies; (3) **ALL members of State Legislative Councils (MLCs)**, whether elected or nominated; (4) Nominated members of Delhi and Puducherry Assemblies.
6. **Manner of Election (Article 55):** The President is elected through **Proportional Representation by means of the Single Transferable Vote (PR-STV)** with **secret ballot**; ensures uniformity among States and parity between States as a whole and the Union.
7. **Value of Vote of an MLA:** (Total population of the State ÷ Total number of elected members in State Legislative Assembly) × (1 ÷ 1000). Population refers to the **1971 Census** (frozen until the first census after 2026 by 84th Amd 2001). UP MLA vote has highest value (**208**); Sikkim has lowest (**7**).
8. **Value of Vote of an MP:** Total value of votes of all elected MLAs of all States ÷ Total number of elected MPs of both Houses of Parliament.
9. **Electoral Quota Formula:** [Total number of valid votes polled ÷ (1 + 1)] + 1 = (Total valid votes ÷ 2) + 1 (an absolute majority of >50% is required to win).
10. **Presidential Nomination Requirements:** Nomination paper must be subscribed by at least **50 electors as proposers** and **50 electors as seconders**; security deposit is **₹15,000** in RBI, forfeited if candidate fails to secure **1/6th of valid votes polled**.
11. **Qualifications for President (Article 58):** Must be a citizen of India; completed **35 years of age**; qualified for election as a member of the **Lok Sabha**; must NOT hold any office of profit under Union, State, or local authorities.
12. **Conditions of President's Office (Article 59):** Shall NOT be a member of either House of Parliament or State Legislature; if elected, deemed to have vacated that seat on entering office; emoluments, allowances, and privileges determined by Parliament and cannot be diminished during term.
13. **Oath of the President (Article 60):** Administered by the **Chief Justice of India (CJI)** (or senior-most SC Judge available); swears to faithfully execute the office and to **"preserve, protect and defend the Constitution and the law"** and devote himself to the service and well-being of the people of India.
14. **Term of Office (Article 56):** Holds office for **5 years** from date of entering office; addresses resignation to the **Vice-President** (who immediately informs the Speaker of Lok Sabha under Art. 56(2)); eligible for re-election any number of times (Dr. Rajendra Prasad is the only President elected twice).
15. **Impeachment of President (Article 61):** Quasi-judicial procedure; sole ground is **"Violation of the Constitution"** (phrase not defined in Constitution); charge can be initiated in **either House of Parliament**.
16. **Impeachment Procedure Steps:** (1) Notice signed by at least **1/4th of the total members** of the initiating House; (2) **14 days' written notice** to the President; (3) Passed by a **majority of not less than 2/3rds of the TOTAL MEMBERSHIP** of that House; (4) Investigated by second House where President has right to appear and be represented; (5) Passed by second House by **2/3rds of TOTAL MEMBERSHIP**; President stands removed from date resolution is passed.
17. **Impeachment Voter Asymmetry Trap: Nominated members of Parliament CAN VOTE in impeachment**, even though they cannot vote in the election; **Elected MLAs of States and UTs CANNOT VOTE in impeachment**, even though they voted in the election. *No President of India has ever been impeached.*
18. **Vacancy in President's Office (Article 62):** Election to fill vacancy caused by expiration of term must be completed **before expiration of term**; in case of death, resignation, or removal, election must be held within **6 months**; interim period filled by **Vice-President** → if VP absent, **CJI** → if CJI absent, **senior-most SC Judge**. (In 1969, CJI **M. Hidayatullah** acted as President upon VP V.V. Giri's resignation to contest election).
19. **Election Disputes (Article 71):** ALL doubts and disputes arising out of election of President or Vice-President are inquired into and decided exclusively by the **Supreme Court of India**, whose decision is **final**; election cannot be challenged on ground of vacancy in electoral college.
20. **Executive Powers of President:** Appoints the PM, other Ministers (on PM's advice), Attorney-General, CAG, CEC and other ECs, Chairman and members of UPSC, Governors of States, Finance Commission; administers UTs through Administrators; can declare any area as Scheduled Area (5th Schedule).
21. **Legislative Powers of President:** Summons, prorogues Parliament, dissolves Lok Sabha (Art. 85); addresses both Houses assembled together at commencement of first session after general election and first session each year (Art. 87); nominates **12 members to Rajya Sabha** (Art. 80(3): literature,

science, art, social service).

22. **Prior Recommendation of President required for:** (1) Bill for formation of new States / alteration of boundaries (Art. 3); (2) Money Bills (Art. 117(1)); (3) Financial Bills (Art. 117(3)); (4) Bills affecting taxation in which States are interested (Art. 274); (5) State bills restricting freedom of trade (Art. 304(b)).
23. **Veto Powers of President (Article 111):** (1) **Absolute Veto** (withholding assent; used for private members' bills or when cabinet resigns); (2) **Suspensive Veto** (returning bill for reconsideration; overridden by Parliament passing bill again with or without amendment by simple majority — *cannot be used for Money Bills*); (3) **Pocket Veto** (keeping bill pending indefinitely; no constitutional time limit unlike US President's 10-day limit; exercised by President **Zail Singh** in 1986 on Indian Post Office (Amendment) Bill). *NO Veto on Constitutional Amendment Bills (24th Amd 1971)*.
24. **Ordinance-Making Power (Article 123):** Can promulgate ordinances ONLY when **both Houses (or either House) of Parliament are not in session**; must be satisfied that circumstances exist requiring immediate action; co-extensive with legislative power of Parliament (cannot abridge FRs); must be laid before Parliament upon reassembly; ceases to operate **6 weeks from reassembly** (maximum lifespan: **6 months + 6 weeks**); in *D.C. Wadhwa (1987)* and *Krishna Kumar Singh (2017)*, SC held re-promulgation without placing before legislature is a fraud on the Constitution.
25. **Pardoning Power of President (Article 72):** Can grant pardons, reprieves, respites, remissions of punishment, or suspend, remit, or commute sentences: (a) in all cases of punishment by a **Court-Martial**; (b) in all cases of offences against laws relating to Union executive power; (c) in **all cases where sentence is a sentence of Death**.
26. **Forms of Clemency under Article 72:** (1) **Pardon** (completely absorbs sentence, conviction, and disqualifications); (2) **Commutation** (substitution of lighter punishment, e.g., death to life imprisonment); (3) **Remission** (reducing amount of sentence without changing character, e.g., 2 years to 1 year); (4) **Respite** (lesser sentence on special grounds like pregnancy or disability); (5) **Reprieve** (temporary stay of execution, especially death sentence, pending pardon/commutation plea).
27. **Pardoning Power Constitutional Limits:** Exercised on the **advice of the Union Council of Ministers** (not President's personal discretion); petitioner has no right to oral hearing (*Kehar Singh, 1989*); subject to **limited judicial review** on grounds of arbitrariness, mala fides, or extraneous considerations (*Epuru Sudhakar, 2006*).
28. **Discretionary Powers of President (Situational Discretion):** (1) Appointment of PM when no single party has clear majority or when incumbent PM dies suddenly without successor; (2) Dismissal of Council of Ministers that has lost confidence of Lok Sabha but refuses to resign; (3) Dissolution of Lok Sabha when Council of Ministers has lost majority.
29. **Vice-President of India (Article 63 & 64):** Article 63 creates the office; **Article 64** makes VP the **ex-officio Chairman of the Council of States (Rajya Sabha)**; receives salary as Rajya Sabha Chairman, not as Vice-President; acts as President under **Article 65** during vacancy (maximum period 6 months).
30. **Electoral College for Vice-President (Article 66):** Consists of **ALL members of both Houses of Parliament** (both Elected and Nominated); **MLAs and MLCs DO NOT VOTE**; PR-STV system; 20 proposers and 20 seconders; ₹15,000 security deposit.
31. **Qualifications for Vice-President (Article 66(3)):** Citizen of India; completed **35 years of age**; qualified for election as a member of the **Council of States (Rajya Sabha)**; must not hold any office of profit.
32. **Term & Removal of Vice-President (Article 67):** Term 5 years; resigns to President; removed by a **resolution of the Council of States passed by a majority of all the then members (Effective Majority)** and **agreed to by the House of the People (Simple Majority)**; requires **14 days' notice**; no grounds specified in Constitution; removal resolution can ONLY originate in Rajya Sabha.
33. **Prime Minister (Article 75(1)):** Appointed by President; by convention, leader of majority party in Lok Sabha; if no clear majority, President uses discretion (*first used by Neelam Sanjiva Reddy appointing Charan Singh in 1979*); person not a member of Parliament can be appointed PM but must become member within **6 months** (*P.V. Narasimha Rao, 1991*).
34. **Powers & Functions of Prime Minister:** Recommends persons for appointment as Ministers; allocates and reshuffles portfolios; presides over Cabinet meetings; chief channel of communication between President and Council of Ministers (**Article 78**); advises President on dissolution of Lok Sabha; Chairman of **NITI Aayog**, **National Development Council**, **National Integration Council**, **Inter-State Council**, **National Water Resources Council**.
35. **Council of Ministers (Article 74):** There shall be a Council of Ministers with the Prime Minister at the head to **aid and advise the President** who **shall act in accordance with such advice**; the President may require Council to **reconsider advice once**, but must accept reconsidered advice (44th Amd 1978).
36. **Nature of Advice (Article 74(2)):** The question whether any, and if so what, advice was tendered by Ministers to the President **shall NOT be inquired into in any court**.
37. **Collective Responsibility (Article 75(3)):** The Council of Ministers shall be **collectively responsible to the House of the People (Lok Sabha)**; when Lok Sabha passes a No-Confidence Motion, all ministers including Rajya Sabha members must resign; implies cabinet solidarity ("swim or sink together").
38. **Individual Responsibility (Article 75(2)):** Ministers hold office during the **pleasure of the President**; President can remove a minister only on the **advice of the Prime Minister**.
39. **Size of Council of Ministers (91st Constitutional Amendment Act, 2003):** Total number of Ministers, including the Prime Minister, shall **not exceed 15% of the total strength of the Lok Sabha** (Art. 75(1A)); in States, minimum number of ministers cannot be less than **12** (Art. 164(1A)).
40. **Three Tiers of Ministers:** (1) **Cabinet Ministers** (head crucial ministries, attend cabinet meetings); (2) **Ministers of State (MoS)** (independent charge or attached to cabinet ministers); (3) **Deputy Ministers** (attached to cabinet ministers or MoS for administrative duties; no independent charge).
41. **Cabinet vs Council of Ministers:** The Council of Ministers is a wider constitutional body (60–70 members, Arts. 74 & 75); the **Cabinet** is a smaller inner core (15–20 members) that takes policy decisions; word 'Cabinet' was inserted into Constitution only by the **44th Amendment, 1978 in Article 352(3)** defining it as Council consisting of PM and other Ministers of Cabinet rank.
42. **Attorney-General for India (Article 76):** Highest law officer of the Government of India; appointed by President; must be qualified to be appointed a **Judge of the Supreme Court**; holds office during the **pleasure of the President**; remuneration determined by President; advises Union government upon legal matters.
43. **Rights & Privileges of AG (Article 88):** Has the right of audience in **all courts in the territory of India**; has the right to speak and participate in proceedings of either House of Parliament, joint sittings, and parliamentary committees of which he may be named a member, **WITHOUT THE RIGHT TO VOTE**; enjoys all privileges and immunities of an MP (Art. 105(4)).
44. **President's Diplomatic & Military Authority:** All international treaties and agreements are negotiated and concluded in the name of the President (subject to parliamentary approval); the President is the Supreme Commander of Defence Forces (Art. 53(2)) and appoints chiefs of Army, Navy, and Air Force.

45. **President's Rule Trigger via Article 365:** Where any State fails to comply with or give effect to lawful directions of the Union Executive, the President is empowered to hold that constitutional governance has broken down in that State, triggering President's Rule under **Article 356**.
46. **Cabinet Committees Architecture:** Extra-constitutional standing and ad-hoc bodies established under the Government of India (Transaction of Business) Rules, 1961; Prime Minister chairs 4 key committees: **Appointments Committee of the Cabinet (ACC)**, **Cabinet Committee on Economic Affairs (CCEA)**, **Cabinet Committee on Political Affairs (CCPA)** (termed the 'Super-Cabinet'), and **Cabinet Committee on Security (CCS)**. The Cabinet Committee on Parliamentary Affairs is chaired by the Defence Minister or another senior minister, NOT the PM.
47. **Prime Minister's Office (PMO):** Established in 1947 as Prime Minister's Secretariat; redesignated as PMO in 1977; administrative head is the **Principal Secretary to the Prime Minister**; acts as an extra-constitutional staff agency providing secretarial and analytical support to the Chief Executive.
48. **Cabinet Secretariat & Cabinet Secretary:** Operates directly under the Prime Minister; the **Cabinet Secretary** is the senior-most civil servant in India, ex-officio Chairman of the Civil Services Board, head of the Indian Administrative Service, and ranks **No. 11** in the Warrant of Precedence.
49. **National Security Council (NSC):** Established in 1998; apex three-tier agency for national security management; chaired by the Prime Minister; the **National Security Advisor (NSA)** serves as its member-secretary and primary adviser on internal and external threats.
50. **Articles 77 and 78 Interlock: Article 77** mandates that all executive actions of the Government of India shall be expressed to be taken in the name of the President; **Article 78** defines the constitutional duties of the Prime Minister to communicate all executive and legislative decisions to the President, submit information when called for, and place before the Council any decision taken by an individual minister.
51. **Presidential Electoral College (Article 54):** Consists of: (1) **Elected members of both Houses of Parliament (Lok Sabha & Rajya Sabha)**, and (2) **Elected members of the Legislative Assemblies of the States** (including Delhi, Puducherry [70th CAA 1992], and J&K); Nominated members of Parliament and State Assemblies and ALL members of State Legislative Councils do NOT participate.
52. **Value of Vote of an MLA Formula:** Value of MLA vote = (Total population of the State as per 1971 Census) / (Total number of elected MLAs in the State Legislative Assembly * 1000); Uttar Pradesh has the highest MLA vote value (**208**), while Sikkim has the lowest (**7**).
53. **Value of Vote of an MP Formula:** Value of MP vote = (Total value of votes of all elected MLAs of all States) / (Total number of elected members of Parliament [LS + RS]); currently fixed around 700.
54. **Presidential Election System (Article 55):** Conducted in accordance with the system of **Proportional Representation by means of the Single Transferable Vote (PR-STV)** through secret ballot; candidate must secure the Electoral Quota: Quota = [Total valid votes polled / (1 + 1)] + 1 = (Total valid votes / 2) + 1.
55. **Disputes Regarding Presidential Election (Article 71):** All doubts and disputes arising out of the election of President or Vice-President are inquired into and **decided exclusively by the Supreme Court of India**, whose decision is final; election cannot be challenged on ground of any vacancy in the electoral college.
56. **Presidential Oath (Article 60):** Administered by the **Chief Justice of India** (or in his absence, the senior-most judge of the SC available); President swears to 'preserve, protect, and defend the Constitution and the law'.
57. **Impeachment of the President (Article 61):** Sole ground is **'Violation of the Constitution'** (not defined in the Constitution); Resolution can be initiated in **either House of Parliament**; must be signed by at least **1/4th of total members of that House** and requires **14 days' written notice**; must be passed by a majority of **not less than two-thirds of the TOTAL membership** of each House; Nominated members of Parliament participate in impeachment, whereas State MLAs do NOT participate.
58. **Pardoning Power of President (Article 72):** President has power to grant **Pardons** (completely absolves guilt), **Reprieves** (temporary stay of execution), **Respites** (lesser sentence due to special fact like pregnancy), **Remissions** (reducing amount of sentence without changing character), and **Commutations** (substituting lighter form of punishment); President alone can pardon **Death Sentences** and punishments by a **Court Martial** (Governor has no power over court-martial and cannot completely pardon death sentence under Art. 161).
59. **Ordinance Making Power of President (Article 123):** Can be promulgated ONLY when **either or both Houses of Parliament are not in session** and President is satisfied that circumstances exist requiring immediate action; Ordinance has same force and effect as an Act of Parliament; must be laid before Parliament when it reassembles and ceases to operate after **6 weeks from reassembly** of Parliament (maximum lifespan = 6 months + 6 weeks); cannot amend Constitution.
60. **Landmark Cases on Ordinance Power:** In *R.C. Cooper (1970)*, SC held President's satisfaction can be questioned in court on grounds of malafide; in *D.C. Wadhwa v. State of Bihar (1987)* and *Krishna Kumar Singh (2017)*, SC held repeated repromulgation of ordinances without legislative approval is a fraud on the Constitution.
61. **Veto Powers of the President:** Indian President has 3 veto powers: (1) **Absolute Veto** (withholding assent to a bill, usually private members' bills or when ministry resigns); (2) **Suspensive Veto** (returning bill for reconsideration; overridden by simple majority in Parliament; NOT applicable to Money Bills); (3) **Pocket Veto** (neither assenting nor returning, keeping bill pending indefinitely, as President Zail Singh did with the Indian Post Office Amendment Bill in 1986); President does NOT have 'Qualified Veto' (prevalent in USA).
62. **Vice-President Electoral College (Article 66):** Consists of **ALL members of both Houses of Parliament (both elected and nominated)**; State Legislative Assemblies have NO role in VP election; conducted by PR-STV through secret ballot.
63. **Removal of the Vice-President (Article 67(b)):** Can be removed by a resolution of the **Council of States (Rajya Sabha) passed by an Effective Majority** (majority of all the then members) and **agreed to by the House of the People (Lok Sabha) by a Simple Majority**; requires 14 days' advance notice; no formal impeachment or ground specified in Constitution.
64. **Ex-Officio Chairman of Rajya Sabha (Article 64):** Vice-President is ex-officio Chairman of the Council of States; draws salary and allowances as Chairman of Rajya Sabha (not as Vice-President); when acting as President under Article 65, does NOT perform duties of RS Chairman and draws President's salary.
65. **Article 74 (Council of Ministers to Aid and Advise President):** Article 74(1) mandates a Council of Ministers with PM at head to aid and advise President, who 'shall act in accordance with such advice'; **42nd CAA 1976** made advice binding; **44th CAA 1978** added proviso that President may require CoM to reconsider advice once, but must act in accordance with reconsidered advice; Article 74(2) bars courts from inquiring into nature of advice tendered by ministers.
66. **Article 75 - Prime Minister & Ministers Appointment:** Article 75(1): PM is appointed by President, other ministers appointed by President on advice of PM; Article 75(2): Ministers hold office during the **pleasure of the President**; Article 75(3): Council of Ministers is **collectively responsible to the House of the People (Lok Sabha)**; Article 75(5): Minister not a member of either House for **6 consecutive months** ceases to be a minister.

67. **Size of Council of Ministers - 91st Amendment Act, 2003:** Article 75(1A) mandates that total number of ministers, including the Prime Minister, in the Union Council of Ministers shall NOT exceed **15% of the total number of members of the House of the People (Lok Sabha)**.
68. **Article 78 - Duties of the Prime Minister:** Duty of PM: (a) To communicate to President all decisions of Council of Ministers relating to administration and legislation; (b) To furnish such information as President may call for; (c) If President requires, to submit for consideration of CoM any matter on which a minister has taken a decision but which has not been considered by Council.
69. **Attorney-General for India (Article 76):** Highest law officer in the country; appointed by President; must be qualified to be appointed a **Judge of the Supreme Court**; holds office during the **pleasure of the President**; receives remuneration determined by President; has right of audience in all courts in India.
70. **Article 88 - Special Rights of Attorney-General in Parliament:** Has the right to speak in, and take part in proceedings of, either House of Parliament, any joint sitting, and any Parliamentary Committee of which he may be named a member, but **WITHOUT the right to vote**; enjoys all privileges and immunities of an MP (Article 105(4)).
71. **Solicitor General and Additional Solicitors General:** Statutory law officers assisting the Attorney General; their offices are **NOT mentioned in the Constitution of India** (unlike the AG under Article 76).
72. **Cabinet vs Council of Ministers:** Council of Ministers is a constitutional body (Art. 74 & 75) comprising Cabinet Ministers, Ministers of State, and Deputy Ministers (50–70 members); **Cabinet** is a smaller inner core (15–20 members) exercising supreme executive power; word 'Cabinet' was inserted into the Constitution ONLY in **Article 352 by the 44th CAA 1978**.
73. **Kitchen Cabinet / Inner Cabinet:** An informal body consisting of PM and 2–4 influential colleagues/friends; not mentioned in Constitution; functions as prime decision-making center.
74. **Caretaker Government Constitutional Position:** In *U.N.R. Rao v. Indira Gandhi (1971)*, SC ruled that even after dissolution of Lok Sabha, President cannot function without a Council of Ministers; a Council of Ministers must always exist to aid and advise the President under Article 74(1).
75. **All Executive Actions in President's Name (Article 77):** All executive action of the Government of India shall be expressed to be taken in the name of the President; President makes rules for more convenient transaction of business of GoI and allocation among Ministers (Transaction of Business Rules, 1961).

⏱ Timeline / Chronology

Presidents of India Chronological Sequence

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1950–1962 ── Dr. Rajendra Prasad (Only President elected for two terms; signed Constitution)
   │
1962–1967 ── Dr. S. Radhakrishnan (First Vice-President; Teachers' Day 5 Sept)
   │
1967–1969 ── Dr. Zakir Husain (First Muslim President; first President to die in office)
   │
   ├── 1969: V.V. Giri (Acting President) → resigned to contest election
   ├── 1969: Justice M. Hidayatullah (Acting President – only CJI to act as President)
   │
1969–1974 ── V.V. Giri (Elected as independent candidate; second-preference count used)
   │
1974–1977 ── Fakhruddin Ali Ahmed (Proclaimed Internal Emergency 1975; second to die in office)
   │
   ├── 1977: B.D. Jatti (Acting President)
   │
1977–1982 ── Neelam Sanjiva Reddy (Youngest President until 2022; elected UNOPOSED; former LS Speaker)
   │
1982–1987 ── Giani Zail Singh (First Sikh President; exercised Pocket Veto on Post Office Bill 1986)
   │
1987–1992 ── R. Venkataraman (Appointed 4 Prime Ministers during coalition transitions)
   │
1992–1997 ── Dr. Shankar Dayal Sharma (Administered oaths to 4 Prime Ministers)
   │
1997–2002 ── K.R. Narayanan (First Dalit President; returned cabinet advice on Art. 356)
   │
2002–2007 ── Dr. A.P.J. Abdul Kalam ("People's President", "Missile Man"; returned Office of Profit Bill)
   │
2007–2012 ── Pratibha Patil (First woman President of India)
   │
2012–2017 ── Pranab Mukherjee (Veteran parliamentarian; awarded Bharat Ratna 2019)
   │
2017–2022 ── Ram Nath Kovind (Second Dalit President; former Bihar Governor)
   │
2022–Pres ── Droupadi Murmu (First Tribal & second woman President; youngest President)
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📊 Quick Reference Grid

1. Comparative Matrix: President vs Vice-President vs Governor

FEATURE	PRESIDENT (ART. 52–62)	VICE-PRESIDENT (ART. 63–71)	GOVERNOR (ART. 153–161)
Electoral College	Elected MPs + Elected MLAs + Delhi/Puducherry MLAs	ALL MPs of both Houses (Elected + Nominated)	Appointed by President (No election)
Minimum Age	35 years	35 years	35 years
Qualifications	Citizen; qualified for Lok Sabha	Citizen; qualified for Rajya Sabha	Citizen; 35 years age
Oath Administered By	Chief Justice of India (Art. 60)	President of India (Art. 69)	Chief Justice of State High Court (Art. 159)
Term	5 years	5 years	5 years (Pleasure of President)
Resignation To	Vice-President	President	President
Removal Mechanism	Impeachment (2/3rd TOTAL membership each House, Art. 61)	Effective majority in RS + Simple majority in LS (Art. 67)	Removed by President at any time
Pardoning Scope	Union offenses + Court-Martial + ALL Death sentences	No pardoning power	State offenses only; CANNOT pardon Death or Court-martial
Ordinance Power	Art. 123 (when Parliament in recess)	No ordinance power	Art. 213 (when State Legislature in recess)

2. Presidential Veto Powers Matrix

VETO TYPE	MEANING	OPERATIONAL SCOPE IN INDIA	US PRESIDENT COMPARISON
Absolute Veto	Withholding assent completely; bill terminates	Exercised on Private Members' bills or when Cabinet falls	Exists
Suspensive Veto	Returning bill for parliamentary reconsideration	Overridden if Parliament repasses by **Simple Majority**; *Cannot be used for Money Bills*	Overridden by **2/3rd majority** (Qualified Veto)
Pocket Veto	Neither assenting nor returning; keeping bill pending	Exercised indefinitely (Indian Constitution specifies NO time limit; Zail Singh 1986)	Pocket veto operates if Congress adjourns within **10 days**
Amendment Bills	Assent mandatory under Art. 368(2)	**NO Veto permissible** (24th Amendment Act, 1971 made assent obligatory)	Congress proposes without President

3. Cabinet Committees Architecture

CABINET COMMITTEE	CHAIRPERSON	KEY MANDATE
Appointments Committee of the Cabinet (ACC)	**Prime Minister**	Decides top appointments in central secretariat, public sector, and armed forces
Cabinet Committee on Economic Affairs (CCEA)	**Prime Minister**	Directs national economic policies, infrastructure priorities, and MSP fixation
Cabinet Committee on Political Affairs (CCPA)	**Prime Minister**	Handles foreign affairs, domestic politics; known as the **"Super-Cabinet"**
Cabinet Committee on Security (CCS)	**Prime Minister**	Oversees defence procurement, national security, intelligence, and nuclear policy
Cabinet Committee on Parliamentary Affairs	**Defence / Senior Minister**	Coordinates government legislative agenda in Parliament; **NOT chaired by PM**
Cabinet Committee on Accommodation	**Senior Cabinet Minister**	Allocation of government accommodation to ministers and MPs; **NOT chaired by PM**

🧠 Memory Anchors & Mnemonics

1. **Presidential Electoral College Filter:** - **"Elected MPs + Elected MLAs (States + Delhi + Puducherry). ALL Nominees & ALL MLCs are OUT!"** - Memory Rule: If a member has the word "Nominated" or "Council (MLC)", they cannot vote for President.
2. **President Impeachment Majority Lock:** - **"2/3rd of TOTAL MEMBERSHIP of the House"** - Examiner Trap: Most parliamentary special majorities require "2/3rd of members present and voting + majority of total membership". But Art. 61 is unique: it requires **2/3rd of the ENTIRE TOTAL SEATS** of the House!
3. **Four Cabinet Committees Chaired by Prime Minister:** - Mnemonic: **"A-P-E-S"** or **"P-A-C-S"** - **P**olitical Affairs (CCPA) - **A**ppointments (ACC) - **C**EA — Economic Affairs (CCEA) - **S**ecurity (CCS) - *Parliamentary Affairs is NOT chaired by PM (chaired by Defence/Senior Minister)!*
4. **Clemency Terms Decoder:** - **Pardon** = Complete erase (Conviction + Sentence gone) - **Commutation** = Character change (Heavy to light: Death → Life) - **Remission** = Reduce time without changing character (2 yrs RI → 1 yr RI) - **Respite** = Reduce on special body condition (Pregnancy / Disability) - **Reprieve** = Temporary pause / stay of execution

Chapter 07: Parliament

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024	**18th Lok Sabha** constituted; **Om Birla** re-elected Speaker; **Rahul Gandhi** officially recognised as Leader of the Opposition (first recognized LoP in 10 years).	Landmark parliamentary developments; tests constitutional status of Speaker and LoP.
2024–2025	Standing Committee Chairs for 18th Lok Sabha: **PAC** chaired by **K.C. Venugopal**; **Estimates Committee** chaired by **Sanjay Jaiswal**; **COPU** chaired by **Baijayant Panda**.	PAC chair conventionally goes to the Opposition (since 1967); Estimates is all-Lok Sabha.
2022	Election Commission of India revised candidate poll expenditure ceilings: Lok Sabha up to **₹95 lakh** (smaller States **₹75 lakh**); Assembly up to **₹40 lakh** (smaller States **₹28 lakh**).	Frequent match-list question in UPPCS General Studies.
2019–2020	**104th Amendment Act, 2019** discontinued nomination of 2 Anglo-Indian members to Lok Sabha (Art. 331) and 1 member to State Assemblies (Art. 333); maximum LS strength now **550** (530 States + 20 UTs).	Essential structural change for parliamentary composition MCQs.
2017	Union Budget presented on **1 February**; 92-year-old separate Railway Budget practice merged into General Budget (reversing the 1924 Acworth Committee separation).	Recurrent history-polity crossover question.
2026 Delimitation Freeze	Total Lok Sabha seats frozen based on the **1971 Census** until the first census taken after the year **2026** (84th Amendment Act, 2001).	High-yield Prelims lock on territorial representation.

🎯 Consolidated Must-Score Facts

1. Under **Article 79**, the Parliament of India consists of the **President**, the **Council of States (Rajya Sabha)**, and the **House of the People (Lok Sabha)**; though the President is not a member of either House, he is an integral part of Parliament.
2. **Rajya Sabha Composition (Article 80):** Maximum strength is **250** (238 representatives of States and UTs + 12 nominated by the President from literature, science, art, and social service); present strength is **245**.
3. Representatives of States in Rajya Sabha are elected by the **elected members of State Legislative Assemblies (MLAs)** in accordance with proportional representation by means of the single transferable vote (**PR-STV**); nominated MLAs and MLCs DO NOT vote.
4. Among Union Territories, only **Delhi, Puducherry, and Jammu & Kashmir** have representation in Rajya Sabha because only they have legislative assemblies; all other UTs have no Rajya Sabha seats.
5. **Rajya Sabha Tenure (Article 83(1)):** Rajya Sabha is a **permanent body** and is **NOT subject to dissolution**; one-third of its members retire every second year; the tenure of an individual member is **6 years** (prescribed by the Representation of the People Act, 1951, NOT by the Constitution).
6. **Lok Sabha Composition (Article 81):** Maximum strength originally 552; after the **104th Amendment, 2019** (which ended Anglo-Indian nomination under Art. 331), maximum strength is **550** (up to 530 from States and 20 from UTs); present elective strength is **543**.
7. **Lok Sabha Tenure (Article 83(2)):** Normal term is **5 years** from the date of its first meeting; stands automatically dissolved on expiry; can be dissolved earlier by the President on the advice of the Prime Minister.
8. During a **National Emergency**, the term of Lok Sabha can be extended by Parliament by law for **one year at a time** for any length of time (Art. 83(2)); however, extension cannot continue beyond **6 months** after the emergency has ceased to operate (exercised during 5th Lok Sabha in 1976).
9. **Delimitation & Seat Freezes:** The **42nd Amendment, 1976** froze total seats in Lok Sabha and State Assemblies at the **1971 Census** level until 2000; the **84th Amendment, 2001** extended this freeze on total seats until the first census after **2026**; the **87th Amendment, 2003** allowed delimitation/readjustment of electoral constituencies within States based on the **2001 Census**.
10. **Qualifications for Membership (Article 84):** Must be a citizen of India; age not less than **30 years for Rajya Sabha** and not less than **25 years for Lok Sabha**; registered as an elector in any parliamentary constituency.
11. **Disqualifications (Article 102):** Holds office of profit; unsound mind; undischarged insolvent; non-citizen; disqualified under any law made by Parliament (Representation of the People Act, 1951).
12. **Decision on Disqualifications (Article 103):** Question whether an MP has become subject to disqualification under Art. 102(1) is decided by the **President**, whose decision is final; the President **MUST obtain the opinion of the Election Commission of India** and act according to such opinion.
13. **Disqualification on Ground of Defection (10th Schedule):** Decided by the **Chairman of Rajya Sabha** or **Speaker of Lok Sabha**; subject to judicial review (*Kihoto Hollohan v. Zachillhu, 1992*).
14. **Presiding Officers of Parliament (Articles 89 & 93):** Rajya Sabha: **Chairman** (Vice-President of India, ex-officio) and Deputy Chairman (elected by RS members from amongst themselves); Lok Sabha: **Speaker** and **Deputy Speaker** (elected by LS members from amongst themselves).
15. **Speaker of Lok Sabha (Article 93 & 94):** Holds office from date of election until **immediately before the first meeting of the new Lok Sabha**; resigns by addressing letter to the **Deputy Speaker**; removed by a resolution passed by a **majority of all the then members (Effective Majority)** with 14 days' notice; when removal resolution is under consideration, Speaker can speak and take part in proceedings and vote in the first instance, but **CANNOT cast a casting vote in a tie** (Art. 96).
16. **Special Powers of Lok Sabha Speaker:** (1) Decides whether a bill is a **Money Bill** and his decision is **final** (Art. 110(3)); (2) Presides over **Joint Sittings** of both Houses (Art. 118(4)); (3) Decides questions of disqualification under the **10th Schedule**; (4) Appoints chairmen of all parliamentary committees of Lok Sabha.
17. **Casting Vote (Article 100(1)):** Speaker or Chairman does not vote in the first instance; exercises a **casting vote** ONLY in the event of an **equality of votes (tie)**.
18. **Speaker Pro Tem:** Appointed by the President (usually the senior-most member of newly elected Lok Sabha) to preside over the first sitting, administer oath to newly elected MPs, and enable election of the regular Speaker.

19. **Sessions of Parliament (Article 85):** Summoned by the President; gap between two sessions **cannot exceed 6 months** (Parliament must meet at least twice a year); by convention, Parliament holds 3 sessions: **Budget Session** (Feb–May), **Monsoon Session** (July–Aug), and **Winter Session** (Nov–Dec).
20. **Prorogation vs Dissolution vs Adjournment: Adjournment** terminates a sitting (done by presiding officer); **Adjournment sine die** terminates sitting without naming day for reassembly (presiding officer); **Prorogation** terminates a session (done by **President**); **Dissolution** ends the very life of Lok Sabha (done by **President**; Rajya Sabha is never dissolved).
21. **Quorum (Article 100(3)):** Minimum number of members required to constitute a meeting of either House is **1/10th of the total membership** of the House (55 in Lok Sabha, 25 in Rajya Sabha); if no quorum, presiding officer must adjourn or suspend the meeting.
22. **Voting and Decision (Article 100):** All questions at any sitting of either House or joint sitting are determined by a **majority of votes of members present and voting**, other than the Speaker or Chairman.
23. **Language in Parliament (Article 120):** Business is transacted in **Hindi or English**; presiding officer may permit any member who cannot adequately express himself in Hindi or English to address the House in his **mother tongue**.
24. **Ordinary Bills (Articles 107 & 108):** Can originate in either House; passed by simple majority of both Houses; if deadlock continues for **6 months**, President may summon a **Joint Sitting** (Art. 108).
25. **Joint Sitting of Parliament (Article 108):** Summoned by President; presided over by **Speaker of Lok Sabha** (if absent, Deputy Speaker; if absent, Deputy Chairman of Rajya Sabha; *Chairman of Rajya Sabha NEVER presides*); governed by Lok Sabha rules; passed by a **majority of total members of both Houses present and voting**; Lok Sabha's numerical superiority (543 vs 245) normally ensures its will prevails.
26. **Joint Sitting Restrictions:** Permissible ONLY for **Ordinary Bills** and **Financial Bills**; **NO Joint Sitting** can be summoned for **Money Bills** (Lok Sabha has supreme authority) or **Constitutional Amendment Bills** (must be passed by each House separately by special majority under Art. 368).
27. **Only 3 Bills passed in Joint Sittings in Indian History:** (1) Dowry Prohibition Bill, 1961; (2) Banking Service Commission (Repeal) Bill, 1978; (3) Prevention of Terrorism Bill (POTA), 2002.
28. **Money Bill (Article 110):** Contains ONLY provisions dealing with taxes, borrowing, Consolidated Fund custody, appropriation, or incidental matters; certified as Money Bill by the **Speaker** (certificate cannot be questioned in court); introduced **ONLY in Lok Sabha** on prior **recommendation of the President**; Rajya Sabha cannot reject or amend, must return within **14 days** with or without recommendations; Lok Sabha may accept or reject recommendations.
29. **Financial Bills (Article 117):** Category I (Art. 117(1) — contains Art. 110 matters + other general legislation; introduced only in LS on President's recommendation; joint sitting applies); Category II (Art. 117(3) — contains provisions involving expenditure from Consolidated Fund; can originate in either House; requires President's recommendation for consideration).
30. **Annual Financial Statement / Budget (Article 112):** Statement of estimated receipts and expenditure of Government of India for that financial year; laid before both Houses by President; expenditure divided into **Charged expenditure** (non-votable) and **Votable expenditure**.
31. **Charged Expenditure on Consolidated Fund (Article 112(3)):** Emoluments of President, Chairman/Deputy Chairman of RS, Speaker/Deputy Speaker of LS, Supreme Court judges' salaries/pensions, High Court judges' **pensions** (*salaries of HC judges are charged on State Consolidated Fund*), CAG salary/pension, debt charges of Government of India; can be discussed in Parliament but **NOT voted upon**.
32. **Stages in Budget Passage:** (1) Presentation of Budget; (2) General Discussion; (3) Scrutiny by Departmentally Related Standing Committees; (4) Voting on Demands for Grants (Lok Sabha exclusively); (5) Passing of **Appropriation Bill** (Art. 114); (6) Passing of **Finance Bill** (gives effect to taxation proposals).
33. **Cut Motions (Lok Sabha only):** (1) **Disapproval of Policy Cut** (demand reduced to ₹1); (2) **Economy Cut** (demand reduced by specified amount); (3) **Token Cut** (demand reduced by ₹100 to voice specific grievance); passage of any Cut Motion amounts to a no-confidence vote and the government must resign.
34. **Guillotine:** On the last day of allotted days for Demands for Grants, the Speaker puts all remaining demands to vote immediately, whether discussed or not.
35. **Vote on Account (Article 116(a)):** Grant in advance made by Lok Sabha to enable the executive to incur expenditure for a part of the financial year pending the regular passage of the Appropriation Bill (usually for 2 months, 1/6th of total budget).
36. **Supplementary, Additional, or Excess Grants (Article 115):** Supplementary grant (when original amount authorized proves insufficient); Additional grant (for unexpected new service); Excess grant (when money spent on service exceeds amount granted; must be approved by PAC before being voted by LS).
37. **Public Accounts Committee (PAC):** Oldest financial committee, set up in **1921** under GOI Act 1919; consists of **22 members (15 Lok Sabha + 7 Rajya Sabha)** elected annually by PR-STV; **term 1 year**; **NO Minister** can be a member; Chairman appointed by Speaker from amongst members, by convention from the **Opposition since 1967**; examines appropriation accounts and **CAG audit reports**; termed the 'friend, philosopher, and guide' of CAG.
38. **Estimates Committee:** Set up in **1950** on recommendation of Finance Minister **Dr. John Matthai**; largest parliamentary committee; consists of **30 members, ALL FROM LOK SABHA** (Rajya Sabha has **NO representation**); elected annually by PR-STV; term 1 year; Minister cannot be a member; Chairman appointed by Speaker, always from the **Ruling Party**; termed 'continuous economy committee'.
39. **Committee on Public Undertakings (COPU):** Created in **1964** on recommendation of the **Krishna Menon Committee**; consists of **22 members (15 Lok Sabha + 7 Rajya Sabha)**; term 1 year; Minister cannot be a member; Chairman appointed by Speaker from amongst **Lok Sabha members only**; examines reports/accounts of PSUs and CAG audit reports on PSUs.
40. **Parliamentary Privileges (Article 105):** Collective privileges (right to publish debates, exclude strangers, punish for breach of privilege and contempt); Individual privileges (freedom of speech in Parliament, immunity from court proceedings for speech/vote, freedom from civil arrest **40 days before and 40 days after** a session — *NO immunity from arrest in criminal cases or preventive detention*).
41. **Question Hour vs Zero Hour:** Question Hour is the first hour of every parliamentary sitting; Starred questions (marked with asterisk, oral answers given, **supplementaries permitted**); Unstarred questions (written answers, **no supplementaries**); Short Notice questions (urgent matter, less than 10 days notice). **Zero Hour** is an informal Indian parliamentary innovation (introduced in 1962), not mentioned in Rules of Procedure; starts at 12:00 noon immediately following Question Hour for raising urgent issues without prior notice.
42. **Adjournment Motion vs Calling Attention Motion: Adjournment Motion** introduces an element of censure; requires support of at least **50 members**; interrupts normal business; Lok Sabha only. **Calling Attention Motion** is an Indian procedural innovation (since 1954) to call minister's attention to urgent matter; involves no censure; allowed in both Houses.
43. **No-Confidence Motion vs Censure Motion: Censure Motion** can be moved against an individual minister, group of ministers, or council; must state reasons; council need not resign if passed. **No-Confidence Motion** can ONLY be moved against the **entire Council of Ministers**; need not state reasons; requires support of **50 members** to be admitted; Lok Sabha only; if passed, the entire government **MUST resign immediately**.

44. **Guillotine Procedure:** On the final day allotted for the discussion of Demands for Grants, the Speaker applies the **Guillotine**, putting every outstanding grant to the vote of the House whether debated or not, bringing closure to the financial debate.
45. **Votable vs Non-Votable Financial Outlays:** Expenditures charged upon the Consolidated Fund of India (Art. 112(3)) are **non-votable** (can only be discussed); expenditures made from the Consolidated Fund must be sanctioned through an **Appropriation Act** (Art. 114); advances from the Contingency Fund of India (Art. 267) are sanctioned by the President pending parliamentary replenishment.
46. **Departmentally Related Standing Committees (DRSCs):** Established in 1993; total **24 committees** (16 work under Lok Sabha Speaker, 8 work under Rajya Sabha Chairman); each DRSC comprises **31 members** (21 from Lok Sabha and 10 from Rajya Sabha); term is **1 year**; Ministers are barred from membership; scrutinize ministry budget demands and annual performance reports.
47. **Lapsing of Bills on Lok Sabha Dissolution (Article 107):** (1) A bill pending in Lok Sabha lapses; (2) A bill passed by Lok Sabha and pending in Rajya Sabha lapses; (3) A bill originating and pending in Rajya Sabha, but NOT passed by Lok Sabha, **DOES NOT LAPSE**; (4) A bill passed by both Houses and awaiting Presidential assent **DOES NOT LAPSE**; (5) A bill returned by President for reconsideration **DOES NOT LAPSE**; (6) A bill where joint sitting was notified by President before dissolution **DOES NOT LAPSE**.
48. **Leader of the Opposition (LoP):** Leader of the largest opposition party having at least **1/10th of the total strength (55 seats in Lok Sabha)**; accorded statutory recognition by the **Salaries and Allowances of Leaders of Opposition in Parliament Act, 1977**; given rank and salary of a Cabinet Minister; serves on statutory selection committees for CVC, CBI Director, CIC, Lokpal, and NHRC.
49. **Whip Architecture:** Derived from British conventions (not mentioned in Constitution, Rules of Procedure, or Parliamentary Statutes); issued by political parties to enforce party discipline and mandatory voting; defying a three-line whip triggers disqualification under the **10th Schedule (Anti-Defection Law)** unless condoned by party within 15 days.
50. **Parliamentary Majorities Classification:**
51. **Composition of Lok Sabha (Article 81):** Maximum permissible strength originally 552 (530 States + 20 UTs + 2 Anglo-Indians); **104th Amendment Act, 2019** discontinued nomination of 2 Anglo-Indians (Art. 331); current maximum strength is **550 (530 States + 20 UTs)**; current actual strength is 543.
52. **Composition of Rajya Sabha (Article 80):** Maximum strength **250** (238 representatives of States and UTs + 12 nominated by President for expertise in Literature, Science, Art, and Social Service); current actual strength is 245 (229 States + 4 UTs [Delhi 3, Puducherry 1] + 12 Nominated; 4 J&K seats currently vacant); Rajya Sabha is a **permanent chamber** not subject to dissolution; one-third of its members retire every second year (member's tenure is **6 years**).
53. **Qualifications for Parliament Membership (Article 84):** Citizen of India; age not less than **30 years for Rajya Sabha** and not less than **25 years for Lok Sabha**; registered elector in any parliamentary constituency in India (representation in RS does NOT require domicile in that state, upheld in *Kuldip Nayar v. UOI, 2006*).
54. **Disqualification on Ground of Defection (Tenth Schedule):** Decided by the **Speaker/Chairman of the House**; in *Kihoto Hollohan v. Zachillhu (1992)*, SC held that the Presiding Officer acts as a tribunal and their decision is subject to **Judicial Review**.
55. **Other Disqualifications (Article 102 & 103):** Holding office of profit under Union/State government, unsound mind, undischarged insolvent, alien citizenship; questions under Article 102 are decided by the **President in consultation with the Election Commission of India**, whose opinion is binding.
56. **Speaker of Lok Sabha (Article 93):** Elected by Lok Sabha members from amongst themselves by simple majority; resigns by writing to the **Deputy Speaker** (and vice-versa); when a resolution for removal of Speaker is under consideration, Speaker **cannot preside**, can speak and take part in proceedings, has right to vote in first instance, but CANNOT vote in case of equality of votes (Article 96).
57. **Speaker Pro Tem:** Appointed by the President (usually the senior-most elected member of Lok Sabha) to administer oaths to newly elected MPs and preside over the election of the new Speaker.
58. **Casting Vote of Presiding Officers (Article 100):** Chairman of RS and Speaker of LS do not vote in the first instance; they exercise a **casting vote ONLY in the case of an equality of votes (tie)**.
59. **Quorum in Parliament (Article 100(3)):** Minimum presence required to constitute a meeting of either House is **one-tenth (10%) of the total number of members** of that House (55 in Lok Sabha, 25 in Rajya Sabha).
60. **Sessions of Parliament (Article 85):** President summons each House; maximum gap between two sessions of Parliament cannot exceed **6 months**; Parliament must meet at least twice a year; India holds 3 annual sessions by convention: Budget Session (Feb–May), Monsoon Session (July–Sep), Winter Session (Nov–Dec).
61. **Joint Sitting of Parliament (Article 108):** Summoned by President if a bill passed by one House is rejected by the other, or Houses disagree on amendments, or more than 6 months elapse without passing; Presided over by the **Speaker of Lok Sabha** (in his absence, Deputy Speaker; in his absence, Deputy Chairman of Rajya Sabha; Chairman of Rajya Sabha NEVER presides); Joint Sitting applies ONLY to **Ordinary Bills and Financial Bills Type II**; it does NOT apply to **Money Bills** (Art. 110) or **Constitutional Amendment Bills** (Art. 368); passed by simple majority of total members present and voting.
62. **Three Historical Joint Sittings in India:** (1) Dowry Prohibition Bill (1961), (2) Banking Service Commission (Repeal) Bill (1978), and (3) Prevention of Terrorism Bill (POTA, 2002).
63. **Definition of Money Bill (Article 110):** A bill dealing ONLY with imposition, abolition, remission, alteration or regulation of any tax; borrowing of money; custody of Consolidated/Contingency Fund; appropriation of moneys out of Consolidated Fund; Speaker's certificate that a bill is a Money Bill is **final and conclusive** and cannot be questioned in any court.
64. **Procedure in Respect of Money Bills (Article 109):** Can be introduced ONLY in **Lok Sabha** and ONLY on **prior recommendation of the President**; cannot be introduced in Rajya Sabha; Rajya Sabha cannot reject or amend a Money Bill; RS must return it with/without recommendations within **14 days**; if not returned within 14 days, deemed passed by both Houses in the form passed by Lok Sabha.
65. **Financial Bills Classification (Article 117): Financial Bill (I) (Art. 117(1)):** Contains matters of Art. 110 plus general legislation; introduced ONLY in Lok Sabha on President's recommendation, but otherwise treated as Ordinary Bill (RS can reject/amend; Joint sitting possible); **Financial Bill (II) (Art. 117(3)):** Involves expenditure from Consolidated Fund; can be introduced in either House without prior recommendation, but requires President's recommendation for consideration/passage in either House.
66. **Budget in Parliament (Article 112):** Referred to in Constitution as **'Annual Financial Statement'**; expenditure is divided into: (a) **Expenditure Charged upon Consolidated Fund** (non-votable; discussed by Parliament; e.g. salaries of President, SC judges, CAG, debt charges), and (b) **Expenditure Made from Consolidated Fund** (votable by Lok Sabha in form of Demands for Grants).
67. **Cut Motions in Budget Scrutiny:** (1) **Policy Cut Motion:** Demands amount be reduced to ₹1 (disapproval of policy); (2) **Economy Cut Motion:** Demands amount be reduced by a specified amount; (3) **Token Cut Motion:** Demands amount be reduced by ₹100 (ventilates a specific grievance).

68. **Guillotine Procedure:** On the last day of allotted days for discussing Demands for Grants, the Speaker puts all remaining undiscovered demands to vote without any further discussion.
69. **Appropriation Bill (Article 114) & Vote on Account (Article 116):** No money can be withdrawn from the Consolidated Fund of India except under appropriation made by law (Art. 114); **Vote on Account** grants advance money to government to cover expenditure for a part of the financial year (usually 2 months) pending passage of the full Appropriation Bill.
70. **Consolidated Fund vs Contingency Fund vs Public Account:** (1) **Consolidated Fund of India (Art. 266(1)):** All revenues, loans, and recoveries; operated under Parliamentary appropriation; (2) **Public Account of India (Art. 266(2)):** Provident funds, judicial deposits, savings bank deposits; executive operated without parliamentary vote; (3) **Contingency Fund of India (Art. 267):** ₹500 crore corpus placed at disposal of President to meet unforeseen expenditure pending authorization by Parliament.
71. **Public Accounts Committee (PAC):** Oldest parliamentary financial committee (set up 1921 under GOI Act 1919); consists of **22 members (15 Lok Sabha + 7 Rajya Sabha)** elected annually by PR-STV; a Minister CANNOT be elected; Chairman appointed by Speaker from Lok Sabha members (by convention since 1967, Chairman belongs to the **Opposition**); examines appropriation accounts and CAG audit reports; CAG acts as 'friend, philosopher, and guide' of PAC.
72. **Estimates Committee:** Largest Parliamentary Committee; set up in 1950 on recommendation of Finance Minister **John Matthai**; consists of **30 members, ALL exclusively from Lok Sabha** (Rajya Sabha has NO representation); ministers barred from membership; Chairman appointed by Speaker from ruling party; examines estimates to suggest economies and administrative reforms ('Continuous Economy Committee').
73. **Committee on Public Undertakings (COPU):** Created in 1964 on recommendation of **Krishna Menon Committee**; consists of **22 members (15 Lok Sabha + 7 Rajya Sabha)**; examines reports and accounts of PSUs and CAG commercial audit reports; ministers barred from membership.
74. **Departmentally Related Standing Committees (DRSCs):** 24 DRSCs (16 under Lok Sabha Speaker, 8 under Rajya Sabha Chairman); each DRSC consists of **31 members (21 Lok Sabha + 10 Rajya Sabha)**; ministers barred from membership; scrutinize Demands for Grants, examine bills, and consider annual reports.
75. **Key Parliamentary Motions: No-Confidence Motion:** Admissible ONLY in Lok Sabha; requires support of at least **50 members**; if passed, Ministry must resign; **Censure Motion:** Can be moved against individual minister or entire ministry in Lok Sabha for specific policies; ministry need not resign if passed; **Calling Attention Motion:** Introduced by an MP to call attention of a minister to an urgent public matter (Indian innovation since 1954); **Adjournment Motion:** Introduced in Lok Sabha only to draw attention to definite matter of urgent public importance involving censure of government; requires support of 50 members. - **Simple Majority:** Majority of members present and voting (Ordinary bills, Money bills, No-Confidence, President's Rule, Financial Emergency, Art. 2/3 state formation). - **Effective Majority:** Majority of all 'then' members, excluding vacancies (Removal of VP in Rajya Sabha under Art. 67(b), Removal of Speaker/Deputy Speaker under Art. 94(c)). - **Special Majority (Art. 249 & 312):** 2/3rd of members present and voting. - **Special Majority (Art. 368 & 352):** Majority of total membership + 2/3rd of members present and voting. - **Special Majority (Art. 61):** 2/3rd of the **TOTAL MEMBERSHIP** of the House (strictest majority in the Constitution).

Timeline / Chronology

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1919  — Government of India Act: Introduced Central Bicameralism (Council of State + Legislative Assembly)
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1921  — First Central Legislature inaugurated; Public Accounts Committee (PAC) established
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1950  — Estimates Committee established on recommendation of Finance Minister Dr. John Matthai
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1952  — First General Elections; First Lok Sabha (Speaker: G.V. Mavalankar) & Rajya Sabha meet
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1954  — Hindi nomenclature adopted: "Lok Sabha" and "Rajya Sabha"; Calling Attention Motion introduced
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1961  — First Joint Sitting of Parliament: Dowry Prohibition Bill, 1959
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1962  — Zero Hour introduced as an informal Indian parliamentary practice
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1964  — Committee on Public Undertakings (COPU) established on Krishna Menon Committee report
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1967  — Convention established: PAC Chairman appointed from the Opposition party
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1976  — 42nd Amendment: Froze Lok Sabha seats at 1971 Census levels until 2000
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1977  — Statutory status granted to Leaders of Opposition in Parliament
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1978  — Second Joint Sitting of Parliament: Banking Service Commission (Repeal) Bill, 1977
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1985  — 52nd Amendment: 10th Schedule (Anti-Defection Law) introduced; Speaker/Chairman decides
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1993  — Departmentally Related Standing Committees (DRSCs) created (originally 17, now 24)
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2001  — 84th Amendment: Extended seat freeze at 1971 level until first census after 2026
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2002  — Third Joint Sitting of Parliament: Prevention of Terrorism Bill (POTA), 2002
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2019  — 104th Amendment: Abolished Anglo-Indian nomination to Lok Sabha (Art. 331)
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2023  — Inauguration of New Parliament Building; Special Session passed 106th Amendment (Women's Quota)
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📊 Quick Reference Grid

1. Three Financial Committees Comparative Matrix

FEATURE	PUBLIC ACCOUNTS COMMITTEE (PAC)	ESTIMATES COMMITTEE	COMMITTEE ON PUBLIC UNDERTAKINGS (COPU)
Origin Year	1921 (GOI Act 1919)	1950 (John Matthai recommendation)	1964 (Krishna Menon Committee)
Total Members	**22** members	**30** members (Largest Committee)	**22** members
Lok Sabha Members	15	**30 (ALL from Lok Sabha)**	15
Rajya Sabha Members	7	**0 (ZERO representation)**	7
Election Method	PR-STV annually	PR-STV annually	PR-STV annually
Term of Office	1 year	1 year	1 year
Minister Eligible?	**NO**	**NO**	**NO**
Chairperson	Appointed by Speaker; from **Opposition** (since 1967)	Appointed by Speaker; from **Ruling Party**	Appointed by Speaker from **Lok Sabha members only**
Primary Function	Examines appropriation accounts & CAG audit reports	Examines budget estimates to suggest economies	Examines reports, accounts, and efficiency of PSUs

2. Lok Sabha vs Rajya Sabha Powers Comparison

DIMENSION	LOK SABHA (HOUSE OF THE PEOPLE)	RAJYA SABHA (COUNCIL OF STATES)
Money Bills (Art. 110)	Introduced only in LS; LS can accept/reject RS advice	Max 14 days delay; cannot amend or reject
Financial Bill I (Art. 117(1))	Introduced only in Lok Sabha	Same as ordinary bill after introduction
No-Confidence Motion	Moved and passed **ONLY in Lok Sabha**	Has NO power to vote on confidence
Demands for Grants	Voted **ONLY in Lok Sabha**	Can only discuss the Budget, not vote on grants
State List Legislation (Art. 249)	No special initiative	**Exclusive power** by 2/3rd present and voting
All-India Services (Art. 312)	Approves regular legislation	**Exclusive power** to initiate creation by 2/3rd
Vice-President Removal (Art. 67(b))	Agrees by simple majority	**Initiates resolution** by effective majority
National Emergency Revocation	Can pass disapproval resolution by simple majority (Art. 352(8))	No special revocation power

3. Rules of Lapsing of Bills upon Lok Sabha Dissolution

SCENARIO	DOES THE BILL LAPSE?	CONSTITUTIONAL REASON / LOGIC
Bill originating and pending in Lok Sabha	**LAPSES**	Lok Sabha dissolved; unfinished business terminates
Bill passed by Lok Sabha, pending in Rajya Sabha	**LAPSES**	Passed by expired House, pending in other House
Bill originating and pending in Rajya Sabha (not passed by LS)	**DOES NOT LAPSE**	Lok Sabha never considered it; RS is permanent
Bill passed by both Houses, awaiting President's assent	**DOES NOT LAPSE**	Both Houses completed legislative action
Bill returned by President for reconsideration	**DOES NOT LAPSE**	Passed by both Houses already; reconsidered by new LS
Joint sitting notified by President before dissolution	**DOES NOT LAPSE**	Presidential notification under Art. 108 supersedes dissolution

🧠 Memory Anchors & Mnemonics

1. **Estimates Committee — The All-Lok Sabha Body:** - Mnemonic: **"Estimates = Exclusively Lok Sabha (30)"** - Rajya Sabha is completely shut out of Estimates because estimates deal with taxation and expenditure grants, which are the exclusive prerogative of the popular house.
2. **Three Financial Committees Member Counts:** - **PAC:** 15 + 7 = **22** - **Estimates:** 30 + 0 = **30** - **COPU:** 15 + 7 = **22** - Memory Rule: "22, 30, 22 — No Ministers allowed in any of the three!"
3. **Bill Lapsing Logic on Dissolution:** - **"If Lok Sabha has touched it, it DIES. If Lok Sabha has never seen it (pending in RS), it LIVES!"** - If both Houses finished passing it, it LIVES (President's table).
4. **Joint Sitting Presiding Officer Succession:** - **Speaker → Deputy Speaker → Deputy Chairman of RS.** - *Chairman of Rajya Sabha is NOT an MP (he is the Vice-President of India), hence cannot preside over MPs assembled together!*

Chapter 08: State Government

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2023–2024	Supreme Court landmark rulings (*State of Punjab v. Principal Secretary to Governor, 2023*) held that Governors cannot sit on Bills indefinitely under Article 200; if a Governor withholds assent, he must return the Bill to the legislature "as soon as possible".	Definitive contemporary check on gubernatorial discretion under Article 200.
Ongoing	Exactly **six States have a Bicameral Legislature (Vidhan Parishad)**: Uttar Pradesh (100), Maharashtra (78), Bihar (75), Karnataka (75), Andhra Pradesh (58), and Telangana (40).	Standard match-list and "how many" question in UPPSC.
2019	Jammu & Kashmir Legislative Council was **abolished** under the J&K Reorganisation Act, 2019; J&K converted into a UT with assembly, Ladakh into a UT without assembly.	Recent structural shift in state legislative architecture.
2022–2024	Discretionary powers of Governors in floor tests and swearing-in ceremonies scrutinized by SC (*Subhash Desai v. Principal Secretary, 2023* on Maharashtra).	High-yield focus on Articles 163 and 174.

Consolidated Must-Score Facts

1. **Part VI (Articles 152–237)** of the Constitution governs the State Government; deals with the State Executive, State Legislature, and High Courts / Subordinate Courts.
2. The **State Executive** consists of the **Governor**, the **Chief Minister**, the **Council of Ministers**, and the **Advocate-General for the State**; there is no office of Vice-Governor in the States.
3. **Office of the Governor (Article 153):** There shall be a Governor for each State; the **7th Constitutional Amendment Act, 1956** added a proviso permitting the appointment of the **same person as Governor for two or more States**.
4. **Appointment of Governor (Article 155):** Appointed by the **President by warrant under his hand and seal**; neither directly elected by the people nor indirectly elected by an electoral college; borrowed from the **Canadian model**.
5. In *Hargovind Pant v. Dr. Raghukul Tilak (1979)*, Supreme Court held that the office of Governor is an **independent constitutional office** and is NOT an employment under the Central Government, nor is it subordinate to the Central Government.
6. **Qualifications of Governor (Article 157):** Must be a citizen of India; must have completed the age of **35 years**.
7. Important Conventions on Governor: (1) Should be an outsider (not belonging to the State to which appointed); (2) Chief Minister of the State should be consulted by the President before appointment (recommended by Sarkaria Commission, though frequently violated).
8. **Conditions of Governor's Office (Article 158):** Shall not be a member of either House of Parliament or State Legislature; shall not hold any other office of profit; emoluments, allowances, and privileges determined by Parliament and cannot be diminished during term; where same person is Governor of two or more States, emoluments are allocated among the States by the President.
9. **Oath of the Governor (Article 159):** Administered by the **Chief Justice of the State High Court** (or senior-most HC Judge available); swears to **"preserve, protect and defend the Constitution and the law"** (identical oath text to President).
10. **Term of Office (Article 156):** Holds office for a term of **5 years**, but holds office during the **PLEASURE OF THE PRESIDENT**; has no security of tenure and can be removed by the President at any time without assigning any reason (*B.P. Singhal v. Union of India, 2010* held removal cannot be arbitrary, capricious, or on political whim); resigns by writing to the President.
11. **Executive Powers of Governor:** Appoints the **Chief Minister** and other Ministers (on CM's advice), Advocate-General, State Election Commissioner, Chairman and members of SPSC (can appoint, but **CANNOT remove SPSC members** — removed only by President under Art. 317); acts as Chancellor of State Universities.
12. **Legislative Powers of Governor:** Summons, prorogues State Legislature, dissolves Legislative Assembly (Art. 174); addresses Legislature (Art. 175 & 176); nominates **1/6th members of Legislative Council** (Art. 171(5): literature, science, art, cooperative movement, social service — *cooperative movement is unique to Governor*); nominates 1 Anglo-Indian to Assembly under Art. 333 (abolished by 104th Amd 2019).
13. **Assent to Bills (Article 200):** Governor can: (1) Give assent; (2) Withhold assent; (3) Return the Bill for reconsideration (if not Money Bill); (4) **Reserve the Bill for consideration of the President**.
14. **Mandatory Reservation for President:** Governor is **constitutionally required to reserve** any Bill passed by the State Legislature that in his opinion so derogates from the powers of the **High Court** as to endanger its constitutional position (Art. 200 second proviso).
15. **President's Action on Reserved State Bill (Article 201):** President can give assent, withhold assent, or direct Governor to return Bill; if returned, legislature must reconsider within 6 months; if passed again with or without amendment, the **President is NOT BOUND to give assent** (unlike Art. 111 where President must assent to repassed parliamentary bills!).
16. **Ordinance-Making Power of Governor (Article 213):** Promulgated when State Legislature (or either House in bicameral states) is not in session; ceases to operate **6 weeks from reassembly** of legislature; maximum lifespan **6 months + 6 weeks**; requires prior instruction from President in three cases (if Bill required presidential recommendation, or would have been reserved for President, or State Act would be invalid without presidential assent).
17. **Pardoning Power of Governor (Article 161):** Can grant pardons, reprieves, respites, remissions of punishment for offences against laws relating to State executive power; **CANNOT PARDON A DEATH SENTENCE** (even if death penalty is prescribed under State law, only the President has power to pardon death sentences under Art. 72; Governor can only suspend, remit, or commute a death sentence); **CANNOT pardon court-martial (military) sentences**.
18. **Discretionary Powers of Governor (Article 163):** Constitution explicitly recognises the Governor's discretionary powers (unlike the President); Art. 163(1) mandates Council of Ministers to aid and advise Governor except when acting in his discretion; Art. 163(2) provides that the **Governor's decision on whether a matter falls within his discretion is FINAL and cannot be questioned**.
19. **Constitutional Discretion of Governor:** (1) Reservation of Bill for President (Art. 200); (2) Recommending President's Rule (Art. 356); (3) Determining amount payable to autonomous Tribal District Council by Assam/Meghalaya/Tripura/Mizoram (6th Schedule); (4) Seeking information from CM on administration (Art.

167).

20. **Situational Discretion of Governor:** (1) Appointment of CM when no party has clear majority; (2) Dismissal of Council of Ministers that lost majority in Assembly; (3) Dissolution of Legislative Assembly.
21. **Chief Minister (Article 164):** Real executive head of the State; appointed by Governor; leader of majority party in Legislative Assembly; can be a member of either House; non-member can be appointed CM but must become member within **6 months**.
22. **Council of Ministers (Articles 163 & 164):** Aided and advised by CoM; collectively responsible to the **Legislative Assembly (Vidhan Sabha)** (Art. 164(2)); ministers hold office during the **pleasure of the Governor** (Art. 164(1)).
23. **Size of State Council of Ministers (91st Amendment, 2003):** Total ministers including CM shall **not exceed 15% of the total strength of the Legislative Assembly**, but shall **NOT BE LESS THAN 12 MINISTERS** (Art. 164(1A)).
24. **Advocate-General for the State (Article 165):** Highest law officer of the State; appointed by Governor; must be qualified to be a **Judge of a High Court**; holds office during the **pleasure of the Governor**; right to speak and take part in proceedings of State Legislature without the right to vote (Art. 177).
25. **State Legislature (Part VI, Articles 168–212):** Most States have a unicameral legislature (Legislative Assembly); only **6 States have a bicameral legislature** (Assembly + Council): Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, and Uttar Pradesh.
26. **Creation and Abolition of Legislative Councils (Article 169):** Parliament can abolish or create a Legislative Council if the Legislative Assembly of the State passes a resolution by a **Special Majority** (majority of total membership of Assembly + 2/3rd of members present and voting); the parliamentary law is passed by a **Simple Majority** and is NOT deemed an amendment under Art. 368.
27. **Composition of Legislative Assembly (Vidhan Sabha, Article 170):** Maximum strength **500**, minimum strength **60**; exceptions with smaller assemblies: Sikkim (32), Goa (40), Mizoram (40), Puducherry (30); directly elected by universal adult franchise.
28. **Composition of Legislative Council (Vidhan Parishad, Article 171):** Maximum strength is **1/3rd of total strength of Legislative Assembly**; minimum strength is **40**; indirect election and nomination:
    - **1/3rd** elected by local authorities (Municipalities, District Boards);
    - **1/12th** elected by graduates of 3 years' standing;
    - **1/12th** elected by secondary school teachers of 3 years' standing;
    - **1/3rd** elected by MLAs from amongst non-MLAs;
    - **1/6th nominated by Governor** (literature, science, art, cooperative movement, social service).
29. **Legislative Council Tenure (Article 172(2)): Permanent body**, NOT subject to dissolution; one-third of its members retire every second year; member's tenure is **6 years**; presided over by **Chairman and Deputy Chairman** elected by Council members from amongst themselves.
30. **Legislative Assembly Tenure (Article 172(1)):** Normal term **5 years** from date of first meeting; can be dissolved earlier by Governor; can be extended during National Emergency by Parliament for **1 year at a time**, up to 6 months after emergency ends.
31. **Speaker and Deputy Speaker of Legislative Assembly (Articles 178–181):** Elected by Assembly members; Speaker resigns to Deputy Speaker; removed by resolution passed by **majority of all the then members (Effective Majority)** with 14 days' notice; casting vote in a tie.
32. **Legislative Powers Comparison: Assembly vs Council:** The Legislative Council is a **weak secondary chamber**; has NO veto power over ordinary bills:
    - On an ordinary bill, Council can delay for a maximum of **3 months in the first instance**;
    - If repassed by Assembly, Council can delay for **1 month in the second instance**;
    - Total maximum delay permissible is **4 MONTHS**; after 4 months, Bill is deemed passed in the form passed by the Assembly!
33. **NO Joint Sitting in State Legislature:** Unlike Parliament (Art. 108), there is **NO PROVISION FOR A JOINT SITTING** of both Houses in State Legislatures to resolve deadlocks on bills.
34. **Money Bills in State Legislature (Article 198):** Introduced ONLY in Legislative Assembly on prior recommendation of Governor; Legislative Council must return it within **14 days**; Assembly can accept or reject Council's recommendations.
35. **Annual Financial Statement of State (Article 202):** Budget of the State laid before the Legislature by the Governor; Demands for Grants voted **ONLY by the Legislative Assembly**; Legislative Council can only discuss.
36. **Uttar Pradesh Legislature Details:** Vidhan Sabha has **403 elective seats** (84 reserved for SC, 2 for ST); Vidhan Parishad has **100 seats** (largest legislative council in India).
37. **Qualifications for State Legislature (Article 173):** Must be a citizen of India; age not less than **25 years for Legislative Assembly** and not less than **30 years for Legislative Council**.
38. **Disqualification on Ground of Defection:** 10th Schedule applies to MLAs and MLCs; decided by the **Speaker of Assembly** or **Chairman of Council**; subject to judicial review (*Kihoto Hollohan, 1992*).
39. **Sessions of State Legislature (Article 174):** Governor summons, prorogues, dissolves; maximum gap between two sessions cannot exceed **6 months**; quorum is **10 members or 1/10th of total membership**, whichever is greater (Art. 189(3)).
40. **Immunity of Governor (Article 361):** Not answerable to any court for exercise of official powers; no criminal proceedings can be instituted during term; cannot be arrested or imprisoned during term; civil proceedings require **2 months' prior written notice**.
41. **6 Bicameral States Architecture:** Uttar Pradesh (100 seats), Maharashtra (78), Bihar (75), Karnataka (75), Andhra Pradesh (58), Telangana (40).
42. **Article 169 Mechanism Detail:** Resolution passed by Assembly by special majority; Parliament enacts simple law; creates or dissolves upper house; entirely non-Art. 368 pathway.
43. **Cooperative Movement in Governor's Nomination:** Article 171(5) lists 5 fields for Council nomination: Literature, Science, Art, **Co-operative Movement**, and Social Service. Note: Under Article 80(3) for Rajya Sabha, President nominates from only 4 fields (Cooperative Movement is NOT included!).
44. **Governor's Veto Comparison with President:** Governor has Suspensive Veto, Absolute Veto, and Pocket Veto, plus the unique **Reservation Veto** under Art. 200 to refer Bills to the President.
45. **Presidential Supremacy on Reserved State Bills:** If President returns a reserved state bill and the State Assembly repasses it within 6 months, the President **CAN STILL WITHHOLD ASSENT**. He is never forced to assent to a State Bill.

46. **Governor's Ordinance-Making Guardrails:** The Governor cannot issue ordinances without presidential instructions if the bill would have required presidential assent or would have been reserved for President.
47. **Advocate-General Remuneration:** Remuneration is determined by the **Governor**, NOT by the State Legislature (Art. 165(3)); holds office during the pleasure of the Governor.
48. **Council of Ministers Minimum 12 Rule:** In smaller Assemblies like Goa (40), Sikkim (32), or Mizoram (40), 15% would yield only 5–6 ministers; hence Art. 164(1A) guarantees a floor of **at least 12 ministers** for governance viability.
49. **4-Month Maximum Delay Rule for Vidhan Parishad:** First transit = max 3 months delay; Second transit = max 1 month delay. Thus, the Legislative Council is only a **dilatory chamber**, having no ultimate power to block the Assembly.
50. **Quorum in State Legislature (Article 189(3)):** Minimum quorum is **10 members or 1/10th of total membership of the House, whichever is greater** (unlike Parliament which is strictly 1/10th).
51. **Governor Appointment and Dual Role (Articles 153 to 155):** Article 153 mandates a Governor for each State (7th CAA 1956 permitted same person as Governor for two or more States); appointed by the **President under his hand and seal** (Article 155); acts as constitutional head of state and key federal link between Centre and State.
52. **Tenure and Qualifications of Governor (Articles 156 & 157):** Holds office during the **pleasure of the President** (no security of tenure; normal term 5 years; *B.P. Singhal v. UOI, 2010* ruled pleasure is justiciable against arbitrariness); Qualifications: Citizen of India and completed **35 years of age**; does not hold office of profit; not a member of Parliament or State Legislature.
53. **Governor's Discretionary Powers (Article 163):** Unlike President, Governor has **constitutional discretionary powers** (Article 163(1)); Article 163(2) provides that if any question arises whether a matter falls within Governor's discretion, the **decision of the Governor in his discretion shall be final** and cannot be called into question; Examples: reserving a bill for President (Art. 200), recommending President's Rule (Art. 356), selecting CM in hung assembly.
54. **Assent to Bills and Reservation for President (Articles 200 & 201):** Governor has 4 options: assent, withhold assent, return bill (if not Money Bill) for reconsideration, or **reserve bill for consideration of the President**; Reservation is mandatory if bill endangers constitutional position of the High Court; When President reconsiders a reserved state bill (Art. 201), President may direct Governor to return it to legislature; state legislature must reconsider within 6 months, but even if passed again, **President is NOT bound to give assent**.
55. **Governor's Ordinance-Making Power (Article 213):** Promulgated when State Legislature (or either House in bicameral state) is not in session; ceases to operate **6 weeks after reassembly** of legislature; requires President's prior instruction if bill containing same provisions required President's previous sanction.
56. **Governor's Pardoning Power (Article 161) vs President (Article 72):** Governor can pardon, reprieve, respite, remit, or commute sentences under State laws; Governor **CANNOT pardon death sentences** (can only suspend, remit or commute death penalty); Governor has **NO power over court-martial sentences**.
57. **State Council of Ministers & Chief Minister (Articles 163 & 164):** CM appointed by Governor; other ministers appointed by Governor on CM's advice; Ministers hold office during pleasure of Governor; Council of Ministers is **collectively responsible to the Legislative Assembly (Vidhan Sabha)**; 91st Amendment 2003: total ministers including CM shall not exceed **15% of total MLAs**, and shall **not be less than 12 members**.
58. **Advocate-General for the State (Article 165):** Highest law officer in the State; appointed by Governor; must be qualified to be appointed a **Judge of a High Court**; holds office during the **pleasure of the Governor**; has right to speak and take part in proceedings of State Legislature without right to vote (Article 177).
59. **State Legislative Council (Vidhan Parishad) Creation / Abolition (Article 169):** Parliament can abolish or create a Legislative Council if the **State Legislative Assembly passes a resolution by a Special Majority** (majority of total membership + 2/3rd members present and voting); Parliament then passes an ordinary bill by simple majority (not an amendment under Art. 368).
60. **6 States with Bicameral Legislature (Vidhan Parishad):** Currently 6 States have Legislative Councils: **Uttar Pradesh (100 seats - highest)**, Bihar (75 seats), Maharashtra (78 seats), Karnataka (75 seats), Andhra Pradesh (58 seats), and Telangana (40 seats).
61. **Composition of State Legislative Council (Article 171):** Maximum strength is **1/3rd of total MLAs of the State**; minimum strength is **40 members**; Election breakdown: (1) **1/3rd elected by Local Authorities** (Municipalities, District Boards); (2) **1/12th elected by Graduates** of 3 years' standing; (3) **1/12th elected by Teachers** of 3 years' secondary standing; (4) **1/3rd elected by MLAs** from non-assembly members; (5) **1/6th nominated by Governor** from literature, science, art, cooperative movement, and social service.
62. **Composition of State Legislative Assembly (Vidhan Sabha - Article 170):** Maximum strength **500 members**; minimum strength **60 members** (exceptions with smaller assemblies: Goa 40, Mizoram 40, Sikkim 32, Puducherry 30); Uttar Pradesh has the largest Legislative Assembly in India with **403 elected members**.
63. **Disproportionate Power of Vidhan Sabha over Vidhan Parishad:** In passing ordinary bills, Legislative Council has only dilatory power: can delay bill for max **3 months** in first instance, and **1 month** in second instance (total maximum delay = **4 months**); there is **NO provision for a Joint Sitting** in state legislatures.
64. **Money Bills in State Legislature (Article 198):** Can be introduced ONLY in Vidhan Sabha on Governor's recommendation; Vidhan Parishad cannot reject or amend, must return within **14 days**; Vidhan Sabha may accept or reject recommendations.
65. **Secretariat of State Legislature (Article 187):** Each House of State Legislature has a separate secretarial staff; recruitment and conditions of service regulated by State Legislature by law.

Timeline / Chronology

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1950  ── Part VI of Constitution enforces: Governor, Chief Minister, State Legislature established
  │
1956  ── 7th Amendment: Proviso to Art. 153 added (Same person as Governor for 2+ States)
  │
1960  ── Bombay bifurcated into Maharashtra and Gujarat (both started with bicameral councils; Gujarat abolished soon after)
  │
1969  ── Madras renamed Tamil Nadu; West Bengal Legislative Council abolished under Art. 169
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1979  ── *Hargovind Pant v. Raghukul Tilak*: Governor's office is an independent constitutional post
  │
1986  ── Tamil Nadu Legislative Council abolished under Art. 169
  │
2000  ── Three new States created: Chhattisgarh, Uttaranchal (renamed Uttarakhand in 2007), Jharkhand
  │
2003  ── 91st Amendment: Capped State Council of Ministers at 15% of SLA (minimum 12 ministers)
  │
2010  ── *B.P. Singhal*: Arbitrary dismissal of Governors by Central Government held unconstitutional
  │
2014  ── Telangana created as 29th State with a 40-member Legislative Council
  │
2019  ── J&K Legislative Council abolished; J&K converted into UT
  │
2019  ── 104th Amendment: Abolished Anglo-Indian nomination to State Assemblies (Art. 333)
  │
2023  ── *State of Punjab*: Supreme Court limits gubernatorial delay in assenting to bills under Art. 200
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📊 Quick Reference Grid

1. Six Bicameral States of India

STATE	VIDHAN SABHA SEATS (LOWER HOUSE)	VIDHAN PARISHAD SEATS (UPPER HOUSE)	MAX LIMIT (1/3RD OF SLA)
Uttar Pradesh	**403** (84 SC, 2 ST)	**100** (Largest Council in India)	134
Maharashtra	**288**	**78**	96
Bihar	**243**	**75**	81
Karnataka	**224**	**75**	74 (Rounded/Specified)
Andhra Pradesh	**175**	**58**	58
Telangana	**119**	**40** (Smallest Council)	40

2. Vidhan Parishad Composition Breakdown (Article 171)

PROPORTION	ELECTORATE / SELECTING BODY	ELECTION METHOD
1/3rd	Elected by **Local Authorities** (Municipalities, District Boards)	Proportional Representation by STV
1/12th	Elected by **Graduates** of 3 years' standing residing in State	PR-STV
1/12th	Elected by **Teachers** of secondary schools or above (3 years)	PR-STV
1/3rd	Elected by **Members of Legislative Assembly (MLAs)** from non-MLAs	PR-STV
1/6th	**Nominated by Governor** (Literature, Science, Art, Co-op, Social Service)	Direct Gubernatorial nomination

🧠 Memory Anchors & Mnemonics

1. **Six Bicameral States Mnemonic:** - **"KUMBAT"** - **K**arnataka - **U**ttar Pradesh - **M**aharashtra - **B**ihar - **A**ndhra Pradesh - **T**elangana
2. **Vidhan Parishad Breakdown Formula:** - **"1/3 local, 1/3 MLAs, 1/6 Governor, 1/12 grads, 1/12 teachers"** - Check math: 1/3 + 1/3 + 1/6 + 1/12 + 1/12 = 2/6 + 2/6 + 1/6 + 2/12 = 5/6 + 1/6 = 1!
3. **Parishad Delay Rule:** - **3 + 1 = 4 Months Maximum!** - 3 months on first arrival; 1 month on second arrival. Assembly always wins!

Chapter 09: Judiciary

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
Ongoing	Current sanctioned strength of the **Supreme Court of India is 34 judges** (Chief Justice of India + 33 other judges), increased via the Supreme Court (Number of Judges) Amendment Act, 2019.	Standard numerical fact in Prelims.
2019 / Landmark	India currently has **25 High Courts**; the 25th High Court was established for **Andhra Pradesh at Amaravati** (effective 1 January 2019) following bifurcation from Telangana HC.	High-yield match and count question.
2015 / 4th Judges	In the *Fourth Judges Case (2015)*, Supreme Court 5-judge bench struck down the 99th Constitutional Amendment Act and NJAC Act as unconstitutional, reviving the **Collegium System**.	Landmark constitutional law lock.
2022–2024	Supreme Court initiated live-streaming of Constitution Bench proceedings; recognized the right of public access to court proceedings as part of Article 21.	Modern technological and open justice reforms.

Consolidated Must-Score Facts

1. India has a **single integrated judicial system** adopted from the **Government of India Act, 1935**; the Supreme Court stands at the apex of the entire judicial system, followed by High Courts at the State level and Subordinate Courts below them.
2. The single integrated judicial system enforces **both Central and State laws** simultaneously (unlike the USA, where federal courts enforce federal laws and state courts enforce state laws).
3. **Supreme Court Inauguration:** The Supreme Court of India was inaugurated on **28 January 1950**; succeeded the **Federal Court of India** (established under GOI Act 1935) and replaced the Privy Council as the highest court of appeal.
4. **Articles 124 to 147 in Part V** of the Constitution deal with the organization, independence, jurisdiction, powers, and procedures of the Supreme Court of India.
5. **Strength of Supreme Court (Article 124(1)):** Originally fixed at **8 judges** (1 Chief Justice + 7 other judges) in 1950; Parliament is empowered to increase the number of judges by law; increased to 11 (1956), 14 (1960), 18 (1977), 26 (1986), 31 (2008), and currently stands at **34 judges (CJI + 33 judges)** under the 2019 amendment.
6. **Appointment of Judges (Article 124(2)):** Every judge of the Supreme Court is appointed by the **President by warrant under his hand and seal**; in appointing judges other than the CJI, the Chief Justice of India **MUST always be consulted**.
7. **Appointment of Chief Justice of India:** Appointed by the President; by convention since 1973/1993, the **senior-most judge of the Supreme Court** is appointed as the CJI (superseded in 1973 with A.N. Ray and in 1977 with M.U. Beg; convention made binding by Second Judges Case, 1993).
8. **The Three Judges Cases (Collegium Evolution):** - ***First Judges Case (S.P. Gupta, 1981):*** SC held that 'consultation' does not mean 'concurrence'; executive has primacy in judicial appointments. - ***Second Judges Case (1993):*** SC overruled *S.P. Gupta*; held that 'consultation' means **'concurrence'**; CJI's opinion has primacy; CJI must consult **two senior-most colleagues**. - ***Third Judges Case (1998):*** Presidential reference under Art. 143; SC expanded Collegium: CJI must consult a collegium of **FOUR senior-most judges of the Supreme Court**; sole opinion of CJI without consulting collegium does not constitute 'consultation'.
9. **Qualifications of Supreme Court Judge (Article 124(3)):** Must be a citizen of India; AND: - (a) Has been a **Judge of a High Court for at least 5 years**; OR - (b) Has been an **Advocate of a High Court for at least 10 years**; OR - (c) Is, in the opinion of the President, a **distinguished jurist**. - *(Note: No minimum age is prescribed in the Constitution for appointment as a judge!)*.
10. **Oath of Supreme Court Judge (Article 124(6)):** Administered by the **President** (or some person appointed by him); contained in the **Third Schedule**.
11. **Tenure of Supreme Court Judge (Article 124(2)):** Holds office until he attains the **age of 65 years**; resigns by addressing letter to the **President**.
12. **Removal of Judges (Article 124(4) & (5)):** Removed by order of the President passed after an address by each House of Parliament supported by a **Special Majority** (majority of total membership of the House + not less than 2/3rd of members present and voting) in the **same session**; sole grounds of removal: **'proved misbehaviour'** or **'incapacity'**.
13. **Judges (Inquiry) Act, 1968 Procedure:** Removal motion signed by **100 Lok Sabha members or 50 Rajya Sabha members**; admitted by Speaker/Chairman; 3-member inquiry committee (CJI/SC judge + Chief Justice of HC + distinguished jurist); if found guilty, motion debated and voted upon. *No Supreme Court judge has ever been removed from office* (Justice V. Ramaswami in 1993 faced motion but Congress abstained).
14. **Salaries and Allowances (Article 125):** Determined by Parliament; **charged on the Consolidated Fund of India** (non-votable); cannot be varied to their disadvantage after appointment, except during a **Financial Emergency** (Article 360).
15. **Post-Retirement Ban on Practice (Article 124(7)):** A retired Supreme Court judge is **completely prohibited from pleading or acting in any court or before any authority** within the territory of India.
16. **Acting Chief Justice (Article 126):** Appointed by the **President** from amongst SC judges when the office of CJI is vacant or CJI is unable to perform duties.
17. **Ad Hoc Judges (Article 127):** Appointed by the **Chief Justice of India with prior consent of the President** and after consultation with the Chief Justice of the concerned High Court, when there is a lack of **quorum** of permanent judges to hold or continue any session; must be qualified to be an SC judge.
18. **Seat of Supreme Court (Article 130):** The Constitution declares **Delhi** as the seat of the Supreme Court; the CJI is authorized to appoint other place or places as seat of SC, but **ONLY with the approval of the President**.
19. **Original Jurisdiction (Article 131):** Exclusive jurisdiction to decide federal disputes between:
    - (a) Government of India and one or more States;
    - (b) Government of India and any State(s) on one side and one or more other States on the other;
    - (c) Two or more States.
    - Dispute must involve any question on which the existence or extent of a **legal right** depends.

20. **Exclusions from Article 131:** (1) Pre-constitutional treaties, agreements, covenants; (2) Inter-state river water disputes (Art. 262); (3) Matters referred to Finance Commission (Art. 280); (4) Ordinary commercial disputes between Centre and States.
21. **Writ Jurisdiction (Article 32):** Supreme Court is the **guarantor and defender of Fundamental Rights**; can issue writs of Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo-Warranto; limited ONLY to enforcement of Fundamental Rights.
22. **Appellate Jurisdiction (Articles 132–134):**
    - **Constitutional Matters (Art. 132):** Appeal lies if High Court certifies that the case involves a substantial question of law as to the interpretation of the Constitution.
    - **Civil Matters (Art. 133):** Substantial question of law of general importance needing SC decision.
    - **Criminal Matters (Art. 134):** Appeal lies as of right if High Court reversed acquittal and sentenced accused to death, or withdrew case from lower court and sentenced to death.
23. **Special Leave Petition (SLP, Article 136):** Extraordinary discretionary power; SC can grant special leave to appeal against **ANY judgment, decree, sentence, or order in any cause or matter passed by any court or tribunal in India**; exception: does NOT apply to military tribunals/court-martials.
24. **Advisory Jurisdiction (Article 143):** President can refer any question to the Supreme Court for its opinion:
    - (1) **Question of law or fact of public importance:** SC **may or may not give opinion** (discretionary; e.g., Ayodhya Reference 1993 where SC declined).
    - (2) **Dispute arising out of pre-constitutional treaties/agreements:** SC **MUST give its opinion** (obligatory).
    - In both cases, the opinion of the Supreme Court is **only advisory and NOT binding** on the President.
25. **Court of Record (Article 129):** (1) Judgments, proceedings, and acts of the Supreme Court are recorded for perpetual memory and testimony; have evidentiary value and cannot be questioned in any court; (2) Has the **power to punish for contempt of itself** with simple imprisonment up to 6 months or fine up to ₹2,000 or both.
26. **Power of Judicial Review (Articles 13, 32, 136, 142):** Power to examine the constitutionality of legislative enactments and executive orders of both Central and State governments; basic feature of the Constitution (*Indira Gandhi, 1975*; *Minerva Mills, 1980*).
27. **Complete Justice Power (Article 142):** SC can pass any decree or order necessary for doing **"complete justice"** in any cause or matter pending before it; entirely enforceable throughout India.
28. **Review of Judgments (Article 137):** Supreme Court is **NOT bound by its own previous decisions** and has the power to review any judgment pronounced or order made by it (e.g., *Kesavananda* overruled *Golaknath*; *Maneka Gandhi* overruled *Gopalan*); exercises review through **Curative Petitions** (*Rupa Ashok Hurra v. Ashok Hurra, 2002*).
29. **High Courts in the States (Part VI, Articles 214–231):** Article 214 provides for a High Court for each State; **Article 231** empowers Parliament by law to establish a **common High Court for two or more States or UTs**.
30. Total High Courts: India has **25 High Courts**; oldest is **Calcutta High Court (1862)**; newest is **Andhra Pradesh High Court (2019 at Amaravati)**; three common High Courts:
    - **Bombay HC:** Maharashtra, Goa, Dadra & Nagar Haveli and Daman & Diu.
    - **Guwahati HC:** Assam, Nagaland, Mizoram, Arunachal Pradesh.
    - **Punjab & Haryana HC:** Punjab, Haryana, Chandigarh.
31. High Court with the **largest number of judges**: **Allahabad High Court** (sanctioned strength 160); established 1866; principal seat at Prayagraj, permanent bench at Lucknow.
32. **Appointment of High Court Judges (Article 217):** Appointed by the **President by warrant under his hand and seal**; appointed after consultation with: (1) Chief Justice of India; (2) Governor of the State; (3) Chief Justice of the High Court (in case of other judges).
33. **Qualifications of High Court Judge (Article 217(2)):** Citizen of India; AND:
    - (a) Has held a **judicial office in India for at least 10 years**; OR
    - (b) Has been an **advocate of a High Court for at least 10 years**.
    - *(Note: Unlike the Supreme Court, there is NO provision for appointing a 'distinguished jurist' as a High Court judge!).*
34. **Tenure of High Court Judge (Article 217(1)):** Holds office until the **age of 62 years** (raised from 60 to 62 by 15th Amd 1963; SC is 65); resigns by writing to the **President**.
35. **Removal of High Court Judge:** Removed from office by the **President** in the same manner and on the **same grounds as a Supreme Court Judge** (Address by both Houses by special majority for proved misbehaviour or incapacity).
36. **Transfer of High Court Judges (Article 222):** President can transfer a judge from one High Court to another after consultation with the **Chief Justice of India** (CJI consults collegium of 4 senior-most SC judges + Chief Justices of both High Courts).
37. **Oath of High Court Judge (Article 219):** Administered by the **Governor of the State** (or person appointed by him).
38. **Writ Jurisdiction of High Court (Article 226):** Can issue prerogative writs for enforcement of **Fundamental Rights AND for any other legal purpose**; wider subject scope than Article 32; can issue writs against authorities outside territorial jurisdiction if cause of action arises within territory.
39. **Power of Superintendence (Article 227):** High Court has superintendence over **all courts and tribunals throughout the territories** in relation to which it exercises jurisdiction; covers both administrative and judicial superintendence; does NOT apply to military tribunals/court-martials.
40. **Subordinate Courts (Articles 233–237):**
    - **District Judges** appointed, posted, and promoted by the **Governor in consultation with the High Court** (Art. 233);
    - Persons other than district judges appointed to judicial service by Governor in accordance with rules made in consultation with SPSC and High Court (Art. 234);
    - **Control over subordinate courts** (posting, promotion, leave) is vested exclusively in the **High Court** (Article 235).
41. When trying civil cases, the presiding officer is called the **District Judge**; when trying criminal cases, called the **Sessions Judge**; Sessions Judge has power to impose any sentence including **capital punishment (death sentence)**, but death sentence **MUST be confirmed by the High Court** before execution.

42. **Twenty-Five High Courts Geographic Distribution:** Three UTs have their own High Courts or special standing: Delhi (own HC since 1966), Jammu & Kashmir and Ladakh (common HC).
43. **Calcutta High Court Historical Primacy:** Established on 1 July 1862 under High Courts Act, 1861; followed by Bombay High Court (August 1862) and Madras High Court (August 1862).
44. **Allahabad High Court Origin:** Established under the Indian High Courts Act 1861 at Agra on 11 June 1866; shifted to Allahabad in 1869; Sir Walter Morgan was its first Chief Justice.
45. **Collegium Composition Difference:** For Supreme Court elevation: **CJI + 4 senior-most SC judges**. For High Court appointments & transfers: **CJI + 2 senior-most SC judges** (along with consulting judges familiar with that HC).
46. **Non-Justiciable Matters under Article 131:** Water disputes under Article 262 are completely excluded from the jurisdiction of all courts, including the Supreme Court; handled by statutory Inter-State Water Dispute Tribunals.
47. **Special Leave Petition Broadest Canvas:** Article 136 is a residual and discretionary power; does not confer a right of appeal, but confers a right to apply for leave to appeal; exercised in exceptional circumstances where grave injustice has occurred.
48. **Article 143 Landmark References:** In *re Berubari Union (1960)*, *re Sea Customs Act (1963)*, *re Special Courts Bill (1978)*, *re Ayodhya (1993)*, *re 2G Spectrum Allocation (2012)*.
49. **Bhopal Gas Leak and Article 142:** Supreme Court bypassed statutory ceilings under the Bhopal Gas Leak Disaster Act to award $470 million in compensation by invoking its extraordinary powers under Article 142.
50. **Subordinate Judicial Hierarchy Hierarchy:** District Court → Senior Civil Judge / Chief Judicial Magistrate → Junior Civil Judge / Judicial Magistrate Second Class. At the rural grassroots level, **Gram Nyayalayas** function under the Gram Nyayalayas Act, 2008.
51. **Supreme Court Strength Evolution (Article 124(1)):** Originally established in 1950 with **8 judges (1 CJI + 7 puisne judges)**; Supreme Court (Number of Judges) Amendment Act, 2019 increased strength to **34 judges (1 Chief Justice of India + 33 judges)**; Parliament alone has power to increase SC judge strength by law.
52. **Qualifications for Supreme Court Judge (Article 124(3)):** Citizen of India and: (a) Judge of High Court for at least **5 years**; or (b) Advocate of High Court for at least **10 years**; or (c) In opinion of President, a **distinguished jurist** (distinguished jurist category does NOT apply to High Court judges).
53. **Tenure and Resignation of SC Judges (Article 124(2)):** Holds office until attaining the age of **65 years**; resigns by writing to the **President**; questions regarding age of SC judge are determined by such authority and in such manner as Parliament provides by law.
54. **Removal of Supreme Court Judge (Article 124(4) & Judges Inquiry Act 1968):** Removed by order of President after an address by each House of Parliament supported by a **Special Majority** (majority of total membership + not less than 2/3rd members present and voting) in the SAME session; grounds are ONLY **'proved misbehaviour' or 'incapacity'**; requires notice signed by 100 LS members or 50 RS members; 3-member inquiry committee (SC judge, HC Chief Justice, distinguished jurist); Justice V. Ramaswami (1993) and Justice Soumitra Sen (2011) faced proceedings.
55. **Collegium System Evolution (Three Judges Cases):** (1) *First Judges Case (SP Gupta, 1981):* 'Consultation' does not mean 'concurrence'; President not bound by CJI; (2) *Second Judges Case (1993):* 'Consultation' means concurrence; Collegium of **CJI + 2 senior-most SC judges** born; (3) *Third Judges Case (1998):* Presidential reference under Art. 143 expanded Collegium to **CJI + 4 senior-most SC judges** for SC appointments and **CJI + 2 senior-most judges** for HC transfers.
56. **NJAC Struck Down (Fourth Judges Case, 2015):** 99th Constitutional Amendment Act, 2014 and National Judicial Appointments Commission (NJAC) Act were struck down as unconstitutional by a 4:1 majority of Constitution Bench in *Supreme Court Advocates-on-Record Association v. UOI (2015)* for violating judicial independence as part of basic structure.
57. **Original Jurisdiction of Supreme Court (Article 131):** Exclusive federal dispute jurisdiction between: (a) Government of India and one or more States; (b) GoI and any State(s) on one side and other State(s) on other; (c) Two or more States; Involves legal right (not political questions); Excludes pre-constitution treaties, inter-state river water disputes (Art. 262), and Finance Commission matters.
58. **Writ Jurisdiction of Supreme Court (Article 32):** Original but not exclusive (shared with High Courts under Art. 226); can issue writs of Habeas Corpus, Mandamus, Prohibition, Quo-Warranto, and Certiorari ONLY for enforcement of Fundamental Rights.
59. **Appellate Jurisdiction of Supreme Court (Articles 132 to 134):** (1) Constitutional matters (Art. 132 on HC certificate of substantial question of law); (2) Civil matters (Art. 133 on substantial question of general importance); (3) Criminal matters (Art. 134: where HC reversed acquittal to death sentence, or certified case).
60. **Special Leave Petition - SLP (Article 136):** Discretionary power of SC to grant special leave to appeal from **any judgment, decree, determination, sentence or order in any cause or matter passed by ANY court or tribunal in India**; exception: does NOT apply to military courts or tribunals (Court Martial).
61. **Review Jurisdiction of Supreme Court (Article 137):** Supreme Court has power to review any judgment pronounced or order made by it; Curative Petition innovation was created in *Rupa Ashok Hurra v. Ashok Hurra (2002)* to prevent abuse of process and gross miscarriage of justice.
62. **Advisory Jurisdiction of Supreme Court (Article 143):** President can seek SC advisory opinion on: (1) Any question of law or fact of public importance (SC may tender or refuse to tender advice; e.g. *Ayodhya Reference 1993* was refused); (2) Any dispute arising out of pre-constitutional treaty/agreement (SC **is bound to tender advice**); advice is advisory and not binding on President.
63. **Court of Record & Contempt Power (Article 129):** SC is a Court of Record; its proceedings and judgments have evidentiary value and cannot be questioned in lower courts; has power to punish for contempt of itself (Contempt of Courts Act, 1971: Civil contempt for willful disobedience; Criminal contempt for scandalizing or lowering authority of court).
64. **Complete Justice Power (Article 142):** SC in exercise of its jurisdiction may pass such decree or order as is necessary for **doing complete justice in any cause or matter pending before it**; used in Union Carbide (Bhopal gas leak), Ayodhya land dispute, and dissolution of irretrievably broken marriages.
65. **Law Declared by SC Binding on All Courts (Article 141):** The law declared by the Supreme Court shall be binding on all courts within the territory of India; doctrine of *Stare Decisis* applied in India.
66. **High Court Structure and Common High Courts (Article 214 & 231):** Constitution provides for a High Court for each State; Parliament under Article 231 can establish a **Common High Court for two or more States and a UT**; e.g. Bombay HC (Maharashtra, Goa, Dadra & Nagar Haveli/Daman & Diu), Punjab & Haryana HC (Punjab, Haryana, Chandigarh), Guwahati HC (Assam, Nagaland, Mizoram, Arunachal Pradesh), Calcutta HC (West Bengal, Andaman & Nicobar), Kerala HC (Kerala, Lakshadweep), Madras HC (Tamil Nadu, Puducherry).

67. **Total High Courts in India:** Currently **25 High Courts** in India; latest is **Andhra Pradesh High Court at Amaravati** (established 1 January 2019); Delhi and Jammu & Kashmir/Ladakh are the only UTs with their own High Courts.
68. **High Court Judges Appointment and Qualifications (Article 217):** Appointed by President after consultation with CJI, Governor of State, and Chief Justice of HC; Citizen of India and: (a) Held judicial office in India for **10 years**; or (b) Advocate of High Court for **10 years**; retirement age is **62 years** (15th Amendment Act 1963 raised it from 60 to 62).
69. **Writ Jurisdiction of High Court (Article 226):** Wider than Supreme Court's Article 32: HC can issue writs not only for Fundamental Rights, but also for **'any other purpose' (enforcement of ordinary legal rights)**; territorial jurisdiction covers throughout territories in relation to which it exercises jurisdiction or where cause of action wholly or partially arises.
70. **High Court Superintendence Power (Article 227):** HC has administrative and judicial superintendence over **all courts and tribunals throughout territories under its jurisdiction** (except military tribunals); broader than revisional jurisdiction.
71. **Appointment of District Judges (Article 233):** Appointed by the **Governor of the State in consultation with the High Court**; candidate must have been an advocate/pleader for not less than **7 years** or in judicial service.
72. **Gram Nyayalayas Act, 2008:** Enacted to provide access to justice at grassroots level; presided over by a **Nyayadhikari** (having qualifications of Judicial Magistrate First Class) appointed by State Government in consultation with High Court; mobile courts having civil and criminal jurisdiction; guided by principles of natural justice and not bound by strict rules of evidence.
73. **National Legal Services Authority - NALSA (Legal Services Authorities Act, 1987):** Constituted under Article 39A to provide free and competent legal services to weaker sections; CJI is Patron-in-Chief; Lok Adalats organized by NALSA are statutory alternative dispute resolution mechanisms; awards of Lok Adalats are deemed decrees of a civil court, **final and binding with no appeal**.
74. **Public Interest Litigation (PIL) Origin in India:** Conceptualized in early 1980s by **Justice P.N. Bhagwati** and **Justice V.R. Krishna Iyer**; relaxed the traditional rule of *Locus Standi* (standing), allowing any public-spirited citizen or NGO to approach SC (Art. 32) or HC (Art. 226) on behalf of marginalized persons whose rights are violated; *Hussainara Khatoon (1979)* (rights of undertrials) was the first major PIL.
75. **Tribunals - Article 323A vs Article 323B:** Article 323A covers Administrative Tribunals for public services (established ONLY by Parliament); Article 323B covers other tribunals (taxation, land reforms, foreign exchange) and can be established by BOTH Parliament and State Legislatures; *L. Chandra Kumar (1997)* ruled decisions of these tribunals are subject to judicial scrutiny before a Division Bench of the High Court under Articles 226/227.

⏱ Timeline / Chronology

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1861  — Indian High Courts Act passed by British Parliament
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1862  — Calcutta, Bombay, and Madras High Courts established
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1866  — High Court of Judicature at Agra established (shifted to Allahabad in 1869)
  |
1937  — Federal Court of India inaugurated under GOI Act 1935 (Sir Maurice Gwyer, 1st CJI)
  |
1950  — Supreme Court of India inaugurated (28 Jan 1950); H.J. Kania becomes first CJI
  |
1966  — Delhi High Court established (first UT to have its own High Court)
  |
1981  — *First Judges Case (S.P. Gupta)*: Executive primacy established
  |
1993  — *Second Judges Case*: Collegium born; "consultation = concurrence"
  |
1998  — *Third Judges Case*: Expanded Collegium established (CJI + 4 senior-most SC judges)
  |
2002  — *Rupa Ashok Hurra*: Curative Petition doctrine created under Article 137 & 142
  |
2015  — *Fourth Judges Case*: 99th Amendment & NJAC struck down; Collegium system restored
  |
2019  — Andhra Pradesh High Court established at Amaravati (25th High Court)
  |
2019  — Supreme Court strength increased to 34 judges (CJI + 33)
  |
2022  — Live-streaming of Constitution Bench proceedings commences
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📊 Quick Reference Grid

1. Supreme Court vs High Court Comparative Matrix

FEATURE	SUPREME COURT OF INDIA (ARTS. 124–147)	HIGH COURTS OF STATES (ARTS. 214–231)
Constitutional Position	Apex court of the single integrated judiciary	Highest judicial court in the State
Retirement Age	**65 years**	**62 years**
Qualifications	HC Judge 5 yrs OR HC Advocate 10 yrs OR Distinguished Jurist	Judicial Office 10 yrs OR HC Advocate 10 yrs (*No Distinguished Jurist!*)
Oath Administered By	**President** (or person appointed by him)	**Governor of the State** (Art. 219)
Appointment Authority	President by warrant under hand and seal	President by warrant under hand and seal
Removal Authority	President on address by Parliament (Special Majority)	President on address by Parliament (Special Majority)
Resignation Addressed To	**President**	**President** (NOT the Governor!)
Post-Retirement Ban	Banned in ALL courts & authorities in India	Banned in same HC; can practice in SC and other HCs
Writ Jurisdiction	**Article 32** (Only for Fundamental Rights; Mandatory)	**Article 226** (FRs + Ordinary Legal Rights; Discretionary)
Administrative Control	Head of national judiciary	Has superintendence over all Subordinate Courts (Art. 227)

2. High Courts with Jurisdiction Over Multiple States / UTs

HIGH COURT	SEAT / PRINCIPAL BENCH	PERMANENT / CIRCUIT BENCHES	STATES AND UTS COVERED
Bombay High Court	Mumbai	Nagpur, Aurangabad, Panaji (Goa)	Maharashtra, Goa, Dadra & Nagar Haveli and Daman & Diu
Calcutta High Court	Kolkata	Port Blair (Circuit Bench), Jalpaiguri	West Bengal, Andaman and Nicobar Islands
Guwahati High Court	Guwahati	Kohima, Aizawl, Itanagar	Assam, Nagaland, Mizoram, Arunachal Pradesh
Kerala High Court	Ernakulam	—	Kerala, Lakshadweep
Madras High Court	Chennai	Madurai	Tamil Nadu, Puducherry
Punjab & Haryana HC	Chandigarh	—	Punjab, Haryana, Chandigarh
Jammu & Kashmir HC	Srinagar / Jammu	—	Jammu & Kashmir, Ladakh

🧠 Memory Anchors & Mnemonics

1. **Age Ladder:** - District Judge entry = 35 years minimum - High Court Judge retirement = **62 years** - Supreme Court Judge retirement = **65 years**
2. **HC Judge Split Administration Rule:** - **Appointed by:** President - **Removed by:** President - **Resigns to:** President - **Transferred by:** President - **Pensions paid by:** Union (Centre) - **OATH administered by: GOVERNOR!** - **Salary paid by: STATE!**
3. **The 3 Common Multi-State High Courts:** - **Bombay:** 2 States (MH, Goa) + 1 UT (DNH-DD) - **Guwahati:** 4 States (Assam, Nagaland, Mizoram, Arunachal Pradesh) - **Punjab & Haryana:** 2 States (Punjab, Haryana) + 1 UT (Chandigarh)

Chapter 10: Local Government

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
April 24	**National Panchayati Raj Day** celebrated annually on 24 April; marks the enforcement of the 73rd Constitutional Amendment Act, 1992 (came into force on 24 April 1993).	Direct static-current question on Panchayati Raj milestones.
Oct 2, 1959	First 3-tier Panchayati Raj system in independent India was inaugurated by Prime Minister Jawaharlal Nehru at **Nagaur, Rajasthan**; followed by Andhra Pradesh in November 1959.	Frequent chronological match-list question.
Ongoing	At least 20 States (including Bihar, Madhya Pradesh, Uttarakhand, Rajasthan) have raised women's reservation in Panchayats to **50%**, well above the constitutional minimum floor of **one-third (33.3%)** under Article 243D.	Critical trap on constitutional floor vs State statutory enhancements.
2021	In *Union of India v. Rajendra N. Shah*, Supreme Court struck down Part IXB (97th Amendment) for intra-state cooperative societies; upheld it only for multi-state cooperatives.	Connects local governance autonomy with federal limits.

Consolidated Must-Score Facts

1. **Constitutional Roots of Local Government: Article 40** in Part IV (DPSP) directs the State to "take steps to organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government".
2. **Historical Milestone: Lord Ripon's Resolution of 1882** is hailed as the **'Magna Carta of Local Self-Government'**; Lord Ripon is celebrated as the **'Father of Local Self-Government in India'**.
3. **Balwant Rai Mehta Committee (1957):** Appointed to evaluate the Community Development Programme (1952) and National Extension Service (1953); recommended **'Democratic Decentralisation'** through a **3-tier Panchayati Raj System**: - (1) **Gram Panchayat** at the village level (directly elected); - (2) **Panchayat Samiti** at the block level (indirectly elected, executive body); - (3) **Zila Parishad** at the district level (advisory and supervisory body, chaired by District Collector).
4. **First Panchayati Raj System:** Inaugurated on **2 October 1959** at **Nagaur, Rajasthan** by Prime Minister Jawaharlal Nehru; **Andhra Pradesh** adopted it second in November 1959.
5. **Ashok Mehta Committee (1977):** Appointed by the Janata Party government; recommended replacing the 3-tier system with a **2-tier system**: - (1) **Zila Parishad** at the district level (executive body); - (2) **Mandal Panchayat** (covering a group of villages with population of 15,000 to 20,000); - Recommended official participation of political parties in elections, compulsory taxation powers, and constitutional recognition.
6. **G.V.K. Rao Committee (1985):** Appointed by Planning Commission; observed that development was bureaucratised, describing Panchayati Raj as **"grass without roots"**; recommended making **Zila Parishad** the principal body for management of all development programmes.
7. **L.M. Singhvi Committee (1986):** Appointed by the Rajiv Gandhi government; **FIRST committee to formally recommend that Panchayati Raj institutions should be constitutionally recognized, protected, and preserved**; recommended Nyaya Panchayats for clusters of villages.
8. **Thungon Committee (1988) & Gadgil Committee (1988):** Both recommended constitutional status for Panchayats, 3-tier structure, fixed 5-year tenure, reservation for SCs/STs/women, and State Finance Commissions; formed the blueprint for the 73rd Amendment Bill.
9. **Seventy-Third Constitutional Amendment Act, 1992:** Inserted **Part IX (Articles 243 to 243-O)** titled 'The Panchayats' and the **Eleventh Schedule**; received Presidential assent on 20 April 1993 and came into force on **24 April 1993** (**National Panchayati Raj Day**).
10. **Eleventh Schedule (Article 243G):** Contains **29 functional subjects** devolved to Panchayats (agriculture, land improvement, minor irrigation, animal husbandry, fisheries, social forestry, small-scale industries, rural housing, drinking water, roads, rural electrification, poverty alleviation, education, health, public distribution system).
11. **Article 243A (Gram Sabha):** General assembly of all persons registered in the electoral rolls of a village within the Panchayat area; acts as the foundation of the Panchayati Raj system; exercises powers provided by State law.
12. **Article 243B (Three-Tier System):** Mandates a 3-tier system of Panchayats in every State: (1) Village level; (2) Intermediate level (Block/Panchayat Samiti); (3) District level (Zila Parishad). Exception: A State having a **population not exceeding 20 LAKH** has the option **NOT to constitute Panchayats at the intermediate level**.
13. **Article 243C (Election of Members & Chairpersons):**
    - All seats in Panchayats at all three levels are filled by persons chosen by **DIRECT ELECTION** from territorial constituencies.
    - Chairperson of a Panchayat at the village level is elected in such manner as the State Legislature determines (direct or indirect).
    - Chairperson of a Panchayat at the **intermediate and district levels MUST BE ELECTED INDIRECTLY** by and from amongst the elected members.
14. **Article 243D (Reservation of Seats in Panchayats):**
    - Seats reserved for **SCs and STs** in proportion to their population in the Panchayat area;
    - Not less than **one-third (33.3%)** of the total number of seats reserved for SCs/STs shall be reserved for **women belonging to SCs/STs**;
    - Not less than **ONE-THIRD (including SC/ST women) of total seats** in every Panchayat shall be reserved for **WOMEN** (by rotation);
    - Not less than one-third of total offices of Chairpersons at all levels reserved for women;
    - State Legislature is empowered to provide reservation of seats and chairperson offices for **Backward Classes (OBCs)**.
15. **Article 243E (Duration of Panchayats):** Every Panchayat has a fixed term of **5 years** from the date of its first meeting; cannot be dissolved by executive decree without opportunity of hearing; fresh elections **MUST be completed BEFORE the expiry of its 5-year duration**.
16. **Six-Month Dissolution Rule (Article 243E(3)):** In case of premature dissolution, fresh elections must be completed within **6 MONTHS**; the newly elected Panchayat continues **ONLY for the remainder of the 5-year period** (does not get a fresh 5-year term); exception: if remaining period is less than 6 months, not necessary to hold elections.

17. **Article 243F (Disqualifications for Membership):** Minimum age for contesting Panchayat elections is **21 YEARS** (not 25 years as in Assembly!); no person disqualified on ground that he is less than 25 years if he has attained 21 years. All disqualification disputes referred to an authority determined by State law.
18. **Article 243I (State Finance Commission — SFC):** Governor of a State constitutes a Finance Commission every **5th year** to review financial position of Panchayats and recommend:
    - (a) Distribution between State and Panchayats of net proceeds of taxes, duties, tolls, and fees;
    - (b) Determination of taxes, duties, and tolls assignable to Panchayats;
    - (c) Grants-in-aid to Panchayats from the State Consolidated Fund.
    - Recommendations laid before State Legislature by Governor.
19. **Article 243K (State Election Commission — SEC):** Superintendence, direction, and control of electoral rolls and conduct of all elections to Panchayats (and Municipalities under 243ZA) vested in the State Election Commissioner appointed by the **Governor**.
20. **Security of Tenure of State Election Commissioner (Article 243K(2)):** Can ONLY be removed in like manner and on the like grounds as a **Judge of a High Court**; conditions of service cannot be varied to his disadvantage after appointment.
21. **Article 243-O (Bar to Interference by Courts in Electoral Matters):** Validity of any law relating to delimitation of constituencies cannot be questioned in court; no election to any Panchayat can be called in question except by an **Election Petition** presented to such authority as provided by State law.
22. **Exemptions from Part IX (Article 243M):** Part IX does NOT apply to: (1) States of **Nagaland, Meghalaya, and Mizoram**; (2) Scheduled areas and tribal areas under Article 244; (3) Hill area of Manipur where District Councils exist; (4) Darjeeling Gorkha Hill Council areas.
23. **PESA Act, 1996 (Panchayats Extension to Scheduled Areas Act):** Enacted by Parliament on the recommendation of the **Dileep Singh Bhuria Committee (1995)**; extends Part IX provisions to **Fifth Schedule areas in 10 States** (Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, MP, Maharashtra, Odisha, Rajasthan).
24. **Key Features of PESA Act, 1996:**
    - Every village shall have a **Gram Sabha** competent to safeguard and preserve traditions, customs, cultural identity, community resources, and customary mode of dispute resolution;
    - Gram Sabha has **mandatory ownership of Minor Forest Produce (MFP)**;
    - Mandatory consultation with Gram Sabha before land acquisition for development projects and before resettlement/rehabilitation;
    - Mandatory recommendation of Gram Sabha for grant of prospecting license or mining lease for minor minerals;
    - Power to enforce prohibition or regulate/restrict sale and consumption of intoxicants;
    - Power to control money lending to Scheduled Tribes and prevent alienation of tribal lands.
25. **Seventy-Fourth Constitutional Amendment Act, 1992:** Inserted **Part IXA (Articles 243P to 243ZG)** titled 'The Municipalities' and the **Twelfth Schedule**; came into force on **1 June 1993**.
26. **Twelfth Schedule (Article 243W):** Contains **18 functional subjects** devolved to Municipalities (urban planning, regulation of land use, roads and bridges, water supply, public health, fire services, urban forestry, slum improvement, urban poverty alleviation).
27. **Three Types of Municipalities (Article 243Q):**
    - (1) **Nagar Panchayat** for a transitional area (rural to urban);
    - (2) **Municipal Council (Nagar Palika)** for a smaller urban area;
    - (3) **Municipal Corporation (Mahanagar Palika)** for a larger urban area.
    - Exception: Governor may specify that a municipality need not be constituted in an industrial township where municipal services are provided by an industrial establishment.
28. **Article 243S (Wards Committees):** Mandates constitution of Wards Committees consisting of one or more wards within the territorial area of a Municipality having a **population of THREE LAKH or more**.
29. **Article 243T (Reservation in Municipalities):** Seats reserved for SCs and STs in proportion to population; not less than **one-third of total seats reserved for women** (including SC/ST women); State Legislature may provide reservation for backward classes.
30. **Article 243ZD (District Planning Committee — DPC):** Mandates constitution of a DPC at the district level in every State to **consolidate plans prepared by Panchayats and Municipalities in the district** and prepare a draft development plan for the district as a whole.
31. **DPC Composition (Article 243ZD(2)):** At least **four-fifths (80%) of the members** of the DPC shall be elected by and from amongst the elected members of the **Zila Panchayat** and **Municipalities** in the district, in proportion to the ratio between rural and urban population of the district.
32. **Article 243ZE (Metropolitan Planning Committee — MPC):** In every Metropolitan area (population of **10 lakh or more**), an MPC shall be constituted to prepare a draft development plan; at least **two-thirds of members** elected by and from amongst elected members of Municipalities and chairpersons of Panchayats in the metropolitan area.
33. **First Municipal Corporation in India:** Established at **Madras in 1687–88**; followed by Bombay and Calcutta in 1726.
34. **Eight Types of Urban Local Bodies in India:** Municipal Corporation, Municipal Council, Notified Area Committee, Town Area Committee, Cantonment Board, Township, Port Trust, Special Purpose Agency.
35. **Cantonment Board Administration:** Set up for municipal administration of civilian population in cantonment areas; created and administered under the **Cantonments Act, 2006** (passed by Parliament); works directly under the **Union Ministry of Defence**; consists of partly elected and partly nominated/ex-officio members; military officer commanding the station is the ex-officio President of the Board.
36. **Compulsory Provisions of 73rd Amendment:** Organization of Gram Sabha; 3-tier structure (except states <20 lakh); direct election to all seats; indirect election of chairpersons at intermediate and district levels; minimum age 21 years; reservation for SCs/STs; min 1/3rd reservation for women; fixed 5-year tenure; constitution of State Finance Commission; constitution of State Election Commission.
37. **Voluntary Provisions of 73rd Amendment:** Giving voting rights to MPs/MLAs in local bodies; reservation for backward classes (OBCs); giving financial powers to levy and collect taxes; devolving powers on the 29 subjects in the 11th Schedule; making Panchayats autonomous units of self-government.

38. **Uttar Pradesh Panchayati Raj Details:** Uttar Pradesh has a 3-tier system: Gram Panchayat, Kshetra Panchayat, Zila Panchayat; regulated by UP Panchayati Raj Act, 1947 and UP Kshetra Panchayats and Zila Panchayats Adhiniyam, 1961.
39. **Nyaya Panchayats:** Grassroots judicial tribunals at village level for speedy and inexpensive settlement of small civil and criminal disputes; not made mandatory under 73rd Amendment (left to State discretion).
40. **Sources of Panchayat Revenue:** (1) Internal tax revenues (property tax, cess on land revenue); (2) Non-tax revenues (market fees, user charges); (3) Grants-in-aid from State government (based on SFC recommendations); (4) Central grants under Article 280 (recommended by Central Finance Commission).
41. **Community Development Programme (CDP, 1952):** Launched on 2 October 1952 with US Ford Foundation support; aimed at comprehensive rural development; failed due to excessive bureaucratization and lack of people's participation, necessitating Balwant Rai Mehta committee.
42. **Nagaur Historical Milestone:** Prime Minister Nehru launched the democratic decentralisation experiment at Nagaur (Rajasthan) on 2 October 1959 by switching on an electric power button to unveil the plaque.
43. **Ashok Mehta Mandal Panchayat Concept:** Defined Mandal Panchayat as a cluster of villages with total population of 15,000–20,000; aimed to make local bodies economically viable units of planning.
44. **G.V.K. Rao District Development Commissioner (DDC):** Recommended creation of the post of DDC as the Chief Executive Officer of the Zila Parishad, making the administrative machinery accountable to elected representatives.
45. **Rajiv Gandhi 64th Amendment Bill (1989):** Introduced in Lok Sabha to confer constitutional status on Panchayats; passed by Lok Sabha but defeated in Rajya Sabha in October 1989 due to opposition fears of centralisation.
46. **10 States under PESA (1996):** Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha, Rajasthan.
47. **Gram Sabha Absolute Primacy in PESA:** PESA mandates that state legislation shall be in consonance with customary law and traditional management practices of community resources; Gram Sabha is designated as the custodian of tribal traditions.
48. **Notified Area Committee vs Town Area Committee:** Notified Area Committee is created for fast-growing towns or towns not fulfilling conditions for municipality; established by state notification; **entirely nominated body** (no elected members). Town Area Committee is set up for small towns; semi-municipal authority; can be wholly elected, wholly nominated, or mixed.
49. **Port Trust Administration:** Established in major port cities (Kolkata, Mumbai, Chennai) to manage port facilities and civic amenities; established by an Act of Parliament; consists of both elected and nominated members.
50. **Central Council of Local Government:** Set up in 1954 under **Article 263** (Inter-State Council provision) by an order of the President; chaired by the Union Minister for Housing and Urban Affairs; advisory body for formulating urban local government policies.
51. **Historical Committees on Panchayati Raj Chronological Order:** (1) **Balwant Rai Mehta Committee (1957)** - Recommended 3-tier Panchayati Raj system and democratic decentralization; (2) **Ashok Mehta Committee (1977–78)** - Recommended 2-tier system (Zila Parishad + Mandal Panchayat) and political party participation; (3) **G.V.K. Rao Committee (1985)** - Recommended administrative arrangement for rural development ('grass without roots'); (4) **L.M. Singhvi Committee (1986)** - Recommended constitutional recognition for local self-government and Nyaya Panchayats; (5) **P.K. Thungon Committee (1988)** - Strongly urged constitutional entrenchment; (6) **V.N. Gadgil Committee (1988)** - Drafted template of 3-tier system with reservation and State Election/Finance Commissions.
52. **First Panchayati Raj Inauguration in India:** Inaugurated by Prime Minister Jawaharlal Nehru on **2 October 1959 at Nagaur, Rajasthan**; Andhra Pradesh was the second State to adopt it in 1959.
53. **73rd Constitutional Amendment Act, 1992 (Key Milestones):** Passed during P.V. Narasimha Rao's premiership; received presidential assent on 20 April 1993; came into force on **24 April 1993** (celebrated annually as **National Panchayati Raj Day**); added **Part IX (Articles 243 to 243-O)** and the **11th Schedule (29 functional subjects)**.
54. **74th Constitutional Amendment Act, 1992 (Urban Local Bodies):** Received assent on 20 April 1993; came into force on **1 June 1993**; added **Part IX-A (Articles 243-P to 243-ZG)** and the **12th Schedule (18 functional items)**.
55. **Article 243-A (Gram Sabha):** Foundation of the Panchayati Raj system; a body consisting of **all persons registered in the electoral rolls** relating to a village comprised within the area of Panchayat; exercises powers and performs functions at village level as State Legislature provides by law.
56. **Article 243-B (Three-Tier Panchayati Structure):** Mandates Panchayats at village, intermediate (Panchayat Samiti/Block), and district (Zila Parishad) levels; Proviso: Intermediate level Panchayat need **NOT be constituted in a State having a population not exceeding 20 lakhs**.
57. **Article 243-C (Composition of Panchayats):** All seats in a Panchayat at all three levels are filled by persons chosen by **direct election from territorial constituencies**; Chairpersons of village panchayats elected as state law provides; Chairpersons of intermediate and district panchayats must be elected **indirectly by and from amongst the elected members**.
58. **Article 243-D (Reservation of Seats in Panchayats):** Mandatory reservation for **SCs and STs in proportion to their population**; not less than **one-third (33%) of total seats reserved for women** (including SC/ST women); reservation for women also applies to offices of Chairpersons at all levels; State Legislature may provide reservation for Backward Classes (OBCs); several states (e.g. Bihar [first in 2006], MP, Rajasthan, Uttarakhand) have increased women reservation to **50%**.
59. **Article 243-E (Duration of Panchayats):** Every Panchayat shall continue for **5 years** from the date appointed for its first meeting and no longer; Election to constitute a Panchayat must be completed: (a) before expiry of its 5-year duration; (b) in case of premature dissolution, within **6 months**; a Panchayat reconstituted after premature dissolution continues ONLY for the **remainder of the 5-year period** (unless remainder is less than 6 months, in which case no mid-term election is held).
60. **Article 243-F (Disqualifications for Membership):** Minimum age for contesting Panchayat elections is **21 years** (unlike 25 years for Lok Sabha/Vidhan Sabha); questions of disqualification referred to authority determined by State Legislature.
61. **Article 243-I & 243-Y (State Finance Commission):** Governor constitutes a Finance Commission every **5 years** to review financial position of Panchayats and Municipalities and recommend distribution of net proceeds of taxes between State and local bodies, assignment of taxes, and grants-in-aid.
62. **Article 243-K & 243-ZA (State Election Commission):** Superintendence, direction and control of preparation of electoral rolls and conduct of all elections to Panchayats and Municipalities is vested in the **State Election Commissioner** appointed by the Governor; conditions of service and tenure determined by Governor; **can be removed from office ONLY in like manner and on like grounds as a Judge of a High Court** (cannot be removed by Governor arbitrarily).

63. **Article 243-O & 243-ZG (Bar to Interference by Courts):** Courts have no jurisdiction to question validity of any law relating to delimitation of constituencies or allotment of seats; elections to Panchayats/Municipalities can be called in question ONLY by an **election petition** presented to such authority and in such manner as prescribed by state law.
64. **Article 243-Q (Three Types of Municipalities):** (1) **Nagar Panchayat** for a transitional area from rural to urban; (2) **Municipal Council (Nagar Palika Parishad)** for a smaller urban area; (3) **Municipal Corporation (Nagar Nigam)** for a larger urban area; Governor specifies these areas based on population, density, revenue, and economic factors.
65. **Article 243-S (Wards Committees):** Mandates constitution of Wards Committees consisting of one or more wards within territorial area of a Municipality having a **population of 3 lakhs or more**.
66. **Article 243-ZD (District Planning Committee - DPC):** Constituted in every district to consolidate plans prepared by Panchayats and Municipalities and prepare a draft development plan for the district as a whole; not less than **four-fifths (80%) of members** are elected by and from amongst the elected members of Zila Parishad and Municipalities in proportion to rural/urban population ratio.
67. **Article 243-ZE (Metropolitan Planning Committee - MPC):** Constituted in every Metropolitan area (population 10 lakhs or more); not less than **two-thirds (66.6%) of members** are elected by and from amongst elected members of Municipalities and Chairpersons of Panchayats in the area.
68. **PESA Act, 1996 (Panchayats Extension to Scheduled Areas):** Enacted on recommendation of **Bhuria Committee** to extend Part IX to Fifth Schedule areas across 10 States; recognizes traditional rights, customs, and community resources of tribal communities; Gram Sabha has mandatory powers of consultation in land acquisition, minor forest produce (MFP) ownership, grant of prospecting licenses for minor minerals, and enforcing prohibition.
69. **Compulsory vs Voluntary Provisions of 73rd Amendment: Compulsory (Mandatory):** Organization of Gram Sabha, 3-tier system, direct elections to all seats, indirect election of chairpersons at intermediate/district levels, 21 years voting age, 1/3rd women reservation, SC/ST reservation, 5-year tenure, State Finance Commission, State Election Commission; **Voluntary (Discretionary):** Giving voting rights to MPs/MLAs, reservation for OBCs, devolving 29 functional items, granting taxation powers, financial autonomy.
70. **Uttar Pradesh Panchayati Raj Act, 1947 & Municipalities Act, 1916:** Governs local bodies in UP; UP was among first to establish Gaon Sabhas in 1949; amended in 1994 (UP Panchayat Laws Amendment Act 1994) to align with 73rd and 74th Amendments; UP has a 3-tier system: Gram Panchayat (headed by Gram Pradhan), Kshetra Panchayat (Block Pramukh), and Zila Panchayat (Zila Panchayat Adhyaksha); UP currently has **17 Municipal Corporations (Nagar Nigams)** (Shahjahanpur became 17th in 2018).
71. **First Municipal Corporation in India:** Established at **Madras in 1687–88**; followed by Bombay and Calcutta in 1726; Lord Ripon's Resolution of 1882 is hailed as the **'Magna Carta of Local Self-Government'** in India (Lord Ripon known as 'Father of Local Self-Government in India').
72. **Sources of Municipal Revenue:** (1) Tax revenue (property tax, octroi/entry tax, vehicle tax); (2) Non-tax revenue (user charges, fees, fines); (3) Assigned taxes and shared revenue; (4) Grants-in-aid from State Govt; (5) Borrowings (municipal bonds; Ahmedabad MC issued first municipal bonds in India in 1998; Lucknow MC issued bonds listed on BSE in 2020).
73. **Nyaya Panchayats Status:** Judicial wings of village panchayats recommended by Ashok Mehta and LM Singhvi committees; eliminated or non-functional in most modern state acts due to lack of legal training and procedural issues.
74. **Social Audit in Local Governance:** Mandatory verification of scheme expenditure by Gram Sabha; pioneered under MGNREGA Act 2005 (Section 17); Meghalaya was the first state in India to pass a comprehensive Social Audit Act in 2017.
75. **e-Gram Swaraj & SVAMITVA Schemes:** High-yield national digital local governance initiatives; e-Gram Swaraj portal integrates planning, accounting, and monitoring of Panchayats; SVAMITVA (Survey of Villages and Mapping with Improvised Technology in Village Areas) uses drone technology to map rural inhabited lands and issue property cards ('Gharauni' in UP).

⏱ Timeline / Chronology

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1882  ── Lord Ripon's Resolution: "Magna Carta of Local Self-Government"
  │
1952  ── Community Development Programme (CDP) launched (2 October)
  │
1957  ── Balwant Rai Mehta Committee recommends 3-tier Panchayati Raj System
  │
1959  ── First 3-tier Panchayati Raj inaugurated at Nagaur, Rajasthan (2 Oct)
  │
1977  ── Ashok Mehta Committee recommends 2-tier system (Mandal Panchayat + Zila Parishad)
  │
1985  ── G.V.K. Rao Committee warns against "grass without roots"
  │
1986  ── L.M. Singhvi Committee first recommends constitutional status for Panchayats
  │
1989  ── 64th & 65th Amendment Bills introduced by Rajiv Gandhi (defeated in Rajya Sabha)
  │
1992  ── 73rd and 74th Constitutional Amendment Acts passed by Parliament (P.V. Narasimha Rao)
  │
1993  ── 24 April: 73rd Amendment comes into force (National Panchayati Raj Day)
  │
1993  ── 1 June: 74th Amendment comes into force (Part IXA, Municipalities)
  │
1996  ── PESA Act passed extending Part IX to Fifth Schedule tribal areas in 10 States
  │
2004  ── Dedicated Union Ministry of Panchayati Raj established
  │
2006  ── Cantonments Act, 2006 enacted by Parliament under Ministry of Defence
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📊 Quick Reference Grid

1. The Panchayati Raj Committees Comparison

COMMITTEE	YEAR	KEY MEMBERS / CHAIR	CORE RECOMMENDATION
Balwant Rai Mehta	1957	Balwant Rai Mehta	**3-tier system** (Gram Panchayat, Panchayat Samiti, Zila Parishad)
Ashok Mehta	1977	Ashok Mehta	**2-tier system** (Mandal Panchayat + Zila Parishad); party politics
G.V.K. Rao	1985	G.V.K. Rao	Zila Parishad as pivot; warned against "grass without roots"
L.M. Singhvi	1986	L.M. Singhvi	**Constitutional recognition** for Panchayati Raj; Nyaya Panchayats
Thungon Committee	1988	P.K. Thungon	Constitutional status; fixed 5-year tenure; 3 tiers
Gadgil Committee	1988	V.N. Gadgil	Blueprint for 73rd Amendment: reservations, SFC, SEC
Bhuria Committee	1995	Dileep Singh Bhuria	Blueprint for **PESA Act, 1996** (Extension to Schedule V areas)

2. Functional Devolution Comparison

LOCAL GOVERNMENT UNIT	CONSTITUTIONAL PART	CONSTITUTIONAL SCHEDULE	NUMBER OF FUNCTIONAL SUBJECTS	KEY REFERENCE ARTICLE
Panchayats	**Part IX** (Arts. 243 to 243-O)	**11th Schedule**	**29 Subjects** (2 + 9 = 11)	Article 243G
Municipalities	**Part IXA** (Arts. 243P to 243ZG)	**12th Schedule**	**18 Subjects** (1 + 8 = 9)	Article 243W

🧠 Memory Anchors & Mnemonics

1. **Committees Chronology Sequence:** - **B-A-G-S Rule:** - **B**alwant Rai Mehta (1957) - **A**shok Mehta (1977) - **G**.V.K. Rao (1985) - **S**inghvi, L.M. (1986)
2. **Subject Counts Memory Trick:** - Schedule 11 (Panchayats): 2 + 9 = **11** → **29 Subjects** - Schedule 12 (Municipalities): 1 + 8 = **9** → **18 Subjects**
3. **Panchayat Election Math:** - Contesting Age = **21 Years** - Voting Age = **18 Years** - Dissolution Election Window = **6 Months** - Women's Constitutional Floor = **33.3% (1/3rd)**

Chapter 11: Centre–State Relations

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2022	In *Union of India v. Mohit Minerals*, the Supreme Court held that the recommendations of the **GST Council (Article 279A)** are not binding on Parliament or State Legislatures, emphasizing un-coerced cooperative federalism.	Landmark ruling on fiscal federalism and legislative sovereignty.
July 1, 2017	**Goods and Services Tax (GST)** launched nationwide via the 101st Constitutional Amendment Act, creating a concurrent tax regime across Union and States.	Milestone structural reform in Centre-State indirect taxation.
2022–2024	Multiple inter-state water dispute adjudications (Cauvery Water Management Authority, Krishna Water Disputes Tribunal II) highlighted the exclusive bar on court jurisdiction under **Article 262**.	High-yield Prelims question on Article 262 vs Article 131.
Ongoing	Inter-State Council meetings and Zonal Council meetings chaired by Union Home Minister focused on internal security, coastal security, and border dispute resolutions.	Distinguishes constitutional Inter-State Council (Art. 263) from statutory Zonal Councils.

🎯 Consolidated Must-Score Facts

1. The Constitution of India divides Centre–State relations into three categories: (1) **Legislative Relations** (Part XI, Articles 245–255); (2) **Administrative Relations** (Part XI, Articles 256–263); (3) **Financial Relations** (Part XII, Articles 268–293).
2. There is **NO division of judicial power**; the Constitution establishes a **single integrated judicial system** to enforce both Central and State laws.
3. **Territorial Extent of Legislative Power (Article 245):** Parliament can make laws for the **whole or any part of the territory of India**, and has power of **extraterritorial legislation** (applies to Indian citizens and property anywhere in the world); a State Legislature can make laws only for the whole or any part of the State.
4. **Threefold Legislative Distribution (Article 246 & Seventh Schedule):** - **Union List (List I):** Matters of national importance; originally 97 items, currently **100 entries**; Parliament has exclusive power to legislate (Defence, Foreign Affairs, Atomic Energy, Banking, Railways, Posts & Telegraph, Currency). - **State List (List II):** Matters of regional/local importance; originally 66 items, currently **61 entries**; State Legislatures have exclusive power to legislate (Public Order, Police, Public Health, Agriculture, Prisons, Local Government, Markets & Fairs). - **Concurrent List (List III):** Matters of common interest; originally 47 items, currently **52 entries**; both Parliament and State Legislatures can legislate (Criminal Law, Civil Procedure, Marriage & Divorce, Trade Unions, Economic & Social Planning, Education, Forests).
5. **Five Subjects Transferred by 42nd Amendment (1976):** Transferred from State List to Concurrent List: (1) **Education**; (2) **Forests**; (3) **Weights and Measures**; (4) **Protection of wild animals and birds**; (5) **Administration of justice**; constitution and organisation of all courts except the Supreme Court and the High Courts.
6. **Residuary Powers (Article 248):** Vested exclusively in **Parliament**; includes power to make any law on any matter not enumerated in the Concurrent List or State List, and to impose any tax not mentioned in either list (e.g., Cyber Laws, Space Research, Gift Tax); borrowed from **Canada**.
7. **Parliament's Power to Legislate on State List (Five Extraordinary Situations):** - (1) **Article 249 (National Interest):** If **Rajya Sabha passes a resolution supported by not less than two-thirds of members present and voting**; resolution remains in force for **1 year**; law ceases to have effect 6 months after resolution ends. - (2) **Article 250 (During National Emergency):** Parliament acquires concurrent power to legislate on any State subject; law ceases to operate **6 months** after emergency ceases. - (3) **Article 252 (By Consent of States):** When the legislatures of **two or more States pass resolutions** requesting Parliament to legislate; such law applies ONLY to those States (and other States adopting it); can be amended or repealed **ONLY by Parliament, NOT by the States** (e.g., Wildlife Protection Act 1972, Water Act 1974). - (4) **Article 253 (To Implement International Agreements):** Parliament can make laws on any State subject for implementing any treaty, international agreement, or convention without the consent of any State. - (5) **Article 356 (During President's Rule):** Parliament is empowered to exercise the legislative powers of the State Legislature.
8. **Doctrine of Pith and Substance:** Used to resolve legislative competence disputes; if the 'true nature and character' (pith and substance) of a statute falls within the legislative list of the enacting legislature, the statute is **valid even if it incidentally trenches upon a subject in another list**.
9. **Doctrine of Repugnancy (Article 254):** If any provision of a State law on a **Concurrent List** subject is repugnant to a Central law on that subject, the **Central law prevails** and the State law is void to the extent of repugnancy.
10. **Exception to Repugnancy (Article 254(2)):** If the State law on a Concurrent subject was **reserved for the consideration of the President and has received his assent**, the State law **prevails in that State**; however, Parliament can subsequently enact a new law overriding that State law.
11. **Doctrine of Colorable Legislation:** Based on the maxim "what cannot be done directly, cannot be done indirectly"; tests whether a legislature has transgressed constitutional limits under the guise of an apparently valid statute.
12. **Executive Directives of the Union (Articles 256 & 257):**
    - **Article 256:** Executive power of every State shall be so exercised as to ensure compliance with laws made by Parliament.
    - **Article 257:** Union can give directions to a State regarding: (1) Construction and maintenance of means of communication of national or military importance; (2) Protection of railways within the State.
13. **Article 365 (Coercive Constitutional Sanction):** Where any State has failed to comply with, or to give effect to, any directions given by the Union Executive (under Arts. 256, 257), the President is empowered to hold that a situation has arisen where the government of the State **cannot be carried on in accordance with the Constitution**, triggering **President's Rule under Article 356**.
14. **Delegation of Executive Functions (Article 258 & 258A):**
    - **Article 258:** President can, with the **consent of the State Government**, entrust Union executive functions to that State Government; Parliament can also confer powers on State officers **without State consent**.
    - **Article 258A (7th Amd 1956):** Governor can, with the **consent of the Government of India**, entrust State executive functions to the Union Government.

15. **All-India Services (Article 312):** Jointly serve Union and States; recruited and trained by the Centre; immediate control by State, ultimate control by Centre; **Rajya Sabha has the exclusive power to initiate creation of new All-India Services by a 2/3rd resolution**; Indian Forest Service (IFS) created in 1966.
16. **Inter-State River Water Disputes (Article 262):** Parliament may by law provide for the adjudication of any dispute regarding the use, distribution, or control of waters of any inter-state river or river valley; Parliament enacted the **Inter-State River Water Disputes (IRWD) Act, 1956**; jurisdiction of the **Supreme Court and all other courts is barred** in respect of such disputes.
17. **Inter-State Council (Article 263):** Constitutional body established by the President; first constituted in **May 1990** on the recommendation of the **Sarkaria Commission**; chaired by the **Prime Minister**; members include CMs of all States/UTs with assemblies and 6 Union Cabinet Ministers; recommendatory body.
18. **Zonal Councils (Statutory Bodies):** Created by the **States Reorganisation Act, 1956** (NOT constitutional bodies); established 5 Zonal Councils: Northern, Central, Eastern, Western, and Southern; chaired by the **Union Home Minister**; Chief Ministers act as Vice-Chairmen by rotation for 1 year; Central Zonal Council covers **Uttar Pradesh, Uttarakhand, Madhya Pradesh, and Chhattisgarh** (headquarters at **Prayagraj**).
19. **North-Eastern Council:** Created by a separate parliamentary statute, the **North-Eastern Council Act, 1971**; comprises Assam, Arunachal Pradesh, Manipur, Meghalaya, Mizoram, Nagaland, Tripura, and **Sikkim** (added in 2002); chaired by Union Home Minister.
20. **Taxation Powers Distribution (Article 265):** "No tax shall be levied or collected except by authority of law"; taxes on Union List levied exclusively by Centre; taxes on State List levied exclusively by States; Concurrent List has NO tax entries, except **GST (Article 246A)** introduced by the **101st Amendment Act, 2016**.
21. **Goods and Services Tax Regime (Articles 246A, 269A, 279A):**
    - **Article 246A:** Confers concurrent power on both Parliament and State Legislatures to make laws with respect to GST; Parliament has exclusive power over inter-state trade (IGST).
    - **Article 269A:** Levy and collection of GST on inter-state supply (IGST); apportioned between Union and States as per GST Council recommendations.
    - **Article 279A:** GST Council chaired by Union Finance Minister; decisions taken by 3/4th weighted majority (Centre 1/3rd, States 2/3rd).
22. **Distribution of Tax Revenues (Post-80th Amendment Act, 2000):** Introduced an **'Alternative Scheme of Devolution'** (based on 10th FC recommendation); all taxes and duties referred to in the Union List (except central surcharges, cesses, and GST) are pooled together and shared with States (**Divisible Pool**).
23. **Article 270:** Taxes levied and collected by the Union and distributed between the Union and the States (Income Tax, Corporation Tax, Central GST).
24. **Article 271:** Surcharges on certain duties and taxes for purposes of the Union; proceeds of surcharges go **entirely to the Centre** and are NOT shared with States.
25. **Grants-in-Aid to States (Article 275 & Article 282):**
    - **Article 275 (Statutory Grants):** Mandatory grants paid out of Consolidated Fund of India to States in need of assistance; recommended by the **Finance Commission**; specific grants for promoting welfare of Scheduled Tribes.
    - **Article 282 (Discretionary Grants):** Enables Union or State to make grants for any public purpose, even outside its legislative competence (historically used for Planning Commission scheme transfers).
26. **Borrowing Powers (Articles 292 & 293):**
    - **Union (Art. 292):** Can borrow within or outside India upon the security of the Consolidated Fund of India, subject to limits fixed by Parliament.
    - **States (Art. 293):** Can borrow **ONLY WITHIN INDIA** (cannot borrow abroad); if a State has any outstanding central loan, it **MUST OBTAIN CONSENT OF THE CENTRE** before raising any fresh market loan.
27. **Finance Commission (Article 280):** Quasi-judicial body appointed by the President every 5th year; recommends: (1) Devolution of net tax proceeds (Divisible Pool); (2) Principles for grants-in-aid under Art. 275; (3) Measures to augment State Consolidated Funds for local bodies.
28. **Sarkaria Commission (1983–1988):** Appointed by Union Government under Justice **R.S. Sarkaria** (with B. Sivaraman and Dr. S.R. Sen) to review Centre-State relations; submitted report in 1988 with 247 recommendations.
29. **Key Sarkaria Commission Recommendations:**
    - Article 356 should be used only in extreme cases as a **measure of last resort**;
    - Inter-State Council should be permanently established under Article 263;
    - Governor should be an eminent person from outside the State, not active in recent politics, appointed after **consulting the State CM**;
    - Residuary powers of taxation should remain with Parliament, but non-tax residuary matters should be placed in Concurrent List;
    - Corporation tax should be made constitutionally shareable with States (implemented by 80th Amd 2000);
    - National Development Council (NDC) should be renamed National Economic and Development Council;
    - Zonal Councils should be activated;
    - Center should consult States before legislating on Concurrent List subjects.
30. **Punchhi Commission (2007–2010):** Set up under former CJI **M.M. Punchhi**; submitted report in March 2010 with 273 recommendations:
    - Recommended fixed **5-year tenure for Governors** and their removal by **impeachment by State Legislature** (similar to President);
    - Recommended that Governor should act on ministerial advice while granting sanction for prosecution of ministers;
    - Proposed 'Localised Emergency' under Art. 352/356 to bring only troubled pockets under central rule instead of dissolving entire state government;
    - Recommended constitutional amendment to bring guidelines for selection of CM in hung assemblies;
    - Supported Rajya Sabha equality of seats among States.
31. **Rajamannar Committee (1969):** Appointed by the Tamil Nadu (DMK) government under Dr. **P.V. Rajamannar**; recommended: abolition of Articles 356, 357, and 365; transfer of residuary powers to States; abolition of All-India Services (IAS, IPS, IFS); Inter-State Council to be given mandatory powers.
32. **Anandpur Sahib Resolution (1973):** Adopted by Shiromani Akali Dal; demanded that Centre's jurisdiction be restricted strictly to **Defence, Foreign Affairs, Communications, and Currency**, with all other residual powers vesting in States.

33. **West Bengal Memorandum (1977):** Submitted by the Left Front government; demanded that the word 'Union' be replaced by 'Federation'; 75% of total central revenues should be transferred to States; Rajya Sabha should have equal powers with Lok Sabha; repeal of Arts. 356 and 360.
34. **Full Faith and Credit Clause (Article 261):** Full faith and credit shall be given throughout India to public acts, records, and judicial proceedings of the Union and of every State; civil court decrees executable anywhere in India.
35. **Exemption of State Property from Union Taxation (Article 289):** Property and income of a State is exempt from Union taxation; however, Union can tax commercial operations of a State.
36. **Exemption of Union Property from State Taxation (Article 285):** Property of the Union is exempt from all taxes imposed by a State or by any authority within a State, unless Parliament provides otherwise.
37. **Entry Count Breakdown in Seventh Schedule:**
    - Union List: 97 → **100**
    - State List: 66 → **61**
    - Concurrent List: 47 → **52**
38. **Incidental Encroachment Safeguard:** Under the Doctrine of Pith and Substance, incidental encroachment does not invalidate a law provided the core matter is intra vires.
39. **Article 249 Resolution Lifespan:** An Art. 249 Rajya Sabha resolution remains in force for a period not exceeding **one year**; can be renewed for one year at a time; laws passed under Art. 249 expire 6 months after resolution lapses.
40. **Article 252 Irrevocability by States:** A State Legislature that requested a law under Article 252 **CANNOT amend or repeal that law**; it can be amended or repealed solely by Parliament.
41. **Article 253 International Primacy:** Enables Parliament to pass laws overriding State List entries to implement international conventions (e.g., Anti-Hijacking Act, Geneva Conventions Act).
42. **Article 365 Direct Connection with Article 356:** Failure to comply with lawful Union executive directions under Art. 256 or Art. 257 constitutes conclusive constitutional ground for invoking Article 356 President's Rule.
43. **Sarkaria Commission 356 Guideline:** Demanded that every alternative avenue be exhausted, and a warning be given to the errant State government, before issuing a proclamation under Art. 356.
44. **Punchhi Commission Impeachment Recommendation:** Argued that Governors should not be vulnerable to central political changes, proposing that Governors be removed only by a resolution passed by the State Legislative Assembly.
45. **Central Zonal Council Specifics:** Covers **Uttar Pradesh, Uttarakhand, Madhya Pradesh, Chhattisgarh**; headquarters at **Prayagraj (Allahabad)**; operates under Union Home Ministry.
46. **GST Council Consensus Tradition:** Though decisions require 75% weighted majority, over 99% of GST Council decisions have been adopted through mutual consensus between Centre and States.
47. **Finance Commission Article 275 Principles:** Determines grants-in-aid of the revenues of such States as Parliament may determine to be in need of assistance; distinct from unconditional tax devolution under Art. 270.
48. **External Borrowing Ban on States:** States are strictly barred from borrowing in international debt markets directly (Art. 293(1)); external multilateral borrowings (World Bank, ADB) are routed through the Union Ministry of Finance.
49. **Inter-State River Water Tribunals Record:** Formed under IRWD Act 1956: Cauvery Water Disputes Tribunal (1990), Krishna Water Disputes Tribunal (2004), Mahadayi Tribunal (2010), Mahanadi Tribunal (2018).
50. **Three Decades of Commissions Summary:**
51. **Territorial Extent of Legislative Powers (Article 245):** Parliament can make laws for whole or any part of territory of India and has power of **extra-territorial legislation** (binding on Indian citizens and property abroad); State Legislature makes laws for whole or part of that State (no extra-territorial jurisdiction unless territorial nexus exists).
52. **Five Exceptional Conditions Where Parliament Legislate on State List:** (1) **Article 249:** In national interest if Rajya Sabha passes resolution by **2/3rd majority of members present and voting** (valid for 1 year at a time); (2) **Article 250:** During National Emergency (Art. 352); (3) **Article 252:** When legislatures of **two or more States pass resolutions** requesting Parliament (law applies ONLY to consenting states, other states can adopt later; can be amended only by Parliament); (4) **Article 253:** For implementing **international treaties, agreements, or conventions** (e.g. TRIPS, biological diversity); (5) **Article 356:** During President's Rule in a State.
53. **Doctrine of Pith and Substance:** Applied by courts to resolve legislative competence disputes between Union and State lists; determines the true nature, substance, and character of an enactment to verify whether it falls primarily within the enacting legislature's assigned field, ignoring incidental encroachments.
54. **Doctrine of Repugnancy (Article 254):** If a State law on a Concurrent List subject is inconsistent with a Parliamentary law, the Parliamentary law prevails; Exception (Article 254(2)): If the State law was **reserved for the President's consideration and received President's assent**, the State law prevails in that State (subject to Parliament's subsequent power to enact overriding legislation).
55. **Obligation of States and Centre (Articles 256 & 257):** Executive power of State must ensure compliance with Parliamentary laws (Art. 256) and not impede Union executive power (Art. 257); Union can issue directions to States for construction/maintenance of means of communication of national/military importance and protection of railways; Article 365 provides that failure to comply with Union directions may lead to **President's Rule under Article 356**.
56. **Full Faith and Credit Clause (Article 261):** Full faith and credit shall be given throughout the territory of India to public acts, records, and judicial proceedings of the Union and of every State; final civil court judgments executable anywhere in India.
57. **Inter-State River Water Disputes (Article 262):** Parliament may by law provide for the adjudication of any dispute relating to use, distribution or control of waters of any inter-state river; Parliament enacted the **Inter-State River Water Disputes Act, 1956**; bars jurisdiction of the Supreme Court and all other courts over such disputes (adjudicated by ad-hoc Water Disputes Tribunals, e.g. Cauvery, Krishna, Godavari).
58. **Inter-State Council (Article 263):** Established by presidential order to investigate and discuss subjects of common interest and make policy recommendations; permanently set up on **28 May 1990** on the recommendation of the **Sarkaria Commission**; Composition: Prime Minister (Chairman), Chief Ministers of all States, CMs of UTs with assemblies, Administrators of other UTs, and 6 Union Cabinet Ministers nominated by PM.

59. **Zonal Councils (Statutory, Not Constitutional):** Set up under the **States Reorganisation Act, 1956** (not under Constitution); 5 original Zonal Councils: Northern, Central (UP, MP, Uttarakhand, Chhattisgarh - headquarters Prayagraj/Allahabad), Eastern, Western, and Southern; **Union Home Minister is the common Chairman** of all Zonal Councils; North-Eastern Council was created separately under North-Eastern Council Act, 1971.
60. **GST Council (Article 279A):** Constitutional body inserted by the **101st Amendment Act, 2016**; makes recommendations on GST rates, exemptions, threshold limits; Composition: Union Finance Minister (Chairperson), Union MoS for Finance, and State Finance Ministers; Voting: Central Govt has **one-third (33.3%) weightage**, all State Govts combined have **two-thirds (66.6%) weightage**; decision requires a majority of not less than **three-fourths (75%) of weighted votes**.
61. **Grants-in-Aid (Article 275 Statutory vs Article 282 Discretionary):** Article 275: Statutory grants charged upon Consolidated Fund of India to states in need of assistance on recommendation of the Finance Commission; Article 282: Discretionary grants made by Union or State for any public purpose (used extensively for Centrally Sponsored Schemes).
62. **Rajamannar Committee (1969):** Appointed by DMK government in Tamil Nadu under Dr. P.V. Rajamannar to examine Centre-State relations; recommended abolition of Article 356, omission of Article 365, transfer of residuary powers to States, and making Inter-State Council effective.
63. **Anandpur Sahib Resolution (1973):** Passed by Akali Dal; demanded Centre's jurisdiction be restricted only to Defense, Foreign Affairs, Communications, and Currency, vesting all other powers in States.
64. **Sarkaria Commission (1983–1988):** 3-member Commission under **Justice R.S. Sarkaria** (members B. Sivaraman & Dr. S.R. Sen); submitted report with **247 recommendations**; Key recommendations: Article 356 to be used only as a last resort in rare cases; Inter-State Council under Art. 263 to be permanently set up; Governor should be an eminent person from outside the state and not an active politician; residuary taxation powers to remain with Parliament but other residuary powers transferred to Concurrent List; National Development Council (NDC) renamed National Economic & Development Council.
65. **Punchhi Commission (2007–2010):** 5-member Commission chaired by former CJI **Madan Mohan Punchhi**; submitted 7-volume report with 312 recommendations; Key recommendations: Governor should be given fixed 5-year tenure and removed only through procedure analogous to President's impeachment by State Legislature; 'Localizing emergency' under Article 355/356 to specific districts rather than entire State; Chief Minister to be consulted in Governor's appointment; guidelines on discretionary powers in hung assemblies.
    - 1969: Rajamannar (Tamil Nadu DMK) → extreme autonomy.
    - 1983–88: Sarkaria → cooperative federalism, Art. 356 last resort.
    - 2007–10: Punchhi → localized emergency, Governor impeachment.

⏱ Timeline / Chronology

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1950  ── Part XI & Part XII of Constitution enforce: 3 Legislative Lists & Fiscal provisions
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1956  ── States Reorganisation Act: 5 Statutory Zonal Councils created under Union Home Ministry
  |
1956  ── Inter-State River Water Disputes (IRWD) Act passed under Article 262
  |
1966  ── Indian Forest Service (IFS) created as third All-India Service under Article 312
  |
1969  ── Rajamannar Committee appointed by Tamil Nadu Government on Centre-State relations
  |
1971  ── North-Eastern Council created under separate 1971 Act (Sikkim added 2002)
  |
1973  ── Anandpur Sahib Resolution adopted demanding extreme state autonomy
  |
1976  ── 42nd Amendment: Shifted 5 subjects from State List to Concurrent List (Education, Forests)
  |
1983  ── Sarkaria Commission appointed by Central Government (Report submitted 1988)
  |
1990  ── Inter-State Council constituted under Article 263 (May 1990)
  |
2000  ── 80th Amendment: Alternative Scheme of Devolution (Divisible Pool sharing under Art. 270)
  |
2007  ── M.M. Punchhi Commission on Centre-State Relations appointed (Report submitted 2010)
  |
2016  ── 101st Amendment: GST Council created under Art. 279A; Art. 246A concurrent tax power
  |
2017  ── 1 July: GST implemented nationwide
  |
2022  ── *Mohit Minerals*: Supreme Court rules GST Council recommendations are recommendatory
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📊 Quick Reference Grid

1. The Three Legislative Lists in the Seventh Schedule

FEATURE	UNION LIST (LIST I)	STATE LIST (LIST II)	CONCURRENT LIST (LIST III)
Original Entries	97	66	47
Present Entries	**100**	**61**	**52**
Exclusive Authority	**Parliament** exclusively	**State Legislature** exclusively	**Both** Parliament and State Legislatures
Key Subjects	Defence, Atomic Energy, Foreign Affairs, Railways, Banking, Currency, Posts, Income Tax	Public Order, Police, Public Health, Sanitation, Agriculture, Prisons, Local Govt	Criminal Law, Civil Procedure, Marriage, Forests, Education, Trade Unions, Drugs
Residuary Power	Vested exclusively in **Parliament (Centre)** under **Article 248** (Canadian model)	N/A	N/A

2. Centre-State Relations Commissions Comparison

COMMISSION / COMMITTEE	YEAR	APPOINTED BY	KEY TERMS / CORE RECOMMENDATIONS
Rajamannar Committee	1969	Tamil Nadu Govt (DMK)	Abolish Art. 356, 357, 365; abolish All-India Services; transfer residuary powers to States
Anandpur Sahib Resolution	1973	Akali Dal	Restrict Centre strictly to Defence, Foreign Affairs, Communications, Currency
Sarkaria Commission	1983–1988	Central Govt (Indira Gandhi)	Art. 356 as last resort; set up Inter-State Council (Art. 263); consult CM on Governor appointment
M.M. Punchhi Commission	2007–2010	Central Govt (UPA)	Fixed 5-yr tenure for Governor; removal of Governor by Assembly impeachment; localized emergency

🧠 Memory Anchors & Mnemonics

1. **Parliament Overriding State List (Five Keys):** - **N-E-C-I-P** - **N**ational Interest (Art. 249: RS 2/3rd) - **E**mergency (Art. 250: National Emergency) - **C**onsent of 2+ States (Art. 252) - **I**nternational Treaties (Art. 253) - **P**resident's Rule (Art. 356)
2. **Five Shifted Subjects (42nd Amendment, 1976):** - **"E-F-W-A-J"** - **E**ducation - **F**orests - **W**eights & Measures - **A**nimals & Birds Protection - **J**ustice Administration (Subordinate Courts)
3. **Zonal Councils Chairmanship:** - All 5 Zonal Councils are permanently chaired by the **Union Home Minister**! - Chief Ministers act as Vice-Chairmen on rotation.

Chapter 12: Constitutional Bodies

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2023	**Chief Election Commissioner and Other Election Commissioners Act, 2023** enacted; selection committee consists of **Prime Minister + Leader of Opposition in Lok Sabha + Union Cabinet Minister** nominated by PM.	Replaced the SC's interim 3-member panel (PM + CJI + LoP) established in *Anoop Baranwal (2023)*; CJI excluded from selection panel.
2023–2024	**16th Finance Commission** constituted on **31 December 2023**, chaired by **Dr. Arvind Panagariya** (Ritwik Ranjanam Pandey as Secretary); recommendations cover 5-year award period from 1 April 2026.	High-yield Prelims question on Finance Commission chairmanship, terms of reference, and secretariat.
2022	In *Union of India v. Mohit Minerals*, the Supreme Court held that recommendations of the **GST Council (Article 279A)** are not binding on Parliament or State Legislatures, embodying cooperative federalism.	Critical constitutional doctrine test on the nature of GST Council decisions.
2021	**105th Constitutional Amendment Act, 2021** amended Articles 338B and 342A to clarify and restore the power of State Governments to identify and maintain their own State OBC lists.	Overruled the SC interpretation in the Maratha reservation case; vital for NCBC (338B) MCQs.
2018	**102nd Constitutional Amendment Act, 2018** conferred constitutional status on the **National Commission for Backward Classes (NCBC)** by inserting **Article 338B**.	Complete parity with NCSC (Art. 338) and NCST (Art. 338A).

Consolidated Must-Score Facts

1. A **Constitutional Body** is one whose establishment, composition, powers, and functions are explicitly provided for in the text of the Constitution; they can be modified or abolished ONLY through a Constitutional Amendment under **Article 368**.
2. **Election Commission of India (ECI, Article 324):** All-India permanent independent body responsible for superintendence, direction, and control of elections to: (1) **Parliament**; (2) **State Legislatures**; (3) **Office of President**; (4) **Office of Vice-President**.
3. **Panchayat and Municipality Elections Exclusion:** Elections to local self-governments (Panchayats and Municipalities) are NOT conducted by ECI; they are conducted exclusively by the **State Election Commission** under **Articles 243K and 243ZA**.
4. **ECI Composition (Article 324(2)):** Consists of the **Chief Election Commissioner (CEC)** and such number of other Election Commissioners as the President may from time to time fix; single-member from 1950 to 1989; made a durable **3-member body** (1 CEC + 2 ECs) since **October 1993**.
5. **Parity Among Commissioners:** The CEC and the two other Election Commissioners have **equal powers, equal salary, and equal allowances** (equivalent to a **Supreme Court Judge**); in case of difference of opinion, matters are decided by the Commission by **majority**.
6. **Appointment of CEC and ECs:** Appointed by the **President** on the recommendation of a Selection Committee consisting of: (1) **Prime Minister (Chairperson)**; (2) **Leader of Opposition in Lok Sabha**; (3) A **Union Cabinet Minister** nominated by the PM (CEC and Other ECs Act, 2023).
7. **Tenure & Service Conditions of ECI:** Tenure is **6 years or up to 65 years of age**, whichever is earlier; resigns by writing to the President; eligible for further government employment after retirement (Constitution does not bar them).
8. **Removal Asymmetry Trap in ECI:** The **CEC CANNOT be removed except in like manner and on the like grounds as a Judge of the Supreme Court** (proved misbehaviour or incapacity, requires special majority in both Houses of Parliament); other Election Commissioners **can be removed by the President on the RECOMMENDATION of the CEC** (no parliamentary impeachment needed).
9. **Union Public Service Commission (UPSC, Articles 315–323, Part XIV):** Independent constitutional agency for recruitment to All-India Services, Central Services Group A & B, and advising Union Government on disciplinary matters.
10. **Composition of UPSC (Article 316):** Consists of a Chairman and other members appointed by the **President**; strength usually 9 to 11 members (determined by President); nearly **half the members** must be persons who have held office for at least **10 years** under Government of India or State government.
11. **Tenure of UPSC Members:** Hold office for a term of **6 years or until the age of 65 years**, whichever is earlier; address resignation to the President.
12. **Removal of UPSC Chairman/Members (Article 317):** Removed by President on grounds of insolvency, paid employment outside office, infirmity of mind/body, or **misbehaviour**; on grounds of misbehaviour, President **MUST refer the matter to the Supreme Court for an inquiry under Article 145**; the advice tendered by the Supreme Court is **BINDING on the President** (during inquiry, President can suspend member).
13. **Bar on Further Employment for UPSC Members (Article 319):** Chairman of UPSC is **ineligible for any further employment** under Government of India or a State; a UPSC member is eligible only for appointment as Chairman of UPSC or Chairman of an SPSC, but NOT for any other government post.
14. **State Public Service Commission (SPSC, Articles 315–323):** Chairman and members of SPSC are **appointed by the GOVERNOR**, but **CAN ONLY BE REMOVED BY THE PRESIDENT** (Governor CANNOT remove SPSC members; Governor can only suspend them pending inquiry).
15. **Tenure of SPSC Members:** Term of **6 years or until the age of 62 years**, whichever is earlier (62 years for SPSC vs 65 years for UPSC; raised from 60 to 62 by 41st Amd 1976).
16. **Joint State Public Service Commission (JSPSC):** Created by an **Act of Parliament** on the request of the concerned State legislatures (Art. 315(2)); therefore, JSPSC is a **Statutory Body**, NOT a constitutional body; Chairman and members appointed by the **President**; tenure 6 years or 62 years.
17. **Finance Commission (Article 280, Part XII): Quasi-judicial body** constituted by the President at the expiration of every **5th year** (or earlier as needed); consists of a **Chairman and 4 other members** appointed by the President.
18. **Qualifications of FC Members (FC Act, 1951):** Chairman must have experience in public affairs; the 4 members are selected from: (1) Judge of High Court or qualified to be such; (2) Special knowledge of finance and accounts of government; (3) Wide experience in financial matters and administration; (4) Special knowledge of economics.
19. **Mandate & Recommendations of Finance Commission:** Recommends: (1) Distribution of net tax proceeds between Union and States (vertical devolution) and among States (horizontal devolution); (2) Principles governing **Grants-in-aid** to States under Article 275; (3) Measures to augment State Consolidated Fund to supplement resources of Panchayats and Municipalities (added by 73rd & 74th Amd 1992).

20. **Advisory Nature of Finance Commission:** Recommendations made by the Finance Commission are **only advisory in nature** and are NOT binding on the Government; President lays the report along with an explanatory memorandum of action taken before both Houses of Parliament (**Article 281**).
21. **Comptroller and Auditor General of India (CAG, Articles 148–151):** Described by Dr. B.R. Ambedkar as the **"most important officer in the Constitution of India"**; guardian of the public purse; audits all expenditure from Consolidated Fund of India, States, and UTs with assemblies.
22. **Appointment & Tenure of CAG (Article 148):** Appointed by the President by warrant under his hand and seal; tenure is **6 years or up to 65 years of age**, whichever is earlier; resigns to President.
23. **Independence of CAG:** Removed by the President ONLY in the same manner and on the **same grounds as a Judge of the Supreme Court** (Art. 148(1)); salary and conditions of service determined by Parliament and cannot be varied to his disadvantage; **ineligible for further office under Government of India or any State** after retirement; administrative expenses charged on Consolidated Fund of India.
24. **Reports of CAG (Article 151):** Submits 3 audit reports to the President (Audit Report on Appropriation Accounts, Audit Report on Finance Accounts, Audit Report on Commercial Undertakings); President causes them to be laid before Parliament; Public Accounts Committee (**PAC**) examines these reports (CAG is the 'guide, friend and philosopher' of PAC).
25. **Attorney-General for India (Article 76):** Highest legal officer in the country; appointed by the President; must be qualified to be appointed a **Judge of the Supreme Court**; holds office during the **pleasure of the President**; no fixed tenure; remuneration determined by President; right of audience in all Indian courts; right to speak in Parliament without voting rights (**Article 88**).
26. **Advocate-General for the State (Article 165):** Highest legal officer in the State; appointed by the **Governor**; must be qualified to be appointed a **Judge of a High Court**; holds office during the **pleasure of the Governor**; right to speak in State Legislature without voting rights (**Article 177**).
27. **Special Officer for Linguistic Minorities (Article 350B):** Created by the **7th Constitutional Amendment Act, 1956** on recommendation of States Reorganisation Commission; appointed by the President; investigates matters relating to constitutional safeguards for linguistic minorities; submits reports to President laid before Parliament.
28. **National Commission for Scheduled Castes (NCSC, Article 338):** Consists of a Chairperson, Vice-Chairperson, and 3 other members appointed by President; tenure **3 years**; investigates and monitors safeguards for SCs; enjoys **powers of a Civil Court** while investigating complaints.
29. **National Commission for Scheduled Tribes (NCST, Article 338A):** Bifurcated from common commission by the **89th Amendment Act, 2003** (effective 2004); 5 members (Chairperson, Vice-Chairperson, 3 members, with at least 1 woman); evaluates tribal development and safeguards; civil court powers.
30. **National Commission for Backward Classes (NCBC, Article 338B):** Elevated to constitutional status by the **102nd Constitutional Amendment Act, 2018**; 5 members appointed by President; investigates complaints regarding SEBCs; civil court powers; State lists restored by 105th Amd 2021.
31. **Goods and Services Tax (GST) Council (Article 279A):** Constitutional body inserted by the **101st Amendment Act, 2016**; chaired by Union Finance Minister; decisions taken by **3/4th majority of weighted votes** (Centre holds 1/3rd, all States combined hold 2/3rds).
32. **Inter-State Council (Article 263):** Established by presidential order in **1990** on recommendation of the Sarkaria Commission; chaired by the **Prime Minister**; investigates and discusses subjects of common interest between Union and States.
33. **Classification of Executive Bodies:** - **Constitutional Bodies:** ECI (324), UPSC & SPSC (315), FC (280), CAG (148), AG (76), Advocate-General (165), NCSC (338), NCST (338A), NCBC (338B), GST Council (279A), Special Officer for Linguistic Minorities (350B), SEC (243K), SFC (243I). - **Non-Constitutional / Statutory Bodies:** NHRC, SHRC, CIC, SIC, CVC, Lokpal, National Commission for Women, National Commission for Minorities, NBI, CBI. - **Non-Constitutional / Non-Statutory (Executive Resolution):** NITI Aayog (replaced Planning Commission on 1 Jan 2015), National Development Council.
34. **Summary Table of Constitutional Tenures:** SC Judge (until 65); HC Judge (until 62); UPSC Member (6 yrs / 65 yrs); SPSC Member (6 yrs / 62 yrs); CAG (6 yrs / 65 yrs); CEC & ECs (6 yrs / 65 yrs); Finance Commission (5 yrs / reconstituted every 5th year); NCSC / NCST / NCBC (3 yrs per statutory rules).
35. **First Finance Commission (1951):** Chaired by **K.C. Neogy**; 15th FC was chaired by **N.K. Singh** (recommended 41% tax devolution to States, adjusting 1% for J&K/Ladakh UTs); 16th FC is chaired by **Dr. Arvind Panagariya** (constituted Dec 2023 for 2026–31).
36. **Statutory Qualifications of Finance Commission Members:** Under the FC (Miscellaneous Provisions) Act, 1951, the 4 members must represent: High Court judge/qualified; expert in government finance/accounts; experienced in administration and finance; economist.
37. **UPSC Historical Pedigree:** Set up as Central Public Service Commission in **1926** under the GOI Act 1919 upon recommendation of the **Lee Commission (1923–24)**; first Chairman was **Sir Ross Barker**; renamed Federal PSC under GOI Act 1935, and UPSC in 1950.
38. **Matters Excluded from UPSC Consultation (Article 320(4)):** Reservation of appointments/posts for backward classes (Art. 16(4)); claims of SCs/STs to services (Art. 335); selection for chairmanship/membership of temporary commissions; regulations made by President excluding posts must be laid before Parliament for 14 days.
39. **Joint State PSC Appointment vs Removal:** Created by parliamentary statute on joint resolution of concerned States; Chairman and members appointed by the **President** (not Governor); removed by the **President** (on SC inquiry under Art. 145); tenure is 6 years or 62 years.
40. **State Election Commission Removal Barrier (Article 243K(2)):** The State Election Commissioner can ONLY be removed in the like manner and on the like grounds as a **Judge of a High Court**; his conditions of service cannot be varied to his disadvantage after appointment.
41. **State Finance Commission Mandate (Article 243I):** Recommends principles governing taxes, duties, and tolls assignable to Panchayats/Municipalities, grants-in-aid from State Consolidated Fund, and measures to improve local body finances; Governor causes recommendations to be laid before State Legislature.
42. **Advocate-General vs Attorney-General:** Attorney-General advises Government of India (Art. 76, SC judge qualification); Advocate-General advises State Government (Art. 165, HC judge qualification); both hold office during executive pleasure and can participate in legislative proceedings without the right to vote.
43. **Special Officer for Linguistic Minorities Functioning:** Headquarters at **Prayagraj (Allahabad)**; regional offices at Belgaum, Chennai, and Kolkata; falls under the administrative control of the **Ministry of Minority Affairs**.
44. **GST Council Voting Mechanics:** Quorum is 50% of total members; decisions require a **3/4th weighted majority** of members present and voting; Central Government vote carries **1/3rd weight (33.33%)**; all 28 States and 3 UT assemblies combined carry **2/3rd weight (66.67%)**. Thus, neither Centre nor States alone can pass a resolution without cross-support.
45. **Inter-State Council Composition:** Chaired by Prime Minister; members include Chief Ministers of all States and UTs having legislative assemblies, Administrators of other UTs, and 6 Union Cabinet Ministers nominated by PM (including Home Minister); permanent invitees include other Union Cabinet ministers.

46. **NCSC Powers of a Civil Court:** When investigating any complaint under Art. 338(8), NCSC has powers to: summon and enforce attendance; require discovery and production of documents; receive evidence on affidavits; requisition public records from any court or office; issue commissions for examination of witnesses.
47. **NCST Tribal Development Mandate:** In addition to constitutional safeguards, Art. 338A(5) requires NCST to participate and advise on the planning process of socio-economic development of Scheduled Tribes and evaluate their progress under Union and States.
48. **NCBC Evolution Timeline:** Set up as statutory body in 1993 pursuant to *Indra Sawhney (1992)* judgment; granted constitutional status via **102nd Amendment Act, 2018** (Art. 338B); State OBC identification power restored via **105th Amendment Act, 2021**.
49. **CAG Audit vs Accounting Separation (1976):** Until 1976, CAG maintained accounts and conducted audits for both Union and States; in 1976, accounting functions for the Union were transferred to the **Controller General of Accounts (CGA)** under the Ministry of Finance; CAG continues to compile and maintain accounts for **State Governments**.
50. **Constitutional Removal Procedures Classification:**
51. **Election Commission Multi-Member Evolution (Article 324):** Originally a single-member body from 1950 to 1989; 2 Election Commissioners first appointed on 16 October 1989 (reversed in 1990); permanently made a **multi-member commission with 1 CEC and 2 ECs on 1 October 1993**; CEC and ECs have equal power, salary and perks (equal to a Supreme Court judge); in case of difference of opinion, matter decided by **majority vote**.
52. **Removal and Protection of CEC vs ECs:** CEC has security of tenure and can be removed **ONLY in like manner and on like grounds as a Judge of the Supreme Court** (Art. 324(5)); Election Commissioners CANNOT be removed except on the **recommendation of the Chief Election Commissioner**.
53. **Chief Election Commissioner & Other ECs Act, 2023:** Appointed by President on recommendation of a Selection Committee consisting of: (1) Prime Minister (Chairperson), (2) Leader of Opposition/Single Largest Opposition Party in Lok Sabha, and (3) a Union Cabinet Minister nominated by PM; Search Committee headed by Cabinet Secretary.
54. **UPSC Composition & Tenure (Articles 315 to 319):** Strength determined by President (usually 9–11 members); nearly half the members must have held office for at least 10 years under GoI or State Govt; Tenure is **6 years or until age of 65 years**, whichever is earlier; resigns to President.
55. **SPSC & Joint SPSC (JSPSC) Nuances:** State Public Service Commission members appointed by **Governor**, but **removable ONLY by the President**; tenure is **6 years or age of 62 years**; **Joint State Public Service Commission (JSPSC)** is a **statutory body** (not constitutional), created by Parliament by law on request of concerned state legislatures; JSPSC members appointed and removed by the **President**.
56. **Removal of UPSC/SPSC Members (Article 317):** President can remove Chairman or member on ground of misbehaviour ONLY after the **Supreme Court conducts an inquiry under Article 145 and recommends removal**; SC's advice is **binding on the President**; can be removed without inquiry if adjudged insolvent, engages in paid employment outside duties, or infirmity of mind/body.
57. **Finance Commission Qualifications (Finance Commission Act, 1951):** Article 280; Chairman must have experience in public affairs; 4 members selected from: (1) Judge of High Court or qualified to be such; (2) Special knowledge of finance and accounts of Govt; (3) Wide experience in financial matters and administration; (4) Special knowledge of economics; 15th FC Chairman was **N.K. Singh** (recommended 41% devolution to states); 16th FC constituted in Dec 2023 chaired by **Dr. Arvind Panagariya**.
58. **Comptroller and Auditor General of India - CAG (Article 148):** Appointed by President by warrant under hand and seal; tenure **6 years or age of 65 years**; removed in like manner as a **Supreme Court Judge**; ineligible for further office under GoI or State Govt after retirement; salary and expenses charged on Consolidated Fund of India (non-votable); submits 3 audit reports (Appropriation, Finance, Public Undertakings) under **Article 151** to President (laid before Parliament).
59. **CAG as Guardian of Public Purse:** B.R. Ambedkar stated CAG is the most important officer in the Constitution of India; audits all receipts and expenditure of Union, States, and bodies substantially financed by government; Comptroller function is theoretical (CAG audits post-expenditure, unlike UK Comptroller who authorizes issuance of funds).
60. **National Commission for Scheduled Castes - NCSC (Article 338):** Originally a combined special officer (Commissioner for SCs/STs); 65th CAA 1990 created multi-member National Commission for SCs and STs; **89th CAA 2003 bifurcated** it into separate NCSC (Art. 338) and NCST (Art. 338A) effective 2004; consists of Chairperson, Vice-Chairperson, and 3 other members appointed by President; has powers of a **Civil Court** while investigating complaints.
61. **National Commission for Scheduled Tribes - NCST (Article 338A):** Created by **89th CAA 2003**; investigates all matters relating to constitutional safeguards for STs; oversees implementation of Forest Rights Act 2006, PESA Act 1996; reports annually to President (laid before Parliament with action taken memorandum).
62. **National Commission for Backward Classes - NCBC (Article 338B):** Originally established as a statutory body in 1993 following *Indra Sawhney (1992)*; conferred **constitutional status by the 102nd Constitutional Amendment Act, 2018**; consists of Chairperson, Vice-Chairperson, and 3 members; investigates complaints of deprivation of rights of Socially and Educationally Backward Classes (SEBCs).
63. **Special Officer for Linguistic Minorities (Article 350-B):** Inserted by the **7th Constitutional Amendment Act, 1956** on recommendation of States Reorganisation Commission; appointed by the President; investigates all matters relating to safeguards provided for linguistic minorities; Commissioner for Linguistic Minorities has headquarters at **Prayagraj (Allahabad)** with regional offices at Belgaum, Chennai, and Kolkata.
64. **Advocate-General for the State (Article 165) & Attorney-General (Article 76) Comparison:** Attorney-General holds office during President's pleasure (removable by Centre); Advocate-General holds office during Governor's pleasure (removable by State); both have right of audience in courts and right to speak in legislatures without voting power; neither is a whole-time government servant and both can undertake private legal practice (subject to not advising against government).
65. **Non-Constitutional Status of Planning Commission / NITI Aayog:** Planning Commission (established 15 March 1950 by executive resolution) and NITI Aayog (established 1 January 2015 by cabinet resolution) are **non-constitutional and non-statutory extra-constitutional bodies**, created neither by Constitution nor by an Act of Parliament. - **Group A (Impeachment / Address by Parliament):** SC Judge, HC Judge, **CAG (Art. 148)**, **CEC (Art. 324)**, and **SEC (Art. 243K)**. - **Group B (Supreme Court Inquiry under Art. 145): UPSC Members (Art. 317)** and **SPSC Members (Art. 317)**. - **Group C (Pleasure of Executive): Attorney-General (Art. 76)**, **Advocate-General (Art. 165)**, and Governors.

Timeline / Chronology

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1921  ── First Public Accounts Committee formed to scrutinize government audits
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1926  ── Central Public Service Commission established on Lee Commission advice (Sir Ross Barker, Chair)
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1950  — Constitution enforces: ECI (Art. 324), UPSC (Art. 315), CAG (Art. 148), AG (Art. 76) born
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1951  — 1st Finance Commission constituted under K.C. Neogy
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1956  — 7th Amendment: Article 350B inserted (Special Officer for Linguistic Minorities)
  |
1976  — Departmentalisation of Union Accounts Act: CAG relieved of Central accounting (transferred to CGA)
  |
1989  — ECI expanded to multi-member commission for the first time (reversed 1990, restored Oct 1993)
  |
1990  — Inter-State Council constituted under Article 263 on Sarkaria Commission recommendation
  |
1992  — 73rd & 74th Amendments: Created State Election Commission (243K) & State Finance Commission (243I)
  |
1993  — ECI becomes permanent 3-member body; NCBC set up as a statutory body post-Indra Sawhney
  |
2003  — 89th Amendment: Bifurcated Article 338 into NCSC (338) and NCST (338A) (effective 2004)
  |
2016  — 101st Amendment: Inserted Article 279A creating the GST Council
  |
2018  — 102nd Amendment: Conferred constitutional status on NCBC by inserting Article 338B
  |
2021  — 105th Amendment: Restored State Governments' authority to identify and notify State OBC lists
  |
2023  — 16th Finance Commission constituted under Dr. Arvind Panagariya (award period 2026–2031)
  |
2023  — CEC and Other ECs Appointment Act passed establishing new selection panel (PM + LoP + Cabinet Minister)
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📊 Quick Reference Grid

1. Constitutional Bodies Master Comparison Table

BODY	CONSTITUTIONAL ARTICLE	APPOINTED BY	TENURE / AGE LIMIT	REMOVAL PROCEDURE	STATUS POST-RETIREMENT
Election Commission of India (ECI)	**Art. 324**	President (via Selection Committee)	6 years / 65 years	CEC: Like SC Judge; Other ECs: By President on CEC advice	Not barred from further govt jobs
Union Public Service Commission (UPSC)	**Arts. 315–323**	President	6 years / 65 years	President on SC inquiry under Art. 145 (binding)	Barred from further govt jobs (except UPSC/SPSC Chair)
State Public Service Commission (SPSC)	**Arts. 315–323**	**Governor**	6 years / **62 years**	**President** on SC inquiry under Art. 145	Barred (can become UPSC member/chair, or other SPSC chair)
Comptroller & Auditor General (CAG)	**Arts. 148–151**	President	6 years / 65 years	Like SC Judge (Parliament special majority)	Completely barred from further govt office
Finance Commission	**Art. 280**	President	Reconstituted every 5 years	By President upon expiry of term	Eligible for other appointments
Attorney-General for India	**Art. 76**	President	Pleasure of President (No fixed tenure)	Removed by President at any time	Private practice permitted (not barred)
Advocate-General for State	**Art. 165**	Governor	Pleasure of Governor (No fixed tenure)	Removed by Governor at any time	Private practice permitted
National Commission for SCs (NCSC)	**Art. 338**	President	3 years (Statutory rules)	President on grounds of misbehaviour/incapacity	Regulated by rules
National Commission for STs (NCST)	**Art. 338A**	President	3 years (Statutory rules)	President on grounds of misbehaviour/incapacity	Regulated by rules
National Commission for BCs (NCBC)	**Art. 338B**	President	3 years (Statutory rules)	President on grounds of misbehaviour/incapacity	Regulated by rules
Goods & Services Tax (GST) Council	**Art. 279A**	Ex-officio ministerial forum	Continuous	Ex-officio ministerial forum	N/A
State Election Commission (SEC)	**Art. 243K**	Governor	Determined by State Law	Like High Court Judge	Determined by State Law
State Finance Commission (SFC)	**Art. 243I**	Governor	Every 5th year	Expiry of term	Regulated by State Law

2. Selected Finance Commissions & Chairpersons

COMMISSION	YEAR CONSTITUTED	CHAIRPERSON	AWARD PERIOD	KEY MILESTONE / RECOMMENDATION
1st FC	1951	**K.C. Neogy**	1952–1957	Established foundational devolution principles
2nd FC	1956	**K. Santhanam**	1957–1962	Post-States Reorganisation devolution
12th FC	2002	**Dr. C. Rangarajan**	2005–2010	Fiscal responsibility & debt restructuring
13th FC	2007	**Dr. Vijay Kelkar**	2010–2015	Recommended GST framework & green grants
14th FC	2013	**Dr. Y.V. Reddy**	2015–2020	Unprecedented jump in devolution from 32% to **42%**
15th FC	2017	**N.K. Singh**	2021–2026	Recommended **41%** devolution (1% adjusted for J&K/Ladakh UTs)
16th FC	2023	**Dr. Arvind Panagariya**	2026–2031	Ritwik Ranjanam Pandey as Secretary; disaster & local finance focus

🧠 Memory Anchors & Mnemonics

1. **Retirement Age 62 vs 65 Rule:** - **62 Years:** High Court Judges, State PSC (SPSC), Joint State PSC (JSPSC). - **65 Years:** Supreme Court Judges, Union PSC (UPSC), CAG, Chief Election Commissioner & ECs. - *Memory Key: State-level bodies top out at 62; Union-level bodies top out at 65.*
2. **UPSC & SPSC Removal Inquiry:** - Removal on ground of misbehaviour requires **Supreme Court Reference under Article 145**. - The Supreme Court's finding is **BINDING on the President**. - *Trap: Neither UPSC nor SPSC members are impeached by Parliament!*
3. **The 3 Constitutional Commissions Ladder:** - Article 338: **NCSC** (Scheduled Castes) - Article 338A: **NCST** (Scheduled Tribes — 89th Amd 2003) - Article 338B: **NCBC** (Backward Classes — 102nd Amd 2018) - *Order: Castes → Tribes → Backward Classes.*
4. **GST Council 1/3rd vs 2/3rd Balance:** - Centre: **1/3rd** vote weight - All States: **2/3rd** vote weight - Approval requires **3/4th (75%)** majority. Neither can bulldoze the other!

Chapter 13: Statutory & Non-Constitutional Bodies

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024	Former Supreme Court judge Justice **Ajay Manikrao Khanwilkar** appointed as the Chairperson of the **Lokpal of India**; succeeded Justice Pinaki Chandra Ghose (India's first Lokpal, appointed 2019).	Current institutional leadership question in State Civil Services.
2019 / Amd	**Protection of Human Rights (Amendment) Act, 2019** amended NHRC structure: allowed any former Supreme Court Judge (not just CJI) to be Chairperson; reduced tenure from 5 to **3 years (or 70 years of age)**; allowed reappointment.	Landmark reform frequently tested in Prelims.
2019 / RTI	**Right to Information (Amendment) Act, 2019** removed fixed statutory 5-year tenure of Chief Information Commissioner and ICs, allowing Central Government to prescribe tenure (currently 3 years) and salaries.	High-yield statutory amendment lock.
2015	**NITI Aayog** established on **1 January 2015** by an executive resolution of the Union Cabinet, replacing the 65-year-old Planning Commission (Non-constitutional, Non-statutory think tank).	Standard classification question in Indian Polity.

Consolidated Must-Score Facts

1. Non-Constitutional bodies are divided into two distinct legal classes: (1) **Statutory Bodies** (established by an Act of Parliament or State Legislature, e.g., NHRC, CVC, CIC, Lokpal, NGT); (2) **Non-Statutory / Extra-Constitutional Bodies** (established by an Executive Resolution of the Government, e.g., NITI Aayog).
2. **NITI Aayog (National Institution for Transforming India):** Established on **1 January 2015** replacing the Planning Commission; non-constitutional, non-statutory body; operates as the apex public policy think tank; promotes **Cooperative and Competitive Federalism**.
3. **NITI Aayog Composition:** Chairperson is the **Prime Minister**; Vice-Chairperson appointed by PM (rank of Cabinet Minister); CEO appointed by PM for fixed tenure (rank of Secretary to GoI); Governing Council comprises **Chief Ministers of all States and UTs with legislatures**, and Lt. Governors of other UTs.
4. **National Development Council (NDC):** Established in **August 1952** by an executive resolution; non-constitutional, non-statutory body; chaired by PM; included all Union Cabinet ministers, CMs of all States, and Planning Commission members; served as the apex approval body for Five-Year Plans.
5. **National Human Rights Commission (NHRC):** Established on **12 October 1993** under the **Protection of Human Rights Act (PHRA), 1993**; statutory body; conforms to the Paris Principles.
6. **NHRC Composition (Post-2019 Amendment):** Consists of a Chairperson (who has been a **Chief Justice of India or a Judge of the Supreme Court**) and 5 members (1 sitting/retired SC judge, 1 sitting/retired HC Chief Justice, and 3 persons having knowledge of human rights, of whom at least 1 must be a woman).
7. Ex-officio members of NHRC: Chairpersons of National Commission for Minorities, NCSC, NCST, NCBC, National Commission for Women, NCPCR, and Chief Commissioner for Persons with Disabilities.
8. **Tenure of NHRC:** Chairperson and members hold office for **3 years or until the age of 70 years**, whichever is earlier (reduced from 5 years by 2019 Amendment); eligible for **reappointment**.
9. **NHRC Selection Committee (6 Members):** (1) **Prime Minister** (Chairperson); (2) **Speaker of Lok Sabha**; (3) **Deputy Chairman of Rajya Sabha**; (4) **Leader of Opposition in Lok Sabha**; (5) **Leader of Opposition in Rajya Sabha**; (6) **Union Home Minister**. (Sitting SC judge or HC CJ can be appointed only after consultation with CJI).
10. **Limitations of NHRC:** Recommendations are **purely advisory** and not binding on the government; cannot investigate any complaint made **after the expiry of ONE YEAR** from the date on which human rights violation occurred (Art. 36 limitation); has limited powers regarding human rights violations by Armed Forces (can only seek a report from the Central Government).
11. **State Human Rights Commission (SHRC):** Created under PHRA 1993; Chairperson (retired Chief Justice or Judge of High Court) and 2 members appointed by **Governor** on recommendation of a Committee (CM, Speaker, State Home Minister, LoP in Assembly); can be removed **ONLY BY THE PRESIDENT** (Governor CANNOT remove SHRC members).
12. **Central Vigilance Commission (CVC):** Established in **1964** on the recommendation of the **K. Santhanam Committee on Prevention of Corruption**; accorded statutory status by the **CVC Act, 2003**; apex vigilance institution free from executive control.
13. **CVC Composition:** Consists of a **Central Vigilance Commissioner** (Chairperson) and not more than **two Vigilance Commissioners**; appointed by the **President** on recommendation of a 3-member committee: (1) **Prime Minister** (Chairperson); (2) **Union Minister of Home Affairs**; (3) **Leader of Opposition in Lok Sabha**.
14. **Tenure of CVC:** Unique tenure of **4 YEARS or until the age of 65 years**, whichever is earlier; **INELIGIBLE for further employment** under Government of India or State government after retirement.
15. **Central Information Commission (CIC):** Constituted in **2005** under the **Right to Information (RTI) Act, 2005**; statutory body; consists of Chief Information Commissioner and not more than 10 Information Commissioners.
16. **Appointment of CIC:** Appointed by the **President** on recommendation of a 3-member committee: (1) **Prime Minister** (Chairperson); (2) **Leader of Opposition in Lok Sabha**; (3) A **Union Cabinet Minister** nominated by the PM.
17. **Tenure of CIC (Post-2019 Amendment):** Term of office and allowances are **prescribed by the Central Government** (currently 3 years, or up to 65 years of age); **NOT eligible for reappointment**.
18. **Lokpal and Lokayuktas Act, 2013:** Received Presidential assent on 1 January 2014; provides for establishment of **Lokpal at the Centre** and **Lokayuktas in States** to inquire into allegations of corruption against public functionaries.
19. **Lokpal Composition:** Consists of a Chairperson (former CJI or former SC Judge or eminent person) and **not more than 8 members**; **50% shall be Judicial Members**; not less than **50% of members shall be from SCs, STs, OBCs, Minorities, and Women**.

20. **Tenure of Lokpal:** Chairperson and members hold office for **5 years or until the age of 70 years**, whichever is earlier; appointed by President on recommendation of a 5-member Selection Committee.
21. **Lokpal Selection Committee (5 Members):** (1) **Prime Minister** (Chairperson); (2) **Speaker of Lok Sabha**; (3) **Leader of Opposition in Lok Sabha**; (4) **Chief Justice of India** (or SC judge nominated by CJI); (5) An **Eminent Jurist** nominated by the President on recommendations of the first four members.
22. **Jurisdiction of Lokpal:** Covers the **Prime Minister**, Union Ministers, Members of Parliament, and Groups A, B, C, D officials of the Central Government; covers entities receiving foreign donations under FCRA in excess of ₹10 lakh/year.
23. **Lokpal Jurisdiction over Prime Minister (Safeguards):** Lokpal CANNOT inquire into allegations against PM relating to **international relations, external and internal security, public order, atomic energy, and space**; inquiry against PM must be held **in-camera** and approved by a **two-thirds majority of the full bench of Lokpal**.
24. **Lokayukta Institution in States: Maharashtra** was the first State to establish Lokayukta in **1971**; followed by Rajasthan, Bihar, and UP (**UP Lokayukta and Up-Lokayuktas Act, 1975**); Lokayukta is appointed by the Governor in consultation with the Chief Justice of High Court and Leader of Opposition in Assembly.
25. **Central Bureau of Investigation (CBI):** Set up in **1963** by a resolution of the Ministry of Home Affairs on recommendation of the **Santhanam Committee**; derives police powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**; works under the Ministry of Personnel, Public Grievances and Pensions.
26. **Appointment of CBI Director:** Appointed on recommendation of a 3-member committee under CVC Act / Lokpal Act: (1) **Prime Minister** (Chairperson); (2) **Leader of Opposition in Lok Sabha**; (3) **Chief Justice of India** (or SC judge nominated by CJI); statutory minimum tenure of **2 years** (can be extended up to 5 years, one year at a time via 2021 ordinance).
27. **National Green Tribunal (NGT):** Established on **18 October 2010** under the **National Green Tribunal Act, 2010**; specialized environmental judicial body; India is the **3rd country in the world** (after Australia and New Zealand) to establish a dedicated green tribunal.
28. **NGT Composition & Principles:** Chairperson (retired SC judge or HC CJ) appointed by Central Government in consultation with CJI; full-time judicial and expert members (min 10, max 20 each); tenure **5 years**, not eligible for reappointment; not bound by Code of Civil Procedure (CPC) or Indian Evidence Act; guided by **Principles of Natural Justice**, **Sustainable Development**, **Precautionary Principle**, and **Polluter Pays Principle**; mandated to dispose of cases within **6 months**.
29. **National Commission for Women (NCW):** Statutory body set up in **January 1992** under the **National Commission for Women Act, 1990**; reviews constitutional and legal safeguards for women; consists of a Chairperson and 5 members; first Chairperson was **Jayanti Patnaik**.
30. **National Commission for Minorities (NCM):** Set up as an executive body in 1978; given statutory status by the **National Commission for Minorities Act, 1992**; 6 notified religious minorities in India: **Muslims, Christians, Sikhs, Buddhists, Parsis (Zoroastrians)**, and **Jains** (notified in 2014).
31. **National Disaster Management Authority (NDMA):** Created under the **Disaster Management Act, 2005**; apex body for disaster management; chaired ex-officio by the **Prime Minister**; State Disaster Management Authority (SDMA) chaired by **Chief Minister**.
32. **Unique Identification Authority of India (UIDAI):** Created in 2009 under Planning Commission; given statutory status by the **Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016**; functions under Ministry of Electronics and IT (MeitY).
33. **Law Commission of India:** Non-statutory, executive advisory body constituted by the Ministry of Law and Justice every 3 years; first Law Commission in independent India established in **1955** under Attorney-General **M.C. Setalvad**; advises government on legal reforms and codification.
34. **Staff Selection Commission (SSC):** Non-statutory body created in 1975 (originally Subordinate Services Commission); attached office of Department of Personnel and Training (DoPT); conducts Group B and C recruitments.
35. **Competition Commission of India (CCI):** Quasi-judicial statutory body established in **2003** under the **Competition Act, 2002**; replaced the MRTP Commission (Monopolies and Restrictive Trade Practices Commission, 1969); eliminates anti-competitive agreements and abuses of dominant position.
36. **Classification Summary Grid:**
    - **Constitutional:** ECI, UPSC, SPSC, FC, CAG, AG, Advocate-General, NCSC, NCST, NCBC, GST Council, Special Officer Linguistic Minorities.
    - **Statutory:** NHRC, SHRC, CVC, CIC, SIC, Lokpal, Lokayukta, NGT, NCW, NCM, NCPCR, NDMA, UIDAI, CCI.
    - **Executive / Non-Statutory:** NITI Aayog, Law Commission, NDC.
37. **Governing Council of NITI Aayog:** The institutional engine of cooperative federalism; includes all 28 State CMs, 3 UT CMs (Delhi, Puducherry, J&K), and Lt. Governors of other UTs; replaced the old NDC format.
38. **First Lokpal in History:** Concept of Ombudsman originated in **Sweden in 1809**; in India, the term 'Lokpal' was coined by **Dr. L.M. Singhvi in 1963** during a parliamentary debate.
39. **First Anti-Corruption Bill in India:** First Administrative Reforms Commission (ARC, 1966) headed by Morarji Desai recommended a two-tier ombudsman (Lokpal and Lokayukta); first Lokpal Bill introduced in Lok Sabha in **1968** by the Indira Gandhi government (lapsed on dissolution).
40. **First State to Pass Lokayukta Act: Odisha** passed the Lokayukta Act first in **1970**, but **Maharashtra was the first to implement/establish** the office in **1971**.
41. **CVC Unique Advisory Standing:** CVC is not an investigating agency; it conducts inquiries through the **Chief Vigilance Officers (CVOs)** in ministries or refers criminal corruption cases to the **CBI**.
42. **Superintendence of CBI on Corruption Cases:** Under the CVC Act 2003, the **CVC exercises superintendence over the CBI** in so far as it relates to investigation of offences under the **Prevention of Corruption Act, 1988**.
43. **NHRC Courts of Record Powers:** When inquiring into human rights violations, NHRC has all the powers of a **Civil Court** trying a suit under the Code of Civil Procedure (CPC), 1908.
44. **NHRC Investigation Staff Independence:** NHRC has its own investigating staff headed by a Director General of Police; can also utilize services of central or state government officers with their consent.
45. **SHRC Removal Presidential Prerogative:** Even though appointed by the Governor, a member of an SHRC can be removed **ONLY by the President of India** on grounds of misbehaviour or incapacity after an inquiry by the Supreme Court (identical to SPSC members under Art. 317).
46. **RTI Section 4 Suo-Motu Disclosure:** Mandates every public authority to proactively publish details of its organization, functions, duties, decision-making norms, and public documents within 120 days of enactment.

47. **RTI Section 8 Exemptions:** 10 categories of information exempt from disclosure: sovereignty/security of India, contempt of court, commercial confidence/trade secrets, fiduciary relationships, cabinet papers, and personal information with no public interest.
48. **NGT Principal Bench and Zonal Benches:** Principal Bench at **New Delhi**; 4 regional zonal benches at **Bhopal, Pune, Kolkata, and Chennai**.
49. **National Commission for Protection of Child Rights (NCPCR):** Statutory body established in **March 2007** under the **Commissions for Protection of Child Rights (CPCR) Act, 2005**; monitors implementation of the **POCSO Act, 2012** and **RTE Act, 2009**.
50. **Central Pollution Control Board (CPCB):** Statutory organization constituted in **September 1974** under the **Water (Prevention and Control of Pollution) Act, 1974**; later entrusted with functions under the Air (Prevention and Control of Pollution) Act, 1981.
51. **NITI Aayog Structure & Governing Council:** Replaced Planning Commission on **1 January 2015**; acts as think-tank embodying 'Cooperative Federalism'; Prime Minister is **Chairperson**; Governing Council comprises **Chief Ministers of all States and Lt. Governors of UTs**; Vice-Chairperson appointed by PM (rank of Cabinet Minister); Chief Executive Officer (CEO) appointed by PM for fixed tenure (rank of Secretary to GoI); Full-time members, Part-time members (max 2 from universities), and Ex-officio members (max 4 Union Ministers).
52. **National Development Council (NDC):** Established on **6 August 1952** by executive resolution to coordinate policies and approve Five-Year Plans; comprised PM, Union Cabinet Ministers, Chief Ministers of all States, and Planning Commission members; rendered defunct following establishment of NITI Aayog Governing Council.
53. **National Human Rights Commission - NHRC (Protection of Human Rights Act, 1993):** Statutory body constituted on **12 October 1993**; amended in 2006 and 2019; Composition: Chairperson (person who has been **Chief Justice of India OR a Judge of the Supreme Court**); 5 full-time members (1 SC judge, 1 HC Chief Justice, 3 persons with HR expertise of which at least 1 must be a woman) + 7 ex-officio chairpersons of national commissions (NCSC, NCST, NCBC, NCW, NCPCR, NCM, Chief Commissioner for PwDs).
54. **NHRC Appointment & Tenure (2019 Amendment):** Appointed by President on recommendation of a **6-member Committee**: (1) Prime Minister (Chairperson), (2) Speaker of Lok Sabha, (3) Deputy Chairman of Rajya Sabha, (4) Leaders of Opposition in Lok Sabha, (5) Leader of Opposition in Rajya Sabha, and (6) Union Home Minister; Tenure reduced in 2019 from 5 years to **3 years or until age of 70 years**, whichever is earlier; eligible for reappointment.
55. **Powers and Limitations of NHRC:** Vested with all powers of a **Civil Court**; can intervene in judicial proceedings relating to HR violations; inspects jails; **Recommendations are purely recommendatory** (not binding on government); has no power to punish violators or award monetary relief directly; Armed Forces violations can only be inquired via report sought from Central Govt; complaints older than **1 year** cannot be investigated (statute of limitations).
56. **Central Information Commission - CIC (Right to Information Act, 2005):** Statutory body constituted on **12 October 2005**; consists of **Chief Information Commissioner and not more than 10 Information Commissioners**; Appointed by President on recommendation of 3-member committee: (1) PM (Chairperson), (2) Leader of Opposition in Lok Sabha, and (3) a Union Cabinet Minister nominated by PM.
57. **RTI Amendment Act, 2019 (CIC Tenure & Salaries):** Removed original fixed 5-year tenure/salary parity with CEC; amended provisions so that tenure, salaries, allowances, and terms of service of Chief Information Commissioner and ICs are **prescribed by the Central Government by rules**; currently fixed at **3 years** or 65 years of age.
58. **Central Vigilance Commission - CVC (CVC Act, 2003):** Apex vigilance institution set up in **February 1964** on recommendations of **K. Santhanam Committee on Prevention of Corruption**; given statutory status by the Central Vigilance Commission Act, 2003; consists of a **Central Vigilance Commissioner (Chairperson) and not more than 2 Vigilance Commissioners**.
59. **CVC Appointment and Unique 4-Year Tenure:** Appointed by President on recommendation of a 3-member committee: (1) PM (Chairperson), (2) Union Home Minister, and (3) Leader of Opposition in Lok Sabha; Tenure is uniquely **4 years or until age of 65 years**, whichever is earlier (only major body with 4-year tenure); ineligible for further employment under Central or State Government.
60. **Lokpal and Lokayuktas Act, 2013 (Key Statutory Markers):** Passed following Anna Hazare's Jan Lokpal movement; came into force on **16 January 2014**; Lokpal is an anti-corruption ombudsman for Union consisting of a **Chairperson (former CJI or SC Judge or eminent person) and up to 8 Members** (50% judicial members; 50% from SC/ST/OBC/Minorities/Women); **Pinaki Chandra Ghose** appointed first Lokpal of India in March 2019.
61. **Lokpal Selection Committee (5 Members):** (1) Prime Minister (Chairperson), (2) Speaker of Lok Sabha, (3) Leader of Opposition in Lok Sabha, (4) Chief Justice of India (or SC Judge nominated by CJI), and (5) an eminent jurist nominated by President based on recommendations of first 4 members.
62. **Jurisdiction of Lokpal:** Covers **Prime Minister** (with exceptions: allegations relating to international relations, external/internal security, public order, atomic energy, space, or unless full bench approves inquiry and 2/3rd members assent), Union Ministers, MPs (except votes cast or speeches made in Parliament under Art. 105), and Group A, B, C, and D public servants.
63. **Lokayukta Institution in States (Historical Evolution):** Recommended by First Administrative Reforms Commission (ARC) in 1966; **Odisha passed the first Lokayukta Act in 1970**, but **Maharashtra was the first state to actually establish and operationalize the office of Lokayukta in 1971**; Rajasthan established in 1973; Uttar Pradesh established Lokayukta under UP Lokayukta and Up-Lokayuktas Act, **1975** (first UP Lokayukta was Justice **Vishwambhar Dayal**).
64. **Central Bureau of Investigation - CBI (Genesis & Nature):** Set up in **1963** by a resolution of the Ministry of Home Affairs on Santhanam Committee recommendations; derives its statutory police investigating powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**; not a statutory body per se (functions under Ministry of Personnel, Public Grievances and Pensions); Director appointed on recommendation of 3-member committee: (1) PM, (2) CJI or nominee, and (3) Leader of Opposition in LS; statutory minimum tenure of 2 years (can be extended up to 5 years via annual extensions under DSPE Amendment Act 2021).
65. **National Disaster Management Authority - NDMA (Disaster Management Act, 2005):** Apex statutory body for disaster management; constituted on 27 September 2006; **headed ex-officio by the Prime Minister of India**; consists of Vice-Chairperson and up to 8 members; State Disaster Management Authorities (SDMAs) are headed ex-officio by the respective **Chief Ministers**; District DMAs headed by District Magistrate.

Timeline / Chronology

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1946  ── Delhi Special Police Establishment (DSPE) Act passed (police power base for CBI)
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1952  ── National Development Council (NDC) established by Cabinet Resolution
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1955  ── First Law Commission of independent India established (M.C. Setalvad, Chair)
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1963  — CBI established by Ministry of Home Affairs resolution
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1963  — Term "Lokpal" coined by Dr. L.M. Singhvi in Parliament
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1964  — Central Vigilance Commission (CVC) established on Santhanam Committee report
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1971  — Maharashtra becomes first State to establish the institution of Lokayukta
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1974  — Central Pollution Control Board (CPCB) constituted under Water Act 1974
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1992  — National Commission for Women (NCW) established under 1990 Act
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1992  — National Commission for Minorities (NCM) given statutory status
  |
1993  — National Human Rights Commission (NHRC) established under PHRA 1993
  |
2003  — CVC given statutory status via CVC Act, 2003
  |
2005  — Right to Information (RTI) Act enacted; Central Information Commission (CIC) born
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2005  — Disaster Management Act passed creating NDMA (chaired by PM)
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2010  — National Green Tribunal (NGT) established under NGT Act, 2010
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2013  — Lokpal and Lokayuktas Act passed (enforced 1 Jan 2014)
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2015  — 1 January: NITI Aayog replaces Planning Commission
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2019  — First Lokpal of India appointed (Justice Pinaki Chandra Ghose)
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2024  — Justice A.M. Khanwilkar appointed Chairperson of Lokpal
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📊 Quick Reference Grid

1. Major Statutory & Non-Constitutional Bodies Matrix

BODY	LEGAL STATUS / FOUNDING ACT	APPOINTED BY	SELECTION COMMITTEE	TENURE / AGE CAP
NITI Aayog	Non-statutory, Executive Resolution (2015)	Ex-officio / PM	N/A	At pleasure of PM
NHRC	Statutory (PHRA, 1993; amdt 2019)	President	6 members: PM, Speaker, Dy Chair RS, LoP LS, LoP RS, Home Minister	**3 years / 70 years** (Eligible for reappointment)
SHRC	Statutory (PHRA, 1993)	Governor (Removed by **President**)	4 members: CM, Speaker, State Home Minister, LoP Assembly	**3 years / 70 years**
CVC	Statutory (CVC Act, 2003)	President	3 members: PM, Home Minister, LoP in Lok Sabha	**4 years / 65 years** (Unique 4-yr term!)
CIC	Statutory (RTI Act, 2005; amdt 2019)	President	3 members: PM, LoP in Lok Sabha, Union Cabinet Minister	As prescribed by Centre (3 yrs) / 65 yrs
Lokpal	Statutory (Lokpal Act, 2013)	President	5 members: PM, Speaker, LoP LS, CJI (or nominee), Eminent Jurist	**5 years / 70 years**
NGT	Statutory (NGT Act, 2010)	Central Govt (in consultation with CJI)	Judicial/Expert selection panel	**5 years** (Not eligible for reappointment)
CBI Director	Under DSPE Act, 1946 / CVC Act	Central Govt	3 members: PM, LoP in Lok Sabha, CJI (or nominee)	Min 2 years (extendable up to 5 yrs)

🧠 Memory Anchors & Mnemonics

1. **The Unique "4-Year" Body:** - **CVC = 4 Years or 65 Years!** - Every other statutory commission is 3, 5, or 6 years. CVC stands completely alone at 4 years.
2. **70-Year Retirement Club:** - **NHRC** (3 yrs / 70 yrs) - **SHRC** (3 yrs / 70 yrs) - **Lokpal** (5 yrs / 70 yrs)
3. **Selection Panels Cheat Sheet:** - **CVC (3):** PM + Home Minister + LoP LS - **CIC (3):** PM + Union Cabinet Minister + LoP LS - **CBI (3):** PM + CJI + LoP LS - **Lokpal (5):** PM + Speaker + LoP LS + CJI + Eminent Jurist - **NHRC (6):** PM + Speaker + Dy Chair RS + LoP LS + LoP RS + Home Minister

Chapter 14: Elections

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
Feb 2024 / ADR	Supreme Court 5-judge Constitution bench unanimously struck down the **Electoral Bond Scheme, 2018** and amendments to the Companies Act and RPA 1951 as unconstitutional, holding anonymous political funding violates the voter's **Right to Information under Article 19(1)(a)**.	Landmark constitutional judgment on political financing and transparency.
2023–2024	**Chief Election Commissioner and Other Election Commissioners Act, 2023** enacted; establishes a Selection Committee consisting of Prime Minister + Leader of Opposition in Lok Sabha + Union Cabinet Minister nominated by PM (excluding CJI).	Definitively resets the appointment process for ECI members post-*Anoop Baranwal*.
2023 / Status	**Aam Aadmi Party (AAP)** recognized as the **6th National Party**; Trinamool Congress (TMC), Nationalist Congress Party (NCP), and Communist Party of India (CPI) **lost their National Party status**.	Current count lock: Exactly **6 National Parties** in India.
April 2024	Supreme Court dismissed petitions seeking 100% physical cross-verification of Electronic Voting Machine (EVM) vote counts with VVPAT slips, upholding the integrity of EVM protocols.	Contemporary electoral jurisprudence on EVM-VVPAT verification.

Consolidated Must-Score Facts

1. **Part XV (Articles 324–329)** of the Constitution contains the constitutional provisions relating to elections; establishes an independent machinery to conduct free and fair elections.
2. **Article 324(1):** Vests the **superintendence, direction, and control** of the preparation of electoral rolls and the conduct of all elections to: (1) **Parliament**; (2) **State Legislatures**; (3) **Office of the President**; (4) **Office of the Vice-President** in the **Election Commission of India (ECI)**.
3. Elections to **Panchayats and Municipalities** are NOT conducted by the ECI; they are conducted by the **State Election Commission** under **Articles 243K and 243ZA**.
4. **Article 325 (Single General Electoral Roll):** Declares that there shall be **one general electoral roll for every territorial constituency**; no person is ineligible for inclusion in the electoral roll on grounds **ONLY of religion, race, caste, sex**, or any of them; completely abolishes communal/separate electorates.
5. **Article 326 (Universal Adult Suffrage):** Elections to the House of the People (Lok Sabha) and the Legislative Assembly of every State shall be on the basis of **adult suffrage**; every citizen who is not less than **18 years of age** has the right to be registered as a voter.
6. **Lowering of Voting Age:** The voting age was reduced from **21 years to 18 years** by the **61st Constitutional Amendment Act, 1988** (enacted under Rajiv Gandhi; came into force on **28 March 1989**).
7. **Article 327:** Empowers **Parliament** to make provisions with respect to all matters relating to elections to Parliament and State Legislatures, including preparation of electoral rolls, delimitation of constituencies, and all other matters.
8. **Article 328:** Empowers **State Legislatures** to make provisions with respect to elections to State Legislatures, in so far as provision has not been made by Parliament.
9. **Article 329 (Bar on Interference by Courts in Electoral Matters):** - (a) The validity of any law relating to the **delimitation of constituencies or allotment of seats** cannot be questioned in any court. - (b) No election to Parliament or State Legislature can be called in question **except by an ELECTION PETITION** presented to such authority and in such manner as provided by parliamentary law (RPA 1951).
10. **Election Petitions Trial:** Election petitions questioning parliamentary or assembly elections are tried exclusively by the **State High Court** (jurisdiction transferred from Election Tribunals to High Courts in 1966); an appeal lies as of right to the **Supreme Court**.
11. **Disputes Regarding President and Vice-President (Article 71):** Inquired into and decided **EXCLUSIVELY by the Supreme Court of India**, whose decision is **final**.
12. **Representation of the People Act, 1950 (RPA 1950):** Provides for: (1) Allocation of seats in Lok Sabha and State Legislative Assemblies/Councils; (2) Delimitation of constituencies; (3) Qualifications of voters; (4) Preparation of electoral rolls and registration of electors.
13. **Representation of the People Act, 1951 (RPA 1951):** Provides for: (1) Qualifications and disqualifications for membership of Parliament and State Legislatures; (2) Actual conduct of elections; (3) Corrupt practices and electoral offences; (4) Registration of political parties (Section 29A); (5) Free supply of electoral rolls and broadcast time.
14. **Disqualifications under Section 8 of RPA 1951:**
    - **Section 8(1):** Conviction for specific offences (hate speech, untouchability, rape, hoarding) leads to disqualification from date of conviction and for **6 years after release**.
    - **Section 8(3):** Conviction for ANY other offence resulting in **imprisonment for not less than 2 YEARS** leads to disqualification from the date of conviction and continues for a period of **6 years following release**.
15. ***Lily Thomas v. Union of India (2013):*** Supreme Court struck down **Section 8(4) of RPA 1951** as unconstitutional; previously, sitting MPs and MLAs convicted of offences were exempt from immediate disqualification for 3 months or until their appeal was decided; post-*Lily Thomas*, disqualification is **INSTANTANEOUS upon conviction**.
16. **Disqualification on Ground of Corrupt Practices (Section 8A of RPA 1951):** Case of corrupt practice decided by High Court; referred to President; President decides after **obtaining opinion of the Election Commission of India** (maximum disqualification is **6 years**).
17. **Model Code of Conduct (MCC):** Set of guidelines issued by the ECI to regulate political parties and candidates during elections; **first evolved in Kerala in the 1960 Assembly elections**; has **NO STATUTORY BACKING** (not an Act of Parliament); enforced through moral authority, media publicity, and Article 324 powers; comes into effect **immediately upon announcement of the election schedule** by ECI.
18. **Electronic Voting Machines (EVMs):** First used in India on an experimental basis in **1982** in the **Paravur assembly constituency of Kerala**; manufactured by two PSUs: **Bharat Electronics Limited (BEL)**, Bengaluru and **Electronic Corporation of India Limited (ECIL)**, Hyderabad; independent standalone

machines with no internet connectivity.

19. **Voter Verifiable Paper Audit Trail (VVPAT):** Independent system attached to EVMs that prints a paper slip showing the candidate name, symbol, and serial number for **7 SECONDS** before dropping into a sealed box; first used in a bye-election in **Noksen constituency of Nagaland in 2013**; introduced following SC order in *Subramanian Swamy v. ECI (2013)*; 5 EVMs per assembly constituency randomly verified against paper slips.
20. **NOTA (None of the Above):** Introduced in **2013** following Supreme Court judgment in ***People's Union for Civil Liberties (PUCL) v. Union of India*** under Rule 49-O of Conduct of Election Rules; provides secrecy for negative voting; does NOT affect election outcome (even if NOTA gets the highest votes, the candidate with the highest votes among valid candidates is declared elected).
21. **Right to Reject vs Right to Vote:** In *PUCL (2013)*, SC held that the right to vote includes the right not to vote and the right to register a negative vote (NOTA); however, the **Right to Vote is a STATUTORY RIGHT** created by RPA 1951 (Section 62), NOT a Fundamental Right (*Kuldip Nayar, 2006*; *Rajbala, 2015*).
22. **Right to Know Candidate's Background:** In ***Association for Democratic Reforms (ADR) v. Union of India (2002)***, Supreme Court ruled that a citizen's right to know the criminal antecedents, assets, liabilities, and educational qualifications of candidates is a **Fundamental Right under Article 19(1)(a)** (Freedom of Speech and Expression).
23. **Security Deposit in Elections:**
    - **Lok Sabha Election: ₹25,000** for General candidates; **₹12,500** for SC/ST candidates.
    - **State Legislative Assembly Election: ₹10,000** for General candidates; **₹5,000** for SC/ST candidates.
    - Security deposit is forfeited if a candidate fails to secure **more than ONE-SIXTH (16.67%) of the total valid votes polled** in the constituency.
24. **Candidate Election Expenditure Ceilings (Revised 2022):**
    - **Lok Sabha:** Up to **₹95 lakh** in larger States (including UP, Bihar, Maharashtra); up to **₹75 lakh** in smaller States and UTs.
    - **State Assembly:** Up to **₹40 lakh** in larger States; up to **₹28 lakh** in smaller States and UTs.
25. **Delimitation Commission:** High-powered body constituted by the Central Government under the **Delimitation Commission Act**; orders have the force of law and **CANNOT be challenged in any court**; 4 Delimitation Commissions constituted so far: **1952, 1962, 1972, and 2002** (headed by Justice Kuldip Singh).
26. **Freezes on Delimitation:** The **42nd Amendment (1976)** froze total Lok Sabha seats at the **1971 Census** level until 2000; the **84th Amendment (2001)** extended this seat freeze until the **first census after 2026**; the **87th Amendment (2003)** allowed internal readjustment of constituency boundaries within States based on the **2001 Census**.
27. **Criteria for Recognition as a National Party (Election Symbols Order, 1968):** A political party is recognized as a National Party if it satisfies ANY ONE of three conditions:
    - (1) Secures at least **6% of the valid votes polled in 4 or more States** at a general election to Lok Sabha or Assembly, AND in addition, **wins at least 4 seats in the Lok Sabha** from any State(s); OR
    - (2) Wins at least **2% of the total seats in the Lok Sabha (11 seats)**, and these members are elected from **at least 3 different States**; OR
    - (3) Is recognized as a **State Party in at least 4 States**.
28. **Criteria for Recognition as a State Party:** A political party is recognized as a State Party if it satisfies ANY ONE of five conditions:
    - (1) Secures at least **6% of valid votes polled in the State** at an Assembly general election AND wins at least **2 seats in the Assembly**; OR
    - (2) Secures at least **6% of valid votes polled in the State** at a Lok Sabha general election AND wins at least **1 seat in the Lok Sabha** from that State; OR
    - (3) Wins at least **3% of the total seats in the Legislative Assembly** or at least **3 seats**, whichever is more; OR
    - (4) Wins at least **1 seat in Lok Sabha for every 25 seats** or fraction thereof allotted to the State; OR
    - (5) Secures at least **8% of the total valid votes polled in the State** at a general election to Lok Sabha or Assembly (added in 2011; no seats required).
29. **Present National Parties (2024):** Exactly **6 National Parties**:
    - (1) **Bharatiya Janata Party (BJP)**
    - (2) **Indian National Congress (INC)**
    - (3) **Communist Party of India (Marxist) [CPI(M)]**
    - (4) **Bahujan Samaj Party (BSP)**
    - (5) **National People's Party (NPP)** — first party from North-East India to gain national status (2019)
    - (6) **Aam Aadmi Party (AAP)** — recognized in April 2023.
30. Parties that **lost National Party status in April 2023**: All India Trinamool Congress (TMC), Nationalist Congress Party (NCP), and Communist Party of India (CPI).
31. **Electoral Reforms Committees:**
    - **Tarkunde Committee (1974–75):** Recommended lowering voting age to 18; multi-member ECI.
    - **Dinesh Goswami Committee (1990):** Comprehensive report on electoral reforms; recommended state funding of elections in kind; tightening anti-defection.
    - **Indrajit Gupta Committee (1998):** Recommended **State Funding of Elections** (in kind, not cash) to level the playing field.
    - **Law Commission 170th Report (1999):** Recommended banning political parties that do not observe internal democracy.
    - **J.S. Verma Committee (2013):** Recommended criminal law amendments on sexual offences and disqualification of candidates facing serious charges.
32. **Anti-Defection Law (Tenth Schedule, 52nd Amendment 1985):** Disqualification on ground of defection decided by **Speaker of Lok Sabha / Chairman of Rajya Sabha**; in *Kihoto Hollohan (1992)*, SC held Speaker's decision is subject to **Judicial Review**.
33. **Exit Polls Ban:** Section 126A of RPA 1951 prohibits conduct of exit polls and dissemination of their results during the period from the commencement of the first phase of polling until half an hour after closing of the final phase.

34. **Voting Rights of Prisoners (Section 62(5) of RPA 1951):** No person confined in prison (whether convicted or under-trial) or in lawful custody of police has the right to vote; exception: persons subjected to **preventive detention** CAN VOTE by postal ballot.
35. **Free Airtime for Political Parties:** Section 39A of RPA 1951 mandates allocation of equitable sharing of time on public broadcasting media (Doordarshan and All India Radio) to recognized political parties during elections.
36. **Part XV Article Coverage:** Articles 324 to 329A (Art. 329A was repealed by 44th Amd 1978).
37. **Single Electoral Roll Principle:** Article 325 eliminated the legacy of colonial separate electorates (introduced by 1909 and 1919 Acts), ensuring a single unified secular civic identity.
38. **RPA 1950 vs RPA 1951 Distinction:** RPA 1950 is about **allocation of seats and voter registration**; RPA 1951 is about the **conduct of elections, machinery, qualifications, and corrupt practices**.
39. **Lily Thomas Historic Impact:** Prior to 2013, politicians convicted of serious criminal offences used Section 8(4) appeals to retain legislative membership for years; *Lily Thomas* eliminated this buffer completely.
40. **PUCL 2013 Negative Voting Rationale:** Negative voting allows citizens to reject all candidates, signaling dissatisfaction to political parties and encouraging cleaner candidate selection.
41. **7-Second VVPAT Display Rule:** The paper slip is backlit and visible to the voter through a transparent window for exactly 7 seconds before being cut automatically and dropping into the sealed ballot container.
42. **MCC Non-Statutory Justification:** ECI has consistently opposed statutory status for the MCC because statutory enforcement through courts would lead to endless legal delays, whereas election processes require instantaneous executive correction under Article 324.
43. **First Phase of EVM Rollout:** EVMs were introduced nationwide in the **2004 Lok Sabha General Elections** across all polling stations in India for the first time.
44. **1/6th Valid Votes Deposit Forfeiture Threshold:** Candidates must secure more than 16.66% of valid votes polled to recover their security deposit; discourages non-serious candidates.
45. **Delimitation Commission Unchallengeable Status:** Article 329(a) and Section 10 of Delimitation Acts prohibit any court from examining the delimitation orders once notified in the Gazette of India.
46. **84th Amendment 2026 Freeze Logic:** Prevented States with successful population control policies (Southern States) from losing parliamentary representation relative to States with higher population growth (Northern States).
47. **TMC, NCP, CPI Demotion (2023):** ECI withdrew national party status from TMC, NCP, and CPI after reviewing their performance across the 2014 and 2019 Lok Sabha elections and subsequent assembly elections.
48. **Indrajit Gupta State Funding Committee (1998):** Emphasized that state funding should be provided strictly in kind (fuel, paper, microphone facilities, time slots) and restricted to recognized political parties.
49. **Electoral Bonds Judgment Key Rationale (2024):** Supreme Court observed that information about funding of political parties is essential for voters to exercise their freedom of speech and voting choice effectively under Art. 19(1)(a).
50. **Prisoner Franchise Exception:** While undertrials and convicted prisoners cannot vote under Section 62(5) RPA 1951, persons under **Preventive Detention** are explicitly allowed to exercise their vote via postal ballot under the Conduct of Election Rules.
51. **Constitutional Foundation of Elections (Part XV - Articles 324 to 329):** Article 324 vests superintendence, direction, and control of elections in Election Commission; Article 325 mandates a single common electoral roll for each constituency (no discrimination on grounds only of religion, race, caste, sex); Article 326 establishes **Universal Adult Suffrage**; Article 327 empowers Parliament to make election laws; Article 328 empowers State Legislatures; Article 329 bars courts from interfering in electoral matters.
52. **61st Constitutional Amendment Act, 1988 (Voting Age Reduction):** Amended Article 326 to reduce the minimum voting age for Lok Sabha and State Legislative Assembly elections from **21 years to 18 years**; passed during Rajiv Gandhi's government and came into force on **28 March 1989**.
53. **Representation of the People Act, 1950 (RPA 1950):** Provides for: (1) Allocation of seats in the House of the People and State Legislative Assemblies/Councils; (2) Delimitation of constituencies; (3) Qualifications of voters; (4) Preparation and revision of **electoral rolls**; and (5) Registration of electors.
54. **Representation of the People Act, 1951 (RPA 1951):** Regulates the actual **conduct of elections**; provides for: (1) Qualifications and disqualifications for membership of Parliament and State Legislatures; (2) Notification of elections; (3) Administrative machinery for conduct of elections; (4) Registration of political parties (Section 29A); (5) Corrupt practices and electoral offences; (6) Resolution of election disputes via **Election Petitions** in High Courts (Section 80).
55. **Disqualification on Criminal Conviction (Section 8 of RPA 1951):** Section 8(3) states that a person convicted of any offence and sentenced to imprisonment for **not less than 2 years** shall be disqualified from the date of conviction and continue to be disqualified for a further period of **6 years since release**; Supreme Court in *Lily Thomas v. Union of India (2013)* struck down Section 8(4) (which allowed sitting MPs/MLAs 3 months to appeal without disqualification), making disqualification **instantaneous on conviction**.
56. **Delimitation Commission of India (Article 82 & Article 170):** Parliament enacts a Delimitation Act after every decennial census; Delimitation Commissions have been set up 4 times: **1952, 1962, 1972, and 2002** (headed by retired SC judge Justice Kuldip Singh); **42nd CAA 1976** froze constituency allocation till 2000; **84th CAA 2001** froze total seats in Lok Sabha and Assemblies till **2026** based on 1971 census (readjustment of constituency boundaries allowed based on 2001 census via 87th CAA 2003).
57. **Electoral Reforms Committees (Complete Chronology):** (1) **V.M. Tarkunde Committee (1974–75)** (appointed by JP Narayan; recommended voting age 18, 3-member EC, election expenses limit); (2) **Dinesh Goswami Committee (1990)** (recommended EVMs, state funding in kind, ban on independent candidates without security deposit); (3) **K.P.S. Gill / N.N. Vohra Committee (1993)** (criminalization of politics); (4) **Indrajit Gupta Committee (1998)** (recommended state funding of elections in kind to recognized parties); (5) **Law Commission 170th Report (1999)** (electoral laws reform, ban on split defence in anti-defection); (6) **Venkatachaliah National Commission to Review Working of Constitution - NCRWC (2002)**; (7) **Second Administrative Reforms Commission - 2nd ARC (2007)** (ethics in governance).
58. **Electronic Voting Machines (EVM) Adoption Milestones:** First used experimentally in 1982 in **Paravur assembly constituency in Kerala**; used in select constituencies in 1998; completely deployed in all 543 Lok Sabha constituencies in the **2004 General Elections**; manufactured by two PSUs: Bharat Electronics Limited (BEL, Bangalore) and Electronics Corporation of India Limited (ECIL, Hyderabad).

59. **Voter Verifiable Paper Audit Trail (VVPAT):** Introduced to ensure transparency; first used in **Noksen constituency of Nagaland in September 2013**; 100% VVPAT deployment across all polling stations achieved in **2019 Lok Sabha General Elections**; slips remain visible behind glass for **7 seconds** before falling into sealed collection box.
60. **NOTA - None of the Above (Article 324 & Conduct of Elections Rules):** Introduced pursuant to Supreme Court judgment in *PUCL v. Union of India (2013)*; India became 14th country to introduce NOTA; symbol designed by National Institute of Design (NID); NOTA has only expressive value—even if NOTA receives highest votes, the candidate with next highest votes is declared elected.
61. **Model Code of Conduct (MCC) Nature & Evolution:** Originated in **Kerala assembly elections in 1960**; adopted by ECI for 1962 general elections; MCC has **NO statutory backing** (is a consensus code of ethical conduct agreed by political parties); enforceable from the **date of announcement of election schedule** by ECI until completion of election process; Supreme Court has consistently upheld ECI's authority to enforce MCC under plenary powers of Article 324.
62. **Anti-Defection Law (Tenth Schedule - 52nd CAA 1985 & 91st CAA 2003):** 52nd CAA 1985 added 10th Schedule; disqualifies an elected member if: (a) voluntarily gives up party membership, (b) votes contrary to party whip without prior permission and not condoned within 15 days, (c) independent member joins any political party after election, (d) nominated member joins a party after **6 months** of taking seat; **91st CAA 2003 omitted original 1/3rd 'split' exemption**, preserving only a **merger involving not less than two-thirds (66.6%) of legislators**.
63. **Electoral Bonds Scheme Struck Down (ADR v. UOI, 2024):** Introduced in Finance Act 2017 as interest-free bearer instruments; on **15 February 2024**, a unanimous 5-judge Constitution Bench headed by CJI D.Y. Chandrachud struck down the Electoral Bond scheme and amendments to RPA 1951, Companies Act 2013, and IT Act as **unconstitutional for violating citizens' Right to Information under Article 19(1)(a)**.
64. **Simultaneous Elections (One Nation One Election - Kovind Committee):** High-level Committee on Simultaneous Elections headed by former President **Ram Nath Kovind** submitted report in March 2024; recommended a 2-step process to sync Lok Sabha and State Legislative Assembly elections (Step 1) followed by local body elections within 100 days (Step 2) through constitutional amendments.
65. **Voter ID (EPIC) & National Voters' Day:** Elector's Photo Identity Card (EPIC) introduced in **1993** under CEC T.N. Seshan; **National Voters' Day** celebrated annually on **25 January** since 2011 to mark the founding day of Election Commission of India (established 25 January 1950).

Timeline / Chronology

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1950  — 25 January: Election Commission of India established (National Voters' Day)
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1950  — Representation of the People Act, 1950 enacted (allocation of seats & rolls)
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1951  — Representation of the People Act, 1951 enacted (conduct of elections & disputes)
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1951–52 — First General Elections held (Sukumar Sen served as first CEC)
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1960  — Model Code of Conduct (MCC) first introduced in Kerala Assembly elections
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1968  — Election Symbols (Reservation and Allotment) Order promulgated
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1982  — EVM used on an experimental basis in Paravur, Kerala
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1988  — 61st Amendment: Voting age reduced from 21 to 18 years under Article 326 (effective 1989)
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1989  — ECI expanded to multi-member body (1 CEC + 2 ECs) (made durable October 1993)
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2002  — *ADR Case*: SC mandates disclosure of criminal cases, assets, and education of candidates
  |
2004  — EVMs used across all polling stations nationwide in Lok Sabha elections
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2013  — *Lily Thomas Case*: Immediate disqualification of convicted MPs/MLAs (Sec. 8(4) struck down)
  |
2013  — *PUCL Case*: NOTA introduced on EVMs
  |
2013  — VVPAT used for the first time in Noksen bye-election, Nagaland
  |
2019  — VVPAT used 100% across all polling stations in Lok Sabha General Elections
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2023  — AAP recognized as 6th National Party; TMC, NCP, CPI lose national status
  |
2023  — CEC and Other ECs Appointment Act passed establishing new selection panel
  |
2024  — Electoral Bond Scheme, 2018 struck down by Supreme Court as unconstitutional
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📊 Quick Reference Grid

1. The Six Recognised National Parties of India (2024)

NATIONAL PARTY	ELECTION SYMBOL	YEAR FOUNDED	KEY FOUNDER / HISTORIC FIGURE	NATIONAL STATUS GROUND
Bharatiya Janata Party (BJP)	Lotus	1980	Atal Bihari Vajpayee, L.K. Advani	>2% LS seats from 3+ States; >6% votes
Indian National Congress (INC)	Hand	1885	A.O. Hume, W.C. Bonnerjee	>2% LS seats from 3+ States; >6% votes
CPI (Marxist) [CPI(M)]	Hammer, Sickle and Star	1964	E.M.S. Namboodiripad, A.K. Gopalan	State party in Kerala, WB, Tripura, Tamil Nadu (4 States)
Bahujan Samaj Party (BSP)	Elephant	1984	Kanshi Ram	>6% votes in 4+ States; State party in UP and others
National People's Party (NPP)	Book	2013	P.A. Sangma	Recognized State party in 4 NE States (Meghalaya, Manipur, Nagaland, Arunachal)
Aam Aadmi Party (AAP)	Broom	2012	Arvind Kejriwal	Recognized State party in 4 States/UTs (Delhi, Punjab, Goa, Gujarat)

2. Electoral Reform Committees Master Comparison

COMMITTEE	YEAR	KEY FOCUS AREA	DEFINITIVE LANDMARK RECOMMENDATION
Tarkunde Committee	1974–75	JP Movement / Civil Rights	Lowering voting age to 18; multi-member ECI
Dinesh Goswami Committee	1990	Comprehensive electoral reform	State assistance in kind; fresh delimitation; EVM introduction
Indrajit Gupta Committee	1998	Election finance	**State Funding of Elections** (strictly in kind, to recognized parties)
Law Commission 170th Report	1999	Internal party democracy	Mandatory internal party elections; list system debate
J.S. Verma Committee	2013	Electoral and sexual offences	Disqualification of candidates facing rape and sexual assault charges

🧠 Memory Anchors & Mnemonics

1. **Part XV Range:** - **Articles 324 to 329** (Election machinery to court bar)
2. **Deposit Forfeiture Threshold:** - **"One-Sixth" Rule (1/6th = 16.67%)** - Less than 1/6th of total valid votes = Security deposit lost to Treasury!
3. **The 6 National Parties Mnemonic:** - **"B-I-C-B-N-A"** - **B**JP, **I**NC, **C**PI(M), **B**SP, **N**PP, **A**AP.
4. **Instant Disqualification:** - Conviction of ≥ 2 years imprisonment = **Out immediately** (*Lily Thomas* rule) + **Barred for 6 years after release**!

Chapter 15: Emergency Provisions

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024	Multiple Assertion-Reason questions in UPPCS Prelims on Article 352 approval majorities and Article 360 application.	Tests understanding of 44th Amendment reforms vs original 1950 provisions.
1994 / Landmark	In *S.R. Bommai v. Union of India*, Supreme Court established that Article 356 proclamation is subject to judicial review, floor test is mandatory, and Legislative Assembly cannot be dissolved until Parliament approves the proclamation.	The definitive constitutional baseline on federalism and President's Rule.
1978 / 44th Amd	44th Amendment Act fundamentally overhauled emergency provisions: substituted "Armed Rebellion" for "Internal Disturbance", mandated written cabinet advice, and made Articles 20 and 21 non-suspendable.	Source of >60% of all emergency questions in state civil services.
1975–1977	3rd National Emergency imposed on ground of "Internal Disturbance" by President Fakhruddin Ali Ahmed on Indira Gandhi's sole advice; investigated by the Shah Commission (1977–78).	Historical background essential for understanding post-1978 constitutional amendments.
Ever / Historical	**Article 360 (Financial Emergency) has NEVER been declared in India** since the commencement of the Constitution in 1950.	Recurrent standard elimination option in UPSC and UPPSC Prelims.
UP Landmark	Uttar Pradesh has witnessed President's Rule under Article 356 **10 times** (highest along with Manipur).	UP-specific static-current GK lock.

Consolidated Must-Score Facts

1. **Part XVIII (Articles 352–360)** of the Constitution contains the Emergency Provisions, designed to enable the Union government to meet grave threats to national security, constitutional machinery, or financial stability; converts the federal structure into a **unitary system without formal constitutional amendment**.
2. Three Types of Emergencies: (1) **National Emergency (Article 352)**; (2) **President's Rule / State Emergency (Article 356)**; (3) **Financial Emergency (Article 360)**.
3. **Grounds for National Emergency (Article 352(1)):** President can proclaim National Emergency when the security of India or any part thereof is threatened by: (1) **War**; (2) **External Aggression**; or (3) **Armed Rebellion**.
4. **Armed Rebellion Substitution:** The term **'Armed Rebellion'** was substituted for the original phrase **'Internal Disturbance'** by the **44th Constitutional Amendment Act, 1978** to prevent misuse of emergency powers for political suppression.
5. **Cabinet Written Advice Requirement:** Under **Article 352(3)** (inserted by 44th Amd 1978), the President can proclaim a National Emergency ONLY after receiving a **written recommendation from the Union Cabinet** (Prime Minister + other Ministers of Cabinet rank); Prime Minister alone cannot advise the President.
6. **Parliamentary Approval for National Emergency:** A proclamation of National Emergency must be approved by **both Houses of Parliament within ONE MONTH** from the date of issue (reduced from 2 months by 44th Amd 1978).
7. If Lok Sabha is dissolved when proclamation is issued without approving it, the proclamation survives until **30 days from the first sitting of the reconstituted Lok Sabha**, provided Rajya Sabha approves it within the 1-month window.
8. **Majority Required for National Emergency:** Approval requires a **Special Majority** in each House: a majority of the **total membership** of that House AND a majority of not less than **two-thirds of the members present and voting** (Art. 352(6), introduced by 44th Amd 1978; originally simple majority).
9. **Duration of National Emergency:** Once approved, emergency remains in operation for **6 months**; can be extended indefinitely for periods of **6 months at a time**, with each extension requiring parliamentary approval by special majority.
10. **Revocation of National Emergency (Article 352(7) & (8)):** Revoked by President at any time without parliamentary approval; President **MUST revoke** if the **Lok Sabha passes a resolution disapproving its continuance by a Simple Majority**; 1/10th of Lok Sabha members can give written notice to summon a special sitting within 14 days to consider a disapproval resolution.
11. **Executive Effect of National Emergency (Article 353(a)):** Executive power of the Union extends to giving directions to any State as to the manner in which its executive power is to be exercised; State governments are NOT suspended or dismissed—they remain functional but come under complete executive control of the Union.
12. **Legislative Effect of National Emergency (Article 353(b)):** Parliament is empowered to make laws on any subject in the **State List (List II)**; state legislatures are NOT dissolved or suspended—they continue to make laws, but parliamentary laws override state laws in case of conflict (**Article 250**); state laws made by Parliament during emergency cease to operate **6 months** after emergency ends.
13. **Financial Effect of National Emergency (Article 354):** President can modify the constitutional distribution of revenues between Union and States (Arts. 268 to 279); modifications cannot extend beyond the financial year in which the emergency ceases.
14. **Extension of Legislative Life:** Life of **Lok Sabha** can be extended by Parliament by law for **one year at a time** for any length of time during emergency (Art. 83(2) proviso); cannot continue beyond **6 months** after emergency ends. (5th Lok Sabha 1971–77 was extended twice, each by 1 year). State Assembly lives can similarly be extended by 1 year at a time.
15. **Suspension of Fundamental Rights under Article 358:** When National Emergency is declared on grounds of **War or External Aggression** (External Emergency), the six democratic freedoms under **Article 19 are AUTOMATICALLY SUSPENDED**; no separate presidential order is required.
16. **44th Amendment Limit on Article 358:** Article 19 **CANNOT be suspended if National Emergency is declared on the ground of Armed Rebellion** (Internal Emergency); furthermore, only laws and executive actions having a direct nexus to the emergency are protected from judicial review under Art. 19.
17. **Suspension of Enforcement of Fundamental Rights under Article 359:** President is empowered to suspend the right to move any court for the enforcement of specified Fundamental Rights by presidential order; rights themselves are not suspended, only their **judicial remedy** is suspended; can apply

to entire country or any specified part.

18. **Non-Suspendable Rights under Article 359:** Under the **44th Amendment Act, 1978**, the President **CANNOT SUSPEND the right to move courts for the enforcement of ARTICLES 20 AND 21** under any circumstances (protection in respect of conviction for offences, and protection of life and personal liberty).
19. **President's Rule / State Emergency (Article 356):** Imposed when the President, on receipt of a report from the **Governor** of a State or otherwise, is satisfied that a situation has arisen in which the government of the State **cannot be carried on in accordance with the provisions of the Constitution**.
20. **President's Rule via Article 365:** Under **Article 365**, if any State fails to comply with or give effect to lawful directions of the Union Executive, it is lawful for the President to hold that a situation has arisen where the government cannot be carried on in accordance with the Constitution, triggering Article 356.
21. **Parliamentary Approval for President's Rule:** Must be approved by **both Houses of Parliament within TWO MONTHS** from date of issue; if Lok Sabha is dissolved, survives 30 days from reconstitution if RS approves within 2 months.
22. **Majority Required for President's Rule:** Approved by a **Simple Majority** of members present and voting in each House (Art. 356(3)).
23. **Duration of President's Rule:** Once approved, lasts for **6 months**; can be extended for 6 months at a time up to a **maximum of THREE YEARS** with parliamentary approval every 6 months.
24. **Conditions for Extension Beyond One Year (44th Amendment Act, 1978):** Beyond 1 year, President's Rule can be extended up to 3 years ONLY if: (1) A **National Emergency** is in operation in the whole of India or in the State; AND (2) The **Election Commission certifies** that holding general assembly elections is difficult.
25. **Executive Consequences of President's Rule (Article 356(1)(a)):** President dismisses the State Council of Ministers headed by Chief Minister; Governor administers the State on behalf of the President, assisted by the Chief Secretary or advisors appointed by the President.
26. **Legislative Consequences of President's Rule (Article 356(1)(b)):** State Legislative Assembly is either **suspended or dissolved**; powers of State Legislature are exercised by or under the authority of **Parliament**; Parliament can delegate law-making power to the President (**Article 357**).
27. Laws made by Parliament or President during President's Rule **remain in force even after President's Rule ends**, until repealed, altered, or amended by the State Legislature (amended by 44th Amd 1978; originally ceased after 1 year).
28. **High Court Powers Immunity (Article 356(1) proviso):** The President **CANNOT assume the powers of the State High Court** or suspend any constitutional provision relating to High Courts during President's Rule; High Court continues to function independently.
29. **Judicial Review of President's Rule (*S.R. Bommai v. Union of India, 1994*):** SC 9-judge bench ruled: (1) Proclamation of Art. 356 is subject to **Judicial Review** on grounds of mala fides or irrelevant material; (2) State Assembly cannot be dissolved until Parliament approves the proclamation (only suspended); (3) If proclamation is struck down, court can **restore the dismissed ministry and dissolved Assembly**; (4) **Floor test** in the Assembly is the only forum to test ministry's majority; (5) **Secularism is a Basic Feature** of the Constitution; anti-secular policies justify dismissal under Art. 356.
30. **First Use of Article 356:** First imposed in **Punjab in June 1951** due to Congress ministerial rift; **Uttar Pradesh** and **Manipur** have faced President's Rule the most times (**10 times each**).
31. **Financial Emergency (Article 360):** President can proclaim Financial Emergency if satisfied that a situation has arisen whereby the **financial stability or credit of India or any part of its territory is threatened**.
32. **Approval & Duration of Financial Emergency:** Must be approved by **both Houses within TWO MONTHS** by a **Simple Majority**; once approved, it **continues indefinitely** until revoked by the President; no repeated 6-month parliamentary approval is required; no maximum period prescribed.
33. **Consequences of Financial Emergency (Article 360(4)):** (1) Union can give directions to any State to observe financial canons; (2) State can be directed to reduce salaries and allowances of all or any class of persons in state service; (3) All Money Bills and Financial Bills passed by State Legislature can be **reserved for President's consideration**; (4) President can direct **reduction of salaries and allowances of Union servants, INCLUDING JUDGES OF THE SUPREME COURT AND HIGH COURTS**.
34. **Article 360 Usage Record:** Financial Emergency has **NEVER been declared in India** since the Constitution commenced in 1950, not even during the severe 1991 Balance of Payments crisis.
35. **Article 355 Duty of the Union:** Art. 355 places an affirmative constitutional duty on the Union to: (1) **Protect every State against external aggression and internal disturbance**; and (2) **Ensure that the government of every State is carried on in accordance with the provisions of the Constitution**.
36. **Judicial Review of Emergency Proclamations:** The **38th Amendment (1975)** made the President's satisfaction in issuing emergency proclamations under Arts. 352, 356, and 360 "final and conclusive" and immune from judicial review. The **44th Amendment (1978)** deleted these exclusionary clauses, restoring judicial review; in *Minerva Mills (1980)* and *Bommai (1994)*, SC affirmed that emergency proclamations can be challenged on grounds of mala fides or perversity.
37. **Three Proclamations of National Emergency in Indian History:** - **October 1962 – January 1968:** Chinese aggression in NEFA (Arunachal Pradesh); continued through 1965 war with Pakistan. - **December 1971 – March 1977:** Indo-Pak war leading to the creation of Bangladesh; declared on ground of external aggression. - **June 1975 – March 1977:** Proclaimed on ground of "Internal Disturbance" by President Fakhruddin Ali Ahmed; revoked in March 1977.
38. **Shah Commission of Inquiry (1977–78):** Chaired by former CJI J.C. Shah; investigated misuse of emergency powers, unlawful detentions, press censorship, and excesses during the 1975–77 emergency; its recommendations formed the foundation of the 44th Amendment Act, 1978.
39. **First State to Experience President's Rule: Punjab** in June 1951; followed by PEPSU in 1953 and Andhra in 1954.
40. **States with Maximum Article 356 Invocations: Uttar Pradesh (10 times)** and **Manipur (10 times)** have experienced the highest number of President's Rule proclamations in independent India.
41. **Longest Spell of President's Rule in a Single State: Punjab (1987–1992)** remained under President's Rule continuously for almost 5 years to combat militancy; required 4 constitutional amendments (59th, 64th, 67th, 68th Amendments) to relax the Article 356(5) 3-year maximum ceiling.
42. **Article 355 Operational Hierarchy:** Article 355 is the foundational duty article; Article 352 provides the coercive external defense power, Article 356 provides the constitutional breakdown power, and Article 365 provides the directional compliance enforcement power.
43. **Lok Sabha Extension Safeguard:** Under Article 83(2), parliamentary extension of Lok Sabha cannot exceed one year at a time; automatically lapses 6 months after emergency revocation; 5th Lok Sabha sat from 1971 to 1977 (extended twice).
44. **State Assembly Extension Safeguard:** State Assembly normal terms can be extended by Parliament by law for up to one year at a time during National Emergency; terminates within 6 months of revocation.

45. **Suspension of Fundamental Rights Origin:** Weimar Constitution of Germany provided the mechanism for suspension of fundamental rights during national emergencies; the overall emergency administrative framework is adapted from the Government of India Act, 1935.
46. **Article 358 vs Article 359 Core Asymmetry:** - **Art. 358:** Auto-suspends Article 19; external emergency only; applies pan-India; no separate order needed. - **Art. 359:** Suspends court remedies for specified rights (Arts. 20 & 21 immune); internal & external; can be localized; requires explicit Presidential order.
47. **S.R. Bommai Landmark Checklist:** (1) Judicial review available; (2) Assembly suspended, NOT dissolved, until Parliament ratifies; (3) Court can order restoration of assembly/government; (4) Floor test sole determinant of majority; (5) Secularism basic feature.
48. **Two Conditions for Post-1-Year President's Rule:** Under Art. 356(5), extension beyond 1 year requires: (1) Active National Emergency in whole/part of State; AND (2) ECI certificate that holding elections is not possible.
49. **Judicial Salary Reductions under Article 360:** During Financial Emergency, the President can direct salary reductions for all Union and State officials, uniquely including sitting **Supreme Court and High Court Judges** (otherwise constitutionally protected against adverse variation).
50. **Three Emergencies Approval & Majority Matrix:**
51. **Three Types of Emergencies (Part XVIII):** (1) **Article 352:** National Emergency due to War, External Aggression, or Armed Rebellion; (2) **Article 356:** President's Rule / State Emergency on failure of constitutional machinery in State (or Art. 365 failure to follow Centre's directions); (3) **Article 360:** Financial Emergency due to threat to financial stability/credit of India.
52. **Proclamation & Parliamentary Approval of National Emergency (Article 352):** Proclaimed by President ONLY upon the **written advice of the Union Cabinet** (word 'Cabinet' inserted in Art. 352 by 44th CAA 1978); must be approved by **both Houses of Parliament within 1 month** by a **Special Majority** (majority of total membership + not less than 2/3rd members present and voting); once approved, continues for **6 months**; can be extended indefinitely with approval every 6 months.
53. **Revocation of National Emergency (Article 352(8)):** President can revoke by subsequent proclamation; must be revoked if **Lok Sabha passes a resolution disapproving it by a Simple Majority**; if 1/10th members of Lok Sabha give written notice to Speaker (or President if LS not in session), a special sitting of LS must be convened within **14 days** to consider disapproving the proclamation.
54. **Effect on Fundamental Rights (Article 358 vs Article 359):** (1) **Article 358:** Automatically suspends the 6 Fundamental Rights under **Article 19**; operates ONLY during External Emergency (War or External Aggression), NOT during Armed Rebellion (44th CAA 1978); operates throughout India; (2) **Article 359:** Empowers President to suspend by order the **right to move any court for enforcement of specified FRs** (rights themselves not suspended, only remedy suspended); **44th CAA 1978 mandated that enforcement of Articles 20 and 21 CANNOT be suspended under any circumstances**.
55. **President's Rule Parliamentary Approval & Duration (Article 356):** Must be approved by **both Houses of Parliament within 2 months** by a **Simple Majority**; once approved, continues for 6 months; maximum normal period is **1 year**; can be extended beyond 1 year up to a maximum of **3 years** ONLY if two conditions are met (44th CAA): (a) National Emergency in operation in whole/part of India, and (b) Election Commission certifies that general elections to state assembly cannot be held.
56. **Landmark Ruling in S.R. Bommai v. Union of India (1994):** 9-judge bench laid down comprehensive guidelines on Article 356: (a) Proclamation of President's Rule is subject to **Judicial Review** on grounds of malafide; (b) Court can restore dissolved assembly if proclamation is struck down; (c) State Assembly should NOT be dissolved until Parliament approves the proclamation (only suspended animation); (d) Floor test on the floor of the House is the **sole constitutional test for proving majority** of ministry; (e) Secularism is part of basic structure, and state government acting against secularism can be dismissed.
57. **Financial Emergency (Article 360):** Proclaimed if President is satisfied that financial stability or credit of India or any part is threatened; must be approved by Parliament within **2 months by a Simple Majority**; continues indefinitely until revoked by President (no periodic parliamentary approval needed); during Financial Emergency, President may order reduction of salaries and allowances of all civil servants including **Judges of the Supreme Court and High Courts**; **Financial Emergency has NEVER been declared in India so far**.
58. **Three Occasions of National Emergency in India:** (1) October 1962 to January 1968 (Chinese Aggression / 1965 Indo-Pak war); (2) December 1971 to March 1977 (Indo-Pak War / Bangladesh Liberation); (3) June 1975 to March 1977 (proclaimed on grounds of 'internal disturbance' by Fakhruddin Ali Ahmed on Indira Gandhi's advice).
59. **Article 355 (Duty of the Union):** Declares it shall be the duty of the Union to **protect every State against external aggression and internal disturbance** and to ensure that government of every State is carried on in accordance with provisions of the Constitution.
60. **Article 365 (Sanction Behind Union Directions):** Provides that where any State has failed to comply with, or to give effect to, any directions given in the exercise of the executive power of the Union, it shall be lawful for the President to hold that a situation has arisen in which the government of the State **cannot be carried on in accordance with the provisions of this Constitution (triggering Art. 356)**. - **National (352):** Approved within **1 Month** by **Special Majority** (Majority total + 2/3rd present/voting). - **State / President's Rule (356):** Approved within **2 Months** by **Simple Majority**. - **Financial (360):** Approved within **2 Months** by **Simple Majority**; no periodic renewal required.

Timeline / Chronology

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1950  ── Constitution enters into force with Articles 352, 356, 360 in Part XVIII
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1951  ── First invocation of Article 356: Punjab (June 1951)
  │
1962  ── First National Emergency proclaimed (26 Oct 1962): Chinese invasion of NEFA
  │
1968  ── First National Emergency revoked (10 Jan 1968)
  │
1971  ── Second National Emergency proclaimed (3 Dec 1971): Indo-Pak War / Bangladesh Liberation
  │
1975  ── 38th Amendment: Made President's satisfaction under 352/356/360 non-justiciable (deleted in 1978)
  │
1975  ── Third National Emergency proclaimed (25 June 1975): "Internal Disturbance"
  │
1977  ── Both 1971 and 1975 Emergencies revoked (21 March 1977); Shah Commission instituted
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1978  — 44th Constitutional Amendment Act:
        • "Internal Disturbance" replaced by "Armed Rebellion"
        • Written advice of Union Cabinet mandated (Art. 352(3))
        • Approval window reduced from 2 months to 1 month
        • Special majority mandated for approval and 6-month extensions
        • Lok Sabha disapproval mechanism introduced (Art. 352(7))
        • Articles 20 and 21 made non-suspendable under Article 359
  |
1980  — *Minerva Mills v. Union of India*: SC reaffirms emergency proclamations subject to judicial review
  |
1994  — *S.R. Bommai v. Union of India*: Landmark 9-judge bench curbs misuse of Article 356
  |
2024  — Article 360 remains the only emergency provision NEVER invoked in independent India
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📊 Quick Reference Grid

1. Comparative Matrix of the Three Emergencies

FEATURE	NATIONAL EMERGENCY (ART. 352)	PRESIDENT'S RULE (ART. 356)	FINANCIAL EMERGENCY (ART. 360)
Grounds of Declaration	War, External Aggression, or Armed Rebellion	Failure of constitutional machinery in State (Art. 356 or Art. 365)	Threat to financial stability or credit of India
Written Cabinet Advice?	**MANDATORY** (Art. 352(3))	Not constitutionally required (President on advice of CoM)	Not constitutionally required
Parliamentary Approval Window	Within **ONE MONTH**	Within **TWO MONTHS**	Within **TWO MONTHS**
Majority Required for Approval	**Special Majority** (Majority total + 2/3rd present/voting)	**Simple Majority** (Majority present/voting)	**Simple Majority** (Majority present/voting)
Period of Operation (One Approval)	6 months	6 months	**Indefinite** (No periodic renewal needed)
Maximum Permissible Duration	**Indefinite** (Renewable every 6 months)	**3 Years** (Beyond 1 yr requires Art. 356(5) conditions)	**No Maximum Limit**
Effect on State Government	State Govt continues, under Union executive control	State Govt **dismissed**; Governor runs administration	State Govt continues, obeys Union financial directions
Effect on State Legislature	Continues; Parliament gets concurrent power (Art. 250)	Assembly **suspended or dissolved**; Parliament legislates	Continues; Money Bills reserved for President
Effect on Fundamental Rights	Art. 19 suspended (358); other FR remedies suspended (359, except 20 & 21)	**NO EFFECT** on Fundamental Rights	**NO EFFECT** on Fundamental Rights
Revocation Mechanism	President revokes, or LS disapproves by Simple Majority	Revoked by President at any time	Revoked by President at any time
Usage Record in India	3 times (1962, 1971, 1975)	Imposed >125 times across States	**NEVER declared**

2. Article 358 vs Article 359 Comparative Table

FEATURE	ARTICLE 358	ARTICLE 359
Fundamental Rights Covered	Confined **ONLY to Article 19**	Covers **specified Fundamental Rights** (excluding Arts. 20 & 21)
Operation Mechanism	**Automatic suspension**; no order needed	Requires a **Presidential Order** specifying rights and duration
Ground of Emergency	Operates ONLY during **External Emergency** (War/External Aggression)	Operates during **both External and Internal** (Armed Rebellion) emergencies
Territorial Scope	Extends automatically to the **entire country**	Can extend to the **entire country or any specified part/State**
Nature of Suspension	Rights under Art. 19 themselves are suspended	Only the **remedy to move courts** is suspended; rights remain intact
Non-Suspendable Clause	N/A (Art. 19 cannot suspend during Armed Rebellion)	Enforcement of **Articles 20 and 21 CANNOT BE SUSPENDED**

🧠 Memory Anchors & Mnemonics

1. **The Approval & Majority Ladder:** - **Art. 352 (National): 1 Month → Special Majority** (Highest stakes = Shortest window + Hardest majority). - **Art. 356 (State): 2 Months → Simple Majority**. - **Art. 360 (Financial): 2 Months → Simple Majority**.
2. **The Non-Suspendable Twin Shield:** - **Article 20 + Article 21 = UNTOUCHABLE!** - No war, no invasion, no rebellion can take away protection against double jeopardy/self-incrimination (Art. 20) or life and personal liberty (Art. 21).
3. **The 352-356-360 Plus-Four Rule:** - 352 + 4 = 356 - 356 + 4 = 360

4. **Duration Cap Formula:** - National Emergency (352): **No Ceiling** (6 months × ∞) - President's Rule (356): **3 Years Maximum** (Normal ceiling: 1 year without Art. 356(5) triggers) - Financial Emergency (360): **No Ceiling, No Periodic Renewal** (runs until cancelled)

Chapter 16: Constitutional Amendments

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2024–2025	Multiple petitions challenging the addition of the words **'Socialist'** and **'Secular'** to the Preamble via the 42nd Amendment Act, 1976 were considered by the Supreme Court; SC affirmed that secularism and socialism are intrinsic to Indian constitutional ethos.	Recurrent Prelims question on the 42nd Amendment's changes to the Preamble.
2023	**106th Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam)** passed by Parliament in a special session; provides 33% reservation for women in Lok Sabha, State Assemblies, and Delhi Assembly.	Landmark amendment; will become operative only after the subsequent census and delimitation.
2022	In *Janhit Abhiyan v. Union of India*, a 5-judge Constitution Bench of the Supreme Court upheld (3:2) the validity of the **103rd Amendment Act, 2019** granting 10% EWS reservation.	Affirms that economic criteria alone can be a valid basis for affirmative action and does not violate Basic Structure.
2021	In *Union of India v. Rajendra N. Shah*, the Supreme Court struck down provisions of the **97th Amendment Act, 2011** (Part IXB) relating to intra-state co-operative societies for lack of ratification by State legislatures under Art. 368(2).	High-yield test of the federal amendment pathway requiring State ratification.
2021	**105th Constitutional Amendment Act, 2021** restored the power of State Governments to identify and notify their own lists of Socially and Educationally Backward Classes (SEBCs/OBCs).	Corrected the statutory anomaly resulting from the 102nd Amendment interpretation.

Consolidated Must-Score Facts

1. **Part XX (Article 368)** governs the amendment of the Constitution; Parliament exercises **Constituent Power** (distinct from ordinary legislative power) when amending the Constitution.
2. An amendment of the Constitution can be initiated **ONLY by the introduction of a Bill in either House of Parliament**; a State Legislature has **NO POWER** to initiate a constitutional amendment.
3. A Constitutional Amendment Bill can be introduced either by a **Minister or a Private Member**, and does **NOT require prior recommendation of the President**.
4. **No Joint Sitting Provision:** Each House must pass the Constitutional Amendment Bill separately; there is **NO PROVISION FOR A JOINT SITTING** of both Houses under Article 108 to resolve a deadlock on a Constitutional Amendment Bill.
5. **Assent is Mandatory:** Under **Article 368(2)** (amended by the 24th Amendment Act, 1971), the President **MUST GIVE HIS ASSENT** to a Constitutional Amendment Bill; he can neither withhold assent nor return the bill for reconsideration.
6. **Three Classes of Constitutional Amendments:** - (1) By **Simple Majority of Parliament** (outside Article 368). - (2) By **Special Majority of Parliament** (under Article 368(2)). - (3) By **Special Majority of Parliament + Ratification by not less than half the States** by simple majority (under Article 368(2) proviso).
7. **Amendments by Simple Majority (Outside Article 368):** Admission/establishment of new States, formation of new States and alteration of boundaries/names (Articles 2, 3, 4); abolition or creation of Legislative Councils in States (Article 169); Second Schedule salaries; quorum in Parliament; citizenship (Part II); use of English language; Fifth and Sixth Schedule administration.
8. **Special Majority Requirement (Article 368(2)):** Requires: (1) A majority of the **total membership** of the House (more than 50% of total seats regardless of vacancies); AND (2) A majority of not less than **two-thirds of the members of that House present and voting**.
9. Provisions amended by **Special Majority alone**: **Fundamental Rights** (Part III), **Directive Principles of State Policy** (Part IV), and all other provisions not covered under simple majority or federal proviso.
10. **Federal Provisions Requiring State Ratification:** (1) Election of the President and its manner (Articles 54 & 55); (2) Extent of executive power of Union and States (Articles 73 & 162); (3) Supreme Court and High Courts (Articles 124–147, 214–232); (4) Distribution of legislative powers between Union and States (Seventh Schedule); (5) Representation of States in Parliament (Fourth Schedule); (6) Provisions of **Article 368 itself**.
11. **State Ratification Mechanism:** Requires ratification by resolutions passed by the legislatures of **not less than half the States by a SIMPLE MAJORITY** of members present and voting; no time limit is prescribed by the Constitution within which States must ratify.
12. **Basic Structure Doctrine (*Kesavananda Bharati v. State of Kerala, 24 April 1973*):** A 13-judge bench ruled (7:6) that while Parliament's constituent power under Article 368 is wide enough to amend any part of the Constitution (including Fundamental Rights), it **CANNOT alter the 'Basic Structure' or foundational framework** of the Constitution.
13. **Elements of Basic Structure:** Supremacy of the Constitution, Republican and Democratic form of government, Secularism, Separation of powers, Federal character, Judicial review, Rule of law, Free and fair elections, Independence of judiciary, Harmony and balance between Fundamental Rights and DPSPs, Limited amending power of Parliament.
14. **First Constitutional Amendment Act, 1951:** Inserted **Articles 31A and 31B** and the **Ninth Schedule** to protect land reform laws from judicial challenge on grounds of violation of Fundamental Rights; added three new grounds of restriction to freedom of speech under Art. 19(2): 'public order', 'friendly relations with foreign states', and 'incitement to an offence'.
15. **Seventh Constitutional Amendment Act, 1956:** Implemented the **States Reorganisation Commission** recommendations; abolished the four-fold classification of States (Part A, B, C, D); created **14 States and 6 Union Territories**; abolished the office of Rajpramukh; provided for appointment of same person as Governor for 2 or more States (Art. 153); allowed common High Court for 2 or more States (Art. 231).
16. **Twenty-Fourth Constitutional Amendment Act, 1971:** Enacted to overcome the *Golaknath (1967)* judgment; affirmed that Parliament has power to abridge Fundamental Rights under Article 368; made Presidential assent **mandatory** for amendment bills; declared that Article 13 does not apply to amendments under Article 368.

17. **Twenty-Fifth Constitutional Amendment Act, 1971:** Substituted the word 'amount' for 'compensation' in Article 31(2); inserted **Article 31C** giving priority to Directive Principles under **Article 39(b) and 39(c)** over Fundamental Rights under Articles 14 and 19.
18. **Thirty-Ninth Constitutional Amendment Act, 1975:** Placed the election of President, Vice-President, Prime Minister, and Speaker beyond judicial review; in *Indira Nehru Gandhi v. Raj Narain (1975)*, SC struck down the provision shielding PM's election as violative of basic structure (free and fair elections).
19. **Forty-Second Constitutional Amendment Act, 1976 ("Mini-Constitution"):** Voluminous amendment enacted during National Emergency based on the **Swaran Singh Committee** recommendations:
    - Added words **'Socialist'**, **'Secular'**, and **'Integrity'** to the Preamble.
    - Added **Part IVA (Article 51A)** containing 10 Fundamental Duties.
    - Added **Part XIVA (Articles 323A–323B)** for Administrative Tribunals.
    - Added three new DPSPs: **Article 39A** (Equal justice & free legal aid), **Article 43A** (Workers' participation in management), **Article 48A** (Environment & wildlife protection).
    - Shifted 5 subjects from State List to **Concurrent List**: Education, Forests, Weights & Measures, Protection of wild animals and birds, and Administration of justice (except SC/HC).
    - Froze Lok Sabha and State Assembly seats at the **1971 Census** level until 2000.
    - Extended the term of Lok Sabha and State Assemblies from **5 years to 6 years** (reversed by 44th Amd).
    - Inserted Articles 368(4) and 368(5) to bar judicial review of amendments (later invalidated in *Minerva Mills, 1980*).
20. **Forty-Fourth Constitutional Amendment Act, 1978:** Enacted by the Janata Party government to neutralize distortions introduced by the 42nd Amendment:
    - Restored normal **5-year term** of Lok Sabha and State Legislative Assemblies.
    - Deleted **Right to Property** from Fundamental Rights (Art. 19(1)(f) and Art. 31) and made it a constitutional right under **Article 300A** in Part XII.
    - Replaced 'Internal Disturbance' with **'Armed Rebellion'** in Article 352.
    - Mandated **written recommendation of Union Cabinet** for proclaiming National Emergency.
    - Reduced parliamentary approval period for National Emergency from 2 months to **1 month**, requiring **Special Majority**.
    - Mandated that enforcement of **Articles 20 and 21 CANNOT BE SUSPENDED** during emergency under Article 359.
    - Restored Supreme Court's power to resolve disputes regarding election of President and Vice-President (Art. 71).
21. **Fifty-Second Constitutional Amendment Act, 1985:** Added the **Tenth Schedule (Anti-Defection Law)**; disqualified MPs and MLAs who voluntarily give up party membership or vote contrary to party whip; exempted splits (1/3rd members) and mergers (2/3rd members).
22. **Sixty-First Constitutional Amendment Act, 1988:** Amended **Article 326** to lower the voting age for elections to Lok Sabha and State Assemblies from **21 years to 18 years** (effective 28 March 1989).
23. **Sixty-Ninth Constitutional Amendment Act, 1991:** Inserted Articles **239AA and 239AB**; conferred special status on Union Territory of Delhi, redesignating it as the **National Capital Territory (NCT) of Delhi** with a 70-member Legislative Assembly and 7-member Council of Ministers (capped at 10% of Assembly strength).
24. **Seventy-Third Constitutional Amendment Act, 1992:** Inserted **Part IX (Articles 243 to 243-O)** and the **Eleventh Schedule** (29 functional subjects); granted constitutional status to Panchayati Raj Institutions (Gram Sabha, 3-tier structure, mandatory elections, State Finance Commission, State Election Commission, 1/3rd reservation for women).
25. **Seventy-Fourth Constitutional Amendment Act, 1992:** Inserted **Part IXA (Articles 243P to 243ZG)** and the **Twelfth Schedule** (18 functional subjects); granted constitutional status to Urban Local Bodies (Municipalities, Wards Committees, District Planning Committees).
26. **Eighty-Fourth Constitutional Amendment Act, 2001:** Extended the freeze on the total number of seats in Lok Sabha and State Legislative Assemblies at the 1971 census level for another 25 years (until the **first census after 2026**).
27. **Eighty-Sixth Constitutional Amendment Act, 2002:** The landmark Education Amendment:
    - Inserted **Article 21A** making free and compulsory education for children aged 6 to 14 years a Fundamental Right.
    - Substituted **Article 45** (DPSP) to provide early childhood care and education for all children until age 6.
    - Added the **11th Fundamental Duty** under **Article 51A(k)** for parent/guardian to provide education to children aged 6–14 years.
28. **Eighty-Ninth Constitutional Amendment Act, 2003:** Bifurcated the combined National Commission for SCs and STs into two separate constitutional bodies: the **National Commission for Scheduled Castes (Article 338)** and the **National Commission for Scheduled Tribes (Article 338A)**.
29. **Ninety-First Constitutional Amendment Act, 2003:** Limited the size of the Council of Ministers:
    - Total number of ministers including PM shall not exceed **15% of the total strength of Lok Sabha** (Art. 75(1A)).
    - In States, total ministers including CM shall not exceed **15% of Legislative Assembly strength**, with a minimum of **12 ministers** (Art. 164(1A)).
    - Completely deleted the **one-third split exemption** under the Tenth Schedule.
30. **Ninety-Seventh Constitutional Amendment Act, 2011:** Added **Article 19(1)(c)** right to form co-operative societies, inserted **Article 43B** (DPSP for promotion of co-operatives), and added **Part IXB (Articles 243ZH to 243ZT)**. Note: Part IXB was partially struck down in *Rajendra N. Shah (2021)* for single-State co-ops.
31. **Ninety-Ninth Constitutional Amendment Act, 2014:** Established the **National Judicial Appointments Commission (NJAC)** to replace the SC Collegium; struck down in its entirety as unconstitutional and violative of Basic Structure by a 5-judge bench in the *Fourth Judges Case (2015)*.
32. **One Hundredth Constitutional Amendment Act, 2015:** Operationalized the 1974 **Land Boundary Agreement (LBA)** with Bangladesh; transferred 111 Indian enclaves to Bangladesh and received 51 Bangladeshi enclaves in India; amended First Schedule.
33. **One Hundred and First Constitutional Amendment Act, 2016:** Introduced the **Goods and Services Tax (GST)**; inserted **Article 246A** (special power to make GST laws), **Article 269A** (IGST levy), and **Article 279A** (GST Council); came into effect on **1 July 2017**.

34. **One Hundred and Second Constitutional Amendment Act, 2018:** Conferred constitutional status on the **National Commission for Backward Classes (NCBC)** by inserting **Article 338B**; inserted **Article 342A** empowering the President to specify Socially and Educationally Backward Classes.
35. **One Hundred and Third Constitutional Amendment Act, 2019:** Provided **10% reservation for Economically Weaker Sections (EWS)** in admissions to educational institutions and public employment by inserting **Articles 15(6) and 16(6)**.
36. **Judicial Ladder of Basic Structure Evolution:**
    - *Shankari Prasad (1951)* → Parliament has unlimited amending power over FRs under Art. 368.
    - *Sajjan Singh (1965)* → Reaffirmed *Shankari Prasad*.
    - *I.C. Golaknath (1967)* → 11-judge bench ruled FRs cannot be abridged by Parliament; Art. 13 applies to Art. 368.
    - **24th Amendment (1971)** → Declared Art. 13 inapplicable to Art. 368; made presidential assent mandatory.
    - *Kesavananda Bharati (1973)* → 13-judge bench overruled *Golaknath*, upheld 24th Amendment, and formulated **Basic Structure Doctrine**.
37. **Minerva Mills Affirmation of Limited Amending Power (1980):** SC struck down Section 4 and Section 55 of the 42nd Amendment; held that "a limited amending power is one of the basic features of the Indian Constitution, and therefore, the limitations on that power cannot be destroyed."
38. **Prospective Overruling Doctrine:** First formulated in Indian constitutional jurisprudence in the *Golaknath (1967)* case, holding that the judicial ruling would take effect only prospectively to protect existing land tenure legislation.
39. **First Amendment Reasonable Restrictions:** Added 3 grounds of restriction to Article 19(1)(a) freedom of speech: (1) **Public order**; (2) **Friendly relations with foreign States**; (3) **Incitement to an offence**; also added the word 'reasonable' before restrictions in Art. 19(2).
40. **Seventh Amendment Territorial Reorganization:** Enacted pursuant to the States Reorganisation Act, 1956; replaced classification of States (Part A, B, C, D) with 14 States and 6 UTs; created new High Courts; inserted **Article 350A** (mother tongue primary education) and **Article 350B** (Special Officer for Linguistic Minorities).
41. **Twenty-Fifth Amendment and Article 31C:** Inserted Article 31C providing that laws giving effect to DPSPs under Article 39(b) and (c) cannot be declared void for violating Arts. 14, 19, or 31; in *Kesavananda Bharati (1973)*, the first part was upheld but the second part ("no law containing a declaration shall be questioned in any court") was struck down.
42. **Thirty-Ninth Amendment Struck Down:** Inserted Article 329A placing elections of PM and Speaker beyond judicial review; struck down in *Indira Gandhi v. Raj Narain (1975)*—the first time a constitutional amendment was struck down under the Basic Structure Doctrine.
43. **Tenth Schedule 52nd Amendment Ground Rules:** An MP or MLA is disqualified if he voluntarily gives up party membership, or votes/abstains contrary to party direction without prior permission and without condonation within 15 days; nominated members disqualified if they join a party after 6 months; independent members disqualified if they join ANY party after election.
44. **Sixty-First Amendment Adult Franchise:** Amended Article 326; reduced voting age from 21 to 18; passed under the Rajiv Gandhi ministry; expanded the democratic base by over 50 million young voters in 1989.
45. **Sixty-Ninth Amendment Structure for Delhi:** Created Legislative Assembly for Delhi with powers to legislate on State and Concurrent Lists EXCEPT: (1) **Public Order**; (2) **Police**; (3) **Land**. Council of Ministers capped at **10%** of total assembly membership (7 ministers including CM).
46. **Eighty-Sixth Amendment Trifecta:** Operates across Part III (Art. 21A), Part IV (Art. 45), and Part IVA (Art. 51A(k)); enacted in 2002; followed by the Right to Children to Free and Compulsory Education (RTE) Act, 2009 (which came into force on **1 April 2010**).
47. **Ninety-First Amendment Ministerial Discipline:** 15% ceiling applies to Lok Sabha / Legislative Assembly; disqualified defector cannot be appointed minister or hold any remunerative political post during remaining term until re-elected.
48. **Fourth Judges Case (2015) and NJAC Nullification:** SC 5-judge bench (4:1) struck down the 99th Amendment Act and NJAC Act, 2014; held that the primacy of the judiciary in appointment of judges is an essential part of the Basic Structure; revived the Collegium system.
49. **One Hundred and Fourth Constitutional Amendment Act, 2019:** Amended **Article 334**; extended reservation of seats for Scheduled Castes and Scheduled Tribes in Lok Sabha and State Assemblies for another 10 years (up to **25 January 2030**); **ceased the provision of nominated seats for Anglo-Indians** in Lok Sabha (Art. 331) and State Assemblies (Art. 333).
50. **One Hundred and Sixth Constitutional Amendment Act, 2023:** Inserts Article 330A (LS reservation), Article 332A (Assembly reservation), and Article 239AA(2)(b) (Delhi Assembly reservation); grants **33% reservation for women** for a period of 15 years; takes effect after the first census conducted after commencement followed by delimitation.
51. **Article 368 Dual Classification of Amendments:** Article 368 provides two explicit mechanisms: (1) **Special Majority of Parliament** (majority of total membership of each House + not less than 2/3rd members present and voting); (2) **Special Majority of Parliament plus Ratification by Legislatures of not less than half the States by Simple Majority** (required for amending federal provisions).
52. **Federal Provisions Requiring State Ratification under Article 368(2):** (1) Election of the President (Art. 54 & 55); (2) Extent of executive power of Union and States (Art. 73 & 162); (3) Supreme Court and High Courts (Art. 241, Chapter IV of Part V, Chapter V of Part VI); (4) Distribution of legislative powers between Union and States (7th Schedule); (5) Representation of States in Parliament (4th Schedule); (6) The provisions of Article 368 itself.
53. **Amendments by Simple Majority Outside Article 368:** Several constitutional changes are enacted by ordinary law and specifically declared **NOT to be amendments under Article 368**: (a) Admission or creation of new states (Art. 2, 3, 4); (b) Abolition or creation of State Legislative Councils (Art. 169); (c) Second Schedule salaries; (d) Quorum in Parliament; (e) Use of official language; (f) Delimitation of constituencies; (g) Citizenship (Part II); (h) Fifth and Sixth Schedule administration.
54. **Rules Governing Amendment Bills:** Can be introduced in **either House of Parliament** (Lok Sabha or Rajya Sabha); does NOT require prior recommendation of President; can be introduced by a minister or private member; must be passed by **each House separately by special majority**; there is **NO provision for a Joint Sitting** under Article 108 in case of disagreement between the two Houses; President **MUST give assent** (24th CAA 1971 made presidential assent mandatory).
55. **First Constitutional Amendment Act, 1951:** Enacted by Provisional Parliament; inserted **Articles 31A and 31B** and the **Ninth Schedule** to protect land agrarian reform laws from fundamental rights challenge; added three new grounds of restriction to free speech in Art. 19(2): public order, friendly relations with foreign states, incitement to an offence.
56. **Seventh Constitutional Amendment Act, 1956:** Implemented State Reorganisation Commission (Fazl Ali Commission) recommendations; abolished old Part A, B, C, D state classifications; created **14 States and 6 Union Territories**; provided for appointment of same person as Governor of two or more states;

provided for establishment of Common High Courts; inserted Article 350A (primary education in mother tongue) and Article 350B (Special Officer for Linguistic Minorities).

57. **Twenty-Fourth Constitutional Amendment Act, 1971:** Enacted in response to *Golaknath (1967)*; affirmed Parliament's power to amend any part of the Constitution including Fundamental Rights under Article 368; made presidential assent to constitutional amendment bills mandatory; inserted Article 13(4) and 368(3) declaring Art. 13 inapplicable to Art. 368 amendments.
58. **Forty-Second Constitutional Amendment Act, 1976 (Mini-Constitution):** Enacted during National Emergency under Indira Gandhi on Swaran Singh Committee recommendations; added words **'Socialist', 'Secular', and 'Integrity'** to Preamble; added **Part IV-A (Fundamental Duties - Art. 51A)**; added **Part XIV-A (Tribunals - Art. 323A/323B)**; transferred 5 subjects from State List to Concurrent List (Education, Forests, Weights & Measures, Protection of wild animals, Administration of justice); added DPSPs Articles 39A, 43A, 48A; extended tenure of LS and Assemblies from 5 to 6 years (reversed by 44th); made President bound by cabinet advice (Art. 74).
59. **Forty-Fourth Constitutional Amendment Act, 1978 (Emergency Rectification):** Enacted by Janata Party govt under Morarji Desai to undo 42nd Amendment distortions; replaced 'internal disturbance' with **'armed rebellion'** as ground for National Emergency in Article 352; mandated that President can proclaim Emergency ONLY upon receiving **written recommendation of Union Cabinet**; mandated parliamentary approval within 1 month by special majority; restored 5-year tenure of Lok Sabha and Assemblies; deleted Right to Property as Fundamental Right (omitted Art. 19(1)(f) and Art. 31), converting it into a legal right under **Article 300A** in Part XII; provided that Fundamental Rights under **Articles 20 and 21 CANNOT be suspended even during National Emergency**.
60. **Fifty-Second Constitutional Amendment Act, 1985 (Anti-Defection):** Added the **Tenth Schedule** and amended Articles 101, 102, 190, 191; laid down grounds of disqualification for defection of legislators; recognized political parties for first time in constitutional text.
61. **Sixty-First Constitutional Amendment Act, 1988 (Voting Age 18):** Reduced minimum voting age from 21 years to 18 years for elections to Lok Sabha and State Legislative Assemblies by amending Article 326.
62. **Sixty-Ninth Constitutional Amendment Act, 1991 (NCT of Delhi):** Conferred special status on Union Territory of Delhi, redesignating it as the **National Capital Territory of Delhi (Article 239AA)** with a 70-member Legislative Assembly and a 7-member Council of Ministers headed by Chief Minister (size of CoM fixed at 10% of total assembly strength).
63. **Eighty-Sixth Constitutional Amendment Act, 2002 (Right to Education):** Inserted **Article 21A** making free and compulsory education for children aged 6 to 14 years a Fundamental Right; amended Article 45 DPSP to focus on early childhood care below 6 years; added 11th Fundamental Duty under **Article 51A(k)**.
64. **Ninety-First Constitutional Amendment Act, 2003 (CoM Size & Anti-Defection):** Capped size of Union and State Council of Ministers at **15% of total membership of Lok Sabha / State Assembly** (minimum 12 ministers in States); eliminated the 1/3rd split exemption in Tenth Schedule anti-defection law; barred defecting members from holding remunerative political posts.
65. **Ninety-Ninth Constitutional Amendment Act, 2014 (NJAC - Struck Down):** Established National Judicial Appointments Commission to replace SC Collegium; struck down in its entirety as unconstitutional and void by Supreme Court in October 2015 for violating judicial independence.
66. **One Hundredth Constitutional Amendment Act, 2015 (Land Boundary Agreement):** Operationalized the 1974 India-Bangladesh Land Boundary Agreement; transferred 111 enclaves to Bangladesh and received 51 enclaves from Bangladesh; amended First Schedule regarding territories of Assam, West Bengal, Meghalaya, and Tripura.
67. **One Hundred and First Constitutional Amendment Act, 2016 (Goods and Services Tax - GST):** Introduced comprehensive indirect tax regime (GST) from 1 July 2017; inserted **Article 246A** (special power to legislate on GST), **Article 269A** (levy and collection of IGST on inter-state supply), and **Article 279A** (GST Council); omitted Article 268A.
68. **One Hundred and Second Constitutional Amendment Act, 2018 (NCBC):** Granted constitutional status to the **National Commission for Backward Classes (Article 338B)**; inserted Article 342A empowering President to notify Socially and Educationally Backward Classes (SEBCs).
69. **One Hundred and Third Constitutional Amendment Act, 2019 (10% EWS Reservation):** Provided up to **10% reservation for Economically Weaker Sections (EWS)** in educational institutions and public employment; inserted **Article 15(6) and Article 16(6)**; upheld by Supreme Court in *Janhit Abhiyan v. Union of India (2022)*.
70. **One Hundred and Fourth Constitutional Amendment Act, 2020:** Extended reservation of seats for Scheduled Castes and Scheduled Tribes in Lok Sabha and State Legislative Assemblies for another 10 years (up to 25 January 2030) by amending Article 334; **discontinued nomination of Anglo-Indian members** in Lok Sabha (Art. 331) and State Assemblies (Art. 333).
71. **One Hundred and Fifth Constitutional Amendment Act, 2021 (State OBC Identification):** Clarified Article 342A to restore the power of State Governments and UTs to directly identify and maintain their own state lists of Socially and Educationally Backward Classes (SEBCs), undoing the effect of Supreme Court's Maratha reservation judgment (*Jaishri Laxmanrao Patil, 2021*).
72. **One Hundred and Sixth Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam):** Provided **one-third (33%) reservation for women** in the House of the People (Lok Sabha), State Legislative Assemblies, and Legislative Assembly of NCT of Delhi; inserted **Articles 330A, 332A, and 239AA(2)(b)**; sunset clause of **15 years**; reservation to become effective after the first delimitation conducted following the first census published after enactment.

⏱ Timeline / Chronology

Chronological Master Ladder: Key Constitutional Amendments (1951–2023)

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1951  ── 1st Amendment: 9th Schedule, Art. 31A & 31B inserted (Land Reforms immunity)
  │
1956  ── 7th Amendment: States Reorganisation (14 States, 6 UTs), Art. 350A & 350B inserted
  │
1960  ── 8th Amendment: Extended SC/ST seat reservation for 10 years (repeated every decade)
  │
1961  ── 10th Amendment: Dadra & Nagar Haveli incorporated as UT; 12th Amd: Goa, Daman & Diu as UT
  │
1967  ── 21st Amendment: Sindhi added to 8th Schedule as 15th language
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1971  ── 24th Amendment: Affirmed Parliament's power to amend FRs; mandatory Presidential assent
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1971  ── 26th Amendment: Abolished Privy Purses and privileges of former rulers of Princely States
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1975  ── 36th Amendment: Sikkim made a full-fledged State of the Indian Union (Art. 371F)
  │
1976  ── 42nd Amendment: "Mini-Constitution" – Preamble modified, Part IVA (Duties), Part XIVA (Tribunals)
  │
1978  ── 44th Amendment: Restored FR protections, Right to Property moved to Art. 300A, Arts. 20 & 21 immune
  │
1985  ── 52nd Amendment: 10th Schedule (Anti-Defection Law) added
  │
1988  ── 61st Amendment: Voting age lowered from 21 to 18 years under Article 326
  │
1991  ── 69th Amendment: Delhi designated as National Capital Territory (NCT, Art. 239AA)
  │
1992  ── 71st Amendment: Konkani, Manipuri, Nepali (KMN) added to 8th Schedule
  │
1992  ── 73rd & 74th Amendments: Panchayats (Part IX, 11th Sch) & Municipalities (Part IXA, 12th Sch)
  │
2001  ── 84th Amendment: Froze total parliamentary and assembly seats at 1971 levels until post-2026
  │
2002  ── 86th Amendment: Article 21A inserted (Right to Education); 11th Fundamental Duty added
  │
2003  ── 89th Amendment: Bifurcated NCSC (Art. 338) and NCST (Art. 338A)
  │
2003  ── 91st Amendment: Capped Council of Ministers at 15% of Lok Sabha/Assembly; 1/3rd split deleted
  │
2003  ── 92nd Amendment: Bodo, Dogri, Maithili, Santhali (BDMS) added to 8th Schedule (22 total)
  │
2011  ── 97th Amendment: Co-operative Societies added (Part IXB, Art. 43B, Art. 19(1)(c))
  │
2014  ── 99th Amendment: National Judicial Appointments Commission (NJAC) – Struck down by SC in 2015
  │
2015  ── 100th Amendment: India-Bangladesh Land Boundary Agreement (enclaves exchange)
  │
2016  ── 101st Amendment: Goods and Services Tax (GST) introduced (Arts. 246A, 269A, 279A)
  │
2018  ── 102nd Amendment: Constitutional status to National Commission for Backward Classes (Art. 338B)
  │
2019  ── 103rd Amendment: 10% Reservation for Economically Weaker Sections (EWS, Arts. 15(6) & 16(6))
  │
2019  ── 104th Amendment: Extended SC/ST quota to 2030; ended Anglo-Indian nominations (Arts. 331 & 333)
  │
2021  ── 105th Amendment: Restored State power to identify and notify State OBC lists
  │
2023  ── 106th Amendment: Nari Shakti Vandan Adhiniyam – 33% reservation for women in LS & State Assemblies
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📊 Quick Reference Grid

1. The Three Amendment Pathways under Indian Constitution

CATEGORY	PARLIAMENTARY MAJORITY REQUIRED	STATE RATIFICATION REQUIRED?	CONSTITUTIONAL SCOPE / SUBJECT MATTERS
Class 1: Simple Majority (Outside Art. 368)	Simple majority of members present and voting in each House	**NO**	Formation/alteration of States (Arts. 2–4), Abolition/creation of Vidhan Parishad (Art. 169), Quorum, Official Language, 5th & 6th Schedules
Class 2: Special Majority (Under Art. 368(2))	Majority of total membership + 2/3rd of members present and voting in each House	**NO**	Fundamental Rights (Part III), Directive Principles (Part IV), and all provisions not covered in Class 1 or Class 3
Class 3: Special Majority + State Ratification (Art. 368(2) proviso)	Majority of total membership + 2/3rd present/voting in each House	**YES** (by ≥ 50% of State legislatures by **Simple Majority**)	Presidential Election (54, 55), Extent of executive power (73, 162), SC & HCs (124–147, 214–232), 7th Schedule Lists, 4th Schedule representation, Article 368 itself

2. Landmark Amendments (100th to 106th) Match Table

AMENDMENT	YEAR	CORE CONSTITUTIONAL PURPOSE	KEY ARTICLES ADDED / AMENDED
100th Amendment	2015	India–Bangladesh Land Boundary Agreement	1st Schedule amended
101st Amendment	2016	Introduction of Goods and Services Tax (GST)	Added Arts. 246A, 269A, 279A; amended 7th Schedule
102nd Amendment	2018	Constitutional status to NCBC	Added Arts. 338B and 342A; amended Art. 366
103rd Amendment	2019	10% EWS Reservation	Added Arts. 15(6) and 16(6)
104th Amendment	2019	Extended SC/ST quota to 2030; abolished Anglo-Indian quota	Amended Art. 334; discontinued Arts. 331 & 333
105th Amendment	2021	Restored State authority to maintain State OBC lists	Amended Arts. 338B(9), 342A(3), and 366(26C)
106th Amendment	2023	33% Women's Reservation in Lok Sabha & State Assemblies	Added Arts. 330A, 332A, and 239AA(2)(b)

3. Basic Structure Case Ladder

CASE	YEAR	KEY DOCTRINE / HOLDING	IMPACT ON ARTICLE 368
Shankari Prasad v. Union of India	1951	Parliament can amend any part including FRs	Article 13 does not apply to Art. 368
Sajjan Singh v. State of Rajasthan	1965	Reaffirmed Shankari Prasad; Parliament supreme	Questioned if fundamental freedoms could be curtailed
I.C. Golaknath v. State of Punjab	1967	Fundamental Rights are transcendental; cannot be amended	Article 13(2) includes constitutional amendment acts
Kesavananda Bharati v. State of Kerala	1973	Formulated **Basic Structure Doctrine**; overruled Golaknath	Parliament can amend FRs, but CANNOT alter Basic Structure
Indira Nehru Gandhi v. Raj Narain	1975	Struck down 39th Amendment (Art. 329A)	First time an amendment was struck down under Basic Structure
Minerva Mills v. Union of India	1980	Struck down Art. 368(4) & (5); limited amending power is basic	Upheld balance between FRs and DPSPs as basic feature
I.R. Coelho v. State of Tamil Nadu	2007	Laws added to 9th Schedule after 24 April 1973 subject to review	9th Schedule is no longer a blanket protective umbrella
Supreme Court Advocates-on-Record (NJAC)	2015	Struck down 99th Amendment and NJAC Act in their entirety	Independence of Judiciary and Collegium reaffirmed as basic feature

🧠 Memory Anchors & Mnemonics

1. **Constitutional Amendment Pathway Selector:** - Need to change name or boundary of a State? → **Simple Majority (Outside Art. 368)** - Need to change Fundamental Rights or DPSPs? → **Special Majority (Art. 368(2))** - Need to touch the President, High Courts, Supreme Court, or 7th Schedule? → **Special Majority + Half States' Simple Ratification**
2. **The Post-100 Amendments Rapid Sequence:** - **100th:** Boundary (Bangladesh Enclaves) - **101st:** Tax (GST — "101 Shagun for One Nation One Tax") - **102nd:** Backward (NCBC Constitutional Status — Art. 338B) - **103rd:** Economically Weaker (10% EWS Quota) - **104th:** Seats Extension & Anglo-Indian Abolition - **105th:** State OBC Lists Restored - **106th:** Women's 33% Reservation (Nari Shakti)
3. **The 42nd vs 44th Twin Mirror Rule:** - If a provision **centralized power, suppressed courts, or extended terms → 42nd Amendment (1976)**. - If a provision **restored democracy, protected rights, or added safeguards → 44th Amendment (1978)**.
4. **Basic Structure Key Milestone Ladder:** - **G-K-M Rule:** - **G**olaknath (1967: Parliament CANNOT touch FRs) - → **K**esavananda (1973: Parliament can touch FRs, but CANNOT destroy Basic Structure) - → **M**inerva Mills (1980: Amending power itself is limited; limited power is a Basic Feature!)

Chapter 17: Language & Special Provisions

Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
Oct 3, 2024	Union Cabinet approved granting **Classical Language status to 5 new languages**: **Marathi, Pali, Prakrit, Assamese, and Bengali**; raising total Classical Languages of India from 6 to **11**.	Immediate high-yield update for Prelims match-list questions.
Dec 2023	Supreme Court 5-judge Constitution Bench unanimously upheld the constitutional validity of **C.O. 272 and C.O. 273 abrogating Article 370**, confirming J&K held no internal sovereignty after accession.	Definite landmark constitutional law lock.
Ongoing	Eighth Schedule comprises exactly **22 official languages**; **Bhojpuri, Rajasthani, and English are NOT included** in the Eighth Schedule.	Recurrent elimination question in UPPSC/UKPCS.
2024	Demand for inclusion of the Union Territory of Ladakh under the **Sixth Schedule (Article 244(2))** remained under high-level committee review.	High-yield test on 5th vs 6th Schedule applicability.

Consolidated Must-Score Facts

1. **Part XVII (Articles 343–351)** of the Constitution contains the provisions relating to Official Language; divided into 4 Chapters: Chapter I (Language of the Union), Chapter II (Regional Languages), Chapter III (Language of the Supreme Court and High Courts), Chapter IV (Special Directives).
2. **Official Language of the Union (Article 343(1)):** Declares that the **Official Language of the Union shall be Hindi in Devanagari script**; the form of numerals to be used for the official purposes of the Union shall be the **international form of Indian numerals** (1, 2, 3...).
3. **Transition Period for English (Article 343(2)):** For a period of **15 years** from the commencement of the Constitution (i.e., until 26 January 1965), the **English language** was to continue to be used for all official purposes of the Union for which it was being used before 1950.
4. **Parliament's Power to Extend English (Article 343(3)):** Parliament enacted the **Official Languages Act, 1963** (amended in 1967), which provided that English **MAY continue to be used indefinitely**, in addition to Hindi, for official purposes of the Union and for transaction of business in Parliament.
5. **Commission on Official Language (Article 344(1)):** Mandated the President to appoint an Official Language Commission at the end of 5 years (1955) and 10 years (1960); first Commission appointed in **1955 under B.G. Kher** (Kher Commission submitted report in 1956).
6. **Committee of Parliament on Official Language (Article 344(4)):** Constituted under Section 4 of Official Languages Act, 1963; consists of **30 members (20 from Lok Sabha and 10 from Rajya Sabha)** elected by proportional representation by single transferable vote (**PR-STV**); by convention, chaired by the **Union Home Minister**.
7. **Regional Languages (Articles 345–347):** State Legislature can adopt **any one or more languages in use in the State or Hindi** as the official language of that State (Art. 345); until then, English continues.
8. **Language for Inter-State Communication (Article 346):** Language authorized for use in the Union for official purposes shall be the official language for communication between States and between Union and States (English); two or more States may agree that Hindi shall be the official language of communication between them.
9. **Language of Supreme Court and High Courts (Article 348(1)):** Until Parliament by law otherwise provides: - (a) All proceedings in the **Supreme Court and in every High Court**; - (b) Authoritative texts of all **Bills, Acts, Ordinances, Orders, Rules, and Regulations** at the Union and State levels, **SHALL BE IN THE ENGLISH LANGUAGE**.
10. **Use of Hindi in High Courts (Article 348(2)):** The **Governor** of a State may, with the **PRIOR CONSENT OF THE PRESIDENT**, authorize the use of Hindi or other official language of the State in proceedings of the High Court (except for judgments, decrees, and orders, which must still be accompanied by an authoritative English translation).
11. **Language of Representations for Redress of Grievances (Article 350):** Every person is entitled to submit a representation for the redress of any grievance to any officer or authority of the Union or a State in **ANY OF THE LANGUAGES used in the Union or in the State**.
12. **Instruction in Mother Tongue at Primary Stage (Article 350A):** Inserted by the **7th Constitutional Amendment Act, 1956**; places a constitutional duty on every State and local authority to provide adequate facilities for instruction in the **mother tongue at the primary stage** of education to children belonging to linguistic minority groups.
13. **Special Officer for Linguistic Minorities (Article 350B):** Inserted by the **7th Constitutional Amendment Act, 1956** on recommendation of States Reorganisation Commission; appointed by the **President**; investigates all matters relating to safeguards provided for linguistic minorities; submits annual reports to the President, which are laid before each House of Parliament and sent to State Governments; assisted by a Commissioner headquartered at **Prayagraj (Allahabad)**.
14. **Directive for Development of the Hindi Language (Article 351):** Duty of the Union to promote the spread of Hindi, to develop it so that it may serve as a medium of expression for all elements of the composite culture of India, drawing primarily on **Sanskrit** and secondarily on other languages.
15. **Eighth Schedule Languages:** Originally contained **14 languages** in 1950; through subsequent amendments, it now contains **22 languages**:
    - **Original 14 Languages (1950):** Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu.
    - **21st Amendment Act, 1967:** Added **Sindhi** (15th language).
    - **71st Amendment Act, 1992:** Added **Konkani, Manipuri, Nepali** (KMN — 18 languages).
    - **92nd Amendment Act, 2003:** Added **Bodo, Dogri, Maithili, Santhali** (BDMS — 22 languages).
    - *(96th Amendment Act, 2011 renamed 'Oriya' as 'Odia').*
16. **Languages NOT in the Eighth Schedule: English, Bhojpuri, and Rajasthani** are notably ABSENT from the Eighth Schedule.
17. **Classical Languages of India (Total 11):**
    - 2004: **Tamil** (first language to be accorded classical status)
    - 2005: **Sanskrit**

- 2008: **Telugu** and **Kannada**
- 2013: **Malayalam**
- 2014: **Odia**
- 2024 (October 3): **Marathi, Pali, Prakrit, Assamese, and Bengali** approved by Union Cabinet.

18. **Criteria for Classical Language Status:** (1) High antiquity of early texts/recorded history over 1,500–2,000 years; (2) Body of ancient literature considered valuable heritage; (3) Original literary tradition not borrowed from another speech community.
19. **Part XXI (Articles 369–392):** Titled 'Temporary, Transitional and Special Provisions'; contains asymmetric federalism provisions for specific States to meet regional aspirations, protect tribal traditions, and maintain law and order.
20. **Article 370 (Jammu and Kashmir — Inoperative):** Conferred temporary autonomous status; on **5–6 August 2019**, Constitution (Application to Jammu and Kashmir) Orders (C.O. 272 and C.O. 273) rendered all clauses of Article 370 inoperative, extending the entire Indian Constitution to J&K; J&K Reorganisation Act, 2019 bifurcated State into UT of J&K and UT of Ladakh; upheld unanimously by SC in December 2023.
21. **Article 371 (Maharashtra and Gujarat):** Empowers the President to authorize the Governor to establish **separate development boards** for Vidarbha, Marathwada, and the rest of Maharashtra, and for Saurashtra, Kutch, and the rest of Gujarat; equitable allocation of development funds and technical education facilities.
22. **Article 371A (Nagaland, 13th Amendment 1962):** No Act of Parliament in respect of: (1) Religious or social practices of Nagas; (2) Naga customary law and procedure; (3) Administration of civil and criminal justice involving decisions according to Naga customary law; (4) Ownership and transfer of land and its resources, shall apply to Nagaland **unless the Legislative Assembly of Nagaland so decides by a resolution**. Special responsibility of Governor for law and order.
23. **Article 371B (Assam, 22nd Amendment 1969):** President may provide for the constitution and functions of a committee of the Legislative Assembly consisting of members elected from the tribal areas specified in the Sixth Schedule.
24. **Article 371C (Manipur, 27th Amendment 1971):** President may provide for the constitution and functions of a committee of the Legislative Assembly consisting of members elected from the **Hill Areas** of Manipur; Governor submits annual report to President.
25. **Article 371D & 371E (Andhra Pradesh and Telangana, 32nd Amendment 1973):** Empowers President to provide equitable opportunities and facilities for people of Andhra Pradesh and Telangana in public employment and education; creation of Administrative Tribunal for public service disputes; **Article 371E** provides for establishment of a **Central University in Andhra Pradesh** by parliamentary law.
26. **Article 371F (Sikkim, 36th Amendment 1975):** Legislative Assembly of Sikkim to consist of not less than **32 members**; Governor has special responsibility for peace and equitable social/economic advancement; laws in force prior to accession protected.
27. **Article 371G (Mizoram, 53rd Amendment 1986):** Similar to Nagaland; Acts of Parliament regarding religious/social practices, customary law, and land ownership do NOT apply unless Mizoram Assembly resolves; Legislative Assembly to consist of not less than **40 members**.
28. **Article 371H (Arunachal Pradesh, 55th Amendment 1986):** Governor has **special responsibility with respect to law and order** in Arunachal Pradesh (acts in individual judgment on advice of CoM; ceases when President directs); Assembly to consist of not less than **30 members**.
29. **Article 371-I (Goa, 56th Amendment 1987):** Legislative Assembly of Goa shall consist of not less than **30 members**.
30. **Article 371-J (Karnataka, 98th Amendment 2012):** Provides for separate development board for **Hyderabad-Karnataka region** (Kalyana-Karnataka: 6 backward districts — Bidar, Ballari, Kalaburagi, Koppal, Raichur, Yadgir); equitable allocation of funds, reservation in education and state government jobs for local cadre.
31. **Part X (Articles 244 and 244A — Scheduled and Tribal Areas):**
    - **Article 244(1):** Provisions of the **Fifth Schedule** apply to the administration and control of Scheduled Areas and Scheduled Tribes in States other than Assam, Meghalaya, Tripura, and Mizoram.
    - **Article 244(2):** Provisions of the **Sixth Schedule** apply to the administration of Tribal Areas in the four North-Eastern States: **Assam, Meghalaya, Tripura, and Mizoram (AMTM)**.
32. **Fifth Schedule Administration:**
    - Executive power of the Union extends to giving directions to the State regarding administration of Scheduled Areas;
    - Governor submits **annual reports to the President** regarding administration;
    - **Tribes Advisory Council (TAC):** Mandatorily established in each State having Scheduled Areas; consists of not more than **20 members**, of whom three-fourths (3/4th) must be representatives of Scheduled Tribes in the State Legislative Assembly;
    - Governor is empowered to direct that any Act of Parliament or State Legislature **shall not apply to a Scheduled Area** or shall apply with exceptions and modifications; can make regulations prohibiting or restricting transfer of land by or among STs.
33. **Sixth Schedule Administration (AMTM):**
    - Tribal areas in Assam, Meghalaya, Tripura, and Mizoram are constituted as **Autonomous District Councils (ADCs)** and **Regional Councils**;
    - Does NOT operate like a separate state, but exercises extensive autonomous administrative and legislative powers;
    - Each District Council consists of not more than **30 members** (4 nominated by Governor, 26 elected on universal adult franchise for a term of 5 years);
    - ADCs can make laws on land, forests, canal water, shifting cultivation (jhum), village administration, inheritance of property, marriage, and social customs; laws require **assent of the Governor**;
    - Can constitute village councils or courts for trial of suits and cases between tribals; can establish primary schools, dispensaries, markets; can collect land revenue and levy taxes.
34. **Sixth Schedule States Exclusion Trap:** The Sixth Schedule applies strictly to **Assam, Meghalaya, Tripura, and Mizoram (AMTM)**; **Manipur and Nagaland are NOT in the Sixth Schedule** (they are governed by special provisions under Arts. 371C and 371A).
35. **Special Officer for Linguistic Minorities Headquarters:** Headquarters at **Prayagraj (Allahabad)**; regional offices at Belgaum, Chennai, and Kolkata; operates under administrative control of **Ministry of Minority Affairs**.
36. **Sindhi Language Addition Year:** Added by the **21st Amendment Act, 1967** (first language added after Constitution's commencement).

37. **71st Amendment (1992) Languages:** Added **Konkani, Manipuri, and Nepali** (KMN).
38. **92nd Amendment (2003) Languages:** Added **Bodo, Dogri, Maithili, and Santhali** (BDMS).
39. **Sanskrit Classical Status:** Declared in **2005**, following Tamil in 2004.
40. **Section 3(3) of Official Languages Act, 1963:** Makes bilingualism statutory; both Hindi and English must be used for resolutions, general orders, rules, notifications, administrative reports, press communiques, contracts, agreements, licenses, and tender notices.
41. **Article 344 Majority Requirement:** Parliamentary Committee on Official Language consists of 30 MPs elected by PR-STV; submits recommendations to President, who after consulting State governments, issues directions.
42. **Authoritative English Text Mandate:** Even if a State Legislature passes a Bill or Act in Hindi or another regional language, Article 348(3) mandates that an **authoritative translation in English published in the Official Gazette** is compulsory.
43. **Article 370 Historic Architecture:** Drafted by N. Gopalaswami Ayyangar; included in Part XXI as a 'temporary provision'; exempted J&K from the general provisions of the Indian Constitution, limiting Parliament's power to Defence, Foreign Affairs, and Communications without state government concurrence.
44. **Autonomous District Councils Count:** Currently 10 ADCs function under the Sixth Schedule: 3 in Assam (Bodoland, Karbi Anglong, Dima Hasao), 3 in Meghalaya (Khasi, Garo, Jaintia), 1 in Tripura (Tripura Tribal Areas), and 3 in Mizoram (Chakma, Mara, Lai).
45. **Tribes Advisory Council in Non-Scheduled States:** A TAC can also be established in any State having Scheduled Tribes but no Scheduled Areas, if the President so directs (e.g., West Bengal and Tamil Nadu).
46. **Governor's Legislative Role in 5th Schedule:** The Governor is uniquely empowered to repeal or amend any Act of Parliament or of the State Legislature in its application to a Scheduled Area, subject to prior approval of the President.
47. **Classic Languages Benefits:** The Union Ministry of Education provides two major annual international awards for scholars of eminence; Centre of Excellence for studies in classical languages established; Central universities provide dedicated chairs for classical languages.
48. **Article 371F Sikkim Special Seat Limit:** Legislative Assembly of Sikkim has 32 seats (unique exception to the 60-seat minimum under Article 170).
49. **Kalyana-Karnataka Development:** Article 371-J inserted in 2012 provides 8% quota in state-level jobs and 70% quota in regional educational institutions for persons from the 6 Hyderabad-Karnataka backward districts.
50. **Language of Union Summary:**
    - Official Language: **Hindi in Devanagari script**
    - Numerals: **International form of Indian numerals**
    - Supreme Court & High Court proceedings: **English** (mandatory under Art. 348 unless Parliament legislates otherwise)
    - Schedule 8 count: **22 languages**
    - Classical Languages count: **11 languages**

Timeline / Chronology

```
1950  ── Part XVII & Part XXI enter into force with 14 languages in the 8th Schedule
  |
1955  ── B.G. Kher Commission on Official Language appointed (Report 1956)
  |
1956  ── 7th Amendment: Articles 350A and 350B inserted; Art. 371 introduced
  |
1962  ── 13th Amendment: Article 371A inserted for Nagaland
  |
1963  ── Official Languages Act passed (English allowed to continue after 1965)
  |
1967  ── 21st Amendment: Sindhi added to 8th Schedule (15th language)
  |
1967  ── Official Languages (Amendment) Act mandates statutory bilingualism
  |
1975  ── 36th Amendment: Article 371F inserted for Sikkim
  |
1986  ── 53rd & 55th Amendments: Articles 371G (Mizoram) & 371H (Arunachal) inserted
  |
1992  ── 71st Amendment: Konkani, Manipuri, Nepali (KMN) added to 8th Schedule (18 total)
  |
2003  ── 92nd Amendment: Bodo, Dogri, Maithili, Santhali (BDMS) added to 8th Schedule (22 total)
  |
2004  ── Tamil declared India's 1st Classical Language
  |
2011  ── 96th Amendment: "Oriya" renamed "Odia" in 8th Schedule
  |
2012  ── 98th Amendment: Article 371-J inserted for Hyderabad-Karnataka region
  |
2019  ── 5 August: Article 370 rendered inoperative via C.O. 272 and C.O. 273
  |
2023  ── Supreme Court Constitution Bench unanimously upholds Article 370 abrogation
  |
2024  ── 3 October: Union Cabinet grants Classical Language status to Marathi, Pali, Prakrit, Assamese, Bengali (Total 11)
```

📊 Quick Reference Grid

1. Eleven Classical Languages of India Master Table

LANGUAGE	YEAR DECLARED	CULTURAL / LITERARY HERITAGE MILESTONE
Tamil	2004	Sangam literature (1st Classical Language of India)
Sanskrit	2005	Vedic and Classical Sanskrit texts, Epics
Telugu	2008	Early inscriptions and rich medieval Prabandha literature
Kannada	2008	Kavirajamarga (9th century) and Halmidi inscription (450 AD)
Malayalam	2013	Ancient Manipravalam tradition and Ramacharitam
Odia	2014	Madala Panji and ancient temple rock edicts
Marathi	2024 (Oct)	Leela Charitra, Jnaneshwari, early Prakrit-Maharashtri roots
Pali	2024 (Oct)	Canonical language of Theravada Buddhist Tipitaka and Ashokan Prakrit links
Prakrit	2024 (Oct)	Gaha Sattasai (Hala), Jain Agamas, ancient dramatic dialogues
Assamese	2024 (Oct)	Charyapada hymns, Buranjis (chronicles), Kamarupa inscriptions
Bengali	2024 (Oct)	Charyapada tradition, Mangalkavya, ancient Gauda literary heritage

2. Article 371 Special Provisions Grid

ARTICLE	STATE COVERED	SPECIAL SUBJECT / CONSTITUTIONAL PROTECTION
371	**Maharashtra & Gujarat**	Separate development boards (Vidarbha, Marathwada, Saurashtra, Kutch)
371A	**Nagaland**	Religious/social customs, customary laws, land transfer protected; 13th Amd
371B	**Assam**	Assembly committee consisting of members elected from tribal areas
371C	**Manipur**	Assembly committee consisting of members elected from Hill Areas
371D & E	**Andhra Pradesh & Telangana**	Equitable educational/employment opportunities; Central University (371E)
371F	**Sikkim**	32-member minimum Assembly; Governor special responsibility for peace
371G	**Mizoram**	Customary law, land ownership protected; min 40-member Assembly
371H	**Arunachal Pradesh**	Governor has special responsibility for law and order; min 30-member Assembly
371-I	**Goa**	Minimum 30-member Legislative Assembly
371-J	**Karnataka**	Hyderabad-Karnataka (Kalyana-Karnataka) development board & quota

🧠 Memory Anchors & Mnemonics

1. **6th Schedule States Mnemonic:** - **"AMTM"** (Assam, Meghalaya, Tripura, Mizoram) - *Trap: Manipur is NOT in AMTM!*
2. **8th Schedule Additions Formula:** - **21 + 71 = 92!** - 21st Amd (1967) = **Sindhi** - 71st Amd (1992) = **KMN** (Konkani, Manipuri, Nepali) - 92nd Amd (2003) = **BDMS** (Bodo, Dogri, Maithili, Santhali)
3. **Article 371 Alphabet Ladder:** - 371**A** = **A**ngami / Nagaland - 371**B** = **B**ihu / Assam - 371**C** = **C**entral hills / Manipur - 371**D** = **D**irect Telugu / Andhra & Telangana - 371**F** = **F**airytale / Sikkim - 371**G** = **G**un-peace / Mizoram - 371**H** = **H**ill territory / Arunachal - 371**-I** = **I**sland beaches / Goa - 371**J** = **J**osh for Kalyana / Karnataka

Chapter 18: Political Parties & Pressure Groups

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
Feb 2024	In *Association for Democratic Reforms (ADR) v. Union of India*, Supreme Court 5-judge Constitution Bench struck down the **Electoral Bond Scheme, 2018** as violative of voter's Right to Information under Article 19(1)(a).	Landmark ruling on political party financing and corporate donations.
2023–2024	Current recognized **National Parties count is exactly 6**: BJP, INC, CPI(M), BSP, NPP, and AAP; TMC, NCP, and CPI lost national status in 2023.	High-yield Prelims factual lock.
2024	18th Lok Sabha General Elections resulted in a coalition government (NDA) with **Rahul Gandhi** officially recognized as Leader of the Opposition.	End of decade-long single-party absolute majorities at the Centre.
Historical Match	Recurrent chronological ordering of regional parties in UPPCS: **TDP (1982) → BSP (1984) → SP (1992) → TMC (1998)**.	Standard match-list question.

🎯 Consolidated Must-Score Facts

1. Political parties are voluntary associations or organized groups of individuals who share the same political views and strive to gain political power through constitutional means to promote the national interest.
2. The Indian political system is characterized by a **Multi-Party System**; unlike the UK and USA (Two-Party system) or China (One-Party system), India has numerous national and regional parties reflecting its immense social, cultural, and religious diversity.
3. **Registration of Political Parties (Section 29A of RPA 1951):** Political parties must register with the **Election Commission of India (ECI)** within 30 days of formation; party constitution must contain an explicit provision declaring allegiance to the Constitution of India, socialism, secularism, and democracy, and upholding the sovereignty, unity, and integrity of India.
4. **Election Symbols Order, 1968:** Issued by the ECI; classifies symbols into **Reserved Symbols** (exclusive to recognized National and State parties) and **Free Symbols** (available for unrecognized registered parties and independent candidates).
5. **Party Splits and Symbol Disputes (Paragraph 15):** The **Election Commission of India has exclusive jurisdiction** to decide disputes among rival factions of a recognized political party claiming the party name and symbol; in *Sadiq Ali v. ECI (1971)*, SC upheld ECI's power and established the **Test of Numerical Majority** in both organizational and legislative wings.
6. **Criteria for Recognition as a National Party (Election Symbols Order, 1968):** A party is recognized as a National Party if it satisfies ANY ONE of three conditions: - (1) Secures at least **6% of valid votes polled in 4 or more States** at a general election to Lok Sabha or Assembly, AND in addition, **wins at least 4 seats in the Lok Sabha** from any State(s); OR - (2) Wins at least **2% of total seats in the Lok Sabha (11 seats)**, and these members are elected from **at least 3 different States**; OR - (3) Is recognized as a **State Party in at least 4 States**.
7. **Criteria for Recognition as a State Party:** A party is recognized as a State Party if it satisfies ANY ONE of five conditions: - (1) Secures at least **6% valid votes in State** at Assembly election AND wins at least **2 seats in Assembly**; OR - (2) Secures at least **6% valid votes in State** at Lok Sabha election AND wins at least **1 seat in Lok Sabha**; OR - (3) Wins at least **3% of total seats in Assembly** or at least **3 seats**, whichever is more; OR - (4) Wins at least **1 seat in Lok Sabha for every 25 seats** allotted to the State; OR - (5) Secures at least **8% of total valid votes** in the State at a general election to Lok Sabha or Assembly (no seats required).
8. **Present National Parties (2024):** Exactly **6 National Parties**: - (1) **Bharatiya Janata Party (BJP)** — Founded 1980 - (2) **Indian National Congress (INC)** — Founded 1885 - (3) **Communist Party of India (Marxist) [CPI(M)]** — Founded 1964 - (4) **Bahujan Samaj Party (BSP)** — Founded 1984 - (5) **National People's Party (NPP)** — Founded 2013 (first party from North-East recognized as national party in 2019) - (6) **Aam Aadmi Party (AAP)** — Founded 2012 (recognized as national party in April 2023).
9. **Parties that Lost National Status in April 2023:** All India Trinamool Congress (TMC), Nationalist Congress Party (NCP), and Communist Party of India (CPI).
10. **Privileges of National Parties:** (1) Dedicated reserved symbol nationwide; (2) Up to **40 Star Campaigners** whose travel expenses are not added to candidates' election expense accounts (unrecognized parties get 20); (3) Free airtime on Doordarshan and All India Radio; (4) Two free copies of electoral rolls; (5) Subsidized government land for party offices in New Delhi.
11. **First Political Party in India:** The **Indian National Congress (INC)**, founded on **28 December 1885** at Gokuldas Tejpal Sanskrit College in Bombay by **Allan Octavian Hume (A.O. Hume)**; Womesh Chandra Bonnerjee was its first President; attended by 72 delegates.
12. **Communist Movement in India:** The **Communist Party of India (CPI)** was formed in **1925** at Kanpur (earlier founded in Tashkent in 1920 by M.N. Roy); in **1964**, the party split, leading to the formation of the **CPI(Marxist)** under E.M.S. Namboodiripad, Jyoti Basu, and A.K. Gopalan.
13. **Bharatiya Janata Party (BJP):** Traces origin to the **Bharatiya Jana Sangh**, founded in **1951** by **Dr. Syama Prasad Mookerjee**; merged into the Janata Party in 1977; re-formed as the **Bharatiya Janata Party (BJP)** on **6 April 1980** with **Atal Bihari Vajpayee** as its first President.
14. **Regional Parties Timeline (UPPCS PYQ Sequence):**
    - **DMK (Dravida Munnetra Kazhagam):** Founded in **1949** by C.N. Annadurai (split from Periyar's Dravidar Kazhagam).
    - **AIADMK:** Founded in **1972** by M.G. Ramachandran (split from DMK).
    - **Telugu Desam Party (TDP):** Founded in **March 1982** by N.T. Rama Rao.
    - **Bahujan Samaj Party (BSP):** Founded on **14 April 1984** by Kanshi Ram.
    - **Asom Gana Parishad (AGP):** Formed in **1985** by Prafulla Kumar Mahanta following the Assam Accord.
    - **Samajwadi Party (SP):** Founded in **October 1992** by Mulayam Singh Yadav.
    - **Rashtriya Janata Dal (RJD):** Founded in **1997** by Lalu Prasad Yadav.
    - **Biju Janata Dal (BJD):** Founded in **December 1997** by Naveen Patnaik.

- **All India Trinamool Congress (TMC):** Founded in **January 1998** by Mamata Banerjee.
- **Nationalist Congress Party (NCP):** Founded in **June 1999** by Sharad Pawar, P.A. Sangma, and Tariq Anwar.
- **Aam Aadmi Party (AAP):** Founded in **November 2012** by Arvind Kejriwal.

15. **Coalition Governments in India:** First non-Congress coalition at the Centre formed in **1977** under **Morarji Desai** (Janata Party); minority coalition led by Charan Singh (1979); National Front led by V.P. Singh (1989); United Front led by Deve Gowda and I.K. Gujral (1996–98); National Democratic Alliance (NDA) led by A.B. Vajpayee (1998, 1999) and Narendra Modi (2014, 2019, 2024); United Progressive Alliance (UPA) led by Manmohan Singh (2004, 2009).
16. **Leader of Opposition (LoP):** Leader of largest opposition party having **not less than 1/10th seats (10%)** of total strength of the House (55 in Lok Sabha); accorded statutory status by the **Salaries and Allowances of Leaders of Opposition in Parliament Act, 1977**; enjoys rank and status of a **Cabinet Minister**; Ram Subhag Singh became first formal LoP in Lok Sabha in 1969.
17. **Pressure Groups Definition:** Voluntary organized associations that seek to influence government policies, decisions, and administrative actions **WITHOUT themselves aiming to capture political power or run the government**; also known as interest groups, lobby groups, or non-party political formations.
18. **Differences Between Political Parties and Pressure Groups:**
    - Political parties aim to **capture political power and contest elections**; pressure groups **do not contest elections** or seek formal government office.
    - Political parties have a broad, comprehensive ideology; pressure groups have **specific, narrow interests** (e.g., labor, trade, caste, environment).
    - Political parties are accountable to the electorate; pressure groups are accountable only to their members.
19. **Techniques Used by Pressure Groups:** Electioneering (supporting candidates), **Lobbying** (persuading legislators and bureaucrats), Propagandizing (shaping public opinion), Strikes, Demonstrations, Bandhs, Dharnas, Public Interest Litigation (PIL), Boycotts.
20. **Major Business Groups in India:**
    - **FICCI (Federation of Indian Chambers of Commerce and Industry):** Established in **1927** on recommendation of Mahatma Gandhi by **G.D. Birla** and Purshottamdas Thakurdas; oldest and largest apex business organization.
    - **ASSOCHAM (Associated Chambers of Commerce and Industry of India):** Established in **1920**.
    - **CII (Confederation of Indian Industry):** Originated in 1895 as Engineering and Iron Trades Association; transformed into CII in **1992**.
21. **Major Trade Unions & Political Affiliations:**
    - **AITUC (All India Trade Union Congress):** Oldest trade union federation, established on **31 October 1920** in Bombay with **Lala Lajpat Rai as first President** and Dewan Chaman Lall as General Secretary; affiliated with CPI.
    - **INTUC (Indian National Trade Union Congress):** Formed in **May 1947** under leadership of **Sardar Vallabhbhai Patel**; affiliated with Indian National Congress.
    - **BMS (Bharatiya Mazdoor Sangh):** Founded on **23 July 1955** by **Dattopant Thengadi**; affiliated with RSS / BJP; largest trade union in India by verified membership.
    - **CITU (Centre of Indian Trade Unions):** Formed in **1970**; affiliated with CPI(M).
    - **HMS (Hind Mazdoor Sabha):** Formed in **1948** by socialist leaders (Ashoka Mehta, Jayaprakash Narayan).
22. **Agrarian Pressure Groups:**
    - **All India Kisan Sabha (AIKS):** Founded in **April 1936** at Lucknow with **Swami Sahajanand Saraswati as first President** and N.G. Ranga as General Secretary.
    - **Bharatiya Kisan Union (BKU):** Formed in **1987** under **Chaudhary Mahendra Singh Tikait** in Western Uttar Pradesh; non-partisan peasant mobilization group.
    - **Shetkari Sanghatana:** Founded by **Sharad Joshi** in Maharashtra (1979); advocated pro-market agrarian policies.
23. **Student Pressure Groups:**
    - **AISF (All India Students' Federation):** Founded in **1936**; oldest national student union; affiliated with CPI.
    - **ABVP (Akhil Bharatiya Vidyarthi Parishad):** Founded in **1949**; affiliated with RSS / BJP.
    - **NSUI (National Students' Union of India):** Founded in **1971**; affiliated with Congress.
    - **SFI (Students' Federation of India):** Founded in **1970**; affiliated with CPI(M).
24. **Caste-Based Pressure Groups:** Harijan Sevak Sangh (1932, Gandhi); Dalit Panthers (1972, Maharashtra); Jat Mahasabha; All India Backward Classes Federation.
25. **Religious and Linguistic Groups:** Rashtriya Swayamsevak Sangh (RSS, 1925, Dr. K.B. Hedgewar); Vishva Hindu Parishad (VHP, 1964); Jamaat-e-Islami Hind (1948); Shiromani Gurdwara Parbandhak Committee (SGPC, 1925 statutory body); Hindi Sahitya Sammelan; Tamil Sangam.
26. **Professional Associations:** Bar Council of India (BCI); Indian Medical Association (IMA); All India Federation of University and College Teachers' Organisations (AIFUCTO).
27. **Anomic Pressure Groups:** Spontaneous, non-structural groups that break through into the political system through direct, unconventional, or violent actions (e.g., student agitations, riots, anti-reservation protests).
28. **Mazdoor Kisan Shakti Sangathan (MKSS):** Grassroots movement founded in Rajasthan in **1990** by **Aruna Roy and Nikhil Dey**; spearheaded the campaign for transparency that led directly to the enactment of the **Right to Information (RTI) Act, 2005**.
29. **Anti-Corruption Movement (India Against Corruption, 2011):** Mass civil society movement led by **Anna Hazare** demanding the enactment of the Jan Lokpal Bill; led directly to the passage of the **Lokpal and Lokayuktas Act, 2013** and the birth of the Aam Aadmi Party.
30. **Electoral Bonds Case (*ADR, 2024*):** Struck down the 2018 scheme allowing anonymous unlimited corporate donations to political parties; held that political party financing must be transparent to protect free and fair elections and democratic accountability.
31. **Party System Typology:** Indian party system was famously described by **Rajni Kothari** as the **"One-Party Dominance System"** or the **"Congress System"** from 1952 to 1967.

32. **Section 29A RPA Allegiance Oath:** Mandates that every political party must explicitly affirm allegiance to "the principles of socialism, secularism and democracy and would uphold the sovereignty, unity and integrity of India".
33. **Sadiq Ali Majority Rule (1971):** Supreme Court established that when two rival groups claim to be the official party, the ECI must resolve the dispute primarily on the basis of support among the elected MPs and MLAs of that party.
34. **First Opposition Party Strength:** In 1969, the Congress (O) led by Ram Subhag Singh had the requisite 10% seats, becoming the first officially recognized opposition party in Lok Sabha.
35. **Morarji Desai Janata Party Era (1977):** Formed by the amalgamation of Congress (O), Bharatiya Lok Dal, Bharatiya Jana Sangh, and Socialist Party to restore constitutional democracy post-Emergency.
36. **FICCI Historic Genesis:** Mahatma Gandhi advised Indian business leaders to establish an indigenous apex chamber so that Indian commercial interests could effectively counter British colonial trade bodies.
37. **Lala Lajpat Rai AITUC Leadership:** At the inaugural session of AITUC in Bombay in 1920, Lala Lajpat Rai declared that "Indian labor cannot afford to isolate itself from the world labor movement."
38. **BMS Formation Significance:** Dattopant Thengadi founded BMS on Lokmanya Tilak's birth anniversary, rejecting the Western concept of class conflict in favor of cooperative national interest.
39. **Swami Sahajanand Saraswati AIKS Leadership:** Presided over the historic 1936 Lucknow session of the All India Kisan Sabha, bringing peasant struggles to the forefront of the national movement.
40. **BKU Boat Club Rally (1988):** Mahendra Singh Tikait led a historic 500,000-farmer siege of the Boat Club in New Delhi, demonstrating the immense political mobilization power of agrarian pressure groups.
41. **Dalit Panthers Movement (1972):** Inspired by the Black Panther movement in the US; founded by Namdeo Dhasal and Arjun Dangle to combat caste discrimination and social atrocities.
42. **SGPC Statutory Status:** Established under the Sikh Gurdwaras Act, 1925; acts as the apex administrative body for historic Sikh shrines and exerts significant influence on Akali Dal politics.
43. **PIL as a Pressure Tool:** Pioneered in India by Justices **P.N. Bhagwati** and **V.R. Krishna Iyer** in the late 1970s; relaxed locus standi, allowing NGOs and pressure groups to approach courts directly on behalf of marginalized citizens.
44. **Star Campaigner Rules:** Expenses incurred on travel by recognized political party leaders (Star Campaigners) are not deemed to be expenditure in connection with the election incurred by any candidate, provided they do not share the candidate's personal campaign vehicle.
45. **Free Broadcast Time Scheme:** Notified under Section 39A of RPA 1951; provides free airtime vouchers to recognized political parties during general elections based on past electoral performance.
46. **State Funding Debate (Indrajit Gupta Committee 1998):** Emphasized that state funding should be provided strictly in kind (fuel, paper, time slots) and restricted to recognized political parties.
47. **Right to Form Associations (Article 19(1)(c)):** Guarantees freedom to form associations, trade unions, or co-operative societies; reasonable restrictions under Art. 19(4) apply only on grounds of sovereignty and integrity of India, public order, or morality.
48. **No Right to Strike:** In ***T.K. Rangarajan v. Government of Tamil Nadu (2003)***, Supreme Court ruled that government employees have **NO fundamental, statutory, or moral right to strike**.
49. **Lobbying in India vs USA:** In the USA, lobbying is legally institutionalized and regulated under the Lobbying Disclosure Act; in India, lobbying is informal, non-institutionalized, and often operates through business chambers and delegations.
50. **Summary of 6 National Parties:** BJP (Lotus), INC (Hand), CPI(M) (Hammer, Sickle, Star), BSP (Elephant), NPP (Book), AAP (Broom).

Timeline / Chronology

```
1885  ── Indian National Congress (INC) founded in Bombay (28 December)
  │
1920  ── All India Trade Union Congress (AITUC) founded (Lala Lajpat Rai, 1st President)
  │
1925  ── Communist Party of India (CPI) formed at Kanpur
  │
1927  ── Federation of Indian Chambers of Commerce and Industry (FICCI) founded
  │
1936  ── All India Kisan Sabha (AIKS) founded at Lucknow (Swami Sahajanand Saraswati)
  │
1947  ── Indian National Trade Union Congress (INTUC) formed under Sardar Patel
  │
1949  ── Dravida Munnetra Kazhagam (DMK) founded by C.N. Annadurai
  │
1951  ── Bharatiya Jana Sangh founded by Dr. Syama Prasad Mookerjee
  │
1955  ── Bharatiya Mazdoor Sangh (BMS) founded by Dattopant Thengadi
  │
1964  ── CPI splits; CPI(M) formed
  │
1968  ── Election Symbols (Reservation and Allotment) Order promulgated
  │
1969  ── Formal Leader of Opposition recognized in Lok Sabha (Ram Subhag Singh)
  │
```

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1977  ── Janata Party forms first non-Congress coalition government at Centre
  │
1980  ── Bharatiya Janata Party (BJP) formed with Atal Bihari Vajpayee as President
  │
1982  ── Telugu Desam Party (TDP) founded by N.T. Rama Rao
  │
1984  ── Bahujan Samaj Party (BSP) founded by Kanshi Ram
  │
1987  ── Bharatiya Kisan Union (BKU) formed by Mahendra Singh Tikait
  │
1992  ── Samajwadi Party (SP) founded by Mulayam Singh Yadav
  │
1998  ── All India Trinamool Congress (TMC) founded by Mamata Banerjee
  │
2012  ── Aam Aadmi Party (AAP) founded by Arvind Kejriwal
  │
2013  ── National People's Party (NPP) founded by P.A. Sangma
  │
2023  ── AAP recognized as National Party; TMC, NCP, CPI lose national status
  │
2024  ── Electoral Bonds struck down by Supreme Court in *ADR Case*
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📊 Quick Reference Grid

1. Major Pressure Groups and Affiliations Master Table

PRESSURE GROUP	SECTOR / NATURE	YEAR FOUNDED	KEY LEADER / FOUNDER	POLITICAL / IDEOLOGICAL AFFINITY
AITUC	Trade Union	1920	Lala Lajpat Rai, N.M. Joshi	Communist Party of India (CPI)
INTUC	Trade Union	1947	Sardar Vallabhbhai Patel	Indian National Congress (INC)
BMS	Trade Union	1955	Dattopant Thengadi	RSS / Bharatiya Janata Party (BJP)
CITU	Trade Union	1970	B.T. Ranadive	Communist Party of India (Marxist)
FICCI	Business / Industry	1927	G.D. Birla, Purshottamdas Thakurdas	Non-partisan apex business lobby
ASSOCHAM	Business / Industry	1920	Prominent commercial groups	Apex industry association
CII	Business / Industry	1895 / 1992	Industrial captains	Modern corporate chamber
AIKS	Agrarian / Peasant	1936	Swami Sahajanand Saraswati	Left / Communist movements
BKU	Agrarian / Peasant	1987	Mahendra Singh Tikait	Independent Western UP farmer union
ABVP	Student Union	1949	Balraj Madhok	RSS / BJP
NSUI	Student Union	1971	Congress leadership	Indian National Congress
SFI	Student Union	1970	Left student leaders	CPI(M)

2. Regional Parties Founding Chronology

PARTY NAME	YEAR FOUNDED	FOUNDER / CHIEF ARCHITECT	HOME STATE / STRONGHOLD
DMK	1949	C.N. Annadurai	Tamil Nadu
AIADMK	1972	M.G. Ramachandran (MGR)	Tamil Nadu
TDP	1982	N.T. Rama Rao	Andhra Pradesh
BSP	1984	Kanshi Ram	Uttar Pradesh
AGP	1985	Prafulla Kumar Mahanta	Assam
SP	1992	Mulayam Singh Yadav	Uttar Pradesh
RJD	1997	Lalu Prasad Yadav	Bihar
BJD	1997	Naveen Patnaik	Odisha
TMC	1998	Mamata Banerjee	West Bengal
NCP	1999	Sharad Pawar, P.A. Sangma, Tariq Anwar	Maharashtra
AAP	2012	Arvind Kejriwal	Delhi, Punjab
NPP	2013	P.A. Sangma	Meghalaya

🧠 Memory Anchors & Mnemonics

1. **Trade Unions Parentage Ladder:** - **AITUC** → CPI (1920: Lajpat Rai) - **INTUC** → Congress (1947: Patel) - **BMS** → RSS / BJP (1955: Thengadi) - **CITU** → CPI(M) (1970)
2. **Regional Parties Chronology Sequence:** - **"T-B-S-T"** - **T**DP (1982) → **B**SP (1984) → **S**P (1992) → **T**MC (1998)
3. **The 6 National Parties:** - **BJP, INC, CPI(M), BSP, NPP, AAP**

Chapter 19: Acts & Governance

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY FACT	EXAM RELEVANCE
2025 Focus	**"Accountability" is NOT a statutory food-security dimension** under NFSA 2013 (the three core dimensions are **Availability, Accessibility, and Affordability**). Consumers are legally permitted to bargain below the Maximum Retail Price (MRP).	High-frequency elimination trap in Prelims questions testing welfare legislations.
2025 Focus	**Adi Karmayogi** (launched June 2025) is an initiative of the **Ministry of Tribal Affairs (MoTA)** for grassroots tribal governance, distinct from DoPT's broader Mission Karmayogi.	Do not confuse Ministry of Tribal Affairs drives with general civil service capacity schemes.
2024 Focus	**NFSA coverage ratio**: Legally covers **75% of rural population** and **50% of urban population** (~67% national average). Enforced on **5 July 2013** (not 2010).	Tested repeatedly in UPPCS; 2010 was RTE commencement, not NFSA.
2024 Focus	**E-Governance impact**: ICT-based e-governance **reduces administrative costs**, shortens delivery cycles, and **increases citizen engagement**; examiner traps falsely state it "increases red tape and cuts transparency".	Basic governance concept trap in state civil service exams.
2023–2024	**Citizenship (Amendment) Act (CAA), 2019**: Statutory rules notified in March 2024; Supreme Court upheld constitutional validity; fast-tracks citizenship for 6 non-Muslim persecuted minorities from 3 countries who entered on or before 31 Dec 2014.	Crucial match-the-dates & eligibility question.
2023 Focus	**Digital Personal Data Protection (DPDP) Act, 2023**: Replaces Personal Data Protection Bill; sets up Data Protection Board of India; penalty up to ₹250 crore for significant data breaches.	Modern governance statute testing corporate compliance & citizen privacy.
2020–2024	**Mission Karmayogi & Capacity Building Commission (CBC)**: NPCSCB shifts civil services from 'rules-based' to 'roles-based' competency via iGOT Karmayogi digital training portal.	Core question on modern administrative reforms.

🎯 Consolidated Must-Score Facts

1. **Right to Information (RTI) Act, 2005:** Enacted to promote transparency, accountability, and contain corruption in public authorities; roots lie in the Mazdoor Kisan Shakti Sangathan (MKSS) grassroots movement led by **Aruna Roy in Rajasthan (1990s)**.
2. **Legislative History of RTI:** Tamil Nadu was the **first State to pass an RTI Act in 1997** (followed by Goa in 1997); Parliament passed the Freedom of Information Act, 2002 (never enforced); the comprehensive **Right to Information Act, 2005** received presidential assent on **15 June 2005** and came into full force on **12 October 2005**.
3. **Constitutional Foundation of RTI:** In ***State of U.P. v. Raj Narain (1975)*** and ***SP Gupta (1981)***, the Supreme Court held that the **Right to Information is an inalienable component of Freedom of Speech and Expression under Article 19(1)(a)** of the Constitution.
4. **Definition of 'Public Authority' (Section 2(h)):** Includes any authority or body established or constituted: (a) by or under the Constitution; (b) by any law made by Parliament or State Legislature; (c) by notification issued by government; and includes **any non-government organization (NGO) substantially financed directly or indirectly by funds provided by the appropriate Government**.
5. **Time Limits under RTI (Section 7):** (1) General request = within **30 days** of application; (2) If application is made to an Assistant Public Information Officer (APIO) = within **35 days**; (3) If information concerns the **LIFE OR LIBERTY OF A PERSON = MUST BE PROVIDED WITHIN 48 HOURS**; (4) Third-party information = within **40 days**.
6. **Fees and Deemed Refusal:** Application fee is ₹10; information is **provided completely FREE OF COST to persons below the poverty line (BPL)**; if a public authority fails to give information within the specified time limit, it is deemed a refusal and information **must be provided FREE OF COST to all applicants** thereafter.
7. **Exemptions from Disclosure (Section 8(1)):** 10 categories exempt from disclosure: sovereignty/integrity of India, security/scientific/economic interests of State, contempt of court, parliamentary privilege, commercial confidence/intellectual property, information received in confidence from foreign government, endanger life/safety of any person, impede investigation/prosecution, Cabinet papers (until decision taken), and unwarranted invasion of privacy.
8. **Public Interest Override (Section 8(2)):** A public authority **may allow access to information** even if it falls under exemptions, if **public interest in disclosure outweighs the harm to protected interests**.
9. **RTI Overriding Effect (Section 22):** The RTI Act has **overriding effect** over the **Official Secrets Act, 1923** and any other law inconsistent with it to the extent of the inconsistency.
10. **Exempted Intelligence & Security Agencies (Section 24 & Second Schedule):** Agencies like IB, RAW, Directorate of Revenue Intelligence (DRI), and CAPFs are exempt from the RTI Act; **Exception**: Information pertaining to **allegations of corruption and human rights violations IS NOT EXEMPT** (human rights violations require approval of Central/State Information Commission and must be provided within **45 days**).
11. **Appeals Structure under RTI: First Appeal** lies to the First Appellate Authority (senior officer in the department) within **30 days**; **Second Appeal** lies to the **Central Information Commission (CIC) or State Information Commission (SIC)** within **90 days**; decision of the Commission is binding.
12. **Disaster Management Act, 2005:** Enacted following the 2004 Indian Ocean Tsunami; provides an institutional mechanism for drawing up disaster management plans and holistic response; came into force in January 2006.
13. **National Disaster Management Authority - NDMA (Section 3):** Apex body for disaster management in India; **Chairperson = PRIME MINISTER OF INDIA**; consists of other members not exceeding 9, nominated by the Chairperson (one designated Vice-Chairperson with Cabinet Minister rank).
14. **State Disaster Management Authority - SDMA (Section 14):** Apex body at State level; **Chairperson = CHIEF MINISTER OF THE STATE**; consists of other members not exceeding 9 nominated by CM.
15. **District Disaster Management Authority - DDMA (Section 25):** Apex body at district level; **Co-chaired by the District Magistrate / Collector / Deputy Commissioner AND the elected Chairperson of the Zila Parishad** (ex-officio Co-Chairperson).

16. **National Disaster Response Force - NDRF (Section 44):** Specialist multi-skilled force constituted for disaster response; personnel deputed from Central Armed Police Forces (BSF, CRPF, CISF, ITBP, SSB, Assam Rifles); headed by a **Director General (DG)** appointed by Central Government.
17. **Funds under Disaster Management Act:** (1) **National Disaster Response Fund (NDRF)**: Managed by Central Government under Section 46 for meeting emergency expenses; (2) **National Disaster Mitigation Fund (NDMF)**; parallel State Disaster Response Fund (SDRF) and District Disaster Response Fund (DDRF).
18. **Right to Education (RTE) Act, 2009:** Enacted to give statutory effect to **Article 21A**; came into force on **1 April 2010**; guarantees free and compulsory elementary education (Class 1 to 8) to all children of **6 to 14 years**.
19. **Key RTE Provisions: Section 12(1)(c)** mandates **at least 25% reservation of seats** in Class 1 (or pre-school) in private unaided schools for children belonging to **economically weaker sections and disadvantaged groups**; prohibits screening tests and capitation fees; pupil-teacher ratio (PTR) fixed at **30:1 for primary** and **35:1 for upper primary**.
20. **RTE Prohibitions:** Completely bans physical punishment, mental harassment, unrecognized schools, private tuition by teachers, and deployment of teachers for non-educational work (except decennial census, disaster relief, and elections).
21. **Whistleblowers Protection Act, 2014:** Enacted to establish a mechanism to receive complaints relating to disclosure of corruption or wilful misuse of power against any public servant, and to provide safeguards against victimization of whistleblowers; designated competent authority is the **Central Vigilance Commission (CVC)**.
22. **Citizen's Charter (नागरिक अधिकार-पत्र):** Originates from the **Citizen's Charter initiative in the UK (1991)** under Prime Minister John Major; represents a voluntary written declaration by public service providers outlining commitments regarding standards, quality, transparency, choice, accessibility, and grievance redressal.
23. **Citizen's Charter in India:** First adopted at the Chief Ministers' Conference in **May 1997**; coordinated by the **Department of Administrative Reforms and Public Grievances (DARPG)**; **Citizen's Charters are NOT legally enforceable in courts of law** (voluntary administrative standards).
24. **Sevottam Model (सेवोत्तम मॉडल):** A quality management framework developed by DARPG in 2006 to assess public service delivery; rests on 3 modules: (1) Citizen's Charter; (2) Public Grievance Redress Mechanism; (3) Service Delivery Capability.
25. **Centralised Public Grievance Redress and Monitoring System (CPGRAMS):** Online web-enabled platform developed by NIC and DARPG in 2007; facilitates 24x7 lodging and tracking of grievances against Central and State government departments.
26. **E-Governance Initiatives:** National e-Governance Plan (NeGP) approved in 2006 with 31 Mission Mode Projects; **Digital India Programme** launched on **1 July 2015** with 3 vision areas: (1) Digital Infrastructure as core utility; (2) Governance and Services on Demand; (3) Digital Empowerment of citizens.
27. **Digital Personal Data Protection (DPDP) Act, 2023:** Regulates the processing of digital personal data; establishes the **Data Protection Board of India** as an adjudicatory body; imposes penalties of up to **₹250 crore** for failure to prevent personal data breaches; grounds for processing include consent and 'legitimate uses'.
28. **Section 4 of RTI Act (Proactive Disclosure):** Mandates that every public authority shall maintain all its records catalogued and indexed, and **suo motu publish 17 categories of information** within 120 days of enactment, minimizing the need for citizens to file formal RTI requests.
29. **Lokpal Inquiry and Prosecution Wings:** Under the Lokpal Act 2013, Lokpal has its own **Inquiry Wing** headed by Director of Inquiry and **Prosecution Wing** headed by Director of Prosecution; can utilize any government agency including CBI.
30. **Timeline for Lokpal Inquiries:** Preliminary inquiry must be completed within **90 days** (extendable by 90 days); investigation must be completed within **6 months**; trial before Special Court must be completed within **1 year** (extendable up to 2 years).
31. **Citizen's Charter Bill, 2011:** The Right of Citizens for Time Bound Delivery of Goods and Services and Redressal of their Grievances Bill, 2011 lapsed upon dissolution of 15th Lok Sabha; however, over 20 States (including UP under UP Janhit Guarantee Act, 2011) have enacted their own **Public Service Delivery Guarantee Acts** providing statutory timelines and penalties for delay.
32. **National Food Security Act (NFSA), 2013:** Enacted on 5 July 2013; gives legal entitlement to subsidized foodgrains to **75% of rural population and 50% of urban population** (~67% of total population); entitles priority households to **5 kg of foodgrains per person per month** at ₹3/kg rice, ₹2/kg wheat, and ₹1/kg coarse grains; Antyodaya Anna Yojana (AAY) households continue to receive **35 kg per household per month**.
33. **NFSA Women Empowerment & Maternity Benefit:** Section 13 mandates that the **eldest woman of 18 years of age or above** in every eligible household shall be the head of the household for the issue of ration cards; Section 4 guarantees maternity benefit of **not less than ₹6,000** for pregnant and lactating mothers.
34. **Scheduled Tribes and Other Traditional Forest Dwellers (FRA), 2006:** Enacted by Parliament; nodal agency is the **Ministry of Tribal Affairs (MoTA)**; cut-off date to prove occupation is **13 December 2005**; recognizes individual and community forest rights over land up to a ceiling of **4 hectares**.
35. **Gram Sabha Authority under FRA:** The **Gram Sabha is designated as the competent statutory authority** to initiate the process for determining the nature and extent of individual and community forest rights, receive claims, and pass resolutions.
36. **Protection of Human Rights Act (PHRA), 1993:** Enacted under Article 253 to establish NHRC and State HRCs; 2019 Amendment allows a **former Judge of the Supreme Court** (in addition to retired CJI) to be appointed NHRC Chairperson; reduced tenure from 5 years to **3 years (or age 70)**, making members eligible for reappointment.
37. **Consumer Protection Act (CPA), 2019:** Replaced the 1986 Act; established the **Central Consumer Protection Authority (CCPA)** with an Investigation Wing headed by Director-General; introduces strict **product liability** against manufacturers/sellers, and regulates misleading advertisements and e-commerce transactions.
38. **Pecuniary Jurisdiction under CPA 2019 (2021 Rules):** District Consumer Disputes Redressal Commission hears claims up to **₹50 lakh**; State Commission hears claims between **₹50 lakh and ₹2 crore**; National Commission (NCDRC) hears claims exceeding **₹2 crore**.
39. **Panchayats (Extension to Scheduled Areas) Act (PESA), 1996:** Enacted on the recommendations of the **Dilip Singh Bhuria Committee**; extends Part IX of the Constitution to **Fifth Schedule areas across 10 States**; empowers the Gram Sabha to approve plans, manage minor forest produce (MFP), prevent land alienation, and regulate minor minerals.
40. **SC/ST (Prevention of Atrocities) Act, 1989:** Section 18 bars anticipatory bail under Section 438 CrPC; following the SC ruling in *Subhash Kashinath Mahajan (2018)*, Parliament enacted the **2018 Amendment Act inserting Section 18A**, clarifying that no preliminary inquiry or prior sanction is required before registering an FIR or making an arrest.

41. **Protection of Children from Sexual Offences (POCSO) Act, 2012:** Defines a child as any person **below 18 years of age**; gender-neutral legislation; Section 19 makes reporting of sexual offences mandatory; provides for child-friendly Special Courts; 2019 amendment introduces the death penalty for aggravated penetrative sexual assault.
42. **Prevention of Corruption Act (PCA), 1988:** 2018 Amendment inserted **Section 17A**, requiring prior police approval from the competent authority before conducting any inquiry/investigation into offences by public servants; explicitly criminalized the **giving of a bribe (Section 8)** with up to 7 years imprisonment (bribe giver granted 7-day reporting safe harbour).
43. **Citizenship (Amendment) Act (CAA), 2019:** Amends Citizenship Act 1955 to grant fast-tracked eligibility for citizenship to persecuted religious minorities (**Hindus, Sikhs, Buddhists, Jains, Parsis, Christians**) from **Pakistan, Bangladesh, and Afghanistan** who entered India on or before **31 December 2014**; reduces residency requirement from 11 to **5 years**.
44. **The Four Labour Codes (2019–2020):** Consolidates 29 central labour enactments into 4 streamlined codes: (1) **Code on Wages, 2019**; (2) **Industrial Relations Code, 2020**; (3) **Social Security Code, 2020**; (4) **Occupational Safety, Health and Working Conditions (OSH) Code, 2020**.
45. **Code on Wages, 2019:** Subsumes 4 central labour statutes: Payment of Wages Act 1936, Minimum Wages Act 1948, Payment of Bonus Act 1965, and Equal Remuneration Act 1976; universalizes minimum wage coverage to all workers across organized and unorganized sectors and empowers Centre to fix a statutory **National Floor Wage**.
46. **Representation of the People Act (RPA), 1950:** Provides for the allocation of seats in the Lok Sabha and State Legislative Assemblies, delimitation of constituencies, qualifications of voters, and preparation and periodic revision of electoral rolls.
47. **Representation of the People Act (RPA), 1951:** Provides for the actual conduct of elections, qualifications and disqualifications of MPs and MLAs, corrupt practices and electoral offences, resolution of election disputes via High Court election petitions, and **registration of political parties under Section 29A**.
48. **Mission Karmayogi (NPCSCB):** Approved by Cabinet in September 2020 as the National Programme for Civil Services Capacity Building; overseen by the Prime Minister's Public Human Resources Council; operationalized by the **Capacity Building Commission (CBC)** and the **iGOT Karmayogi platform** for anytime-anywhere digital learning.
49. **Second Administrative Reforms Commission (2nd ARC):** Constituted in August 2005 under **Veerappa Moily** (later succeeded by Ramachandran); submitted **15 landmark reports**; Report 1: "Right to Information: Master Key to Good Governance"; Report 4: "Ethics in Governance" (recommended Civil Service Code); Report 12: "Citizen Centric Administration".
50. **Social Audit (सामाजिक अंकेक्षण):** A process wherein the beneficiaries and citizens audit the implementation of public programs and expenditures against official records; institutionalized under **Section 17 of MGNREGA, 2005** to be conducted by the **Gram Sabha**; **Meghalaya** was the first State to pass a dedicated Social Audit law in 2017.
51. **Right to Information (RTI) Act, 2005 Timelines:** Normal application response time is **30 days**; if information concerns **life or liberty of a person**, information must be provided within **48 hours**; if application submitted to an Assistant Public Information Officer (APIO), add **5 days** (35 days total); if third party interests involved (Section 11), timeline is **40 days**; failure to decide within specified period deemed refusal.
52. **RTI Act Appeals & Penalties:** First Appeal under Section 19(1) to senior officer in same public authority within **30 days** (decided within 30–45 days); Second Appeal under Section 19(3) to Central/State Information Commission within **90 days**; Central/State IC can impose penalty of **₹250 per day up to maximum ₹25,000** under Section 20(1) on defaulting PIO for malafide delay/denial, and recommend disciplinary action under Section 20(2).
53. **RTI Section 8 Exemptions (High-Yield):** Section 8(1) lists 10 categories of exempted information: (a) Sovereignty and integrity of India, security, strategic/scientific interests; (b) Forbidden by court of law or contempt of court; (c) Breach of parliamentary privilege; (d) Commercial confidence, trade secrets, intellectual property; (e) Fiduciary relationship; (f) Information received in confidence from foreign government; (g) Endanger life or physical safety of any person; (h) Impede investigation or apprehension of offenders; (i) Cabinet papers (exempt during deliberations; open after decision made); (j) Personal information with no public interest.
54. **Citizen's Charter Origin and Evolution in India:** Concept originated in the United Kingdom under Prime Minister **John Major in 1991**; introduced in India at the Chief Ministers' Conference in **May 1997**; Citizen's Charter is a voluntary declaration by public service delivery agencies about their service standards, choice, accessibility, non-discrimination, transparency, and accountability; Charters are **NOT legally enforceable / non-justiciable** in courts of law.
55. **Sevottam Model of Public Service Delivery:** Developed by Department of Administrative Reforms and Public Grievances (DARPG) in 2006; an assessment-improvement framework for public service delivery consisting of 3 modules: (1) Citizen's Charter, (2) Public Grievance Redress Mechanism, and (3) Service Delivery Capability.
56. **Central Public Grievance Redress and Monitoring System (CPGRAMS):** Online web-enabled system developed by DARPG in 2007 for lodging, tracking, and redressing citizen grievances across central ministries and departments; mapped to single citizen grievance portal with mandated redressal timeline (presently 21–30 days).
57. **Whistle Blowers Protection Act, 2011 (Enacted 2014):** Provides a statutory mechanism for receiving and investigating complaints relating to corruption or willful misuse of power by public servants and protecting whistleblowers from victimization; Central Vigilance Commission (CVC) designated as the competent authority to receive public interest disclosures; provides penalty of imprisonment up to 2 years and fine up to ₹30,000 for false or frivolous disclosures.
58. **Prevention of Corruption Act, 1988 (2018 Amendment Highlights):** Amended in 2018 to align with UN Convention Against Corruption (UNCAC); Section 7 makes both bribe-taking and **bribe-giving a specific penal offence** (bribe-giver punishable with up to 7 years imprisonment unless reported within 7 days); Section 17A introduces mandatory **prior approval of competent authority** before investigating any decision taken by a public servant in discharge of official functions.
59. **Lokpal and Lokayuktas Act, 2013 Inquiry Machinery:** Lokpal can refer complaints to its own Inquiry Wing or to the **Central Bureau of Investigation (CBI)**; CBI officers investigating Lokpal cases cannot be transferred without Lokpal's prior approval; Lokpal has powers of search, seizure, and provisional attachment of property under Prevention of Money Laundering Act (PMLA).
60. **Mission Karmayogi (National Programme for Civil Services Capacity Building - NPCSCB):** Launched in September 2020 by Union Cabinet; aims to transition civil servants from 'rules-based' to 'roles-based' competency framework; operates through digital learning platform **iGOT Karmayogi** (Integrated Government Online Training); overseen by Capacity Building Commission (CBC).
61. **Direct Benefit Transfer (DBT) Governance Architecture:** Launched on **1 January 2013** across 20 districts in India; transfers subsidies and welfare entitlements directly into bank accounts of beneficiaries; underpinned by the **JAM Trinity** (Jan Dhan Yojana, Aadhaar, Mobile numbers) to eliminate middlemen, ghost beneficiaries, and administrative leakage.

62. **Aadhaar (Targeted Delivery of Financial and Other Subsidies) Act, 2016:** Enacted as a Money Bill; statutory basis for UIDAI (Unique Identification Authority of India); in *K.S. Puttaswamy (Aadhaar Judgment, 2018)*, 5-judge bench upheld constitutional validity of Aadhaar for welfare subsidies (Section 7), but struck down Section 57 (private companies cannot demand Aadhaar) and requirement for bank accounts and school admissions.
63. **e-Governance National E-Governance Plan (NeGP):** Approved in May 2006 with 27 Mission Mode Projects (MMPs) (expanded to 31 MMPs); foundational core infrastructure comprises: State Data Centres (SDC), State Wide Area Networks (SWAN), and Common Services Centres (CSCs); Digital India programme launched on **1 July 2015** to transform India into a digitally empowered society and knowledge economy.
64. **Gram Nyayalayas Implementation Issues:** Recommended by Law Commission 114th Report and enacted in 2008; aimed at establishing 5,000+ courts; as of 2024, fewer than 300 Gram Nyayalayas are operational across 15 states due to reluctant state funding, lack of police infrastructure, and opposition from local bar associations.
65. **Right to Public Services Legislation in Indian States: Madhya Pradesh was the first State in India to enact a Public Service Guarantee Act (Madhya Pradesh Lok Sewaon Ke Pradan Ki Guarantee Adhiniyam, 2010)**; Uttar Pradesh enacted the **Uttar Pradesh Janhit Guarantee Adhiniyam, 2011** guaranteeing time-bound delivery of notified public services with penal fines on defaulting officers.

⏱️ Timeline / Chronology

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1950 — RPA 1950 (Allocation of seats, Delimitation & Electoral Rolls)
1951 — RPA 1951 (Conduct of Elections, Corrupt practices, Disqualifications)
1955 — Protection of Civil Rights Act (PCR Act) & Citizenship Act
1988 — Prevention of Corruption Act (PCA) (Amended 2018: s.17A prior approval)
1989 — SC/ST (Prevention of Atrocities) Act (Amended 2018: s.18A inserted)
1993 — Protection of Human Rights Act (PHRA) (NHRC established; Amended 2019)
1996 — PESA Act (Extension of 73rd Amendment to 5th Schedule areas)
1997 — Tamil Nadu passes 1st State RTI Act; Citizen Charter adopted at CM Conference
2005 — Right to Information (RTI) Act (Full enforcement: 12 Oct 2005)
2005 — Disaster Management Act (NDMA chaired by PM; SDRF/NDRF created)
2005 — 2nd Administrative Reforms Commission (Veerappa Moily, 15 reports)
2006 — Forest Rights Act (FRA) & Sevottam Delivery Model formulated
2009 — Right to Education (RTE) Act (Came into force: 1 April 2010)
2012 — POCSO Act (Protection of Children from Sexual Offences)
2013 — National Food Security Act (NFSA) & POSH Act (Workplace harassment)
2014 — Whistleblowers Protection Act & Lokpal and Lokayuktas Act
2015 — Digital India Programme launched (1 July 2015)
2019 — Consumer Protection Act 2019 (CCPA formed) & CAA 2019
2019 — Code on Wages, 2019 (Subsumes 4 historic wage laws)
2020 — 3 Labour Codes enacted (IR Code, Social Security Code, OSH Code)
2020 — Mission Karmayogi launched (NPCSCB for civil service capacity)
2023 — Digital Personal Data Protection (DPDP) Act (Data Protection Board)
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📊 Quick Reference Grid

Key Governance Statutes at a Glance

STATUTE / POLICY	YEAR & ENFORCEMENT	NODAL MINISTRY / AUTHORITY	APEX STATUTORY CHAIR / HEAD	NON-NEGOTIABLE PRELIMS TRAPS
RTI Act	Assent: 15 June 2005 Enforced: 12 Oct 2005	Ministry of Personnel (DoPT)	Chief Information Commissioner (CIC)	48 hrs for life/liberty; overrides Official Secrets Act (s.22); second appeal within 90 days.
Disaster Management Act	2005 (In force: Jan 2006)	Ministry of Home Affairs (MHA)	**Prime Minister** (NDMA) **Chief Minister** (SDMA)	Chaired by PM, NOT Home Minister; DDMA co-chaired by DM and Zila Parishad Chair.
RTE Act	2009 (In force: 1 Apr 2010)	Ministry of Education	NCPCR / SCPCR (Monitoring)	25% quota in private schools (s.12(1)(c)); PTR 30:1 (Primary), 35:1 (Upper Primary).
NFSA	5 July 2013	Ministry of Consumer Affairs, Food & PD	State Food Commissions	Covers 75% rural, 50% urban (67% total); woman 18+ head of household; Rs 6000 maternity aid.
Forest Rights Act (FRA)	2006 (Cut-off: 13 Dec 2005)	**Ministry of Tribal Affairs (MoTA)**	Gram Sabha (Initiating authority)	Vested in Gram Sabha; ceiling up to 4 ha; MoTA is nodal, NOT Environment Ministry.
Consumer Protection Act	2019 (Replaced 1986 Act)	Ministry of Consumer Affairs	Central Consumer Protection Authority (CCPA)	Created CCPA; product liability; e-commerce covered; District <= 50L, State 50L-2Cr, National > 2Cr.
PESA Act	1996	Ministry of Panchayati Raj	Gram Sabha (Empowered tier)	Extends to 10 States with 5th Schedule areas; Bhuria Committee; minor forest produce ownership.
POCSO Act	2012 (Amended 2019)	Ministry of Women & Child Dev	Special POCSO Courts	Child is strictly below 18 years; gender-neutral; mandatory reporting (s.19); capital punishment in 2019.

Four Labour Codes Consolidation Grid

CODE NAME	YEAR	SUBSUMED PRE-EXISTING LAWS	CORE MANDATE & KEY FEATURES
Code on Wages	2019	Payment of Wages Act 1936, Minimum Wages Act 1948, Payment of Bonus Act 1965, Equal Remuneration Act 1976 (4 Acts)	Universalizes minimum wage to all sectors; introduces statutory National Floor Wage.
Industrial Relations Code	2020	Trade Unions Act 1926, Industrial Employment (Standing Orders) Act 1946, Industrial Disputes Act 1947 (3 Acts)	Threshold for standing orders & closure/lay-off retrenchment without prior permission raised to **300 workers**.
Code on Social Security	2020	EPF Act 1952, ESI Act 1948, Maternity Benefit Act 1961, Gratuity Act 1972, Unorganised Workers' Social Security Act 2008, etc. (9 Acts)	Extends social security coverage to gig workers and platform workers; creates National Social Security Board.
OSH Code	2020	Factories Act 1948, Mines Act 1952, Dock Workers Act 1986, Contract Labour Act 1970, Inter-State Migrant Workmen Act 1979, etc. (13 Acts)	Standardizes working conditions, health and safety; covers contract labour and inter-state migrant workers.

🧠 Memory Anchors & Mnemonics

1. RTI Response Timelines: "48H - 30D - 35D - 40D - 90D"

- **48 Hours:** Life or Personal Liberty (व्यक्ति के जीवन या स्वतंत्रता का मामला — शीर्ष प्राथमिकता).
- **30 Days:** Normal request to PIO (सामान्य सूचना).
- **35 Days:** If submitted to Assistant PIO (एपीआईओ के माध्यम से).
- **40 Days:** Third-party information consultation (तृतीय पक्ष सूचना).
- **90 Days:** Limitation period to file Second Appeal to CIC/SIC (द्वितीय अपील).

2. PESA 10 States: "BIG MO CART" Trap-Proof Mnemonic

Remember: **BIHAR IS NOT IN PESA!** (No Fifth Schedule areas in Bihar or UP). - **B / A:** Andhra Pradesh (AP) - **T:** Telangana - **O:** Odisha - **M:** Madhya Pradesh & Maharashtra - **G:** Gujarat - **R:** Rajasthan - **C:** Chhattisgarh - **H / J:** Himachal Pradesh & Jharkhand

3. Sevottam Model 3 Pillars: "CAP"

- **C: C**itizen's Charter (नागरिक अधिकार पत्र का क्रियान्वयन).
- **A: A**ction on Grievances (लोक शिकायत निवारण प्रणाली — CPGRAMS).
- **P: P**erformance Capability of Service Delivery (सेवा वितरण क्षमता संवर्धन).

4. Four Labour Codes: "W-I-S-O"

- **W: W**ages Code, 2019 (Subsumes 4 wage laws; statutory floor wage).
- **I: I**ndustrial Relations Code, 2020 (300 worker threshold for closure/layoffs).
- **S: S**ocial Security Code, 2020 (Covers gig and platform workers).
- **O: O**ccupational Safety, Health & Working Conditions (OSH) Code, 2020 (Contract labour, safety).

Chapter 20: Internal Security & Law Enforcement

Current Affairs & High-Yield Updates

YEAR/REF	KEY EVENT / DEVELOPMENT	WHAT YOU MARK / EXAM RELEVANCE
2025 Focus	**BHARATPOL Portal Launch**	Developed and operated by the **Central Bureau of Investigation (CBI)** because CBI is India's officially designated **Interpol National Central Bureau (NCB-New Delhi)**; NOT IB, RAW, or ED.
2024 Focus	**Abujhmad / Kanker Anti-Maoist Encounter**	Took place in **Kanker district, Chhattisgarh** (Binagunda/Abujhmad forest); carried out jointly by **BSF + District Reserve Guard (DRG)**. Remember: DRG is a **Chhattisgarh** police unit; Maharashtra's specialized LWE unit is **C-60**.
2022 Focus	**CERT-In Cyber Incident Reporting Guidelines**	Mandates reporting of 20 specified cyber security incidents within **6 hours** of detection and storing system logs for **5 years**; CERT-In functions under **MeitY (Section 70B of IT Act, 2000)**, NOT Ministry of Home Affairs.
2022 Focus	**AFSPA Territorial Rationalization**	AFSPA withdrawn from large swathes of **Assam, Nagaland, and Manipur**; AFSPA is applied via administrative notification under Section 3, not a static permanent all-India statute.
2020 Focus	**Indian Cyber Crime Coordination Centre (I4C)**	Established by **Ministry of Home Affairs (MHA)**; operates **cybercrime.gov.in** and national helpline **1930**; focuses on citizen cybercrime complaints (distinct from technical vulnerability response of CERT-In).
2019 Focus	**UAPA & NIA Amendment Acts, 2019**	Under UAPA 2019, Centre can designate **individuals as terrorists** (4th Schedule); NIA DG can seize property without State DGP sanction; NIA given extraterritorial powers outside India.

Consolidated Must-Score Facts

1. **Constitutional Distribution of Security Powers: 'Police' and 'Public Order' are State subjects** under **List II (State List), Entries 1 and 2 of the Seventh Schedule**; the Union Government derives powers to deploy armed forces and intervene from **Article 355** (duty to protect States against external aggression and internal disturbance) and **Entry 2A of List I (Union List)** (deployment of any armed force of the Union).
2. **National Security Council (NSC) Apex Architecture:** Established in **1998** under the Prime Minister's Office; headed by the **Prime Minister of India**; the **National Security Advisor (NSA)** serves as the Member-Secretary; comprises a 3-tier structure: (1) Strategic Policy Group (SPG), (2) National Security Advisory Board (NSAB), (3) National Security Council Secretariat (NSCS).
3. **Strategic Policy Group (SPG) Chairmanship:** The SPG is the primary inter-ministerial coordination mechanism for security; **chaired by the Cabinet Secretary** (not the NSA, though NSA convenes NSC meetings); includes Cabinet Secretary, Chiefs of 3 Armed Forces, IB Director, RAW Chief, and Union Secretaries.
4. **Cabinet Committee on Security (CCS):** The supreme executive decision-making body on national security and defence; consists of exactly **5 members**: (1) Prime Minister (Chair), (2) Minister of Defence, (3) Minister of Home Affairs, (4) Minister of External Affairs, (5) Minister of Finance.
5. **Central Armed Police Forces (CAPF) Nodal Ministry:** All 7 Central Armed Police Forces (CRPF, BSF, CISF, ITBP, SSB, Assam Rifles, and NSG) function administratively under the **Ministry of Home Affairs (MHA)**; none belong to the Ministry of Defence.
6. **Central Reserve Police Force (CRPF):** India's largest CAPF; originally raised in **1939 as the Crown Representative's Police**; enacted as CRPF under the CRPF Act, **1949**; primary strike force for internal security, counter-insurgency, and election security; motto: "*Service and Loyalty*" (सेवा और निष्ठा).
7. **Specialized Wings of CRPF:** Includes: (1) **Rapid Action Force (RAF)**: Raised in 1992 (15 battalions) in distinctive blue camouflage for riot control and communal harmony; (2) **CoBRA (Commando Battalion for Resolute Action)**: Raised in 2008 (10 battalions) specifically for jungle warfare against Left-Wing Extremism (LWE).
8. **Border Security Force (BSF):** Raised on **1 December 1965** under K.F. Rustamji following the 1965 Indo-Pak War; enacted under BSF Act, 1968; guards the **Indo-Pakistan (3,323 km) and Indo-Bangladesh (4,096 km) borders**; motto: "*Duty Unto Death*" (जीवन पर्यन्त कर्तव्य).
9. **Indo-Tibetan Border Police (ITBP):** Raised on **24 October 1962** during the Sino-Indian conflict under the ITBP Force Act, 1992; guards the **3,488 km India-China (LAC) border** from Karakoram Pass (Ladakh) to Jachep La (Arunachal Pradesh); high-altitude mountain warfare specialist force; motto: "*Valour, Steadfastness, and Commitment*" (शौर्य, दृढ़ता, कर्म निष्ठा).
10. **Sashastra Seema Bal (SSB):** Originally set up in **1963 as Special Service Bureau** post-Chinese aggression; placed under MHA in 2001 and renamed Sashastra Seema Bal; guards the **Indo-Nepal (1,751 km) and Indo-Bhutan (699 km)** open borders; motto: "*Service, Security and Brotherhood*" (सेवा, सुरक्षा और बन्धुत्व).
11. **Central Industrial Security Force (CISF):** Established in **1969** under an Act of Parliament; provides integrated security cover to sensitive public/private industrial establishments, nuclear installations, space research centres, **all commercial airports**, and the **Delhi Metro**; only CAPF having a dedicated Fire Wing.
12. **Assam Rifles (AR) — The Dual Control Exception:** Oldest paramilitary force in India, raised in **1835 as 'Cachar Levy'**; known as "*Sentinels of the Northeast*"; uniquely operates under **DUAL CONTROL**: **Administrative control under Ministry of Home Affairs (MHA)**, but **Operational control under the Ministry of Defence / Indian Army**; guards the **Indo-Myanmar border (1,643 km)**; headquarters located in **Shillong, Meghalaya**.
13. **National Security Guard (NSG) — 'Black Cats':** Created in **1984** under the NSG Act following Operation Blue Star; India's premier federal contingency counter-terrorism force; operates under MHA; personnel drawn entirely on deputation from the Army (Special Action Group - SAG) and CAPFs (Special Ranger Group - SRG); motto: "*Omnipresent Omnipotent Security*" (सर्वत्र सर्वोत्तम सुरक्षा).
14. **Special Protection Group (SPG):** Raised in **1985** after Indira Gandhi's assassination; enacted by SPG Act, 1988; amended in 2019 to restrict proximate security cover **EXCLUSIVELY to the Prime Minister of India** and immediate family members residing with PM at the official residence.
15. **Intelligence Bureau (IB):** India's premier domestic intelligence and counter-espionage agency; traces lineage to 1887; functions under the **Ministry of Home Affairs**; primarily responsible for internal intelligence, border intelligence, and counter-subversion within India.
16. **Research and Analysis Wing (RAW):** India's external intelligence agency; founded on **21 September 1968** under **Rameshwar Nath Kao (R.N. Kao)** following intelligence gaps in the 1962 and 1965 wars; functions directly under the **Cabinet Secretariat (Prime Minister's Office)**, NOT under the Ministry of Home Affairs.

17. **Multi-Agency Centre (MAC):** Operationalized in **2001** following the Kargil Review Committee recommendations; housed in New Delhi under the **Intelligence Bureau (IB)**; acts as a 24x7 nodal fusion centre for intelligence sharing among 28 security and financial agencies; complemented by State MACs (SMACs) in state capitals.
18. **National Intelligence Grid (NATGRID):** Approved post-26/11 Mumbai attacks in 2009; an integrated intelligence master database framework connecting **21 core databases** (banking, telecom, immigration, vehicle registration, airlines) to provide real-time tracking data to 11 security agencies; attached office of **Ministry of Home Affairs**.
19. **National Investigation Agency (NIA):** Enacted under the **National Investigation Agency Act, 2008** following the 26/11 Mumbai terror attacks; India's premier central counter-terrorism law enforcement agency; headed by a Director-General (DG); has **all-India concurrent jurisdiction without requiring State Government consent** (unlike CBI under DSPE Act).
20. **NIA Amendment Act, 2019 Expansions:** Empowers NIA to investigate scheduled offences committed **outside India affecting Indian citizens or interests** (Special Court in New Delhi); added scheduled offences: cyber-terrorism (s.66F IT Act), human trafficking, counterfeit currency, and offences under the Explosive Substances Act; empowers NIA Inspector-rank officers to investigate.
21. **Armed Forces Special Powers Act (AFSPA), 1958:** Enacted under Article 248; empowers the Central Government, Governor of a State, or Administrator of a UT to declare any area as a **"Disturbed Area" (Section 3)**; Section 4 grants armed forces officers power to use lethal force, arrest without warrant, and enter/search premises without warrant; **Section 6 provides mandatory immunity**: no prosecution or legal proceeding can be instituted against military personnel without prior central government sanction.
22. **Judicial Validity and Review of AFSPA:** In ***Naga People's Movement for Human Rights v. Union of India (1997)***, the Supreme Court upheld the constitutional validity of AFSPA but mandated adherence to the Army's "Do's and Don'ts"; in ***EEVFAM v. Union of India (2016)***, SC ruled that armed forces do not enjoy absolute immunity in cases of fake encounters; Justice **B.P. Jeevan Reddy Committee (2005)** recommended the total repeal of AFSPA.
23. **Unlawful Activities (Prevention) Act (UAPA), 1967:** India's primary anti-terror legislation; enacted under Article 19(2) reasonable restrictions; extensively amended in 2004 (incorporating POTA provisions), 2008, 2012, and 2019; **Section 35 (2019 Amendment)** empowers Central Government to designate an **INDIVIDUAL as a terrorist** (added to Fourth Schedule); allows DG NIA to sanction seizure of property without State DGP consent.
24. **Cyber Security Institutional Framework (Section 70A vs 70B): NCIIPC** is established under **Section 70A** of IT Act, 2000 as the nodal agency for Critical Information Infrastructure (CII) protection under **NTRO (PMO)**; **CERT-In** is established under **Section 70B** under **MeitY** as the national agency for computer security incident response.
25. **National Cyber Coordination Centre (NCCC):** Operationalized under CERT-In to generate near real-time cyber situational awareness and scan internet metadata traffic entering India's gateways.
26. **Indian Cyber Crime Coordination Centre (I4C):** Operationalized in **2020 under the Ministry of Home Affairs**; comprises 7 verticals including National Cybercrime Threat Analytics Unit, Citizen Financial Cyber Fraud Reporting System, and Platform for Joint Cybercrime Coordination; manages national cyber hotline **1930**.
27. **Coastal Security Three-Tier Architecture:** (1) **Tier 1 (0 to 12 nautical miles):** Marine Police of coastal States/UTs; (2) **Tier 2 (12 to 200 nautical miles / EEZ): Indian Coast Guard** (established under Coast Guard Act, 1978 under **Ministry of Defence**); (3) **Tier 3 (Beyond 200 nautical miles / High Seas): Indian Navy** (overall commander-in-chief of maritime and coastal defence).
28. **Left-Wing Extremism (LWE) State Counter-Insurgency Units:** Elite state police commando wings raised to fight Maoist insurgency: **Greyhounds** (Andhra Pradesh & Telangana - pioneered tactical jungle warfare); **C-60** (Maharashtra - Gadchiroli); **Special Operation Group - SOG** (Odisha); **District Reserve Guard - DRG** and **STF** (Chhattisgarh); **Jharkhand Jaguars** (Jharkhand).
29. **Prakash Singh v. Union of India (2006) — Police Reforms:** Landmark SC judgment laying down 7 binding directives: (1) State Security Commission; (2) Minimum 2-year tenure for DGP; (3) Minimum 2-year tenure for SP and SHO; (4) Separation of investigation from law & order; (5) Police Establishment Board (PEB) for transfers; (6) Police Complaints Authority (PCA) at State and District levels; (7) National Security Commission at Union level.
30. **National Technical Research Organisation (NTRO):** Established in **2004** under the Prime Minister's Office (Cabinet Secretariat) on recommendations of the Group of Ministers post-Kargil; premier technical intelligence and surveillance agency for satellite imagery, cyber systems, and electronic intelligence.
31. **Financial Intelligence Unit - India (FIU-IND):** Set up in **2004** under the Department of Revenue, Ministry of Finance; acts as national nodal agency for receiving, analyzing, and disseminating Cash Transaction Reports (CTRs) and Suspicious Transaction Reports (STRs) under Prevention of Money Laundering Act (PMLA), 2002.
32. **Enforcement Directorate (ED):** Formed in **1956** as an Enforcement Unit under Department of Economic Affairs; transferred to Department of Revenue, Ministry of Finance in 1960; enforces the **Prevention of Money Laundering Act (PMLA), 2002** and **Foreign Exchange Management Act (FEMA), 1999**; has powers of summons, search, seizure, and attachment of proceeds of crime.
33. **National Security Council Secretariat (NSCS):** Headed by the National Security Advisor; provides administrative and analytical support to the 3-tier NSC; coordinates integrated defence assessments and security policy inputs across intelligence, diplomacy, and defence.
34. **National Central Bureau (NCB-New Delhi) for Interpol:** The **Central Bureau of Investigation (CBI)** is designated as the sole liaison agency for all international police cooperation via Interpol; communicates Red Notices and extradition warrants on behalf of Indian law enforcement.
35. **Border Area Development Programme (BADP):** Centrally funded scheme administered by the **Department of Border Management, Ministry of Home Affairs**; covers border blocks located along international land borders to meet special developmental needs of border populations.
36. **Comprehensive Integrated Border Management System (CIBMS):** A smart border fencing initiative deploying thermal imagers, aerostats, underground vibration sensors, and laser barriers to secure riverine, desert, and forested border terrains where physical fencing is unfeasible (operationalized by BSF).
37. **Special Frontier Force (SFF) — 'Establishment 22':** Elite paramilitary special operations force raised in **1962** under Major General Sujan Singh Uban post-Sino-Indian war; primarily recruited from Tibetan refugees; operates under the direct command of the **Cabinet Secretariat / RAW** and supervised by the Prime Minister.
38. **Assam Rifles Operational Role:** Deployed in internal security in the North-East and counter-insurgency operations under Army operational commands; operates under **Director General Assam Rifles (DG AR)**, an officer of Lieutenant General rank seconded from the Indian Army; HQ at **Laitkor, Shillong**.
39. **BSF Air and Water Wings:** BSF is the only CAPF possessing an organic **Water Wing** (patrolling Sir Creek in Gujarat and the Sunderbans in West Bengal with fast patrol crafts) and an **Air Wing** (transport aircraft and helicopters for logistics and troop movement).
40. **ITBP High-Altitude Deployment:** Deployed at forward border outposts (BOPs) at altitudes ranging up to **18,750 feet** in extreme sub-zero weather conditions; trained in specialized mountaineering, ski-patrolling, and disaster response in the Himalayas.

41. **Narcotics Control Bureau (NCB):** Constituted in **1986** under Section 4(3) of the Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985; operates under the **Ministry of Home Affairs**; apex coordinating and law enforcement agency for combating illicit drug trafficking and drug abuse.
42. **Central Bureau of Investigation (CBI) Statutory Roots:** Derived not from a standalone CBI Act, but from the **Delhi Special Police Establishment (DSPE) Act, 1946**; functions under the **Ministry of Personnel, Public Grievances and Pensions (DoPT)**; requires **General Consent of the State Government under Section 6** to investigate within State boundaries (unless ordered by SC or HC).
43. **Special Task Force (STF) UP Police:** Elite specialized unit of Uttar Pradesh Police formed in **1998** to neutralize organized crime syndicates, contract killers, illicit arms cartels, and interstate criminal gangs in UP.
44. **UP Anti-Terrorism Squad (ATS):** Formed in **2007** under the Uttar Pradesh Police; specialized operational wing dedicated to investigating terror threats, sleeper cells, FICN (fake Indian currency notes), and extremist conspiracies targeting UP.
45. **Armed Forces Act Exemptions vs CAPFs:** Personnel of the regular Army, Navy, and Air Force are governed by the Army Act 1950, Navy Act 1957, and Air Force Act 1950; personnel of CAPFs are governed by their respective statutory Acts (e.g., CRPF Act 1949, BSF Act 1968, ITBP Act 1992) and are legally classified as **civil armed forces of the Union**, not regular Armed Forces.
46. **Border Management Department:** Created in **2004** within the Ministry of Home Affairs on the recommendations of the Kargil Group of Ministers; oversees border fencing, roads, floodlighting, border outposts (BOPs), and integrated check posts (ICPs) managed by the Land Ports Authority of India (LPAI).
47. **Unlawful Association Declaration under UAPA:** Central Government can declare an organization an "unlawful association" under Section 3 of UAPA; notification is valid for **5 years** (amended from 2 years in 2012); must be referred within 30 days to an **Unlawful Activities (Prevention) Tribunal** headed by a High Court Judge for confirmation.
48. **Section 43D(5) UAPA Bail Restriction:** Imposes a stringent bar on bail; court shall not grant bail if, on perusal of police case diary/charge sheet, there are reasonable grounds for believing that the accusation against the person is *prima facie true*.
49. **National Counter Terrorism Centre (NCTC) Status:** Proposed post-26/11 as a centralized counter-terror intelligence and operational agency under IB; faced stiff opposition from State Chief Ministers over infringement of federalism and police powers; **NEVER established / never became operational**.
50. **Theaterisation of Armed Forces:** Ongoing military modernization reforming India's 17 single-service commands into integrated tri-service Theatre Commands (Northern, Western, and Maritime) under the supervision of the **Chief of Defence Staff (CDS)**, created in December 2019 following Kargil Committee and Shekatkar Committee recommendations.

⏱️ Timeline / Chronology

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1835 — Assam Rifles raised (Oldest paramilitary force; originally 'Cachar Levy')
1939 — Crown Representative's Police formed (Enacted as CRPF in 1949)
1946 — Delhi Special Police Establishment (DSPE) Act passed (Statutory basis of CBI)
1958 — Armed Forces Special Powers Act (AFSPA) enacted by Parliament
1962 — ITBP raised (Post-Sino-Indian war) & Special Frontier Force (SFF) formed
1963 — Sashastra Seema Bal (SSB) raised as Special Service Bureau
1965 — Border Security Force (BSF) raised (Post-Indo-Pak war)
1967 — Unlawful Activities (Prevention) Act (UAPA) enacted
1968 — Research and Analysis Wing (RAW) established under Cabinet Secretariat
1969 — Central Industrial Security Force (CISF) established
1978 — Indian Coast Guard established under Ministry of Defence
1984 — National Security Guard (NSG - 'Black Cats') created post-Operation Blue Star
1988 — SPG Act passed (Special Protection Group for proximate PM security)
1992 — Rapid Action Force (RAF) raised as specialized blue-camo wing of CRPF
1998 — National Security Council (NSC) & UP Police STF established
2001 — Multi-Agency Centre (MAC) operationalized post-Kargil under IB
2004 — NTRO & FIU-IND established; Department of Border Management created
2008 — NIA Act passed post-26/11 Mumbai terror attacks; CoBRA unit formed in CRPF
2009 — NATGRID approved as master intelligence fusion database framework
2019 — NIA & UAPA Amendment Acts passed; SPG Act amended for PM exclusivity; CDS post created
2020 — Indian Cyber Crime Coordination Centre (I4C) operationalized under MHA
2025 — BHARATPOL Portal launched by CBI for seamless Interpol coordination
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📊 Quick Reference Grid

Central Armed Police Forces (CAPFs) Master Reference Grid

FORCE NAME	RAISING YEAR	BORDER / PRIMARY ROLE ASSIGNED	NODAL MINISTRY	APEX MOTTO	HEADQUARTERS
Assam Rifles (AR)	1835	**Indo-Myanmar Border** (1,643 km) & NE Counter-insurgency	Dual (Admin: MHA; Ops: MoD/Army)	"*Friends of the Hill People*" / "*Sentinels of the NE*"	**Shillong, Meghalaya**
CRPF	1939 (Act 1949)	**Internal Security**, Counter-insurgency, LWE, Riot Control (RAF)	MHA	"*Service and Loyalty*" (सेवा और निष्ठा)	New Delhi
BSF	1 Dec 1965	**Indo-Pak Border** (3,323 km) & **Indo-Bangladesh Border** (4,096 km)	MHA	"*Duty Unto Death*" (जीवन पर्यन्त कर्तव्य)	New Delhi
ITBP	24 Oct 1962	**Indo-China Border / LAC** (3,488 km) (High altitude)	MHA	"*Valour, Steadfastness, Commitment*" (शौर्य, दृढ़ता, कर्म निष्ठा)	New Delhi
SSB	1963	**Indo-Nepal Border** (1,751 km) & **Indo-Bhutan Border** (699 km)	MHA	"*Service, Security, Brotherhood*" (सेवा, सुरक्षा और बन्धुत्व)	New Delhi
CISF	1969	**Critical Infrastructure**, Commercial Airports, Delhi Metro, PSUs	MHA	"*Protection and Security*" (संरक्षण एवं सुरक्षा)	New Delhi
NSG	1984	**Special Counter-Terrorist Contingency Force** (Federal Strike Force)	MHA	"*Omnipresent Omnipotent Security*" (सर्वत्र सर्वोत्तम सुरक्षा)	New Delhi

Key Intelligence, Security & Cyber Agencies Matrix

AGENCY	PARENT DEPARTMENT / MINISTRY	STATUTORY / EXECUTIVE BASIS	PRIMARY MANDATE & ELIMINATION TRAPS
IB (Intelligence Bureau)	Ministry of Home Affairs (MHA)	Executive Order	Domestic intelligence, counter-subversion; operates MAC; NOT external intelligence.
RAW	Cabinet Secretariat (PMO)	Executive Order (1968)	External intelligence gathering; reports to Prime Minister, NOT MHA.
NIA	Ministry of Home Affairs (MHA)	NIA Act, 2008	Scheduled anti-terror offences; concurrent pan-India jurisdiction WITHOUT State consent.
CBI	DoPT (Ministry of Personnel)	DSPE Act, 1946	Anti-corruption, economic crimes; needs State consent (s.6); acts as Interpol NCB.
CERT-In	MeitY	Section 70B, IT Act 2000	Computer security incident response; 6-hr reporting norm; NOT MHA police.
NCIIPC	NTRO (Cabinet Secretariat)	Section 70A, IT Act 2000	Protection of Critical Information Infrastructure; belongs to NTRO, NOT MeitY.
I4C	Ministry of Home Affairs (MHA)	Executive Division (2020)	Citizen cybercrime reporting (1930 / cybercrime.gov.in); coordination among States.
Indian Coast Guard	**Ministry of Defence (MoD)**	Coast Guard Act, 1978	Maritime law enforcement (12-200 nm); belongs to MoD, NOT MHA/CAPF.

🧠 Memory Anchors & Mnemonics

1. Border-Guarding Forces: "B-I-S-A" Border Clock

- **B (BSF):** West & East — Pakistan (3,323 km) + Bangladesh (4,096 km).
- **I (ITBP):** North & East — China / LAC (3,488 km) (Karakoram to Arunachal).
- **S (SSB):** North — Nepal (1,751 km) + Bhutan (699 km).
- **A (Assam Rifles):** Far East — Myanmar (1,643 km) (HQ Shillong, Meghalaya).

2. Cabinet Committee on Security (CCS): "P-H-D-E-F"

- **P: P**rime Minister (Chairman)
- **H: H**ome Minister (गृह मंत्री)
- **D: D**efence Minister (रक्षा मंत्री)
- **E: E**xternal Affairs Minister (विदेश मंत्री)
- **F: F**inance Minister (वित्त मंत्री)

3. IT Act Cyber Twin Sections: "70A = NTRO, 70B = MeitY"

- **Section 70A: A**pex **A**ssets protection → **NCIIPC** under **NTRO** (Critical Infrastructure).
- **Section 70B: B**reach reporting in 6 hours → **CERT-In** under **MeitY** (Incident response).

4. CRPF Specialist Twins: "Blue Riot, Green Jungle"

- **Blue Camo: RAF** (Rapid Action Force, 1992) — Riot and communal control.

- **Green Jungle: CoBRA** (2008) — Anti-Maoist jungle commando operations.

Chapter 21: International Relations & Global Institutions

📰 Current Affairs & High-Yield Updates

YEAR/REF	KEY EVENT / DEVELOPMENT	WHAT YOU MARK / EXAM RELEVANCE
2024 Focus	**BRICS Expansion**	4 new members formally joined on 1 Jan 2024: **Egypt, Ethiopia, Iran, and UAE** (Saudi Arabia invited). The original 5 members remain; this is an economic/geopolitical bloc expansion, NOT a UN organ.
2024 Focus	**SCO Membership Expansion**	**Belarus** became the 10th full member of SCO at the Astana Summit 2024 (following Iran in 2023). SCO RATS headquarters remains in **Tashkent, Uzbekistan**.
2024 Focus	**19th NAM Summit**	Held in **Kampala, Uganda**; theme: "Deepening Cooperation for Shared Global Affluence"; reaffirms that NAM remains active and independent, distinct from NATO.
2024 Focus	**Sweden Joins NATO**	**Sweden** became the 32nd member of NATO in March 2024 (Finland was 31st in 2023). Remember: India is NOT a member of NATO.
2023 Focus	**G20 New Delhi Summit (9–10 Sep 2023)**	India held presidency (Dec 2022–Nov 2023); historic induction of the **African Union (AU)** as a permanent member; G20 logo featured a blooming lotus with **7 petals representing 7 continents**.
2023 Focus	**G20 Working Meetings in UP**	Four cities hosted G20 meetings in Uttar Pradesh: **Agra, Varanasi, Greater Noida, and Lucknow**; **Kanpur was NOT a venue** (direct elimination question in UPPCS 2023).
2023 Focus	**SCO Film Festival**	Hosted in **Mumbai** during India's SCO chairmanship (2022–2023); India joined SCO in 2017 alongside Pakistan.
2022 Focus	**WHO Global Centre for Traditional Medicine (GCTM)**	Established at **Jamnagar, Gujarat**; first and only global outposted centre for traditional medicine across the developing world.

🎯 Consolidated Must-Score Facts

1. **Constitutional Foundation of Foreign Policy (Article 51, Part IV):** Directs the State to promote international peace and security, maintain just and honourable relations between nations, foster respect for international law and treaty obligations, and encourage settlement of international disputes by arbitration.
2. **Treaty-Making Power (Articles 246 & 253):** Treaty negotiation and ratification are exclusively in the **Union List (List I, Entries 10, 13, 14)**; under **Article 253**, Parliament has plenary power to enact legislation for the entire or any part of India to implement any treaty, agreement, or convention, **even if the subject matter falls in the State List (List II)**.
3. **Panchsheel (Five Principles of Peaceful Coexistence):** Enunciated in the preamble of the **Sino-Indian Agreement on Tibet signed on 29 April 1954** by Prime Ministers Jawaharlal Nehru and Zhou Enlai; principles: (1) Mutual respect for territorial integrity and sovereignty, (2) Mutual non-aggression, (3) Mutual non-interference in internal affairs, (4) Equality and mutual benefit, (5) Peaceful coexistence.
4. **Non-Aligned Movement (NAM) Origins:** Formally founded at the **Belgrade Conference (Yugoslavia) in September 1961**; founded by 5 visionary leaders: **Jawaharlal Nehru (India), Josip Broz Tito (Yugoslavia), Gamal Abdel Nasser (Egypt), Sukarno (Indonesia), and Kwame Nkrumah (Ghana)**; ideologically preceded by the 1955 **Bandung Conference** in Indonesia.
5. **United Nations Security Council (UNSC) Composition:** Comprises **15 members**: 5 permanent members (P5: USA, UK, France, Russia, China) possessing veto power under Article 27(3) of UN Charter, and **10 non-permanent members** elected by the UN General Assembly for 2-year terms; India has served **8 terms** as an elected member (most recently 2021–2022).
6. **G4 Nations Alliance:** Alliance comprising **India, Brazil, Germany, and Japan** formed in 2005; members mutually support each other's bids for permanent seats on an expanded UN Security Council; opposed by the "Uniting for Consensus" coalition (**Coffee Club** led by Italy, Pakistan, Mexico, Argentina, Egypt).
7. **International Court of Justice (ICJ) — The Hague:** Principal judicial organ of the UN seated at the **Peace Palace in The Hague, Netherlands**; established in 1945; composed of **15 judges** elected for **9-year terms** by UNGA and UNSC voting independently; only States can be parties in contentious cases.
8. **Indian Judges at the ICJ:** Four eminent Indian jurists have served on the ICJ bench: (1) **Sir Benegal Narsing Rau (B.N. Rau)** (1952–1953); (2) **Nagendra Singh** (1973–1988, served as President of ICJ 1985–1988); (3) **R.S. Pathak** (former CJI, 1989–1991); (4) **Dalveer Bhandari** (elected 2012, re-elected 2017).
9. **International Criminal Court (ICC) vs ICJ:** ICC is an independent permanent criminal tribunal established by the **Rome Statute (1998, in force 2002)** seated at The Hague; prosecutes individuals for genocide, crimes against humanity, and war crimes; **INDIA IS NOT A STATE PARTY TO THE ROME STATUTE / ICC**.
10. **Bretton Woods Twins (1944):** The **International Monetary Fund (IMF)** and the **World Bank Group (IBRD)** were created at the Bretton Woods Conference in New Hampshire, USA; both are headquartered in **Washington, D.C.**; IMF focuses on short-term balance-of-payments macroeconomic stability, while World Bank focuses on long-term development loans.
11. **Special Drawing Rights (SDR):** International reserve asset created by the IMF in 1969; basket consists of **5 major currencies**: US Dollar, Euro, Chinese Renminbi (added 2016), Japanese Yen, and British Pound Sterling; SDR is NOT a currency or a claim on the IMF, but a potential claim on freely usable currencies.
12. **World Trade Organization (WTO):** Established on **1 January 1995** under the **Marrakesh Agreement**, replacing the General Agreement on Tariffs and Trade (GATT, 1947); headquartered in **Geneva, Switzerland**; apex body is the Ministerial Conference; decisions taken primarily by consensus; operates Dispute Settlement Mechanism with Appellate Body.
13. **WTO Ministerial Conferences Landmark Decisions:** Doha Development Agenda (2001); Bali Package (2013: Trade Facilitation Agreement & Peace Clause for public stockholding of foodgrains); Nairobi Package (2015: elimination of agricultural export subsidies); Geneva MC12 (2022: TRIPS waiver for COVID vaccines & fisheries subsidies agreement).
14. **SAARC (South Asian Association for Regional Cooperation):** Established on **8 December 1985 in Dhaka, Bangladesh**; Secretariat headquartered in **Kathmandu, Nepal**; comprises **8 member nations**: India, Pakistan, Bangladesh, Sri Lanka, Nepal, Bhutan, Maldives, and Afghanistan (inducted as 8th

member in 2007 at 14th New Delhi Summit).

15. **BIMSTEC (Bay of Bengal Initiative):** Established on **6 June 1997 via the Bangkok Declaration**; Permanent Secretariat established in **Dhaka, Bangladesh**; comprises **7 nations**: 5 from South Asia (Bangladesh, Bhutan, India, Nepal, Sri Lanka) and 2 from Southeast Asia (Myanmar, Thailand); BIMSTEC Charter came into force in 2024.
16. **ASEAN (Association of Southeast Asian Nations):** Established on **8 August 1967 via Bangkok Declaration**; Secretariat in **Jakarta, Indonesia**; 10 member states; India is **NOT a member** of ASEAN, but became a Sectoral Dialogue Partner in 1992, Full Dialogue Partner in 1995, and Comprehensive Strategic Partner in 2022.
17. **Shanghai Cooperation Organisation (SCO):** Founded on **15 June 2001 in Shanghai**; Secretariat based in **Beijing, China**; Regional Anti-Terrorist Structure (**RATS**) headquartered in **Tashkent, Uzbekistan**; India and Pakistan were admitted as full member states simultaneously in **June 2017 at the Astana Summit** in Kazakhstan.
18. **BRICS Grouping Evolution:** Originated from Goldman Sachs economist Jim O'Neill's 2001 paper; first formal summit held in **2009 at Yekaterinburg, Russia**; South Africa inducted in **2010**; established the **New Development Bank (NDB)** headquartered in **Shanghai** (first President was K.V. Kamath) and the Contingent Reserve Arrangement (CRA).
19. **Quadrilateral Security Dialogue (QUAD):** Plurilateral strategic grouping comprising **India, the United States, Japan, and Australia**; first initiated in 2007 by Japanese PM Shinzo Abe; revived in 2017; upgraded to summit-level meetings in 2021; all 4 members participate in the annual high-intensity **Malabar Naval Exercise**.
20. **I2U2 Grouping ('West Asian Quad'):** Comprises **India, Israel, the UAE, and the USA**; first convened in October 2021 and held its inaugural leader's summit in July 2022; focuses on joint economic and infrastructural investments in 6 sectors: water, energy, transportation, space, health, and food security.
21. **Look East to Act East Policy:** 'Look East' policy was launched in **1991 under Prime Minister P.V. Narasimha Rao** to revitalize economic links with Southeast Asia; elevated to **'Act East' policy by PM Narendra Modi in November 2014** at the 12th ASEAN-India Summit in Nay Pyi Taw, Myanmar.
22. **Gujral Doctrine (1996):** Landmark foreign policy framework propounded by Prime Minister I.K. Gujral based on non-reciprocal accommodation toward immediate South Asian neighbours (Nepal, Bangladesh, Bhutan, Maldives, Sri Lanka) to build trust without demanding tit-for-tat concessions.
23. **Indian Ocean Rim Association (IORA):** Established in **March 1997 via Mauritius Declaration**; Secretariat located at **Ebene, Mauritius**; apex regional maritime body comprising 23 member states bordering the Indian Ocean; priority areas include maritime safety, trade facilitation, and blue economy.
24. **Four Foundational Defence Pacts with the USA:** (1) **GSOMIA** (2002 - General Security of Military Information Agreement); (2) **LEMOA** (2016 - Logistics Exchange Memorandum of Agreement); (3) **COMCASA** (2018 - Communications Compatibility and Security Agreement); (4) **BECA** (2020 - Basic Exchange and Cooperation Agreement for geospatial intelligence).
25. **Specialized UN Agencies Headquarters: UNESCO** is headquartered in **Paris, France**; **WHO, ILO, WIPO, WTO, UNHRC** are in **Geneva, Switzerland**; **FAO, IFAD, WFP** are in **Rome, Italy**; **UNEP and UN-Habitat** are in **Nairobi, Kenya**; **IAEA and UNIDO** are in **Vienna, Austria**; **ICAO** is in **Montreal, Canada**.
26. **Six Principal Organs of the United Nations (Article 7 UN Charter):** (1) General Assembly, (2) Security Council, (3) Economic and Social Council (ECOSOC), (4) Trusteeship Council (suspended in 1994), (5) International Court of Justice, (6) Secretariat.
27. **Trusteeship Council Status:** Established to supervise the administration of 11 Trust Territories; suspended all operations on **1 November 1994** following the independence of Palau (the last remaining trust territory); **remains a principal UN organ on paper**, though currently inactive.
28. **Economic and Social Council (ECOSOC):** Comprises **54 members** elected by the UN General Assembly for **3-year overlapping terms**; one-third of the members retire every year; coordinates economic, social, cultural, and environmental mandates across UN specialized agencies.
29. **Universal Declaration of Human Rights (UDHR):** Adopted by the UN General Assembly on **10 December 1948 in Paris** (Resolution 217A); 10 December is celebrated globally as **Human Rights Day**; consists of 30 articles that formed the bedrock of fundamental rights in international law.
30. **India's Nuclear Doctrine (2003):** Adopted on **4 January 2003** by the Cabinet Committee on Security (CCS); enshrines 3 core tenets: (1) **No First Use (NFU)** against nuclear weapon states; (2) **Non-use** against non-nuclear weapon states; (3) **Massive retaliation** to inflict unacceptable damage if attacked with nuclear, biological, or chemical weapons; operational control rests with the **Nuclear Command Authority (NCA)**, whose Political Council is chaired by the Prime Minister.
31. **Comprehensive Nuclear-Test-Ban Treaty (CTBT) & NPT:** Non-Proliferation Treaty (NPT) opened for signature in 1968 (in force 1970); CTBT adopted in 1996; **India has NOT signed either NPT or CTBT**, citing their inherently discriminatory nature dividing the world into nuclear 'haves' and 'have-nots'.
32. **Four Multilateral Export Control Regimes:** India is a member of 3 of the 4 regimes: (1) **MTCR** (Missile Technology Control Regime - joined 2016); (2) **Wassenaar Arrangement** (conventional arms & dual-use goods - joined 2017); (3) **Australia Group** (chemical & biological weapons - joined 2018); India is **NOT a member of the Nuclear Suppliers Group (NSG)** due to Chinese opposition.
33. **Djibouti Code of Conduct (DCOC / Jeddah Amendment):** High-level maritime security framework combating piracy, armed robbery, and illicit maritime activities in the Western Indian Ocean and Gulf of Aden; **India joined as an Observer State in August 2020**.
34. **Colombo Security Conclave (CSC):** Regional maritime security grouping founded by **India, Sri Lanka, and the Maldives**; Mauritius joined as 4th member; Bangladesh and Seychelles have attended as observers; focuses on maritime safety, counter-terrorism, and cyber security.
35. **Kalladan Multi-Modal Transit Transport Project:** Flagship Indian connectivity project linking the eastern Indian seaport of **Kolkata with Sittwe seaport in Myanmar** by sea, followed by river transport on Kaladan river to Paletwa, and road transport to Zorinpui in Mizoram.
36. **Chabahar Port Project:** Located in the Sistan-Baluchistan province of southeastern **Iran** on the Gulf of Oman; provides India access to Afghanistan and Central Asia, bypassing Pakistan; operated by India Ports Global Limited (IPGL) under long-term contract signed in 2024.
37. **International North-South Transport Corridor (INSTC):** 7,200-km multi-mode network of ship, rail, and road route for moving freight between **India, Iran, Azerbaijan, Russia, Central Asia, and Europe**; established by founding members India, Iran, and Russia in September 2000.
38. **India-Middle East-Europe Economic Corridor (IMEC):** Historic connectivity corridor unveiled on the sidelines of the G20 New Delhi Summit in **September 2023**; connects India to the Arabian Gulf via maritime route, across GCC states via rail, and onwards to Europe via ports in Greece and Italy.
39. **P5 Veto Power Procedure (Article 27):** On non-procedural (substantive) matters, decisions of the UNSC require **9 affirmative votes including the concurring votes of the 5 permanent members**; an abstention by a permanent member is legally **not treated as a veto**.
40. **UN General Assembly "Uniting for Peace" Resolution (Resolution 377A):** Adopted in 1950 during Korean Crisis; provides that if the Security Council fails to exercise its primary responsibility due to lack of unanimity among P5, the General Assembly can immediately consider the matter and recommend collective measures.

41. **Asia-Pacific Economic Cooperation (APEC):** Established in **1989 in Canberra, Australia**; 21 Pacific Rim member economies; headquarters located in **Singapore**; operates on non-binding commitments; **India is NOT an APEC member** (holds observer status since 2011).
42. **OECD (Organisation for Economic Co-operation and Development):** Formed in **1961** succeeding the Organisation for European Economic Co-operation (OEEC, 1948); headquartered in **Paris, France**; 38 member countries (mostly high-income developed economies); **India is not a member**, but participates as a key partner.
43. **Commonwealth of Nations:** Voluntary association of 56 independent sovereign countries (mostly former British territories); headed symbolically by the British Monarch; Secretariat at **Marlborough House, London**; operates via Commonwealth Heads of Government Meetings (CHOGM); India has been an active member since 1947.
44. **G7 (Group of Seven):** Intergovernmental political and economic forum formed in **1975**; comprises USA, UK, France, Germany, Italy, Japan, and Canada (plus EU as non-enumerated member); holds annual rotating summits; India participates regularly as an invited outreach partner country.
45. **G20 (Group of Twenty) Evolution:** Formed in **1999** at finance minister level post-Asian financial crisis; elevated to heads-of-state summit level in **2008** post-global financial crash; comprises 19 countries + European Union + **African Union (admitted 2023)**; represents 85% of global GDP and 75% of international trade.
46. **International Solar Alliance (ISA):** Joint initiative launched by **India and France** on 30 November 2015 at COP21 in Paris; first international intergovernmental organization headquartered in India (**Gurugram, Haryana**); open to all UN member states; promotes solar energy deployment.
47. **Coalition for Disaster Resilient Infrastructure (CDRI):** Launched by Prime Minister of India at the UN Climate Action Summit in **New York in September 2019**; global partnership of national governments, UN agencies, and banks; Secretariat located in **New Delhi, India**.
48. **Indo-Pacific Economic Framework for Prosperity (IPEF):** Launched by the USA and 13 partner countries in **Tokyo in May 2022**; structured across 4 pillars: Trade, Supply Chains, Clean Economy, and Fair Economy; **India joined Pillars II, III, and IV, but opted out of the Trade Pillar (Pillar I)**.
49. **UN Peacekeeping Operations & India:** India is historically one of the largest troop-contributing countries to UN Peacekeeping missions; deployed over 2,75,000 troops across 53 missions; deployed the **world's first all-female Formed Police Unit (FPU)** to Liberia in 2007.
50. **Vishwa Bandhu & Vasudhaiva Kutumbakam:** Core diplomatic philosophy of modern Indian foreign policy; rooted in the Maha Upanishad ("*The world is one family*"); guided India's G20 presidency theme: "*One Earth, One Family, One Future*" (एक पृथ्वी, एक परिवार, एक भविष्य).

⏱️ Timeline / Chronology

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1944 — Bretton Woods Conference (IMF & World Bank created; Washington D.C.)
1945 — United Nations Charter signed (San Francisco) & ICJ established (The Hague)
1947 — General Agreement on Tariffs and Trade (GATT) signed
1948 — Universal Declaration of Human Rights (UDHR) adopted in Paris (10 Dec)
1954 — Panchsheel Agreement signed between India and China (29 April)
1955 — Bandung Conference (Asian-African Conference in Indonesia)
1961 — 1st NAM Summit convened at Belgrade, Yugoslavia
1967 — ASEAN established via Bangkok Declaration (8 Aug)
1968 — RAW founded under R.N. Kao & Nuclear Non-Proliferation Treaty (NPT)
1985 — SAARC established in Dhaka, Bangladesh (8 Dec; Secretariat: Kathmandu)
1991 — Look East Policy launched under PM P.V. Narasimha Rao
1995 — World Trade Organization (WTO) replaces GATT (1 Jan; Geneva)
1996 — Gujral Doctrine propounded by I.K. Gujral
1997 — BIMSTEC established (Bangkok Declaration) & IORA established (Mauritius)
1998 — National Security Council (NSC) formed & Rome Statute of ICC adopted
1999 — G20 founded at Finance Ministers level
2001 — Shanghai Cooperation Organisation (SCO) founded in Shanghai
2003 — India's Nuclear Doctrine formally adopted (No First Use)
2009 — 1st BRIC Summit in Yekaterinburg, Russia (South Africa joined 2010)
2014 — Act East Policy launched at ASEAN-India Summit
2015 — International Solar Alliance (ISA) launched at COP21 (HQ: Gurugram)
2017 — India & Pakistan join SCO as full members; Quad revived
2019 — Coalition for Disaster Resilient Infrastructure (CDRI) launched
2021 — I2U2 Grouping ('West Asian Quad') established
2023 — G20 New Delhi Summit admits African Union; IMEC corridor announced
2024 — BRICS expands with 4 new members; Belarus joins SCO (10th member)
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📊 Quick Reference Grid

Major International Organisations & Regional Blocs

ORGANISATION	YEAR ESTABLISHED	HEADQUARTERS	TOTAL MEMBERS	INDIA'S FORMAL STATUS	KEY EXAMINER TRAPS
UNSC	1945	New York, USA	15 (5 Perm + 10 Non-Perm)	Elected member (8 times; last 2021-22)	India does NOT have a veto; P5 only. Non-permanent term is 2 years.
ICJ	1945	**The Hague, Netherlands**	15 Judges (9-yr terms)	Member jurist on bench (Dalveer Bhandari)	Seated at Peace Palace; only States are parties. Distinct from ICC.
IMF	1944	Washington D.C., USA	190	Founding Member	Manages SDRs & balance of payments; not project infrastructure.
World Bank (IBRD)	1944	Washington D.C., USA	189	Founding Member	Finances development/poverty projects; twins with IMF in D.C.
WTO	1 Jan 1995	Geneva, Switzerland	166	Founding Member (1995)	Replaced GATT (1947); Marrakesh Agreement; consensus-based.
SAARC	8 Dec 1985	**Kathmandu, Nepal**	8 Nations	Founding Member	Secretariat is Kathmandu, but created in Dhaka; 8th member Afghanistan.
BIMSTEC	6 June 1997	**Dhaka, Bangladesh**	7 Nations	Founding Member	Secretariat is Dhaka; includes 5 South Asian + 2 ASEAN (Myanmar, Thailand).
ASEAN	8 Aug 1967	**Jakarta, Indonesia**	10 Nations	**NOT a member** (Comprehensive Partner)	India is NOT in ASEAN; Indonesia/Malaysia are ASEAN, not BIMSTEC.
SCO	15 June 2001	**Beijing, China**	10 Nations	Full Member (Joined **2017**)	Joined 2017 with Pak; RATS is in **Tashkent**; Belarus 10th member (2024).
BRICS	2009 (SA: 2010)	NDB: **Shanghai, China**	9 Nations (expanded 2024)	Founding Member	Expanded 2024 (Egypt, Ethiopia, Iran, UAE); NDB HQ Shanghai.
QUAD	2007 (Revived 2017)	No permanent secretariat	4 Nations (IND, US, JAP, AUS)	Full Member	All 4 do Malabar exercise; distinct from AUKUS (which excludes India).
I2U2	2021	No permanent secretariat	4 Nations (IND, ISR, UAE, USA)	Full Member	Called 'West Asian Quad'; focuses on 6 economic investment pillars.
ISA	2015	**Gurugram, Haryana, India**	100+ Signatories	Founding Host Nation	First treaty-based intergovernmental body headquartered in India.

Specialized Agencies of the UN & Headquarters Location

CITY	COUNTRY	SPECIALIZED UN BODIES / AGENCIES LOCATED
Geneva	Switzerland	WHO (Health), ILO (Labour), WTO (Trade), WIPO (Intellectual Property), UNHRC (Human Rights), ITU (Telecomm)
Paris	France	UNESCO (Educational, Scientific and Cultural Organization), OECD (Partner)
Rome	Italy	FAO (Food & Agriculture), WFP (World Food Programme), IFAD (Agricultural Development)
The Hague	Netherlands	ICJ (International Court of Justice), ICC (International Criminal Court), OPCW (Chemical Weapons)
Vienna	Austria	IAEA (Atomic Energy), UNIDO (Industrial Dev), UNODC (Drugs & Crime)
Nairobi	Kenya	UNEP (UN Environment Programme), UN-Habitat
Montreal	Canada	ICAO (International Civil Aviation Organization)
Washington D.C.	USA	IMF, World Bank Group (IBRD, IDA, IFC, MIGA, ICSID)

🧠 Memory Anchors & Mnemonics

1. BIMSTEC 7 Members: "B-I-M-S-T-E-C" + Logic

Remember: Bay of Bengal littoral states — 5 from South Asia + 2 from Southeast Asia: - **B:** Bangladesh & Bhutan - **I:** India - **M:** Myanmar (SE Asia) - **S:** Sri Lanka - **T:** Thailand (SE Asia) - **N (Extra):** Nepal (joined 2004 with Bhutan) *(No Pakistan, No Maldives, No Indonesia!)*

2. SAARC 8 Members: "MBBS PAIN"

- **M:** Maldives (मालदीव)
- **B:** Bangladesh (बांग्लादेश)
- **B:** Bhutan (भूटान)
- **S:** Sri Lanka (श्रीलंका)
- **P:** Pakistan (पाकिस्तान)
- **A:** Afghanistan (अफगानिस्तान — 8th member in 2007)
- **I:** India (भारत)

- **N:** Nepal (नेपाल)

3. G4 Nations (Permanent Seat Seekers): "B-I-G-J"

- **B:** Brazil (South America)
- **I:** India (Asia)
- **G:** Germany (Europe)
- **J:** Japan (Asia) *(Opposed by "Coffee Club" led by Italy and Pakistan).*

4. Six Principal UN Organs: "G-S-E-T-I-S"

- **G: G**eneral Assembly (UNGA)
- **S: S**ecurity Council (UNSC)
- **E: E**conomic and Social Council (ECOSOC)
- **T: T**rusteeship Council (Inactive since 1994)
- **I: I**nternational Court of Justice (ICJ — The Hague)
- **S: S**ecretariat (UN Secretariat)

Chapter 22: Constitutional Philosophy & Key Doctrines

Current Affairs & High-Yield Updates

YEAR/REF	LANDMARK EVENT / LEGAL DEVELOPMENT	CORE DOCTRINAL TAKEAWAY / EXAM RELEVANCE
2023 Focus	**NCT of Delhi Services Judgment vs 2023 Act**	Supreme Court Constitution Bench held that the elected Delhi Government has executive & legislative control over civil servants ("services" in Entry 41 List II), excluding public order, police, and land; Parliament subsequent GNCTD (Amendment) Act, 2023 created National Capital Civil Service Authority (NCCSA).
2018 Focus	**Constitutional Morality Jurisprudence**	SC invoked "Constitutional Morality" in *Government of NCT Delhi (2018)*, *Navtej Singh Johar (2018)* (decriminalizing s.377 IPC), and *Sabarimala Case (2018)*; SC held constitutional morality strictly **trumps popular or majoritarian societal morality**.
2017 Focus	**Puttaswamy Right to Privacy Judgment**	9-judge bench unanimously declared Right to Privacy an intrinsic fundamental right under Article 21; explicitly held the majority ruling in *ADM Jabalpur (Habeas Corpus case, 1976)* to be fundamentally flawed and erroneous.
2015 Focus	**NJAC Judgment (99th CAA Struck Down)**	SC struck down the 99th Constitutional Amendment Act and the NJAC Act by 4:1 majority; asserted that the primacy of the judiciary in judicial appointments is part of the **Basic Structure** (Constitutional Supremacy over unlimited parliamentary amending power).
1994 / Evergreen	**S.R. Bommai v. Union of India**	Landmark 9-judge bench ruling establishing that **Secularism is part of the Basic Structure**; state governments pursuing anti-secular policies can be dismissed under Article 356; mandated that legislative assembly cannot be dissolved until Parliament approves proclamation.
1978 / Evergreen	**Maneka Gandhi v. Union of India**	Transformed Indian constitutional jurisprudence from formalistic "procedure established by law" (*Gopalan*) to substantive "due process" requiring procedure to be **just, fair, and reasonable**; forged the "Golden Triangle" (Articles 14, 19, and 21).

Consolidated Must-Score Facts

1. **Constitutionalism (संविधानवाद):** The political philosophy that government authority is derived from and limited by a fundamental body of constitutional law; mere existence of a written constitution does **NOT** equate to constitutionalism unless it imposes substantive and procedural checks on arbitrary state power (e.g., judicial review, separation of powers, fundamental rights).
2. **Constitutional Morality (संवैधानिक नैतिकता):** Concept coined by British historian George Grote; famously introduced to the Constituent Assembly on **4 November 1948 by Dr. B.R. Ambedkar**, who warned that constitutional morality is not a natural sentiment but has to be cultivated; revived by SC to denote adherence to core constitutional values (liberty, equality, fraternity, dignity) over majoritarian impulses.
3. **Rule of Law (विधि का शासन) — A.V. Dicey's Three Postulates:** Expounded in *Introduction to the Study of the Law of the Constitution* (1885): (1) **Absence of arbitrary power** (supremacy of regular law over arbitrary prerogative); (2) **Equality before the law** (equal subjection of all classes to ordinary law administered by ordinary courts); (3) **Predominance of the legal spirit** (individual rights are result of judicial decisions).
4. **Application of Dicey's Postulates to India:** The **first and second postulates apply fully in India**; the **THIRD POSTULATE DOES NOT APPLY TO INDIA**, because the written Constitution is the supreme source of fundamental rights, whereas in England rights are the result of common-law judicial decisions.
5. **Rule of Law as Basic Structure:** In ***Indira Nehru Gandhi v. Raj Narain (1975)***, the Supreme Court ruled that the **Rule of Law is an indispensable component of the Basic Structure** of the Constitution and cannot be altered even by a constitutional amendment under Article 368.
6. **Article 14 Dual Guarantee:** Embodies two distinct concepts: (1) **"Equality before the law"** (विधि के समक्ष समता) borrowed from **British Common Law** (negative concept: absence of any special privilege); (2) **"Equal protection of the laws"** (विधियों का समान संरक्षण) borrowed from the **14th Amendment of the US Constitution** (positive concept: equal treatment under equal circumstances).
7. **Procedure Established by Law (विधि द्वारा स्थापित प्रक्रिया):** Contained in **Article 21**; borrowed directly from **Article 31 of the Japanese Constitution of 1946**; recommended by Constitutional Advisor Sir B.N. Rau after discussions with US Justice Felix Frankfurter, intentionally avoiding the American phrase "Due Process of Law" to prevent judicial obstruction of progressive socio-economic land reforms.
8. **Due Process of Law (विधि की सम्यक प्रक्रिया):** Originates from the 5th and 14th Amendments to the US Constitution; encompasses both **Procedural Due Process** (fair notice, hearing, impartial tribunal) and **Substantive Due Process** (the statute itself must be inherently just, fair, reasonable, and non-oppressive).
9. **The Formalist Phase (*A.K. Gopalan Case, 1950*):** In *A.K. Gopalan v. State of Madras (1950)*, SC gave a rigid, literal interpretation to Article 21, holding that "law" meant only state-made statutory law; if Parliament followed the formal legislative procedure, the court could not examine its substantive fairness; rejected the idea of natural justice in Article 21.
10. **The Substantive Due Process Revolution (*Maneka Gandhi Case, 1978*):** Overruled the *Gopalan* doctrine; held that the procedure depriving a person of life or personal liberty under Article 21 must be **"right, just, and fair, and not arbitrary, fanciful, or oppressive"**; effectively read the American concept of Substantive Due Process into Indian jurisprudence.
11. **The "Golden Triangle" of Fundamental Rights:** Laid down in *Maneka Gandhi (1978)* and affirmed in *Minerva Mills (1980)*; **Articles 14, 19, and 21 form a symbiotic trinity**; an enacted law infringing personal liberty under Article 21 must not only follow a valid procedure, but must also satisfy the non-arbitrariness requirement of Article 14 and the reasonableness test of Article 19.
12. **Doctrine of Separation of Powers (शक्ति पृथक्करण का सिद्धांत):** Formulated by French jurist **Charles de Montesquieu** in *The Spirit of the Laws (1748)*; aims to prevent tyranny by dividing state functions among three distinct organs: Legislature (law-making), Executive (implementation), and Judiciary (adjudication).
13. **Separation of Powers in the Indian Context:** Unlike the rigid separation of powers in the US presidential system, the Indian Constitution establishes a **system of functional separation accompanied by checks and balances**; the executive is an integral part of and collectively responsible to the legislature (Parliamentary system).
14. **Article 50 (Separation of Judiciary from Executive):** Placed in **Part IV (Directive Principles of State Policy)**; mandates that the State shall take steps to separate the judiciary from the executive in the public services of the State; operationalized nationally through the Code of Criminal Procedure (CrPC), 1973.

15. **Constitutional Supremacy vs Parliamentary Sovereignty:** In the UK, the doctrine of **Parliamentary Sovereignty** (expounded by Dicey) prevails: Parliament can make or unmake any law, and no court can declare an Act of Parliament ultra vires. In India, **Constitutional Supremacy** prevails: all organs (Parliament, Executive, Judiciary) derive their authority from and are bound by the written Constitution.
16. **Judicial Supremacy vs Judicial Review:** The United States features extensive **Judicial Supremacy**; the Indian Constitution synthesizes British Parliamentary Sovereignty with American Judicial Supremacy: Parliament has wide legislative powers, but the Supreme Court exercises the power of **Judicial Review** to strike down any law violating constitutional provisions or the Basic Structure.
17. **Basic Structure Doctrine (मूल ढांचा सिद्धांत):** Established on **24 April 1973** by a 7:6 majority of the largest 13-judge bench in ***Kesavananda Bharati v. State of Kerala***; held that Parliament's constituent power under Article 368 is wide but limited; Parliament cannot alter, damage, or emasculate the basic framework and essential features of the Constitution.
18. **Preamble Status (*Kesavananda Bharati* Rule):** SC explicitly ruled that: (1) **The Preamble is an integral part of the Constitution** (overruling *Berubari Union case, 1960*); (2) The Preamble **can be amended under Article 368**, provided the basic structure is not touched; (3) The Preamble is **neither a source of substantive power nor a source of prohibition**, and is **non-justiciable** (not enforceable in courts).
19. **Secularism in Indian Philosophy (*Sarva Dharma Sambhava*):** Indian secularism is **positive secularism**; does not establish a strict wall of separation between Church and State (as in Western/French *Laïcité*); ensures equal respect and protection for all religions, while permitting the State to regulate secular activities associated with religious practice (Art. 25(2)) and enact social welfare reforms (e.g., throwing open Hindu public religious institutions to all classes).
20. **42nd Constitutional Amendment Act, 1976 Additions:** Inserted three new terms into the Preamble: **"Socialist"**, **"Secular"**, and **"Integrity"** (amending the phrase "unity of the Nation" to "unity and integrity of the Nation").
21. **Democratic Socialism in India:** Indian socialism is **Democratic Socialism**, adopting a mixed economy model where public and private sectors coexist; in ***D.S. Nakara v. Union of India (1983)***, SC stated that Indian socialism is a unique blend of Marxism and Gandhism, leaning heavily towards Gandhian socialism to alleviate poverty and inequality.
22. **Welfare State (कल्याणकारी राज्य) Architecture:** Enshrined primarily in **Part IV (Directive Principles of State Policy, Articles 36–51)**, particularly **Article 38** (securing a social order for the promotion of welfare of the people); repudiates the 19th-century colonial "Police State" or laissez-faire model whose sole functions were maintaining order and revenue collection.
23. **Three Types of Justice in Preamble:** Preamble promises **Social, Economic, and Political Justice**; this triad was borrowed from the **Russian Revolution (1917)**; Social Justice implies elimination of social distinctions based on caste/creed/gender; Economic Justice denotes non-discrimination based on wealth; Political Justice guarantees equal political access under universal adult suffrage (Art. 326).
24. **Liberty, Equality, Fraternity Triad:** Borrowed from the **French Revolution (1789)**; Liberty in the Preamble covers **Thought, Expression, Belief, Faith, and Worship**; Equality covers **Status and Opportunity**; Fraternity assures the **Dignity of the Individual and the Unity and Integrity of the Nation**.
25. **Dr. B.R. Ambedkar on the Triad of Liberty, Equality, Fraternity:** In his concluding speech to the Constituent Assembly (25 Nov 1949), Ambedkar stated: *"Political democracy cannot last unless there lies at the base of it social democracy... Liberty, equality and fraternity form a union of trinity in the sense that to divorce one from the other is to defeat the very purpose of democracy."*
26. **Doctrine of Eclipse (आच्छादन का सिद्धांत):** Pertains to **Article 13(1)** regarding pre-constitutional laws; held in ***Bhikaji Narain Dhakras v. State of M.P. (1955)*** that pre-constitutional laws violating fundamental rights are not dead *ab initio*, but remain overshadowed or dormant; if the constitutional limitation is removed by amendment, the law becomes operational without re-enactment.
27. **Doctrine of Severability (पृथक्करणीयता का सिद्धांत):** Contained in **Article 13** by virtue of the phrase *"to the extent of the inconsistency/contravention"*; held in ***R.M.D. Chamarbaugwalla v. Union of India (1957)*** that if the invalid portion of a statute can be severed from the valid portion without altering the legislative intent, only the offending portion is struck down while the valid portion survives.
28. **Doctrine of Harmonious Construction (सामंजस्यपूर्ण व्याख्या):** Principle of statutory interpretation establishing that when two provisions of a statute or Constitution conflict, the court must interpret them so as to give effect to both, harmonizing them without rendering either provision completely redundant (*Sri Venkataramana Devaru, 1958*).
29. **Doctrine of Pith and Substance (सार और तत्व का सिद्धांत):** Applied when examining legislative competence under Article 246 (Seventh Schedule); held in ***Prafulla Kumar Mukherjee v. Bank of Commerce, Khulna (1947)*** that if the true nature and character (pith and substance) of a legislation falls within the competent legislature's list, incidental encroachment into another list does not invalidate the law.
30. **Doctrine of Colorable Legislation (छद्म विधान का सिद्धांत):** Rooted in the legal maxim *"what cannot be done directly cannot be done indirectly"*; held in ***K.C. Gajapati Narayan Deo v. State of Orissa (1953)*** that the doctrine questions whether the legislature had the constitutional power to enact the law, not its hidden motives.
31. **Doctrine of Prospective Overruling:** Introduced to Indian constitutional law by Justice K. Subba Rao in ***I.C. Golaknath v. State of Punjab (1967)***; borrowed from American jurisprudence; provides that a judicial decision invalidating a law applies only to future transactions and does not reopen or invalidate settled past actions.
32. **Doctrine of Territorial Nexus:** Governs the extra-territorial competence of State Legislatures under **Article 245**; laid down in ***State of Bombay v. R.M.D. Chamarbaugwalla (1957)***; a State law can have extra-territorial operation if there is a real, substantial, and not illusory nexus between the State and the subject matter of legislation.
33. **Doctrine of Ancillary and Incidental Powers:** Holds that the grant of express legislative power under any Entry in the Seventh Schedule necessarily carries with it the power to legislate on all incidental and ancillary matters necessary for the effective execution of that power (*United Provinces v. Atiqa Begum, 1941*).
34. **Doctrine of Res Judicata in Constitutional Writs:** Reaffirmed in ***Daryao v. State of U.P. (1961)***; if a writ petition is dismissed on merits by a High Court under Article 226, the petitioner cannot approach the Supreme Court under Article 32 on the same facts; **Exception**: The rule of Res Judicata does **NOT apply to petitions for the writ of Habeas Corpus**.
35. **Public Interest Litigation (PIL) — Social Action Litigation:** Pioneered in India in the late 1970s and early 1980s by **Justice P.N. Bhagwati and Justice V.R. Krishna Iyer**; relaxed the rigid traditional rule of *locus standi* (standing to sue); permits any public-spirited individual or organization to petition the High Court (Art. 226) or Supreme Court (Art. 32) on behalf of oppressed, poor, or disadvantaged groups whose rights are violated.
36. **First PIL Case in India: *Hussainara Khatoon v. Home Secretary, State of Bihar (1979)***, filed by advocate Pushpa Kapila Hingorani on behalf of thousands of undertrial prisoners languishing in Bihar jails; led to the release of over 40,000 undertrials and recognized the **Right to Speedy Trial as a fundamental right under Article 21**.

37. **Judicial Activism vs Judicial Overreach: Judicial Activism** is the proactive judicial defense of citizen rights and enforcement of constitutional morality when executive/legislative machinery fails (e.g., *Vishaka guidelines, 1997*); **Judicial Overreach** occurs when the judiciary breaches separation of powers to encroach into core policy formulation or executive administration (e.g., banning liquor within 500m of highways, cancelling coal allocations).
38. **Constitutional Conventions in India:** Unwritten rules of political practice that ensure smooth functioning of constitutional machinery; examples: (1) Governor should be an eminent person from outside the State, appointed after consultation with the Chief Minister (Sarkaria Commission); (2) Chief Justice of India should be the senior-most judge of the Supreme Court; (3) Speaker of Lok Sabha resigns or stays aloof from party politics.
39. **Preamble — Key Order of Words:** The exact sequence of words in the opening declaration is: **"SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC"** (संपूर्ण प्रभुत्व-संपन्न, समाजवादी, पंथनिरपेक्ष, लोकतंत्रात्मक गणराज्य).
40. **Preamble — Sequence of Objectives:** The exact sequence of core objectives is: **JUSTICE** (न्याय) → **LIBERTY** (स्वतंत्रता) → **EQUALITY** (समता) → **FRATERNITY** (बंधुता).
41. **Preamble Date of Adoption:** Adopted, enacted, and given to ourselves on the **"Twenty-sixth day of November, 1949"** (26 November 1949; Miti Margashirsha Shukla Saptami, Samvat 2006).
42. **Preamble Enacting Words:** The words *"We, the People of India"* emphasize that **popular sovereignty** is the ultimate source of constitutional authority; power resides not in the British Crown or Parliament, but in the sovereign citizens of India.
43. **Republic (गणराज्य) Definition:** Means that the **Head of the State is always elected** (directly or indirectly) for a fixed tenure, and not hereditary (as in British constitutional monarchy); implies the absence of any privileged class and the opening of all public offices to every citizen without discrimination.
44. **Democracy (लोकतंत्र) Dimensions:** The Constitution establishes not merely political democracy (one person, one vote under Art. 326), but **social and economic democracy** as envisioned by Dr. Ambedkar and captured in the Directive Principles of State Policy.
45. **Secularism Debates in Constituent Assembly:** Amendments moved by Prof. K.T. Shah to insert the words "Secular, Socialist, Sovereign" in Article 1 were rejected by Dr. Ambedkar; Ambedkar argued that the Constitution already embodied the substantive spirit of secularism (Articles 25–28) and that the economic policy should not be tied down beforehand.
46. **Basic Structure Components List (Consolidated):** Includes: Supremacy of the Constitution, Republican and Democratic form of government, Secular character, Separation of Powers, Federal character, Judicial Review, Rule of Law, Harmony between FRs and DPSPs, Free and fair elections, Independence of Judiciary, and limited amending power of Parliament.
47. ***Minerva Mills v. Union of India (1980)* — Balance between Parts III and IV:** Held that the Constitution is founded on the bedrock of the balance between Fundamental Rights and Directive Principles; to give absolute primacy to one over the other is to disturb the harmony of the Constitution; struck down Section 4 and 55 of the 42nd Amendment.
48. ***Waman Rao v. Union of India (1981)* — Cut-Off Date for Ninth Schedule:** Established the cut-off date of **24 April 1973**; laws placed in the Ninth Schedule prior to 24 April 1973 enjoy constitutional immunity, but laws added to the Ninth Schedule after that date are open to judicial review on the touchstone of the Basic Structure.
49. ***I.R. Coelho v. State of Tamil Nadu (2007)* — Ninth Schedule Absolute Review:** Unanimous 9-judge bench ruled that all constitutional amendments made after 24 April 1973 placing laws in the Ninth Schedule must be tested on the touchstone of basic structure and fundamental rights (Articles 14, 19, 21); no blanket immunity exists.
50. **Constitutional Patriotism:** Philosophical stance holding that citizen loyalty should be anchored not to ethnic, religious, or linguistic identities, but to the egalitarian universalist norms, democratic procedures, and fundamental values enshrined in the Constitution.

⏱️ Timeline / Chronology

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1948 — Dr. Ambedkar invokes "Constitutional Morality" in Constituent Assembly (4 Nov)
1949 — Constitution & Preamble adopted by Constituent Assembly (26 Nov)
1950 — A.K. Gopalan case: Formalist literal view of "procedure established by law"
1955 — Bhikaji Narain case: Doctrine of Eclipse propounded for pre-constitutional laws
1957 — R.M.D. Chamarbaugwalla case: Doctrine of Severability & Territorial Nexus
1960 — Berubari Union case: SC mistakenly rules Preamble is NOT part of Constitution
1967 — I.C. Golaknath case: Doctrine of Prospective Overruling; Parliament cannot amend FRs
1973 — Kesavananda Bharati case (24 April): Basic Structure Doctrine established
1975 — Indira Nehru Gandhi v. Raj Narain: Rule of Law & Democracy are Basic Structure
1976 — 42nd Amendment inserts "Socialist", "Secular", and "Integrity" into Preamble
1978 — Maneka Gandhi case: Substantive Due Process recognized; "Golden Triangle" formed
1979 — Hussainara Khatoon case: 1st PIL in India; Right to Speedy Trial under Art. 21
1980 — Minerva Mills case: Harmony between Part III & Part IV is Basic Structure
1981 — Waman Rao case: 24 April 1973 cut-off date fixed for Ninth Schedule review
1994 — S.R. Bommai case: Secularism & Federalism declared Basic Structure
2007 — I.R. Coelho case: Ninth Schedule laws post-1973 fully open to basic structure test
2015 — NJAC Judgment: Independence of Judiciary & Judicial Primacy in appointments upheld
2017 — K.S. Puttaswamy case: Right to Privacy declared fundamental right under Art. 21
2018 — Navtej Johar, Sabarimala, and NCT Delhi cases: Constitutional Morality triumphs
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📊 Quick Reference Grid

Key Constitutional Doctrines Matrix

CONSTITUTIONAL DOCTRINE	KEY GOVERNING LANDMARK CASE	ARTICLE / LEGAL SOURCE	CORE LEGAL PRINCIPLE
Basic Structure Doctrine	*Kesavananda Bharati (1973)*	Article 368	Parliament's amending power is limited; cannot alter essential features.
Golden Triangle	*Maneka Gandhi (1978)*	Articles 14, 19, and 21	FRs are interconnected; procedure depriving liberty must be fair, just, reasonable.
Rule of Law	*Indira Gandhi v. Raj Narain (1975)*	Article 14 / Dicey	Absolute supremacy of law; absence of arbitrary power; part of basic structure.
Separation of Powers	*Ram Jawaya Kapur (1955)*	Montesquieu / Art. 50	Functional separation with checks and balances; not rigid like US system.
Doctrine of Eclipse	*Bhikaji Narain (1955)*	Article 13(1)	Inconsistent pre-constitutional laws become dormant, not void ab initio.
Doctrine of Severability	*R.M.D. Chamarbaugwalla (1957)*	Article 13(1) & (2)	Only the invalid portion is struck down if valid portion can independently stand.
Pith and Substance	*Prafulla Kumar Mukherjee (1947)*	Article 246 (7th Sch)	Look at true nature and character to determine legislative competence.
Colorable Legislation	*K.C. Gajapati Narayan Deo (1953)*	Article 246	Legislature cannot do indirectly what it is constitutionally barred from doing directly.
Prospective Overruling	*I.C. Golaknath (1967)*	Article 13 / Subba Rao	Judicial decision invalidating a law applies only to future transactions.
Territorial Nexus	*State of Bombay v. Chamarbaugwalla (1957)*	Article 245	Extra-territorial state law is valid if real and substantial nexus exists.

Preamble Philosophical Concepts & Historical Sources

PHILOSOPHICAL CONCEPT	SOURCE DOCUMENT / REVOLUTION	CONSTITUTIONAL PLACEMENT / MEANING	NON-NEGOTIABLE PRELIMS TRAPS
Sovereign	Indian Independence Act / CAD	Complete external and internal independence; supreme authority.	India's Commonwealth membership does NOT compromise sovereignty.
Socialist	Added by 42nd CAA, 1976	Democratic socialism; mixed economy; Gandhian-Marxist blend.	Not Marxist-Leninist state communism; private property coexists.
Secular	Added by 42nd CAA, 1976	Positive secularism (*Sarva Dharma Sambhava*); equal respect.	Not Western negative secularism; state can reform religious social ills.
Democratic	Universal Adult Suffrage	Representative parliamentary democracy; rule of the ballot.	Both political and socio-economic democracy (Ambedkar).
Republic	French Constitutionalism	Elected Head of State (President); no hereditary monarch.	Contrasts with UK (which is democratic but a constitutional monarchy).
Justice (Social, Economic, Political)	**Russian Revolution (1917)**	Secured via Fundamental Rights and Directive Principles.	Order: Social → Economic → Political.
Liberty, Equality, Fraternity	**French Revolution (1789)**	Dignity of the individual and unity and integrity of the nation.	Liberty of thought, expression, belief, faith, worship (5 items).

🧠 Memory Anchors & Mnemonics

1. Preamble 5 Descriptors: "SO-SO-SE-DE-RE"

- **SO: SO**VEREIGN (संपूर्ण प्रभुत्व-संपन्न)
- **SO: SO**CIALIST (समाजवादी — 42nd CAA 1976)
- **SE: SE**CULAR (पंथनिरपेक्ष — 42nd CAA 1976)
- **DE: DE**MOCRATIC (लोकतंत्रात्मक)
- **RE: RE**PUBLIC (गणराज्य)

2. Preamble 4 Commitments: "J-L-E-F"

- **J: J**ustice (न्याय — Social, Economic, Political [Russian 1917])
- **L: L**iberty (स्वतंत्रता — Thought, Expression, Belief, Faith, Worship [French 1789])
- **E: E**quality (समता — Status and Opportunity)
- **F: F**raternity (बंधुता — Dignity of Individual & Unity and Integrity of Nation)

3. Golden Triangle: "14 - 19 - 21"

- **14:** Equality & Non-Arbitrariness (समानता व गैर-मनमानापन)
- **19:** Six Fundamental Freedoms & Reasonableness (छह मौलिक स्वतंत्रताएं)
- **21:** Life and Personal Liberty via Just, Fair, Reasonable Procedure (जीवन व व्यक्तिगत स्वतंत्रता)

4. 42nd Amendment Preamble Trinity: "S-S-I"

- **S: S**ocialist (समाजवादी)
- **S: S**ecular (पंथनिरपेक्ष)
- **I: I**ntegrity (और अखंडता)

Chapter 23: Constitutional & Legal Offices

Current Affairs & High-Yield Updates

YEAR/REF	LANDMARK LEGAL / STATUTORY FACT	WHAT YOU MARK / EXAM RELEVANCE
2023 Focus	**Chief Election Commissioner Selection Act, 2023**	3-member selection panel consists of: **Prime Minister (Chair), Leader of Opposition in Lok Sabha, and a Union Cabinet Minister** nominated by PM; **Chief Justice of India (CJI) is NOT on the panel** (superseded the interim mechanism in *Anoop Baranwal* judgment).
2023 Focus	**Resignation of Supreme Court & High Court Judges**	Under Article 124(2)(a) (SC) and Article 217(1)(a) (HC), resignation letter must be addressed in writing to the **President of India**, NOT the Chief Justice of India.
2023 Focus	**Attorney General Tenure & Removal Trap**	Attorney General must be qualified to be appointed an SC Judge, but holds office during the **Pleasure of the President** (Article 76(4)); does NOT have security of tenure and is NOT removed like an SC judge.
2022 Focus	**Joint State Public Service Commission (JSPSC)**	Created by an **Act of Parliament** following statutory requests by participating state legislatures; it is a **Statutory body**, not a Constitutional body (though provided under Art. 315(2)).
2022 Focus	**CAG Audit Reports Examination**	CAG audit reports on Appropriation & Finance accounts are examined by the **Public Accounts Committee (PAC)**; Reports on PSUs are examined by the **Committee on Public Undertakings (COPU)**; NOT the Estimates Committee.
2021 Focus	**SPSC Chairman & Member Removal**	Appointed by the **Governor**, but **REMOVED ONLY BY THE PRESIDENT** after an inquiry by the Supreme Court under Article 317(1); Governor has power of suspension only, NOT removal.
2021 Focus	**First CEC & First Woman CEC**	First CEC was **Sukumar Sen** (1950–1958); First and only woman CEC till date was **V.S. Ramadevi** (Nov–Dec 1990).
2021 Focus	**Extension of State PSC Functions**	State Legislature can confer additional functions regarding state public services on SPSC by enacting a law under **Article 321** (NOT by the Governor or President).
2020 Focus	**Attorney General Constitutional Placement**	Placed in **Part V, Chapter I (The Executive, Article 76)**; NOT in Part XIII (Trade & Commerce) or Part XIV (Services).

Consolidated Must-Score Facts

1. **Attorney General for India (Article 76, Part V):** The first and highest law officer of the Government of India; appointed by the **President**; must be a person qualified to be appointed a **Judge of the Supreme Court** (citizen of India + either 5 years HC judge OR 10 years HC advocate OR distinguished jurist in President's opinion).
2. **Attorney General Tenure & Remuneration (Article 76(4)):** Holds office during the **pleasure of the President**; no fixed tenure prescribed by the Constitution; by convention, resigns when the Council of Ministers falls or resigns; receives remuneration determined by the **President** (not charged on Consolidated Fund of India).
3. **Attorney General Rights in Parliament (Article 88):** Has the right to speak and take part in the proceedings of either House of Parliament, any joint sitting of the Houses, and any Parliamentary committee of which he may be named a member, but **WITHOUT THE RIGHT TO VOTE**; enjoys all privileges and immunities of an MP (Art. 105(4)).
4. **Attorney General Right of Audience (Article 76(3)):** Has the **right of audience in all courts in the territory of India** in the performance of his official duties; takes precedence over all other senior advocates.
5. **Private Practice by Attorney General:** Is **NOT a full-time government servant**; is not debarred from private legal practice; **cannot advise or hold briefs against the Government of India**; cannot defend accused persons in criminal prosecutions without government permission; cannot accept directorship in any company without government permission.
6. **First Attorney General of India: M.C. Setalvad** was the first and longest-serving Attorney General of India (1950–1963; over 13 years); served simultaneously as the Chairman of the First Law Commission of Independent India (1955–1958).
7. **Solicitor General of India & Additional SGs:** Subordinate law officers assisting the Attorney General; **STATUTORY POSTS, NOT CONSTITUTIONAL**; Article 76 mentions only the Attorney General; appointed by the Appointments Committee of the Cabinet (ACC) for 3-year terms; do NOT have Article 88 rights in Parliament.
8. **Advocate General for the State (Article 165, Part VI):** Highest law officer of the State; appointed by the **Governor**; must be a person qualified to be appointed a **Judge of a High Court** (citizen of India + held judicial office for 10 years OR advocate of HC for 10 years); holds office during the **pleasure of the Governor**; remuneration fixed by Governor.
9. **Advocate General Rights in State Legislature (Article 177):** Has the right to speak and take part in proceedings of both Houses of State Legislature (or single House if unicameral), and any legislative committee of which he is named a member, but **WITHOUT THE RIGHT TO VOTE**; enjoys right of audience in all courts within the State.
10. **Comptroller and Auditor General of India (CAG) (Articles 148–151):** Guardian of the public purse; heads the Indian Audit and Accounts Department; appointed by the **President by warrant under his hand and seal**; Dr. B.R. Ambedkar described CAG as the **most important officer under the Constitution of India**.
11. **CAG Tenure and Age Limit:** Holds office for a term of **6 years or until age 65 years**, whichever is earlier; can resign by addressing letter to the President.
12. **CAG Removal (Article 148(1)):** Can be removed from office **in like manner and on like grounds as a Judge of the Supreme Court** (proven misbehaviour or incapacity; address passed by both Houses of Parliament with special majority under Article 124(4)).
13. **CAG Post-Retirement Strict Ineligibility (Article 148(4)):** Is strictly **ineligible for further office either under the Government of India or under the Government of any State** after he has ceased to hold his office.

14. **CAG Oath of Office:** Takes oath before the President in accordance with **Form III in the Third Schedule** (preserves sovereignty, integrity, and upholds Constitution without fear or favour).
15. **CAG Salary and Expenses (Article 148(3) & 148(6)):** Salary is specified in the **Second Schedule** (equal to that of an SC Judge); administrative expenses of CAG office, including salaries and pensions, are **CHARGED upon the Consolidated Fund of India** (non-votable by Parliament).
16. **CAG Duties and Powers (Article 149):** Defined by Parliament under the **CAG's (Duties, Powers and Conditions of Service) Act, 1971**; audits all receipts and expenditure of Union and States, government companies, and bodies substantially financed from government revenues.
17. **Form of Accounts (Article 150):** The accounts of the Union and States shall be kept in such form as the **President may, on the advice of the CAG, prescribe** (amended by 42nd CAA 1976 and 44th CAA 1978).
18. **CAG Audit Reports (Article 151):** CAG submits 3 audit reports: (1) Appropriation Accounts, (2) Finance Accounts, (3) Public Undertakings; submitted to the **President (for Union)** who causes them to be laid before Parliament, and to the **Governor (for State)** who causes them to be laid before State Legislature.
19. **CAG and PAC Synergy:** The CAG acts as the **"Friend, Philosopher, and Guide"** of the **Public Accounts Committee (PAC)**; assists PAC in examining the audit reports and questioning departmental witnesses.
20. **First CAG of Independent India: V. Narahari Rao** was the first CAG of India (1948–1954).
21. **Chief Election Commissioner and Election Commissioners (Article 324):** Appointed by the **President**; under the Chief Election Commissioner and other Election Commissioners Act, 2023, appointed on the recommendation of a Selection Committee consisting of PM, LoP in Lok Sabha, and a Union Cabinet Minister.
22. **Election Commission Tenure and Status:** CEC and other ECs hold office for **6 years or until age 65 years**, whichever is earlier; rank and salary equal to that of a **Judge of the Supreme Court**.
23. **Removal of CEC vs Other ECs (Article 324(5)):** CEC can be removed **ONLY in like manner and on like grounds as a Judge of the Supreme Court**; other Election Commissioners **CANNOT be removed except on the recommendation of the Chief Election Commissioner**.
24. **Union Public Service Commission (UPSC) (Articles 315–323, Part XIV):** Independent central recruiting agency; Chairman and members appointed by the **President**; hold office for **6 years or until age 65 years**, whichever is earlier.
25. **UPSC Members Qualifications:** No specific qualification prescribed, except that nearly half (at least 50%) of the members must be persons who have held office for at least **10 years** either under the Government of India or under a State Government.
26. **UPSC Chairman/Member Removal (Article 317):** Removed **ONLY by the President** on grounds of misbehaviour after the **Supreme Court conducts an inquiry under Article 145** on a reference made by the President; SC finding is binding on President; President may remove directly without SC inquiry for insolvency, paid employment, or infirmity of mind/body.
27. **State Public Service Commission (SPSC) (Article 315):** Chairman and members appointed by the **Governor**; hold office for **6 years or until age 62 years** (amended by 41st CAA, 1976 from 60 to 62); **REMOVED ONLY BY THE PRESIDENT** (NOT Governor) under Article 317 following SC inquiry.
28. **Joint State Public Service Commission (JSPSC) (Article 315(2)):** Parliament may by law establish a JSPSC for two or more States upon resolutions passed by their respective legislatures; **STATUTORY body**; Chairman and members appointed by the **President**; tenure 6 years or age 62 years; removed by President.
29. **Special Officer for Linguistic Minorities (Article 350B):** Created by the **7th Constitutional Amendment Act, 1956** on recommendation of States Reorganisation Commission; appointed by the **President**; investigates constitutional safeguards for linguistic minorities and reports to President; Commissioner for Linguistic Minorities (CLM) headquarters at **Prayagraj (Allahabad), UP**.
30. **Cabinet Secretary of India:** Top-most civil servant in India; senior-most officer of Indian Administrative Service (IAS); ex-officio Chairman of Civil Services Board, Strategic Policy Group (SPG), and Committee of Secretaries; ranks **11th** in Table of Precedence (above all generals, ministers of state, and MPs).
31. **Principal Secretary to Prime Minister:** Administrative head of the Prime Minister's Office (PMO); coordinates highest-level policy planning and oversight; holds the rank and status of a **Cabinet Minister** within government.
32. **Solicitor General Rank & Role:** Second-highest law officer of India; represents the Union of India in Supreme Court alongside AG; does NOT hold a constitutional office (governed by Law Officers Conditions of Service Rules, 1972).
33. **Accountant General (AG) vs Advocate General (AdvG):** Accountant General is an officer of the Indian Audit & Accounts Department functioning under **CAG** to audit state finances; Advocate General is the constitutional law officer under **Article 165**.
34. **Oaths Outside Third Schedule:** Only 3 functionaries take oath under dedicated articles: (1) **President of India (Article 60)**; (2) **Vice-President of India (Article 69)**; (3) **Governor of a State (Article 159)**.
35. **CAG's Dual Role (Accounting vs Auditing):** In 1976, accounting was separated from auditing at Union level; CAG was relieved of the responsibility of preparing Union accounts (vested in Controller General of Accounts - CGA); CAG **still compiles and prepares accounts of State Governments**.
36. **Controller General of Accounts (CGA):** Principal accounting advisor to the Government of India in the Department of Expenditure, Ministry of Finance; **NOT a constitutional body** (functions under Allocation of Business Rules); prepares monthly and annual accounts of the Union Government.
37. **Finance Commission Chairman & Members Qualifications:** Set by Parliament under Finance Commission Act, 1951: Chairman must have experience in **public affairs**; 4 members: (1) High Court judge or qualified to be such; (2) specialized knowledge of finance and accounts; (3) wide experience in financial matters and administration; (4) special knowledge of economics.
38. **National Commission for SCs (Article 338):** Consists of Chairperson, Vice-Chairperson, and 3 other members appointed by President; holds office for **3 years**; has powers of a **Civil Court** while investigating complaints.
39. **National Commission for STs (Article 338A):** Bifurcated from NCSC by the **89th Constitutional Amendment Act, 2003**; Chairperson, Vice-Chairperson, and 3 members appointed by President for 3 years; Chairperson enjoys Cabinet Minister rank.
40. **National Commission for Backward Classes (Article 338B):** Accorded constitutional status by the **102nd Constitutional Amendment Act, 2018**; 5 members appointed by President for 3 years; investigates welfare and civil court matters for SEBCs.
41. **Tenure of Law Commission of India:** Constituted periodically every **3 years** as a non-statutory executive body under Ministry of Law and Justice; 22nd Law Commission chaired by Justice Ritu Raj Awasthi.
42. **Chief Justice of India Appointment:** Appointed by President under Article 124(2); by binding convention affirmed in *Second Judges Case (1993)*, the **senior-most judge of the Supreme Court** is appointed CJI; Collegium system governs recommendations.

43. **High Court Chief Justice Appointment (Article 217):** Appointed by President after consultation with the Chief Justice of India, Governor of the State, and (in case of other HC judges) Chief Justice of that High Court.
44. **Oath of Supreme Court & High Court Judges:** Supreme Court Judges take oath before the **President** under Third Schedule (Form IV); High Court Judges take oath before the **Governor** of the State under Third Schedule (Form VIII).
45. **Resignation of Constitutional Functionaries Matrix:** President resigns to **Vice-President**; Vice-President resigns to **President**; Speaker of Lok Sabha resigns to **Deputy Speaker**; Chairman of Rajya Sabha (VP) resigns to **President**; Supreme Court & High Court judges resign to **President**; CAG resigns to **President**; UPSC/SPSC members resign to **President/Governor**.
46. **UPSC Chairman Post-Retirement Ineligibility (Article 319):** Chairman of UPSC is strictly **ineligible for further employment either under the Government of India or under the Government of a State**; SPSC Chairman is eligible only for appointment as UPSC Chairman/member or Chairman of another SPSC.
47. **Advisory Functions of UPSC (Article 320):** Must be consulted on all matters relating to recruitment methods, principles of appointments/transfers, and disciplinary matters; **advice is advisory and not mandatory**; Government must place explanatory memorandum before Parliament for non-acceptance.
48. **Staff Selection Commission (SSC):** Attached office of Department of Personnel and Training (DoPT); established in 1975 (as Subordinate Services Commission, renamed 1977); **Non-statutory executive body** recruiting Group B (non-gazetted) and Group C personnel.
49. **Central Vigilance Commissioner (CVC):** Set up in 1964 on Santhanam Committee recommendations; accorded statutory status by CVC Act, 2003; CVC and maximum 2 Vigilance Commissioners appointed by President on recommendation of committee: **PM (Chair), Home Minister, and LoP in Lok Sabha**; tenure **4 years or age 65 years**.
50. **Chief Information Commissioner (CIC):** Head of Central Information Commission under RTI Act, 2005; appointed by President on recommendation of: **PM (Chair), LoP in Lok Sabha, and a Union Cabinet Minister**; term prescribed by Central Government (RTI Amendment 2019) or until age 65 years.

⏱ Timeline / Chronology

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1948 — V. Narahari Rao appointed 1st CAG of Independent India
1950 — M.C. Setalvad appointed 1st Attorney General for India (Art. 76)
1950 — Sukumar Sen appointed 1st Chief Election Commissioner of India (Art. 324)
1950 — UPSC constituted under Article 315 (Headed by H.K. Kripalani)
1951 — Finance Commission Act passed (1st FC headed by K.C. Neogy)
1956 — 7th CAA inserts Article 350B (Special Officer for Linguistic Minorities)
1964 — Central Vigilance Commission (CVC) created on Santhanam recommendations
1971 — CAG's (Duties, Powers and Conditions of Service) Act enacted
1976 — 41st CAA raises SPSC retirement age from 60 to 62 years
1976 — Separation of Accounts and Audit (CGA office created; CAG audits only at Centre)
1989 — Election Commission made multi-member for first time (61st CAA era)
1990 — V.S. Ramadevi becomes 1st and only Woman CEC of India
1993 — EC made permanently a 3-member body (CEC + 2 ECs) via ordinance/Act
2003 — 89th CAA bifurcates NCSC and NCST (Articles 338 and 338A)
2005 — Central Information Commission established under RTI Act
2018 — 102nd CAA accords constitutional status to NCBC (Article 338B)
2023 — Parliament enacts Chief Election Commissioner and other ECs Act, 2023
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📊 Quick Reference Grid

Master Comparison of Key Constitutional Offices

CONSTITUTIONAL OFFICE	ARTICLE & PART	APPOINTED BY	TENURE & AGE LIMIT	REMOVAL AUTHORITY & PROCEDURE	OATH TAKEN BEFORE / SCHEDULE	POST-RETIREMENT STATUS
Attorney General	Art. 76 (Part V)	President	Pleasure of President (No fixed term)	**President** (Pleasure of President; no formal trial)	No form in 3rd Schedule (Appointed by warrant)	Allowed private practice; no bar on office
Advocate General	Art. 165 (Part VI)	Governor	Pleasure of Governor (No fixed term)	**Governor** (Pleasure of Governor)	Form VIII (Like HC Judge) / 3rd Sch	Allowed private practice
CAG	Art. 148 (Part V)	President	**6 yrs or 65 yrs**	**President** (Like SC Judge via special majority, Art. 124(4))	Form III, 3rd Schedule (Before President)	**Strictly debarred from ALL further Union/State jobs**
CEC & ECs	Art. 324 (Part XV)	President	**6 yrs or 65 yrs**	CEC: **Like SC Judge**; ECs: **On CEC recommendation**	Form in Act / Before President	Can take further jobs (No constitutional bar)
UPSC Chairman	Art. 315 (Part XIV)	President	**6 yrs or 65 yrs**	**President** (After binding SC inquiry, Art. 317)	Form in 3rd Schedule / Before President	**Barred from ALL further Union/State jobs**
SPSC Chairman	Art. 315 (Part XIV)	**Governor**	**6 yrs or 62 yrs**	**PRESIDENT ONLY** (After binding SC inquiry, Art. 317)	Form in 3rd Schedule / Before Governor	Eligible only for UPSC or another SPSC
CJI / SC Judges	Art. 124 (Part V)	President	Up to **65 yrs**	**President** (Special majority in Parliament, Art. 124(4))	Form IV, 3rd Schedule (Before President)	Barred from pleading before any court
HC Judges	Art. 217 (Part VI)	President	Up to **62 yrs**	**President** (Special majority in Parliament, Art. 124(4))	Form VIII, 3rd Schedule (Before **Governor**)	Barred except SC and other HCs

🧠 Memory Anchors & Mnemonics

1. Oaths Outside Third Schedule: "P-V-G"

- **P: P**resident — Article 60
- **V: V**ice-President — Article 69
- **G: G**overnor — Article 159 *(All other judges, ministers, CAG, and MPs take oath under the Third Schedule).*

2. CAG Four Articles Ladder: "148 - 149 - 150 - 151"

- **148: A**ppointment, Oath, Removal & Independence of CAG.
- **149: D**uties and Powers of CAG.
- **150: F**orms of accounts prescribed on CAG's advice.
- **151: R**eports of CAG submitted to President / Governor.

3. Removal "Like an SC Judge": "C-C-C"

Only three categories of offices have the constitutional protection of being removed *in like manner and on like grounds as an SC Judge*: 1. **C: C**AG (Comptroller and Auditor General — Art. 148(1)) 2. **C: C**EC (Chief Election Commissioner — Art. 324(5)) 3. **C: C**ourt Judges (High Court Judges — Art. 217(1)(b))

4. SPSC Appointment vs Removal Paradox: "Appointed by G, Removed by P"

- **Appointed by: G**overnor (राज्यपाल)
- **Age limit: 62 years** (6 yrs / 62 yrs)
- **Removed ONLY by: P**resident (राष्ट्रपति) after Supreme Court inquiry under Art. 317!

Chapter 24: Important Supreme Court Judgments

Current Affairs & High-Yield Updates

YEAR/REF	LANDMARK JUDGMENT / CASE	CORE RATIO DECIDENDI / EXAM RELEVANCE
2024 Focus	**Electoral Bonds Judgment (*ADR v. UOI*)**	5-judge Constitution Bench unanimously struck down the Electoral Bond Scheme as unconstitutional, violating citizens' **Right to Information under Article 19(1)(a)**; struck down amendments to RPA 1951, Companies Act 2013, and IT Act 1961.
2024 Focus	**Chronology of Landmark Amendment Cases**	High-frequency PYQ matching sequence: **Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → Kesavananda Bharati (1973)**.
2022 Focus	**EWS Reservation Judgment (*Janhit Abhiyan*)**	5-judge bench (3:2 majority) upheld **103rd CAA 2019** (10% EWS quota); held that economic criteria alone can form the basis of classification and does not violate the Basic Structure.
2018 Focus	**Navtej Singh Johar v. Union of India**	Decriminalized consensual adult same-sex acts by reading down **Section 377 of the Indian Penal Code (IPC)**; examiner traps test IPC Section 377 vs Constitutional Article 377.
2018 Focus	**Joseph Shine v. Union of India**	Unanimously struck down **Section 497 of the IPC (Adultery)** and Section 198(2) CrPC as unconstitutional, violating Articles 14 and 21; adultery remains a civil ground for divorce, not a criminal offence.
2017 Focus	**K.S. Puttaswamy v. Union of India**	9-judge bench unanimously ruled **Right to Privacy is a Fundamental Right under Article 21**; explicitly declared the majority ruling in *ADM Jabalpur (1976)* to be fundamentally wrong.
2015 Focus	**NJAC Judgment (Fourth Judges Case)**	5-judge bench (4:1) struck down the **99th CAA 2014** and NJAC Act; held judicial independence and collegium primacy to be an unalterable part of the Basic Structure.
2015 Focus	**Shreya Singhal v. Union of India**	Struck down **Section 66A of the IT Act, 2000** as unconstitutional, vague, and violative of Freedom of Speech under Article 19(1)(a).
2013 Focus	**Lily Thomas v. Union of India**	Struck down **Section 8(4) of RPA 1951**; ruled that MPs/MLAs convicted of offences with >=2 years imprisonment face **instant disqualification**.

Consolidated Must-Score Facts

1. ***A.K. Gopalan v. State of Madras (1950)***: SC took a narrow, literal view of Article 21; held that "procedure established by law" meant any procedure formally enacted by a competent legislature; rejected natural justice and held that Articles 19, 21, and 22 operate as mutually exclusive, water-tight compartments.
2. ***Romesh Thappar v. State of Madras (1950)***: SC held that **Freedom of the Press is an implicit fundamental right under Article 19(1)(a)**; banning entry/circulation of the journal *Cross Roads* violated free speech; led Parliament to pass the **1st Constitutional Amendment Act, 1951** adding "public order" to Article 19(2).
3. ***State of Madras v. Champakam Dorairajan (1951)***: SC struck down a Communal GO providing caste-based reservations in medical/engineering colleges under Article 15(1); held that DPSPs cannot override Fundamental Rights; prompted Parliament to enact the **1st Amendment inserting Article 15(4)**.
4. ***Shankari Prasad v. Union of India (1951)***: 5-judge bench unanimously upheld the validity of the 1st CAA 1951 (and Arts. 31A & 31B); held that Parliament's constituent amending power under **Article 368 includes the power to amend Fundamental Rights**; held that "law" in Article 13(2) refers only to ordinary statutory law, not constitutional amendments.
5. ***Sajjan Singh v. State of Rajasthan (1965)***: 5-judge bench reaffirmed *Shankari Prasad*, upholding the 17th CAA 1964; Justice J.R. Mudholkar in his concurring opinion famously coined and questioned the concept of the **"Basic Features"** of the Constitution.
6. ***I.C. Golaknath v. State of Punjab (1967)***: Landmark 11-judge bench ruled by 6:5 majority (Chief Justice K. Subba Rao) that **Parliament has NO power to amend Fundamental Rights**; held that an amendment under Article 368 is a "law" within the meaning of Article 13(2); introduced the American **Doctrine of Prospective Overruling**.
7. ***R.C. Cooper v. Union of India (Bank Nationalisation Case, 1970)***: 11-judge bench struck down the 1969 Bank Nationalisation Act; explicitly overruled the *Gopalan* "mutual exclusivity" doctrine; held that laws must be tested across fundamental rights simultaneously; led to the **25th CAA 1971**.
8. ***Madhav Rao Scindia v. Union of India (Privy Purses Case, 1971)***: SC struck down the Presidential order derecognizing the Princes and abolishing privy purses as unconstitutional; led Parliament to pass the **26th Constitutional Amendment Act, 1971** terminating privy purses.
9. ***Kesavananda Bharati v. State of Kerala (24 April 1973)***: The greatest constitutional case in Indian history; largest bench of **13 judges** ruled by 7:6 majority; propounded the **Basic Structure Doctrine**; overruled *Golaknath*; upheld the validity of the 24th CAA 1971; held that Parliament has wide amending power under Article 368 but **cannot alter the Basic Structure or framework** of the Constitution; ruled that the **Preamble is an integral part of the Constitution** and can be amended under Article 368.
10. ***Indira Nehru Gandhi v. Raj Narain (1975)***: First direct application of the Basic Structure Doctrine; struck down Clause (4) of **Article 329A (inserted by 39th CAA, 1975)** which placed the election of the PM and Speaker outside judicial review; declared **Democracy, Rule of Law, Free and Fair Elections, and Judicial Review** as part of the Basic Structure.
11. ***ADM Jabalpur v. Shivkant Shukla (Habeas Corpus Case, 1976)***: 4:1 majority held that during Emergency, citizens have no locus standi to approach courts for Habeas Corpus under Article 359; **Justice H.R. Khanna's heroic dissent** held that the State has no power to deprive a person of life and liberty without authority of law even during Emergency; Khanna was superseded for CJI; dissent vindicated by 44th CAA 1978 and *Puttaswamy (2017)*.
12. ***Maneka Gandhi v. Union of India (1978)***: 7-judge bench revolutionized Article 21; held that the procedure depriving life or personal liberty must be **"just, fair, and reasonable"** and not arbitrary; read substantive due process and natural justice into Article 21; established the **"Golden Triangle" (Articles 14, 19, and 21)**.
13. ***Hussainara Khatoon v. Home Secretary, State of Bihar (1979)***: Initiated the era of **Public Interest Litigation (PIL)**; Justice P.N. Bhagwati recognized the **Right to Speedy Trial as a Fundamental Right under Article 21**; led to the immediate release of over 40,000 undertrial prisoners.

14. ***Minerva Mills v. Union of India (1980)***: SC struck down Clauses (4) and (5) of **Article 368 (inserted by 42nd CAA, 1976)** which gave unlimited amending power to Parliament and excluded judicial review; held that **Limited Amending Power and Judicial Review are Basic Features**; held that the Constitution is founded on the bedrock of the **balance and harmony between Fundamental Rights (Part III) and DPSPs (Part IV)**.
15. ***Waman Rao v. Union of India (1981)***: 5-judge bench established the critical cut-off date of **24 April 1973**; held that all laws placed in the Ninth Schedule prior to 24 April 1973 enjoy constitutional immunity, but all laws inserted after this date are open to judicial review on the touchstone of the Basic Structure.
16. ***S.P. Gupta v. Union of India (First Judges Case, 1981)***: 7-judge bench held that "consultation" in Article 124 does not mean "concurrence"; held that executive has ultimate primacy in judicial appointments; significantly broadened the doctrine of *locus standi* for PILs.
17. ***Supreme Court Advocates-on-Record Association v. UOI (Second Judges Case, 1993)***: 9-judge bench overruled *S.P. Gupta*; held that "consultation" means **"concurrence"**; established the **Collegium System** (CJI + 2 senior-most SC judges) for judicial appointments; gave primacy to the judiciary.
18. ***In re Special Reference 1 of 1998 (Third Judges Case, 1998)***: Presidential reference under Article 143; expanded the Collegium to **CJI + 4 senior-most judges of the SC** for appointments to the Supreme Court, and CJI + 2 senior-most judges for High Court transfers.
19. ***Supreme Court AOR Association v. UOI (Fourth Judges Case / NJAC, 2015)***: 5-judge bench (4:1) struck down the **99th Constitutional Amendment Act, 2014** and the National Judicial Appointments Commission (NJAC) Act; held that judicial primacy and independence are part of the Basic Structure; revived the Collegium system.
20. ***Kihoto Hollohan v. Zachillhu (1992)***: 5-judge bench upheld the validity of the **Tenth Schedule (Anti-Defection Law)**, but struck down **Paragraph 7**; held that the Speaker/Chairman acting under Tenth Schedule functions as a **Tribunal** and his decisions are subject to **Judicial Review under Articles 136, 226, and 227**.
21. ***Indra Sawhney v. Union of India (Mandal Case, 1992)***: 9-judge bench upheld 27% OBC reservation; laid down the **50% vertical reservation cap**; mandated exclusion of the **"Creamy Layer"**; ruled that reservations cannot apply to promotions; held backward classes cannot be identified solely on economic criteria.
22. ***S.R. Bommai v. Union of India (1994)***: Landmark 9-judge bench on Article 356 (President's Rule); held that proclamation is subject to **Judicial Review**; assembly cannot be dissolved until Parliament approves; **floor test is the only constitutional way to test majority**; declared **Secularism and Federalism as Basic Structure**.
23. ***Vishaka v. State of Rajasthan (1997)***: Laid down legally binding guidelines to prevent sexual harassment of women at the workplace under Articles 14, 19, and 21, drawing upon CEDAW; served as law until Parliament passed the **POSH Act, 2013**.
24. ***D.K. Basu v. State of West Bengal (1997)***: Laid down 11 mandatory guidelines and procedural safeguards to be followed by police during arrest, interrogation, and detention to prevent custodial violence and torture.
25. ***Association for Democratic Reforms (ADR) v. UOI (2002)***: SC ruled that voters have a fundamental right under **Article 19(1)(a)** to know the criminal antecedents, assets, liabilities, and educational qualifications of candidates contesting elections.
26. ***P.A. Inamdar v. State of Maharashtra (2005)***: 7-judge bench held that the State cannot impose reservation policy or quota on unaided private professional educational institutions; prompted Parliament to pass the **93rd CAA, 2005 inserting Article 15(5)**.
27. ***Rameshwar Prasad v. Union of India (2006)***: 5-judge bench declared the dissolution of the Bihar Legislative Assembly under Article 356 based on the Governor's subjective report of horse-trading to be unconstitutional and mala fide.
28. ***I.R. Coelho v. State of Tamil Nadu (2007)***: 9-judge bench unanimously ruled that any law placed in the **Ninth Schedule after 24 April 1973** is open to judicial challenge if it violates Fundamental Rights and damages the Basic Structure; held that the "rights test" and "essence of the rights test" apply.
29. ***Selvi v. State of Karnataka (2010)***: 3-judge bench ruled that involuntary administration of narco-analysis, polygraph (lie detector), and brain mapping tests violates the **right against self-incrimination under Article 20(3)** and personal liberty under Article 21.
30. ***Lily Thomas v. Union of India (2013)***: Struck down **Section 8(4) of the RPA, 1951** as unconstitutional; ruled that sitting MPs and MLAs stand **automatically disqualified immediately upon conviction** for an offence carrying a prison sentence of 2 years or more.
31. ***People's Union for Civil Liberties (PUCL) v. UOI (2013)***: Directed the Election Commission to provide a **"None of the Above" (NOTA)** option on Electronic Voting Machines (EVMs) and ballot papers to protect the secrecy and right of electors not to vote.
32. ***National Legal Services Authority (NALSA) v. UOI (2014)***: Recognized **transgender persons as the 'Third Gender'**; held that fundamental rights under Part III apply equally to them; affirmed their right to self-identify their gender identity.
33. ***Shreya Singhal v. Union of India (2015)***: Struck down **Section 66A of the Information Technology Act, 2000** for being excessively vague and disproportionately infringing Freedom of Speech and Expression under Article 19(1)(a).
34. ***Nabam Rebia v. Deputy Speaker, Arunachal Pradesh (2016)***: 5-judge bench ruled that the Governor cannot summon, prorogue, or dissolve the Assembly without the aid and advice of the Council of Ministers; held that Speaker cannot decide disqualification petitions when a resolution for his own removal is pending.
35. ***Shayara Bano v. Union of India (Triple Talaq Case, 2017)***: 5-judge Constitution Bench by 3:2 majority declared the practice of *Talaq-e-Biddat* (instant triple talaq) **unconstitutional, void, and arbitrary under Article 14**.
36. ***Justice K.S. Puttaswamy v. Union of India (2017)***: Unanimous 9-judge Constitution Bench held that the **Right to Privacy is a Fundamental Right guaranteed under Article 21** and Part III; established the 3-fold proportionality test: Legality, Legitimate State Aim, and Proportionality.
37. ***Common Cause v. Union of India (Passive Euthanasia Case, 2018)***: 5-judge Constitution Bench recognized the **Right to Die with Dignity as a fundamental right under Article 21**; legalized **passive euthanasia** and gave legal validity to **Living Wills / Advance Medical Directives**.
38. ***Government of NCT of Delhi v. Union of India (2018)***: 5-judge bench ruled that the Lieutenant Governor (LG) of Delhi is bound by the **aid and advice of the Council of Ministers** in all matters except police, public order, and land under Article 239AA; held LG is an administrator, not a parallel government.
39. ***Navtej Singh Johar v. Union of India (2018)***: 5-judge bench unanimously struck down **Section 377 IPC** to the extent it criminalized consensual sexual acts between adults of the same sex; affirmed constitutional morality and rights of LGBTQ+ citizens under Arts. 14, 15, 19, 21.
40. ***Joseph Shine v. Union of India (2018)***: 5-judge bench unanimously struck down **Section 497 of the IPC (Adultery)** as unconstitutional and violative of Articles 14, 15, and 21; held that law treated women as the chattel and property of husbands.
41. ***Indian Young Lawyers Association v. State of Kerala (Sabarimala Case, 2018)***: 4:1 majority struck down Rule 3(b) of Kerala Hindu Places of Public Worship Rules; held that excluding women aged 10 to 50 from Sabarimala temple violated Articles 14, 15, and 25.

42. ***Jarnail Singh v. Lachhmi Narain Gupta (2018)***: 5-judge bench modified *M. Nagaraj (2006)*; held that State does **NOT need to collect quantifiable data on backwardness** while providing reservations in promotions for SCs and STs; however, introduced the **"Creamy Layer" principle to SC/ST promotions**.
43. ***Anuradha Bhasin v. Union of India (2020)***: 3-judge bench ruled that **Freedom of Speech and Expression and Freedom of Trade/Profession over the Internet is a fundamental right under Article 19(1)(a) and 19(1)(g)**; indefinite suspension of internet services under Telecom Suspension Rules violates proportionality.
44. ***Internet and Mobile Association of India (IAMAI) v. RBI (2020)***: SC set aside RBI's 2018 circular banning banks from providing services to cryptocurrency exchanges, on grounds of lack of proportionality.
45. ***Anoop Baranwal v. Union of India (2023)***: 5-judge Constitution Bench ruled that appointments to the Election Commission (CEC and ECs) must be made on the advice of a committee comprising the **Prime Minister, Leader of Opposition in Lok Sabha, and the Chief Justice of India** until Parliament enacts a law.
46. ***Supriyo @ Supriya Chakraborty v. UOI (Marriage Equality Case, 2023)***: 5-judge Constitution Bench unanimously held that there is **no unqualified fundamental right to marry** under the Constitution; held that legalizing same-sex marriage falls within the legislative domain of Parliament, not the judiciary.
47. ***In Re Article 370 of the Constitution (2023)***: 5-judge Constitution Bench unanimously upheld the constitutional validity of the **abrogation of Article 370** and the Constitution (Application to Jammu and Kashmir) Orders (CO 272 and 273); held Article 370 was a temporary transitional provision.
48. ***Association for Democratic Reforms v. Union of India (Electoral Bonds Case, 2024)***: 5-judge Constitution Bench unanimously held the Electoral Bond Scheme unconstitutional; held that anonymous political contributions violate the voters' Right to Information under Article 19(1)(a).
49. ***Mineral Area Development Authority (MADA) v. Steel Authority of India (2024)***: 9-judge Constitution Bench (8:1 majority) held that royalty paid on extracted minerals is **NOT a tax**; ruled that **State Legislatures have legislative power under Entry 50 of List II to levy taxes on mineral rights and mineral-bearing lands**.
50. ***State of Punjab v. Davinder Singh (Sub-Classification Case, 2024)***: 7-judge Constitution Bench (6:1 majority) held that State Governments have the constitutional authority to create **sub-classifications within Scheduled Castes (SCs)** to grant preferential reservation to more backward segments (e.g., Balmikis and Mazhabi Sikhs); overruled *E.V. Chinnaiah (2005)*.
51. **A.K. Gopalan v. State of Madras (1950):** Narrow interpretation of Article 21; held 'procedure established by law' means law enacted by legislature, not natural justice; rejected doctrine of substantive due process; treated FRs as mutually exclusive watertight compartments.
52. **Champakam Dorairajan v. State of Madras (1951):** First landmark judgment on reservations; struck down communal G.O. in medical college admissions for violating Article 29(2); held Directive Principles cannot override Fundamental Rights; led directly to the **First Constitutional Amendment Act, 1951** which inserted Article 15(4).
53. **Shankari Prasad v. Union of India (1951):** Challenged First Amendment; SC held power to amend Constitution under Article 368 includes power to amend Fundamental Rights; 'law' in Article 13(2) refers only to ordinary legislative law and not to constitutional amendment acts.
54. **Golaknath v. State of Punjab (1967):** 11-judge bench ruled by 6:5 majority that Fundamental Rights are given a **transcendental and immutable position**; Parliament CANNOT amend Fundamental Rights under Article 368; applied the doctrine of **Prospective Overruling**; triggered the 24th Amendment Act, 1971.
55. **Kesavananda Bharati v. State of Kerala (1973):** Largest Constitution Bench in Indian history (**13 judges**, decided 7:6 on **24 April 1973**); overruled Golaknath; held Parliament has wide powers to amend any part of Constitution including FRs, BUT **cannot alter the 'Basic Structure' (आधारभूत ढांचा) of the Constitution**; held Preamble is an integral part of Constitution.
56. **Indira Nehru Gandhi v. Raj Narain (1975):** First application of Basic Structure Doctrine to strike down a constitutional amendment; invalidated clause (4) of 39th CAA 1975 which took election disputes of PM and Speaker outside judicial review; held **Democracy, Free and Fair Elections, and Judicial Review** are core components of basic structure.
57. **Maneka Gandhi v. Union of India (1978):** Watershed judgment expanding Article 21; overruled *A.K. Gopalan*; established that procedure depriving life or personal liberty must be **'just, fair, and reasonable'** (incorporating American Substantive Due Process); established the **'Golden Triangle' (Articles 14, 19, and 21 are mutually inclusive and interconnected)**.
58. **Minerva Mills v. Union of India (1980):** Struck down clauses (4) and (5) of Article 368 inserted by 42nd CAA (which gave unlimited amendment power and barred judicial review); held **Judicial Review and the harmonious balance between Fundamental Rights and Directive Principles** are basic structure components.
59. **Waman Rao v. Union of India (1981):** Clarified the application of the Basic Structure Doctrine; held all constitutional amendments and laws included in the **Ninth Schedule prior to 24 April 1973 (date of Kesavananda Bharati verdict) are valid and immune from challenge**, while all laws added to Ninth Schedule on or after 24 April 1973 are subject to judicial review against basic structure.
60. **Indra Sawhney v. Union of India (Mandal Case, 1992):** 9-judge bench upheld 27% OBC reservation in central services; laid down: (1) **50% vertical reservation cap** in ordinary circumstances; (2) **'Creamy Layer' exclusion** for backward classes; (3) Reservation restricted to **initial appointments ONLY (no reservation in promotions)**; (4) Backward classes can be identified on basis of caste.
61. **Vishaka v. State of Rajasthan (1997):** SC laid down binding **'Vishaka Guidelines'** to protect women from sexual harassment at workplace in absence of legislation, invoking Article 14, 19, 21 and CEDAW convention; culminated in the enactment of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (POSH Act).
62. **Association for Democratic Reforms - ADR (2002) & PUCL (2003):** SC held voters have a Fundamental Right to know the **criminal antecedents, educational qualifications, and assets/liabilities of contesting candidates** under Article 19(1)(a); made filing of affidavit mandatory with nomination papers.
63. **Lily Thomas v. Union of India (2013):** Struck down Section 8(4) of RPA 1951 as unconstitutional; held sitting MPs and MLAs convicted of offences with imprisonment of **2 years or more stand disqualified IMMEDIATELY** upon conviction; no 3-month protection while appeal is pending.
64. **Justice K.S. Puttaswamy v. Union of India (Privacy Judgment, 2017):** Unanimous 9-judge Constitution bench declared the **Right to Privacy is an intrinsic part of the Right to Life and Personal Liberty under Article 21** and part of the basic structure; overruled *M.P. Sharma (1954)* and *Kharak Singh (1962)*.
65. **Navtej Singh Johar v. Union of India (2018):** Unanimously read down **Section 377 of the Indian Penal Code (IPC)** to the extent it criminalized consensual sexual acts between adults in private; affirmed rights of LGBTQ+ community under Articles 14, 15, 19, and 21.

⏱ Timeline / Chronology

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1950 — A.K. Gopalan & Romesh Thappar (Article 21 literal view & Press freedom)
1951 — Champakam Dorairajan (1st CAA) & Shankari Prasad (Amending power upheld)
1960 — In re Berubari Union (Preamble not part; 9th CAA for territory transfer)
1965 — Sajjan Singh (Justice Mudholkar coins "Basic Features" query)
1967 — I.C. Golaknath (Parliament cannot amend FRs; Prospective Overruling)
1970 — R.C. Cooper (Bank Nationalisation; Gopalan theory rejected)
1973 — Kesavananda Bharati (24 April: Basic Structure Doctrine established)
1975 — Indira Nehru Gandhi v. Raj Narain (Article 329A(4) struck down)
1976 — ADM Jabalpur (Emergency Habeas Corpus; Khanna's heroic dissent)
1978 — Maneka Gandhi (Procedure must be just, fair, reasonable; Golden Triangle)
1979 — Hussainara Khatoon (1st PIL; Right to Speedy Trial under Art. 21)
1980 — Minerva Mills (Harmony between FR and DPSP is Basic Structure)
1981 — Waman Rao (24 April 1973 cut-off date fixed for Ninth Schedule)
1992 — Indra Sawhney (50% cap & Creamy layer) & Kihoto Hollohan (Anti-defection)
1993 — Second Judges Case (Collegium System born)
1994 — S.R. Bommai (Article 356 guidelines; Secularism is Basic Structure)
1997 — Vishaka guidelines (Workplace harassment) & D.K. Basu (Arrest guidelines)
2006 — Rameshwar Prasad (Dissolution on horse-trading held unconstitutional)
2007 — I.R. Coelho (Ninth Schedule post-1973 subjected to Basic Structure)
2013 — Lily Thomas (Instant disqualification of convicted MPs/MLAs)
2015 — NJAC Judgment (99th CAA struck down) & Shreya Singhal (s.66A struck down)
2017 — Puttaswamy (Right to Privacy under Art. 21) & Shayara Bano (Triple Talaq)
2018 — Navtej Johar (s.377 IPC read down) & Joseph Shine (s.497 IPC adultery void)
2023 — Article 370 abrogation upheld unanimously by 5-judge bench
2024 — Electoral Bonds Scheme struck down (*ADR v. UOI*) & Sub-classification of SCs (*Davinder Singh*)
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📊 Quick Reference Grid

Master Table of Landmark Supreme Court Judgments

CASE NAME & YEAR	BENCH SIZE & KEY AUTHOR	CONSTITUTIONAL ARTICLES TESTED	CORE RATIO DECIDENDI	BASIC STRUCTURE IMPACT
Shankari Prasad (1951)	5 Judges (Patanjali Sastri)	Art. 13 & 368	Amending power includes FRs; Art. 13 excludes 368 amendments.	Upheld unlimited parliamentary power.
Golaknath (1967)	11 Judges (Subba Rao, CJ)	Art. 13 & 368	Parliament cannot amend Part III; prospective overruling.	Barred amendments altering FRs.
Kesavananda (1973)	**13 Judges** (S.M. Sikri, CJ)	Art. 13, 31C, 368	Established Basic Structure Doctrine; Preamble is part of Constitution.	**Birth of Basic Structure Doctrine**.
Indira Gandhi (1975)	5 Judges (Ray, CJ)	Art. 329A(4) & 368	Struck down s.329A(4); free and fair elections & rule of law are basic.	First use of BS to strike down amendment.
Maneka Gandhi (1978)	7 Judges (Beg, CJ)	Art. 14, 19, 21	Procedure under Art. 21 must be just, fair, reasonable; Golden Triangle.	Substantive due process synthesized.
Minerva Mills (1980)	5 Judges (Chandrachud, CJ)	Art. 368(4)(5), 31C	Struck down unlimited amending power; balance between FR & DPSP is BS.	Affirmed limited amending power is BS.
Indra Sawhney (1992)	9 Judges (M.H. Kania, CJ)	Art. 16(4)	Upheld 27% OBC quota; 50% vertical ceiling; creamy layer excluded.	Equality code balanced with social justice.
S.R. Bommai (1994)	9 Judges (Ratnavel Pandian)	Art. 356, 355	Subjected 356 to judicial review; floor test mandatory; assembly dissolution delayed.	**Secularism & Federalism** declared BS.
I.R. Coelho (2007)	9 Judges (Sabharwal, CJ)	9th Sch, Art. 31B	Post-24 April 1973 Ninth Schedule laws subject to basic structure review.	Ended blanket immunity of Ninth Schedule.
Lily Thomas (2013)	2 Judges (A.K. Patnaik)	Art. 102, 191; s.8(4) RPA	Struck down s.8(4) RPA; instant disqualification of convicted legislators.	Decriminalization of legislative politics.
NJAC Case (2015)	5 Judges (J.S. Khehar)	99th CAA & NJAC Act	Struck down 99th CAA (4:1); collegium restored; judicial primacy protected.	**Judicial Independence** affirmed as BS.
Puttaswamy (2017)	**9 Judges** (J.S. Khehar, CJ)	Art. 21, Part III	Unanimously declared Right to Privacy a fundamental right; *Jabalpur* wrong.	Expanded personal autonomy under Art. 21.
Navtej Johar (2018)	5 Judges (Dipak Misra, CJ)	Art. 14, 15, 19, 21	Read down Section 377 IPC; decriminalized consensual homosexual acts.	Constitutional morality triumphs over public morality.
Electoral Bonds (2024)	5 Judges (D.Y. Chandrachud, CJ)	Art. 19(1)(a)	Struck down Electoral Bonds Scheme as violative of voter right to know.	Transparency in political finance protected.

🧠 Memory Anchors & Mnemonics

1. Four Landmark Amendment Cases Chronology: "S-S-G-K"

- **S: S**hankari Prasad (1951) — Parliament can amend FRs.
- **S: S**ajjan Singh (1965) — Reaffirmed Shankari Prasad; Mudholkar's doubt.
- **G: G**olaknath (1967) — Parliament CANNOT amend FRs (Prospective Overruling).
- **K: K**esavananda Bharati (1973) — Basic Structure Doctrine; Preamble is part.

2. Article 21 Three-Stage Evolution: "Literal → Dark → Radiant"

- **Literal Phase (1950):** *A.K. Gopalan* — Narrow procedure established by law.
- **Dark Phase (1976):** *ADM Jabalpur* — Habeas corpus suspended during Emergency.
- **Radiant Phase (1978 & 2017):** *Maneka Gandhi* (Due process / Golden Triangle) & *Puttaswamy* (Privacy as fundamental right).

3. Basic Structure 4 Pillars in Indira Gandhi Case: "D-F-R-J"

- **D: D**emocracy (लोकतंत्र)
- **F: F**ree and Fair Elections (स्वतंत्र व निष्पक्ष चुनाव)
- **R: R**ule of Law (विधि का शासन)
- **J: J**udicial Review (न्यायिक समीक्षा)

4. 24 April 1973: The Constitutional Watershed

- The date **Kesavananda Bharati** judgment was delivered.
- **Ninth Schedule boundary line:** Pre-24 April 1973 = Immune; Post-24 April 1973 = Tested on Basic Structure (*Waman Rao* & *I.R. Coelho*).

Chapter 25: Uttar Pradesh Special Polity & Governance

Current Affairs & High-Yield Updates

YEAR/REF	LANDMARK FACT / GOVERNANCE DEVELOPMENT	WHAT YOU MARK / EXAM RELEVANCE
2025 Focus	**Devipatan Division Districts Breakdown**	Devipatan Division headquarters is at **Gonda**; comprises 4 districts: **Bahraich, Balrampur, Gonda, and Shravasti**; classic elimination question in PCS prelims.
2023 Focus	**UP Representation in Union Parliament**	UP sends **80 members to Lok Sabha** and **31 members to Rajya Sabha**; both statements are true; highest representation of any State in both Houses.
2022 Focus	**Legislative Assembly Strengths Matching**	UP Vidhan Sabha strength is **403**; examiner trap paired Manipur with 62 (Manipur is **60**).
2007 Focus	**Renaming of Uttaranchal**	The newly created hill State was originally named **Uttaranchal** from 9 Nov 2000 until **1 January 2007**, when it was officially renamed **Uttarakhand**.
2000 Focus	**UP Reorganisation Act, 2000 Enforcement**	Carved out 13 hill districts on **9 November 2000** (NOT 1 November — 1 Nov was Chhattisgarh). UP Assembly reduced from 425 to **403**, Lok Sabha from 85 to **80**, Rajya Sabha from 34 to **31**.
1989 Focus	**Urdu as Second Official Language**	Urdu declared the **Second Official Language** of UP under the UP Official Language (Amendment) Act, 1989 (Hindi is the first official language).
1948 Focus	**Amalgamation of Oudh Chief Court**	Lucknow Bench is NOT a separate High Court; established on **26 July 1948** by amalgamating the Chief Court of Oudh into the Allahabad High Court.
2023 Focus	**Panchayat & Urban Body Elections Authority**	Conducted exclusively by the **Uttar Pradesh State Election Commission (UP SEC)** under Articles 243K and 243ZA; NOT by the Election Commission of India (ECI).
2021 Focus	**Extension of UPPSC Functions**	Additional functions regarding state public services are conferred on UPPSC by the **Uttar Pradesh State Legislature under Article 321** (NOT by the Governor).
1866 Focus	**Genesis of High Court at Allahabad**	Established by Letters Patent on **17 March 1866**; first sat at **Agra**; shifted to **Allahabad in 1869**; Sir Walter Morgan was first Chief Justice.

Consolidated Must-Score Facts

1. **State Name and Capital Chronology:** The territory was designated as **North-Western Provinces (1836)**; Agra and Oudh merged into **United Provinces of Agra and Oudh (1902)**; shortened to **United Provinces (1937)**; officially renamed **Uttar Pradesh on 24 January 1950** (celebrated annually as **UP Diwas / UP Foundation Day** since 2018).
2. **State Capital Shifts:** Capital shifted from **Agra to Allahabad in 1858** following the 1857 Revolt; shifted partially to **Lucknow in 1920**; Lucknow was made the permanent, full administrative capital in **1935**.
3. **Uttar Pradesh Vidhan Sabha (Legislative Assembly):** Total strength is **403 directly elected members**; the 1 Anglo-Indian nominated seat under Art. 333 was abolished by the **104th CAA, 2019**; prior to the creation of Uttarakhand (2000), total strength was 425.
4. **Reserved Seats in UP Vidhan Sabha (Article 332):** Out of 403 seats, **86 seats are reserved for SCs/STs**: **84 seats reserved for Scheduled Castes (SC)** and **2 seats reserved for Scheduled Tribes (ST)**; the 2 ST reserved constituencies are **Duddhi and Obra** (both in Sonbhadra district).
5. **Uttar Pradesh Vidhan Parishad (Legislative Council):** Established under the Government of India Act, 1935 (first sat in 1937); total strength is **100 members** (largest in India); constitutional cap under Art. 171(1) is one-third of Assembly (403/3 = 134); permanent chamber not subject to dissolution; one-third of members retire every 2 years; individual tenure is **6 years**.
6. **Vidhan Parishad 100 Seats Statutory Breakdown:** (1) **38 members** elected by MLAs (विधानसभा सदस्यों द्वारा); (2) **36 members** elected by Local Authorities constituencies (स्थानीय प्राधिकारियों द्वारा); (3) **8 members** elected by Graduates constituencies (स्नातक निर्वाचन); (4) **8 members** elected by Teachers constituencies (शिक्षक निर्वाचन); (5) **10 members** nominated by the Governor under Art. 171(5).
7. **Representation in Union Parliament:** UP has the largest representation of any state in India: **80 Lok Sabha seats** (17 reserved for SCs, 0 for STs) and **31 Rajya Sabha seats**.
8. **First Governor of Uttar Pradesh: Sarojini Naidu** was the first Governor of UP (15 August 1947 to 2 March 1949); first woman Governor of any state in India; died in office at Government House, Lucknow.
9. **First Chief Minister of Uttar Pradesh: Govind Ballabh Pant** was the first Chief Minister of UP (26 January 1950 to 27 December 1954); had previously served as the Premier of United Provinces (1937–39 and 1946–50); awarded Bharat Ratna in 1957.
10. **First Woman Chief Minister of India: Sucheta Kripalani** served as the Chief Minister of Uttar Pradesh from October 1963 to March 1967; first woman Chief Minister of any state in independent India.
11. **Most Frequent Chief Minister of UP: Mayawati** has taken the oath as Chief Minister of Uttar Pradesh **4 times** (1995, 1997, 2002, and 2007–2012); only person to complete a full 5-year uninterrupted term as BSP CM (2007–2012).
12. **UP Chief Ministers Who Became Prime Ministers of India:** Two former Chief Ministers of Uttar Pradesh rose to become Prime Minister of India: (1) **Chaudhary Charan Singh** (5th PM of India, 1979–80); (2) **Vishwanath Pratap Singh (V.P. Singh)** (7th PM of India, 1989–90).
13. **First Speaker of UP Legislative Assembly: Purushottam Das Tandon** was the first Speaker of the UP Legislative Assembly (31 July 1937 to 10 August 1950); revered as *Rajarshi*; awarded Bharat Ratna in 1961.
14. **First Chairman of UP Legislative Council: Sir Sita Ram** was the first Chairman (Sabhapati) of the UP Legislative Council in independent India (1949); succeeded by Chandra Bhal.

15. **High Court of Judicature at Allahabad:** Established on **17 March 1866** by royal Letters Patent at **Agra** under the Indian High Courts Act, 1861; shifted to **Allahabad in 1869**; renamed High Court of Judicature at Allahabad on 11 March 1919; **Sir Walter Morgan** was the first Chief Justice; **Shah Muhammad Sulaiman** was the first Indian Chief Justice (1932).
16. **Lucknow Bench of Allahabad High Court:** Created under the **United Provinces High Courts (Amalgamation) Order, 1948**; Chief Court of Oudh was merged with Allahabad HC on **26 July 1948**; exercises territorial jurisdiction over **12 districts of Avadh region**: Lucknow, Ayodhya, Barabanki, Rae Bareli, Amethi, Sultanpur, Pratapgarh, Hardoi, Lakhimpur Kheri, Sitapur, Bahraich, and Shravasti.
17. **Sanctioned Strength of Allahabad High Court:** Has the **largest sanctioned judicial strength** in India with **160 judges** (120 permanent judges + 40 additional judges).
18. **Official Languages of Uttar Pradesh:** Under the UP Official Language Act, 1951, **Hindi in Devanagari script** is the official language of the State; by the UP Official Language (Amendment) Act, 1989, **Urdu was declared the Second Official Language** for specified official purposes.
19. **UP Reorganisation Act, 2000 (Creation of Uttarakhand):** Passed by Parliament under Articles 3 & 4; signed by President K.R. Narayanan on 25 August 2000; took effect on **9 November 2000**; bifurcated UP by carving out 13 northwestern hill districts to form **Uttaranchal** (renamed Uttarakhand on 1 Jan 2007); reduced UP Assembly from 425 to 403 seats, LS from 85 to 80, and RS from 34 to 31.
20. **Administrative Divisions of Uttar Pradesh:** UP is divided into **18 Administrative Divisions** and **75 Districts**; each division is headed by a Divisional Commissioner; newest (18th) division is **Aligarh Division (created 2008)**; Faizabad division was renamed **Ayodhya division in November 2018**.
21. **Devipatan Division Composition:** Headquartered at **Gonda**; comprises 4 districts: **Bahraich, Balrampur, Gonda, and Shravasti**.
22. **Chitrakoot Division Composition:** Headquartered at **Banda**; comprises 4 districts: **Banda, Chitrakoot, Hamirpur, and Mahoba**.
23. **Bansi / Basti Division Composition:** Headquartered at **Basti**; comprises 3 districts: **Basti, Siddharthnagar, and Sant Kabir Nagar**.
24. **Mirzapur Division Composition:** Headquartered at **Mirzapur**; comprises 3 districts: **Mirzapur, Sonbhadra, and Bhadohi (Sant Ravidas Nagar)**.
25. **Uttar Pradesh Public Service Commission (UPPSC):** Constituted on **1 April 1937** under the Government of India Act, 1935; governed under Articles 315–323; headquarters located at **Prayagraj (Allahabad)**; Chairman and members appointed by the **Governor** for a term of **6 years or age 62 years**; can be **REMOVED ONLY BY THE PRESIDENT** under Article 317 after an inquiry by the Supreme Court.
26. **Uttar Pradesh State Election Commission (UP SEC):** Established on **23 April 1994** following the 73rd and 74th CAAs (Articles 243K and 243ZA); conducts elections to all 3 tiers of Panchayati Raj Institutions and Urban Local Bodies; headed by the State Election Commissioner appointed by the **Governor**; conditions of service and tenure cannot be varied to his disadvantage.
27. **Uttar Pradesh State Finance Commission (UP SFC):** Constituted every 5 years by the Governor under **Articles 243-I and 243-Y**; reviews the financial position of Panchayats and Municipalities and recommends principles for devolution of net proceeds of state taxes.
28. **Uttar Pradesh Lokayukta (उत्तर प्रदेश लोकायुक्त):** Governed by the **Uttar Pradesh Lokayukta and Up-Lokayuktas Act, 1975** (in force 12 July 1977); investigates allegations of corruption and maladministration against public servants; **Justice Bishambhar Dayal** was the first Lokayukta (1977–1982); appointed by Governor after consultation with Chief Justice of Allahabad HC and Leader of Opposition in Vidhan Sabha.
29. **UP Lokayukta Tenure Amendment (2012):** By the UP Lokayukta and Up-Lokayuktas (Amendment) Act, 2012, the term of the Lokayukta was **extended from 6 years to 8 years**; longest statutory tenure for any state ombudsman in India.
30. **UP Panchayati Raj Statutory Foundations:** 3-tier structure established via two statutes: (1) **UP Panchayati Raj Act, 1947** (for Gram Panchayats); (2) **UP Kshetra Panchayats and Zila Panchayats Act, 1961**; amended in 1994 to align with 73rd CAA; reserves **one-third (33%) seats for women** (NOT 50%, unlike Bihar and MP).
31. **Urban Local Bodies in Uttar Pradesh:** Governed by: (1) **UP Municipalities Act, 1916** (for Nagar Palika Parishads and Nagar Panchayats); (2) **UP Municipal Corporation Act, 1959** (for Nagar Nigams); currently UP has **17 Municipal Corporations (Nagar Nigams)**; Shahjahanpur was constituted as the 17th Nagar Nigam in 2018; **Mayors of Nagar Nigams are directly elected** by city voters.
32. **President's Rule in Uttar Pradesh (Article 356):** Imposed **10 times** in Uttar Pradesh (tied with Manipur for highest in India); first imposed on **25 February 1968** under Governor B. Gopala Reddy; most recently imposed in **March 2002** after a fractured assembly verdict.
33. **UP Human Rights Commission (UP HRC):** Constituted on **7 October 2002** under Section 21 of the Protection of Human Rights Act, 1993; headquarters at **Lucknow**; consists of Chairperson (retired CJ of High Court or retired SC Judge) and 2 members; appointed by Governor on recommendation of panel: CM (Chair), Speaker of Assembly, Home Minister of UP, and LoP in Assembly.
34. **UP State Information Commission (UP SIC):** Constituted on **14 September 2005** under Section 15 of RTI Act, 2005; headquarters at **Lucknow**; consists of State Chief Information Commissioner and up to 10 State Information Commissioners; appointed by Governor on recommendation of: CM, LoP, and a Cabinet Minister.
35. **UP State Commission for Women:** Statutory body constituted under the Uttar Pradesh State Commission for Women Act, 2002; headquartered in Lucknow; works to investigate deprivation of women's rights and enforce equality safeguards.
36. **UP State Commission for Backward Classes:** Statutory body constituted under the Uttar Pradesh State Commission for Backward Classes Act, 1993; headquartered in Lucknow; investigates grievances and recommends inclusions into OBC list.
37. **UP Public Services Tribunal:** Established under the **Uttar Pradesh Public Services (Tribunals) Act, 1976**; headquartered at **Lucknow**; adjudicates disputes relating to service conditions and employment matters of state government employees, municipal workers, and public corporation servants.
38. **State Disaster Management Authority (UP SDMA):** Established under Section 14 of the Disaster Management Act, 2005; **ex-officio Chairperson is the Chief Minister of Uttar Pradesh**; Relief Commissioner serves as Member-Secretary.
39. **First Council of Ministers of United Provinces (1937):** Premier was **Govind Ballabh Pant**; Finance Minister was **Rafi Ahmad Kidwai**; Minister of Justice was **Dr. Kailash Nath Katju**; Law Minister was **Pyare Lal Sharma**; Vijaya Lakshmi Pandit was Minister of Local Self-Government and Health (first woman cabinet minister in British India).
40. **Bicameral Legislature Genesis in UP:** Bicameralism was first introduced in United Provinces under the **Government of India Act, 1935**; the UP Legislative Assembly and UP Legislative Council first met in **July 1937**.
41. **UP Vidhan Sabha Building Architecture:** The magnificent crescent-shaped Vidhan Bhavan in Lucknow was inaugurated on **21 February 1928** by Governor Sir Spencer Harcourt Butler; designed by architects Sir Swinton Jacob and Heera Singh.
42. **Longest Serving Chief Minister of UP (Continuous): Yogi Adityanath** is the longest-serving continuous Chief Minister of Uttar Pradesh (in office since 19 March 2017; surpassed Sampurnanand's continuous tenure record of 5 years and 345 days in 2023).

43. **Shortest Tenure as Chief Minister of UP: Jagdambika Pal** holds the record for the shortest tenure as CM of UP (sworn in on 21 February 1998, held office for approximately **44 hours** until the Allahabad High Court reinstated Kalyan Singh).
44. **UP State Planning Commission (राज्य योजना आयोग):** Constituted in **August 1971** under the chairmanship of the Chief Minister; restructured in 2022 into the **State Transformation Commission (STC)** on the lines of NITI Aayog to formulate development roadmaps.
45. **UP Janhit Guarantee Act, 2011:** Uttar Pradesh enacted the **UP Public Services Guarantee Act (Janhit Guarantee Act) in 2011**; mandates time-bound delivery of notified public services (birth/death certificates, caste certificates, land records); imposes daily penalty on defaulting designated officers.
46. **State Law Commission of UP:** Reconstituted periodically as a non-statutory body to review, simplify, and recommend repeal of obsolete state statutes; drafted landmark reports on population control and anti-conversion bills.
47. **UP Prohibition of Unlawful Conversion of Religion Act, 2021:** Enacted to prohibit unlawful conversion from one religion to another by misrepresentation, force, undue influence, coercion, or allurement; requires 60-day advance declaration to District Magistrate before conversion.
48. **UP Gangsters and Anti-Social Activities (Prevention) Act, 1986:** Stringent special state criminal legislation enacted to curb organized crime syndicates, land mafias, and gang activities; allows attachment of properties acquired through criminal proceeds under Section 14 by the District Magistrate.
49. **Table of Precedence in UP State Administration:** (1) Governor; (2) Chief Minister; (3) Chief Justice of Allahabad HC & Speaker of Vidhan Sabha; (4) Cabinet Ministers of UP; (5) Leader of Opposition in Vidhan Sabha / Parishad; (6) Judges of Allahabad HC; (7) Chief Secretary of UP.
50. **Chief Secretary of Uttar Pradesh (मुख्य सचिव):** Administrative head of the State administration; senior-most civil servant in UP; ex-officio Secretary to the State Cabinet; coordinates all administrative departments; acts as principal advisor to the Chief Minister.

⏱️ Timeline / Chronology

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1836 — North-Western Provinces created (Capital: Agra)
1858 — Capital shifted from Agra to Allahabad post-1857 revolt
1866 — High Court established at Agra (Letters Patent, 17 March; shifted to Allahabad 1869)
1902 — Renamed United Provinces of Agra and Oudh
1920 — Capital shifted partially to Lucknow; High Court remains at Allahabad
1928 — Council House (Vidhan Bhavan) inaugurated in Lucknow (21 Feb)
1935 — Government of India Act 1935: Bicameral legislature introduced; Lucknow permanent capital
1937 — 1st elected ministry under Govind Ballabh Pant (Premier); UPPSC formed (1 April)
1947 — Sarojini Naidu becomes 1st Governor of UP (15 Aug; 1st woman Governor in India)
1948 — Chief Court of Oudh amalgamated with Allahabad HC (Lucknow Bench born, 26 July)
1950 — Renamed "Uttar Pradesh" (24 Jan); Pant becomes 1st Chief Minister
1951 — UP Official Language Act declares Hindi in Devanagari as official language
1963 — Sucheta Kripalani becomes 1st Woman Chief Minister in India (Oct)
1968 — President's Rule imposed in UP for the 1st time (25 Feb)
1975 — UP Lokayukta Act enacted (Justice Bishambhar Dayal 1st Lokayukta in 1977)
1976 — UP Public Services Tribunal established
1989 — Urdu declared Second Official Language of UP
1994 — UP State Election Commission (UP SEC) established (23 April)
2000 — UP Reorganisation Act: Uttarakhand carved out (9 Nov; seats become 403 / 100 / 80 / 31)
2002 — UP State Human Rights Commission constituted (7 Oct)
2005 — UP State Information Commission constituted (14 Sep)
2008 — Aligarh Division created as 18th Administrative Division of UP
2012 — UP Lokayukta tenure extended from 6 to 8 years
2018 — Faizabad division renamed Ayodhya division; Shahjahanpur 17th Nagar Nigam
2019 — 104th CAA abolishes Anglo-Indian nominated seat; UP Assembly fixed at 403
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📊 Quick Reference Grid

Master UP Constitutional & Electoral Seats Grid

LEGISLATIVE BODY	TOTAL STRENGTH	PRE-2000 STRENGTH	RESERVED FOR SC	RESERVED FOR ST	TENURE & NATURE
Vidhan Sabha (Assembly)	**403** (Direct election)	425	**84**	**2** (Duddhi & Obra in Sonbhadra)	5 Years (Subject to dissolution)
Vidhan Parishad (Council)	**100** (Largest in India)	108	Nil	Nil	**6 Years** (Permanent; 1/3 retire every 2 yrs)
Lok Sabha (UP quota)	**80** (Largest in India)	85	**17**	**0** (Zero ST seats in UP)	5 Years (Subject to dissolution)
Rajya Sabha (UP quota)	**31** (Largest in India)	34	N/A	N/A	6 Years (Permanent; 1/3 retire every 2 yrs)

Vidhan Parishad (100 Seats) Statutory Election Matrix

ELECTORAL COLLEGE (निर्वाचक मंडल)	ARTICLE 171 RATIO	ACTUAL SEATS IN UP	ELECTORS / QUALIFICATIONS
Members of Legislative Assembly (MLAs)	~ 1/3rd	**38 seats**	Elected by MLAs via single transferable vote (PR-STV).
Local Authorities (स्थानीय निकाय)	~ 1/3rd	**36 seats**	Elected by members of Zila Panchayats, Municipal Corporations, Nagar Palikas.
Nominated by Governor (राज्यपाल मनोनीत)	~ 1/12th	**10 seats**	Nominated on advice of CoM: Literature, Science, Art, Cooperative, Social Service.
Graduates Constituency (स्नातक)	~ 1/12th	**8 seats**	Registered graduates of at least 3 years standing residing in UP.
Teachers Constituency (शिक्षक)	~ 1/12th	**8 seats**	Teachers in secondary schools/colleges of at least 3 years standing.

High Court of Judicature at Allahabad Snapshot

FEATURE	LEGAL / HISTORICAL FACT	CRITICAL ELIMINATION TRAP
Establishment Date	**17 March 1866** (Agra)	NOT 1862 (Chartered HCs were Calcutta, Bombay, Madras).
Seat Shifting	Shifted to **Allahabad in 1869**	Capital is Lucknow, but Principal Seat of HC is **Prayagraj (Allahabad)**.
Lucknow Bench Genesis	**26 July 1948** (Amalgamation of Oudh Chief Court)	Lucknow is a **Bench**, NOT a separate High Court.
Jurisdiction of Lucknow Bench	**12 Districts** of Avadh region	Hardoi, Lakhimpur, Sitapur, Rae Bareli, Amethi, Sultanpur, Ayodhya, Barabanki, etc.
Sanctioned Judicial Strength	**160 Judges** (120 Permanent + 40 Additional)	**Largest sanctioned bench** of any High Court in India.
First Chief Justice	**Sir Walter Morgan** (1866–1871)	First Indian CJ: **Sir Shah Muhammad Sulaiman (1932)**.

🧠 Memory Anchors & Mnemonics

1. UP Legislative Representation: "403 - 100 - 80 - 31"

- **403:** Vidhan Sabha (Assembly — 84 SC + 2 ST reserved)
- **100:** Vidhan Parishad (Legislative Council)
- **80:** Lok Sabha (17 SC + 0 ST reserved)
- **31:** Rajya Sabha

2. Devipatan Division 4 Districts: "B-B-G-S"

- **B: B**ahraich (बहराइच)
- **B: B**alrampur (बलरामपुर)
- **G: G**onda (गोंडा — Division Headquarters)
- **S: S**hravasti (श्रावस्ती)

3. November 2000 Trio States Ladder: "C - U - J (1, 9, 15)"

- **1 Nov 2000: C**hhattisgarh (26th State, carved from MP)
- **9 Nov 2000: U**ttaranchal (27th State, carved from UP)
- **15 Nov 2000: J**harkhand (28th State, carved from Bihar on Birsa Munda Jayanti)

4. UP Lokayukta Exceptional Number: "8 Years"

- While most constitutional/statutory ombudsmen have 3, 5, or 6-year terms, **UP Lokayukta serves an 8-YEAR TERM** (2012 Amendment Act).

Chapter 26: One-Liner High-Yield Revision

Current Affairs & High-Yield Updates

YEAR/REF	LANDMARK FACT / CORE CONSTITUTIONAL POINT	EXAM RELEVANCE / WHAT YOU MARK
2025 Focus	**Part XI vs Part IXA vs Part XIVA**	Part XI covers **Centre-State Relations** (Arts. 245–263); Municipalities is **Part IXA**; Tribunals is **Part XIVA**.
2025 Focus	**8th Schedule Exclusion Trap**	Eighth Schedule contains **22 official languages**; **English and Bhojpuri ARE NOT in the Eighth Schedule**; classical languages count is 11 (expanded 2024).
2025 Focus	**42nd Amendment Preamble Inclusions**	Inserted **"Socialist"**, **"Secular"**, and **"Integrity"** in 1976; original 1950 Preamble had none of these three words.
2024 Focus	**Kesavananda Bharati Chronology Ladder**	Chronology: **Shankari Prasad (1951) → Sajjan Singh (1965) → Golaknath (1967) → 24th CAA (1971) → Kesavananda Bharati (1973)**.
2024 Focus	**GST Constitutional Amendment**	Goods and Services Tax was introduced by the **101st Constitutional Amendment Act, 2016** (Article 279A creates GST Council).
2023 Focus	**Fourth vs Ninth Schedule Trap**	Rajya Sabha seat allocation is in the **Fourth Schedule**; Ninth Schedule contains acts immunized from judicial review (1st CAA).
2023 Focus	**Panchayat Election Authority**	Panchayat and municipality elections are conducted strictly by the **State Election Commission (Articles 243K & 243ZA)**, NOT by the Election Commission of India.
2023 Focus	**106th CAA (Nari Shakti Vandan Adhiniyam)**	Provides **33% reservation for women in Lok Sabha and State Legislative Assemblies**; comes into effect only after the first decennial census and delimitation following 2023.
2022 Focus	**Right to Education Amendment**	Right to Education (Article 21A) was inserted by the **86th Constitutional Amendment Act, 2002** (NOT 103rd or 93rd).
2021 Focus	**Emergency Ground Substitution**	Ground of "internal disturbance" was replaced with **"Armed Rebellion"** for Article 352 by the **44th Constitutional Amendment Act, 1978**.

Consolidated Must-Score Facts

1. **Lengthiest Written Constitution:** India's Constitution is the most detailed written constitution in the world; drafted by the Constituent Assembly in **2 years, 11 months, and 18 days**; adopted on **26 November 1949** and came into full effect on **26 January 1950**.
2. **Original vs Present Structural Spine:** Originally contained **395 Articles, 22 Parts, and 8 Schedules**; currently contains over **470 Articles divided into 25 Parts and 12 Schedules** (no original Article number like 396 was ever added; additions exist as 21A, 51A, etc.).
3. **Preamble Opening and Sovereign Source:** Begins with *"We, the People of India"*, declaring popular sovereignty; proclaims India a **"Sovereign Socialist Secular Democratic Republic"**; promises **Justice (Social, Economic, Political)**, **Liberty (Thought, Expression, Belief, Faith, Worship)**, **Equality (Status, Opportunity)**, and **Fraternity (Dignity of Individual, Unity and Integrity of Nation)**.
4. **Preamble Sole Amendment (42nd CAA 1976):** Amended only once by the **42nd Constitutional Amendment Act, 1976**, which added three words: **"Socialist"**, **"Secular"**, and **"Integrity"**.
5. **Part I — The Union and Its Territory (Articles 1–4):** Article 1 describes India, that is Bharat, as a **"Union of States"** (not a federation); Article 2 empowers Parliament to **admit or establish new States**; Article 3 empowers Parliament to form new States, alter areas, boundaries, or names of existing States by **simple majority** without state consent.
6. **Part II — Citizenship (Articles 5–11):** Single citizenship for the whole of India; Article 11 empowers Parliament to regulate citizenship by law; Parliament enacted the **Citizenship Act, 1955** (amended 1986, 1992, 2003, 2005, 2015, and 2019).
7. **Part III — Fundamental Rights (Articles 12–35):** Borrowed from the **US Bill of Rights**; just and justiciable; described as the *Magna Carta of India*; originally 7 Fundamental Rights; **Right to Property was deleted from Part III by the 44th CAA, 1978** and made a legal/constitutional right under **Article 300A in Part XII**.
8. **Article 12 Definition of 'State':** Includes the Government and Parliament of India, Government and Legislature of States, all local authorities (Panchayats, Municipalities), and other authorities substantially financed or controlled by the government.
9. **Article 13 Judicial Review Anchor:** Article 13(2) prohibits the State from making any law which takes away or abridges Fundamental Rights, declaring any such law void *to the extent of the contravention*; provides the constitutional bedrock for **Judicial Review**.
10. **The Six Fundamental Rights Categories:** (1) Right to Equality (Arts. 14–18); (2) Right to Freedom (Arts. 19–22); (3) Right against Exploitation (Arts. 23–24); (4) Right to Freedom of Religion (Arts. 25–28); (5) Cultural and Educational Rights (Arts. 29–30); (6) Right to Constitutional Remedies (Art. 32).
11. **Fundamental Rights Available ONLY to Indian Citizens: Articles 15, 16, 19, 29, and 30** are available exclusively to Indian citizens; all other Fundamental Rights (Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28) are available to all persons (citizens and foreigners alike, except enemy aliens).
12. **Article 17 Abolition of Untouchability:** Absolute fundamental right; untouchability is abolished and its practice in any form is forbidden; penal offense under the **Protection of Civil Rights Act, 1955**.
13. **Article 19 Six Fundamental Freedoms:** Guaranteed to citizens: 19(1)(a) Speech & Expression; 19(1)(b) Peaceful assembly without arms; 19(1)(c) Form associations/unions/cooperative societies; 19(1)(d) Move freely throughout India; 19(1)(e) Reside and settle in any part of India; 19(1)(g) Practice any profession, trade, or business. (19(1)(f) Right to acquire property was omitted by 44th CAA 1978).
14. **Article 21 Protection of Life and Personal Liberty:** *"No person shall be deprived of his life or personal liberty except according to procedure established by law"*; expanded by SC in *Maneka Gandhi (1978)* to include right to live with human dignity, livelihood, clean environment, speedy trial, free legal aid, and

privacy (*Puttaswamy 2017*).

15. **Article 21A Right to Education:** Enacted by the **86th CAA, 2002**; makes free and compulsory elementary education a Fundamental Right for all children aged **6 to 14 years**; operationalized via the **RTE Act, 2009 (in force 1 April 2010)**.
16. **Article 32 "Heart and Soul of the Constitution":** Dr. B.R. Ambedkar called Article 32 the very soul and heart of the Constitution; empowers citizens to move the Supreme Court directly for enforcement of Fundamental Rights via 5 prerogative writs: **Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo-Warranto**.
17. **Part IV — Directive Principles of State Policy (Articles 36–51):** Borrowed from the **Irish Constitution (1937)**; non-justiciable (Article 37) but fundamental in the governance of the country; aims to establish a **Welfare State** and achieve socio-economic democracy.
18. **Key DPSPs to Memorize:** Art. 39(b) & (c) (Equitable distribution of material resources and prevention of wealth concentration); Art. 39A (Equal justice and free legal aid); Art. 40 (Organisation of Village Panchayats); Art. 44 (Uniform Civil Code); Art. 45 (Early childhood care & education below 6 yrs); Art. 48A (Protection of environment & wildlife); Art. 50 (Separation of judiciary from executive); Art. 51 (Promotion of international peace).
19. **Part IVA — Fundamental Duties (Article 51A):** Inserted by the **42nd CAA, 1976** on the recommendations of the **Sardar Swaran Singh Committee**; borrowed from the **USSR Constitution**; originally 10 duties; the **11th duty** (parent/guardian to provide educational opportunities to child aged 6–14) was added by the **86th CAA, 2002**.
20. **President of India (Articles 52–62, Part V):** Head of the State and first citizen of India; elected by an Electoral College consisting of: **elected members of both Houses of Parliament AND elected members of State Legislative Assemblies (including Delhi and Puducherry)**; nominated members and MLCs DO NOT vote.
21. **Impeachment of the President (Article 61):** Sole ground is **"Violation of the Constitution"**; resolution requires 14 days advance written notice signed by at least 1/4th members of initiating House; must be passed by a **special majority of not less than two-thirds of the TOTAL membership** of each House; nominated members of Parliament participate; MLAs DO NOT participate.
22. **Vice-President of India (Articles 63–71):** Ex-officio Chairman of the Council of States (Rajya Sabha, Art. 64); elected by an Electoral College consisting of **all members (elected + nominated) of BOTH Houses of Parliament**; State MLAs DO NOT vote; removed by a resolution passed by Rajya Sabha by an effective majority and agreed to by Lok Sabha by a simple majority (Art. 67(b)).
23. **Union Council of Ministers & Prime Minister (Articles 74 & 75):** Article 74 mandates a Council of Ministers headed by PM to aid and advise the President, whose advice is binding (42nd and 44th CAAs); Article 75(3) establishes **Collective Responsibility**: Council of Ministers is collectively responsible to the **Lok Sabha (House of the People)**, NOT Parliament as a whole.
24. **Size Cap on Council of Ministers (91st CAA, 2003):** Total number of ministers, including the Prime Minister / Chief Minister, shall not exceed **15% of the total strength of the Lok Sabha / State Legislative Assembly** (Article 75(1A) & 164(1A)); in States, minimum number of ministers cannot be less than 12.
25. **Parliament of India (Articles 79–122):** Consists of the **President, the Council of States (Rajya Sabha), and the House of the People (Lok Sabha)** (Article 79).
26. **Rajya Sabha (Council of States, Article 80):** Maximum strength 250 (currently 245: 233 elected from States/UTs + 12 nominated by President for literature, science, art, social service); permanent body not subject to dissolution; 1/3rd members retire every 2 years; tenure 6 years; minimum age **30 years**.
27. **Lok Sabha (House of the People, Article 81):** Maximum strength 550 (originally 552; 2 Anglo-Indian seats abolished by 104th CAA 2019); currently 543 elected members; term 5 years (subject to dissolution); minimum age **25 years**.
28. **Special Powers of Rajya Sabha:** (1) **Article 249**: Can pass a resolution by 2/3rd majority authorizing Parliament to legislate on State List subjects in national interest; (2) **Article 312**: Can pass a resolution by 2/3rd majority creating one or more **All India Services (AIS)**; (3) Exclusive power to initiate removal of the Vice-President (Art. 67).
29. **Money Bill vs Financial Bill (Articles 110 & 117):** Money Bill deals exclusively with matters specified in Article 110(1) (taxes, borrowing, Consolidated Fund); certified by Speaker of Lok Sabha; introduced ONLY in Lok Sabha on President's recommendation; Rajya Sabha must return within **14 days**; no provision for joint sitting.
30. **Ordinance-Making Power (Article 123 & 213):** Article 123 empowers President to promulgate ordinances when either House of Parliament is not in session; Article 213 empowers Governor for State; has the same force and effect as an Act; must be approved by Parliament/Assembly within **6 weeks from reassembly**, or it lapses; maximum life is **6 months and 6 weeks**.
31. **Supreme Court of India (Articles 124–147):** Established on **28 January 1950** succeeding Federal Court of India; currently consists of **34 judges (1 CJI + 33 judges)**; retirement age is **65 years**; appointed by President via Collegium; removed only by President on address by Parliament with special majority under Article 124(4) on grounds of proven misbehaviour or incapacity.
32. **Jurisdiction of the Supreme Court:** (1) **Original Jurisdiction (Article 131)**: Federal disputes between Centre and States or between States; (2) **Writ Jurisdiction (Article 32)**: Enforcement of FRs; (3) **Appellate Jurisdiction (Articles 132–134A)**; (4) **Special Leave Petition (Article 136)**: Discretionary power to grant leave to appeal against any judgment; (5) **Advisory Jurisdiction (Article 143)**: President can seek advisory opinion on questions of law/fact; (6) **Court of Record (Article 129)**: Contempt power.
33. **High Courts in India (Articles 214–231):** Currently **25 High Courts** across India; newest is Andhra Pradesh High Court at Amaravati (2019); judges retire at **62 years**; appointed by President; removed in same manner as an SC judge; under **Article 226**, exercises writ jurisdiction for Fundamental Rights as well as ordinary legal rights.
34. **Order of Precedence Top Ranks:** 1. President → 2. Vice-President → 3. Prime Minister → 4. Governors of States within their states → 5. Former Presidents → 5A. Deputy Prime Minister → 6. Chief Justice of India & Speaker of Lok Sabha.
35. **Article 32 vs Article 226 Scope:** Article 32 is a **Fundamental Right** and can be invoked ONLY for Fundamental Rights; Article 226 is a constitutional right with **wider jurisdiction**, exercisable for Fundamental Rights and "for any other purpose" (ordinary legal rights).
36. **Five Prerogative Writs Snapshot:** (1) **Habeas Corpus** (against illegal detention; public & private); (2) **Mandamus** (to perform public duty; not against President/Governor); (3) **Prohibition** (preventive to lower courts exceeding jurisdiction); (4) **Certiorari** (curative to quash illegal judicial/quasi-judicial orders); (5) **Quo-Warranto** (inquires into legality of claim to public office).
37. **The 12 Schedules Master Mnemonic ("TEARS OF OLD PM"):** - **T:** Territories & States (1st) - **E:** Emoluments & Salaries (2nd) - **A:** Affirmations & Oaths (3rd) - **R:** Rajya Sabha seat allocation (4th) - **S:** Scheduled Areas administration (5th) - **O:** Other Tribal Areas — AMTM (6th) - **F:** Federal Lists — Union, State, Concurrent (7th) - **O:** Official Languages — 22 languages (8th) - **L:** Land Reforms & protected Acts (9th) - **D:** Defection disqualification rules (10th) - **P:** Panchayats — 29 functional items (11th) - **M:** Municipalities — 18 functional items (12th)

38. **Eighth Schedule 22 Languages Evolution:** Originally 14 languages; 15th was **Sindhi** (21st CAA, 1967); 16th, 17th, 18th were **Konkani, Manipuri, Nepali** (71st CAA, 1992); 19th, 20th, 21st, 22nd were **Bodo, Dogri, Maithili, Santhali** (92nd CAA, 2003); **English and Bhojpuri are NOT in the Eighth Schedule**.
39. **Seventh Schedule Three Lists Distribution:** (1) **Union List** (100 subjects: defence, foreign affairs, banking, atomic energy, railways, citizenship); (2) **State List** (61 subjects: police, public order, public health, agriculture, local government); (3) **Concurrent List** (52 subjects: criminal law, marriage, civil procedure, education, forests, population control).
40. **42nd CAA 1976 Five Subjects Transfer to Concurrent List:** (1) **Education**; (2) **Forests**; (3) **Weights and Measures**; (4) **Protection of Wild Animals and Birds**; (5) **Administration of Justice** (constitution of lower courts).
41. **Emergency Provisions Trifecta (Part XVIII):** (1) **Article 352** (National Emergency): War, External Aggression, Armed Rebellion; approved within 1 month by special majority; (2) **Article 356** (President's Rule): Failure of constitutional machinery; approved within 2 months by simple majority; maximum 3 years; (3) **Article 360** (Financial Emergency): Financial instability; approved within 2 months by simple majority; **NEVER invoked in India**.
42. **Fundamental Rights during Emergency (Articles 358 vs 359):** Under **Article 358**, Article 19 is automatically suspended only during National Emergency declared on grounds of war or external aggression; under **Article 359**, enforcement of other FRs can be suspended by Presidential order, but **ARTICLES 20 AND 21 CAN NEVER BE SUSPENDED** (44th CAA, 1978).
43. **Joint Sitting of Parliament (Article 108):** Summoned by the **President**; presided over by the **Speaker of Lok Sabha** (or Deputy Speaker, or Deputy Chairman of Rajya Sabha; Chairman of RS never presides); decided by simple majority; applicable only to Ordinary Bills and Financial Bills; **CANNOT be held for Money Bills or Constitutional Amendment Bills**.
44. **Parliamentary Financial Committees Trifecta:** (1) **Public Accounts Committee (PAC)**: 22 members (15 LS + 7 RS), chaired by Opposition member, examines CAG reports; (2) **Estimates Committee**: 30 members (**ALL from Lok Sabha**, 0 from RS), largest committee; (3) **Committee on Public Undertakings (COPU)**: 22 members (15 LS + 7 RS). Ministers cannot be members.
45. **Constitutional Amendment Types under Article 368:** (1) Simple majority outside Art. 368 (creation of states Arts. 2 & 3, abolition of councils Art. 169); (2) Special majority under Art. 368 (majority of total membership + 2/3rd present and voting for FRs, DPSPs); (3) Special majority + Ratification by at least half of State Legislatures (election of President, 7th schedule, SC/HC powers, Art. 368 itself).
46. **Landmark Amendments Fast Checklist:** 1st (1951: 9th Sch, Art. 15(4)); 7th (1956: Reorganisation, common HCs); 24th (1971: Parliament can amend FRs); 42nd (1976: Mini-Constitution, Preamble, Duties); 44th (1978: Restored liberties, removed Property from FR); 52nd (1985: Anti-defection); 61st (1988: Voting age 21 to 18); 73rd/74th (1992: PRIs/ULBs); 86th (2002: Art. 21A); 91st (2003: 15% ministry limit); 101st (2016: GST); 102nd (2018: NCBC); 103rd (2019: 10% EWS); 104th (2019: Anglo-Indian abolished); 106th (2023: 33% Women quota).
47. **Borrowed Features of Constitution (Key Origins):** Government of India Act 1935 (Federal scheme, Governor, Judiciary, PSCs, Emergency); UK (Parliamentary system, Rule of Law, Single citizenship, Cabinet); USA (Fundamental Rights, Judicial Review, Preamble, Impeachment); Ireland (DPSP, Rajya Sabha nominations); Canada (Strong Centre, Residuary powers to Centre, Advisory SC jurisdiction); Australia (Concurrent List, Joint sitting Art. 108); South Africa (Amendment procedure Art. 368); USSR (Fundamental Duties, Justice triad).
48. **Constitutional vs Statutory vs Executive Bodies:** Constitutional (ECI Art. 324, UPSC Art. 315, FC Art. 280, NCSC Art. 338, NCST Art. 338A, NCBC Art. 338B, CAG Art. 148, AG Art. 76); Statutory (NHRC, CVC, CIC, Lokpal, NCW, NGT, UIDAI, NDMA); Executive (NITI Aayog, Law Commission, NDC).
49. **Age Limits in Indian Constitution:** Minimum age to vote = **18 years** (Art. 326); Panchayat/Municipality election = **21 years** (Arts. 243V, 243ZG); Lok Sabha / Vidhan Sabha MLA = **25 years** (Arts. 84, 173); Rajya Sabha / Vidhan Parishad MLC = **30 years** (Arts. 84, 173); President / Vice-President / Governor = **35 years** (Arts. 58, 66, 157); High Court judge retirement = **62 years** (Art. 217); Supreme Court judge / CAG / CEC / UPSC retirement = **65 years** (Arts. 124, 148, 316, 324).
50. **Oaths Constitutional Placement:** Oaths of President (**Article 60**), Vice-President (**Article 69**), and Governor (**Article 159**) are placed in dedicated constitutional articles; all other constitutional functionaries (Ministers, Judges, CAG, MPs, MLAs) take oath under the **Third Schedule**.
51. **Article 1:** India, that is Bharat, shall be a Union of States (indestructible union of destructible units).
52. **Article 2:** Parliament can admit or establish new States not part of India on such terms as it thinks fit.
53. **Article 3:** Parliament can form new states, alter areas, boundaries, or names of existing states by simple majority.
54. **Article 12:** Definition of 'State' for Part III (includes GoI, Parliament, State Govts/Legislatures, local & statutory authorities).
55. **Article 13:** Any law inconsistent with or in derogation of Fundamental Rights is void to the extent of inconsistency.
56. **Article 14:** State shall not deny to any person equality before the law or equal protection of the laws within India.
57. **Article 15:** Prohibition of discrimination on grounds ONLY of religion, race, caste, sex, or place of birth.
58. **Article 16:** Equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.
59. **Article 17:** Abolition of 'Untouchability' and prohibition of its practice in any form (absolute Fundamental Right).
60. **Article 18:** Abolition of all titles except military and academic distinctions.
61. **Article 19:** Protection of 6 basic freedoms for Indian citizens only (speech, assembly, association, movement, residence, profession).
62. **Article 20:** Protection in respect of conviction for offences (no ex-post facto criminal law, no double jeopardy, no self-incrimination).
63. **Article 21:** Protection of life and personal liberty; cannot be deprived except according to procedure established by law.
64. **Article 21A:** Right to free and compulsory education for all children aged 6 to 14 years (inserted by 86th CAA 2002).
65. **Article 22:** Protection against arrest and detention in certain cases; mandatory magistrate production within 24 hours.
66. **Article 23:** Prohibition of traffic in human beings, begar, and other similar forms of forced labour.
67. **Article 24:** Prohibition of employment of children below 14 years in factories, mines, or any hazardous work.
68. **Article 25:** Freedom of conscience and free profession, practice, and propagation of religion to all persons.
69. **Article 26:** Freedom to manage religious affairs for religious denominations.
70. **Article 27:** Freedom from payment of taxes for promotion of any particular religion.
71. **Article 28:** Freedom from attending religious instruction in educational institutions wholly maintained out of State funds.
72. **Article 29:** Protection of language, script, and culture of any section of citizens residing in India.

73. **Article 30:** Right of religious and linguistic minorities to establish and administer educational institutions of their choice.
74. **Article 32:** Right to constitutional remedies for enforcement of Fundamental Rights by moving the Supreme Court directly.
75. **Article 39A:** Equal justice and free legal aid to the poor (inserted by 42nd CAA 1976).

⏱️ Timeline / Chronology

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1946 — Constituent Assembly first meets (9 Dec); Dr. Rajendra Prasad elected President (11 Dec)
1947 — Objective Resolution adopted (22 Jan); Drafting Committee appointed under Dr. Ambedkar (29 Aug)
1949 — Constitution adopted, enacted and signed (26 Nov – celebrated as Constitution Day)
1950 — Constitution comes into full force (26 Jan); Supreme Court established (28 Jan)
1951 — 1st Constitutional Amendment Act (Ninth Schedule, Article 15(4), 19(2) restrictions)
1956 — 7th CAA (States Reorganisation; 14 States & 6 UTs; common High Courts introduced)
1967 — 21st CAA (Sindhi added as 15th language in 8th Schedule) & Golaknath judgment
1973 — Kesavananda Bharati case (24 April: Basic Structure Doctrine established)
1976 — 42nd CAA ("Mini-Constitution": Socialist, Secular, Integrity added; Part IVA Duties)
1978 — 44th CAA (Right to property removed from FR; Arts. 20 & 21 safeguarded during emergency)
1985 — 52nd CAA (Tenth Schedule Anti-Defection Law enacted)
1988 — 61st CAA (Voting age lowered from 21 to 18 years in Art. 326)
1992 — 73rd & 74th CAAs (Constitutional status to Panchayati Raj and Municipalities)
2002 — 86th CAA (Article 21A Right to Education & 11th Fundamental Duty inserted)
2003 — 91st CAA (15% limit on Council of Ministers size) & 89th CAA (NCSC/NCST bifurcated)
2016 — 101st CAA (Goods and Services Tax - GST Council under Article 279A)
2019 — 103rd CAA (10% EWS quota) & 104th CAA (Anglo-Indian seats abolished; SC/ST extended)
2023 — 106th CAA (Nari Shakti Vandan Adhiniyam: 33% Women reservation in LS & Assemblies)
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📊 Quick Reference Grid

Master Parts of the Indian Constitution (I to XXII)

PART NUMBER	TITLE / SUBJECT MATTER	ARTICLE SPAN	KEY TESTABLE CONTENT
Part I	The Union and its Territory	Arts. 1–4	Art. 1 (Union of States); Art. 3 (Creation of new states by simple majority).
Part II	Citizenship	Arts. 5–11	Single citizenship; Art. 11 (Parliament regulates citizenship).
Part III	**Fundamental Rights**	Arts. 12–35	Magna Carta; Art. 12 (State); Art. 13 (Judicial review); Art. 32 (Writs).
Part IV	**Directive Principles (DPSP)**	Arts. 36–51	Non-justiciable; Art. 40 (Panchayats); Art. 44 (UCC); Art. 50 (SOP).
Part IVA	**Fundamental Duties**	Art. 51A	11 duties; 42nd CAA (1976) & 86th CAA (2002); Swaran Singh Committee.
Part V	**The Union Government**	Arts. 52–151	President (52), Council of Ministers (74), Parliament (79), SC (124), CAG (148).
Part VI	**The State Governments**	Arts. 152–237	Governor (153), CM (163), Assembly (168), High Courts (214), Subordinate Courts.
Part VIII	The Union Territories	Arts. 239–242	Administration of UTs; Art. 239AA (Special provisions for Delhi).
Part IX	**The Panchayats**	Arts. 243–243O	73rd CAA (1992); 11th Schedule (29 subjects); SEC (243K); SFC (243-I).
Part IXA	**The Municipalities**	Arts. 243P–243ZG	74th CAA (1992); 12th Schedule (18 subjects); Ward Committees.
Part IXB	The Co-operative Societies	Arts. 243ZH–243ZT	97th CAA (2011); right to form cooperatives under 19(1)(c).
Part X	The Scheduled and Tribal Areas	Arts. 244–244A	5th Schedule (10 states) & 6th Schedule (AMTM).
Part XI	**Relations between Union and States**	Arts. 245–263	Legislative (245–255); Administrative (256–263); Inter-State Council (263).
Part XII	Finance, Property, Contracts, Suits	Arts. 264–300A	Finance Commission (280); Consolidated Fund (266); Right to Property (300A).
Part XIV	Services under Union and States	Arts. 308–323	All India Services (312); UPSC & State PSCs (315–323).
Part XIVA	**Tribunals**	Arts. 323A–323B	Added by 42nd CAA; 323A (Administrative Tribunals); 323B (Other Tribunals).
Part XV	**Elections**	Arts. 324–329	Election Commission (324); Universal adult suffrage (326).
Part XVII	**Official Language**	Arts. 343–351	Hindi in Devanagari (343); Language of SC/HC (348); Directive for Hindi (351).
Part XVIII	**Emergency Provisions**	Arts. 352–360	National (352); President's Rule (356); Financial (360).
Part XX	**Amendment of the Constitution**	Art. 368	Constituent amending power of Parliament; South African borrowing.

Major Constitutional Amendments at a Glance

CAA NUMBER & YEAR	CORE PROVISIONS ENACTED	LANDMARK HISTORICAL & EXAM CONTEXT
1st CAA, 1951	Inserted **Ninth Schedule**, Article 31A & 31B; added restrictions to Art. 19(2); inserted Art. 15(4).	Immunized land reform laws from judicial review; *Champakam Dorairajan* response.
7th CAA, 1956	Abolished Part A, B, C, D states; created 14 States & 6 UTs; common High Courts; Art. 350B.	States Reorganisation Commission (Fazal Ali Commission) implementation.
42nd CAA, 1976	Added **"Socialist, Secular, Integrity"** to Preamble; Part IVA (Duties); Part XIVA; shifted 5 subjects.	Known as **"Mini-Constitution"**; enacted during Internal Emergency.
44th CAA, 1978	**Right to Property deleted from FRs**; Arts. 20 & 21 non-suspendable; "Armed Rebellion" ground.	Enacted by Janata Government under Morarji Desai to undo 42nd Amendment excesses.
52nd CAA, 1985	Inserted **Tenth Schedule (Anti-Defection Law)**; disqualification on party defection.	Enacted to curb political defections ("Aaya Ram, Gaya Ram" era).
61st CAA, 1988	Lowered voting age from **21 to 18 years** in Article 326.	Universalized youth participation in parliamentary democracy.
73rd / 74th, 1992	Constitutional status to **Panchayati Raj (Part IX)** and **Municipalities (Part IXA)**.	11th Schedule (29 items) & 12th Schedule (18 items); 33% women quota.
86th CAA, 2002	Inserted **Article 21A (Right to Education)**; amended Art. 45; added 11th duty (51A(k)).	Historic transformation of elementary education into a justiciable fundamental right.
91st CAA, 2003	Capped Council of Ministers at **15% of assembly/LS strength**; barred defectors from ministry.	Strengthened anti-defection and streamlined cabinet sizes.
101st CAA, 2016	Introduced **Goods and Services Tax (GST)**; created GST Council (Article 279A).	Subsumed 17 central and state indirect taxes into a unified tax regime.
102nd CAA, 2018	Accorded constitutional status to **National Commission for Backward Classes (Art. 338B)**.	Elevated NCBC to equal footing with NCSC (338) and NCST (338A).
103rd CAA, 2019	Provided up to **10% reservation for Economically Weaker Sections (EWS)** (Arts. 15(6) & 16(6)).	Upheld in *Janhit Abhiyan (2022)*; first quota based solely on economic criteria.
104th CAA, 2019	Extended SC/ST seat reservation in LS/Assemblies for 10 years; **abolished Anglo-Indian quota**.	Articles 334 amended; terminated Anglo-Indian nomination in LS and Assemblies.
106th CAA, 2023	**Nari Shakti Vandan Adhiniyam**: 33% reservation for women in LS and State Assemblies.	Effective after post-2026 delimitation; valid for 15 years from commencement.

🧠 Memory Anchors & Mnemonics

1. Twelve Schedules Master Mnemonic: "TEARS OF OLD PM"

- **T: T**erritories & States (1st)
- **E: E**moluments, salaries & allowances (2nd)
- **A: A**ffirmations & Oaths (3rd)
- **R: R**ajya Sabha seat allocation (4th)
- **S: S**cheduled Areas & Tribes administration (5th)
- **O: O**ther Tribal Areas — AMTM (6th)
- **F: F**ederal Lists — Union, State, Concurrent (7th)
- **O: O**fficial Languages — 22 languages (8th)
- **L: L**and Reforms & validation of Acts (9th)
- **D: D**efection disqualification rules (10th)
- **P: P**anchayats — 29 functional items (11th)
- **M: M**unicipalities — 18 functional items (12th)

2. Five Prerogative Writs: "H-M-P-C-Q"

- **H: H**abeas Corpus (बंदी प्रत्यक्षीकरण — "To have the body")
- **M: M**andamus (परमादेश — "We command public duty")
- **P: P**rohibition (प्रतिषेध — "To forbid lower courts")
- **C: C**ertiorari (उत्प्रेषण — "To be certified / quash illegal orders")
- **Q: Q**uo-Warranto (अधिकार-पृच्छा — "By what authority")

3. FRs Exclusive to Citizens: "15, 16, 19, 29, 30"

- Only Indian citizens enjoy these five articles. All other FRs (14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28) apply to all persons.

4. Sixth Schedule Tribal States: "AMTM"

- **A: A**ssam

- **M: M**eghalaya
- **T: T**ripura
- **M: M**izoram *(Manipurs, Nagaland, and Arunachal are NOT in the Sixth Schedule!)*

Chapter 27: Important Committees and Commissions

Current Affairs & High-Yield Updates

YEAR/REF	COMMITTEE / COMMISSION	APPOINTING AUTHORITY / CHAIR	LANDMARK MANDATE & RECOMMENDATION
2023–2024	**High-Level Committee on Simultaneous Elections ('One Nation, One Election')**	Chaired by former President **Ram Nath Kovind**	Submitted report in March 2024; recommended amending Articles 83 & 172 to synchronize Lok Sabha and State Assembly elections as Step 1, and synchronizing municipal/panchayat polls within 100 days as Step 2; single common electoral roll.
2020–2024	**22nd Law Commission of India**	Chaired by **Justice Ritu Raj Awasthi** (former CJ of Karnataka HC)	Submitted reports on **Uniform Civil Code (UCC)**, online filing of FIRs, retaining Section 124A (Sedition) with procedural safeguards, and age of consent under POCSO.
2017–2023	**Justice G. Rohini Commission on Sub-Categorisation of OBCs**	Constituted under **Article 340** by the President	Submitted report in August 2023; examined equitable distribution of the 27% OBC quota among four sub-categories to prevent monopolization by dominant OBC groups.
2020–2022	**Delimitation Commission for Jammu & Kashmir**	Headed by retired SC Judge **Justice Ranjana Prakash Desai**	Redrew 90 assembly constituencies (43 Jammu, 47 Kashmir) and 5 parliamentary constituencies; reserved 9 seats for STs and 7 for SCs in J&K Assembly.
2017–2020	**Dr. K. Kasturirangan Committee on National Education Policy**	Appointed by Ministry of Education; chaired by former ISRO Chief	Drafted **NEP 2020**; replaced 10+2 with **5+3+3+4 structure**; mandated mother-tongue education till Grade 5; targeted 6% GDP spending on education.

Consolidated Must-Score Facts

1. **K. Santhanam Committee on Prevention of Corruption (1962–64):** Appointed by Lal Bahadur Shastri; recommended the establishment of the **Central Vigilance Commission (CVC)**, which was set up in 1964; recommended statutory backing for CBI under DSPE Act 1946; formulated a code of conduct for ministers.
2. **First Administrative Reforms Commission - ARC-I (1966–70):** Initially chaired by **Morarji Desai**, and upon his appointment as Deputy PM, by **K. Hanumanthaiah**; recommended the establishment of **Lokpal and Lokayuktas** ombudsman institutions, setting up the Inter-State Council under Art. 263, and introduction of performance budgeting.
3. **Second Administrative Reforms Commission - ARC-II (2005–09):** Chaired initially by **Veerappa Moily**, and later by **V. Ramachandran**; submitted **15 landmark reports** including *Right to Information (Report 1)*, *Unlocking Human Capital (Report 2)*, *Ethics in Governance (Report 4)*, *Local Governance (Report 6)*, and *Citizen-Centric Administration (Report 12)*.
4. **Balwant Rai Mehta Committee (1957):** Appointed to examine the working of the Community Development Programme (1952); recommended the establishment of a **3-tier Panchayati Raj system** (Gram Panchayat at village, Panchayat Samiti at block, and Zila Parishad at district); coined the term **'Democratic Decentralisation'**.
5. **Ashok Mehta Committee on Panchayati Raj (1977–78):** Appointed by Janata Party government; recommended replacing the 3-tier structure with a **2-tier system** consisting of a **Zila Parishad** at the district level and a **Mandal Panchayat** (covering a population of 15,000–20,000); recommended official participation of political parties and constitutional recognition.
6. **G.V.K. Rao Committee (1985):** Appointed by Planning Commission; warned that PRIs were being marginalized by bureaucracy, famously describing them as **'grass without roots'**; recommended making Zila Parishad the apex planning authority and creating the post of District Development Commissioner (DDC).
7. **Dr. L.M. Singhvi Committee (1986):** Appointed by Rajiv Gandhi government; **first committee to firmly recommend that Panchayati Raj institutions should be constitutionally recognized, protected, and preserved**; recommended constitutional provisions for free, regular, and fair local elections, and judicial Nyaya Panchayats.
8. **P.K. Thungon Committee (1988):** Sub-committee of Parliamentary Consultative Committee; recommended constitutional status for Panchayats, a mandatory fixed **5-year term**, and establishment of a **State Finance Commission** in every State.
9. **V.N. Gadgil Committee (1988):** Committee on Policy and Programmes; recommended a 3-tier system, direct elections for all members, reservations for SC/ST/women, and State Election and Finance Commissions; served as the direct basis for drafting the 73rd Amendment Bill.
10. **Dileep Singh Bhuria Committee (1994–95):** Appointed to formulate recommendations for extending Panchayati Raj to tribal scheduled areas; recommended empowering the Gram Sabha with customary resource control, leading directly to the enactment of the **PESA Act, 1996**.
11. **P.V. Rajamannar Committee (1969):** 3-member committee appointed by the **DMK government of Tamil Nadu** to examine Centre-State relations; recommended radical state autonomy: **repeal of Articles 356 and 365**, complete abolition of **All-India Services (IAS, IPS, IFS)**, and vesting residuary powers in States.
12. **Justice R.S. Sarkaria Commission (1983–88):** 3-member commission (Justice Sarkaria, B. Sivaraman, Dr. S.R. Sen) on Centre-State relations; submitted 247 recommendations; held that a strong Centre is vital for national integrity; recommended **Article 356 must be used only as an extreme last resort**, setting up a permanent **Inter-State Council under Art. 263** (established 1990), and retaining All-India Services.
13. **Justice M.M. Punchhi Commission (2007–10):** 5-member commission on Centre-State relations; recommended a **fixed 5-year tenure for Governors** with removal only through **impeachment by State Legislature**; recommended amending Arts. 355/356 to permit **'Localised Emergency'** in troubled districts without dismissing the entire state government.
14. **Swaran Singh Committee (1976):** Appointed by Congress government under Indira Gandhi; recommended incorporating **Fundamental Duties** into the Constitution; recommended 8 duties; Parliament enacted the **42nd Amendment Act, 1976 inserting Part IVA and Article 51A with 10 duties** (Swaran Singh's duty to pay taxes was omitted).

15. **Justice J.S. Verma Committee on Fundamental Duties (1999):** Operationalized identification of legal provisions for the enforcement of Fundamental Duties (e.g., Prevention of Insults to National Honour Act 1971, Wildlife Protection Act 1972).
16. **Tarkunde Committee on Electoral Reforms (1974–75):** Appointed by Jayaprakash Narayan (Citizens for Democracy); **first committee to recommend lowering the voting age from 21 to 18 years**; recommended 3-member Election Commission.
17. **Dinesh Goswami Committee on Electoral Reforms (1990):** Recommended the introduction of **Electronic Voting Machines (EVMs)**, state assistance in kind, and amending the Anti-Defection Law to restrict disqualification only to voluntary resignation or defying party whip.
18. **N.N. Vohra Committee on Criminalisation of Politics (1993):** Investigated the nexus between criminal syndicates, politicians, and bureaucrats post-1993 Bombay blasts; recommended creating a central nodal intelligence cell.
19. **Indrajit Gupta Committee on State Funding of Elections (1998):** Recommended **partial state funding of elections strictly in kind** (paper, fuel, airtime) to recognized political parties, not cash; recommended creating a ₹600 crore election fund.
20. **Justice M.N. Venkatachaliah Commission (NCRWC, 2000–2002):** National Commission to Review the Working of the Constitution; 11-member body; recommended retaining parliamentary democracy, introducing constructive vote of no-confidence, creating National Judicial Commission, and enlarging fundamental rights.
21. **Kaka Kalelkar Commission (1953–55): First Backward Classes Commission** appointed under Article 340 by President Dr. Rajendra Prasad; identified 2,399 backward castes; recommended caste-based census and reservations; chairman himself dissented in the forwarding letter.
22. **B.P. Mandal Commission (1979–80): Second Backward Classes Commission** appointed under Article 340 by Janata Party government; identified 3,743 castes comprising 52% of the population; recommended **27% reservation for OBCs in government jobs and educational institutions**; implemented in 1990 by V.P. Singh government.
23. **Justice G. Rohini Commission (2017–2023):** 4-member commission constituted under **Article 340** to examine **sub-categorization of Other Backward Classes (OBCs)** in the Central List to ensure equitable distribution of the 27% quota.
24. **S.K. Dhar Commission (June 1948):** Linguistic Provinces Commission appointed by CA President Dr. Rajendra Prasad; **firmly rejected language as the basis of state reorganization**, prioritizing administrative convenience and economic viability.
25. **JVP Committee (December 1948):** Comprising **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya**; formally endorsed Dhar Commission findings and **rejected language as the basis of reorganization of states**.
26. **Fazl Ali Commission / States Reorganisation Commission (SRC, 1953–55):** 3 members: **Justice Fazl Ali (Chair), H.N. Kunzru, and K.M. Panikkar**; accepted language as a major basis but rejected 'one language, one state'; recommended creating 16 states and 3 UTs; led to the **7th Constitutional Amendment Act, 1956**.
27. **Aitchison Commission on Public Services (1886):** Appointed by Lord Dufferin; created a **3-tier civil service: Imperial, Provincial, and Subordinate Civil Services**.
28. **Lee Commission on Superior Civil Services (1923–24):** Recommended 50:50 parity between British and Indian officers in ICS within 15 years; recommended immediate creation of a statutory **Public Service Commission** (established in 1926).
29. **D.S. Kothari Committee on Recruitment Policy (1974–76):** Designed the modern **3-stage Civil Services Examination**: Preliminary (objective), Main (written), and Personality Test (interview).
30. **Raja Chelliah Committee on Tax Reforms (1991–93):** Laid the foundation for modern tax reforms post-liberalization; recommended lowering personal/corporate taxes, broadening tax base, and introducing Service Tax (1994).
31. **Vijay Kelkar Committee on Fiscal Responsibility (2002):** Formulated roadmap for the **FRBM Act, 2003**; recommended phased reduction of fiscal deficit to 3% of GDP and first proposed a nationwide integrated **GST**.
32. **Justice J.C. Shah Commission of Inquiry (1977–78):** Appointed to investigate excesses, illegal detentions, and misuse of power committed during the **Emergency (1975–77)**; catalyst for the **44th CAA, 1978**.
33. **Radhakrishnan Commission (1948–49):** University Education Commission chaired by Dr. S. Radhakrishnan; recommended establishing the **University Grants Commission (UGC)** (established 1953, statutory 1956).
34. **Mudaliar Commission (1952–53):** Secondary Education Commission chaired by Dr. A.L. Mudaliar; recommended diversifying secondary curriculum and introducing 3-year secondary and 4-year higher education structure.
35. **D.S. Kothari Commission on Education (1964–66):** Core National Education Commission; motto: "*The destiny of India is now being shaped in her classrooms*"; recommended the **10+2+3 educational structure** and spending 6% of national income on education; led to National Policy on Education 1968.
36. **High-Level Committee on Simultaneous Elections (2023–24):** Chaired by former President **Ram Nath Kovind**; submitted report in March 2024 recommending synchronous elections for Lok Sabha and State Assemblies (Step 1), followed by local bodies within 100 days (Step 2).
37. **22nd Law Commission of India (2020–24):** Chaired by **Justice Ritu Raj Awasthi**; submitted landmark reports on Uniform Civil Code (UCC) and sedition law safeguards.
38. **Justice Ranjana Prakash Desai Delimitation Commission (2020–22):** Redrew J&K assembly seats (90 seats: 43 Jammu, 47 Kashmir) and 5 parliamentary constituencies; reserved 9 seats for STs and 7 for SCs.
39. **Dr. K. Kasturirangan Committee (2017–20):** Drafted **NEP 2020**; replaced 10+2 with 5+3+3+4 schooling model; promoted foundational literacy and multidisciplinary education.
40. **Justice J.S. Verma Committee on Criminal Law Amendments (2012–13):** Formed post-2012 Delhi gang rape; recommended expanding sexual assault laws, strict punishment for stalking and acid attacks; resulted in the **Criminal Law (Amendment) Act, 2013**.
41. **Justice V.S. Malimath Committee on Criminal Justice Reforms (2000–03):** Recommended introducing inquisitorial features into adversarial trial system; proposed standard of proof as "*court is convinced that it is true*" rather than "beyond reasonable doubt".
42. **Soli Sorabjee Committee on Model Police Act (2005–06):** Drafted the **Model Police Act, 2006** to replace the archaic Police Act, 1861; recommended separating law and order from investigation.
43. **National Police Commission - NPC (1977–81):** Chaired by **Dharam Vira**; submitted 8 reports; first post-independence police commission recommending statutory State Security Commissions and fixed tenures for police leadership.

44. **T.S.R. Subramanian Committee on Civil Services Reforms (2004):** Recommended fixed tenure for civil servants, creation of independent Civil Services Boards (CSBs), and mandatory recording of verbal instructions from political executives.
45. **B.K. Chaturvedi Committee on CSS (2011):** Recommended rationalizing Centrally Sponsored Schemes (CSS) into flexible umbrella classifications to give states greater fiscal autonomy.
46. **Urjit Patel Committee on Monetary Policy (2014):** Recommended adopting CPI inflation as the primary nominal anchor and creating the statutory **Monetary Policy Committee (MPC)** with 4% (+/- 2%) inflation target.
47. **Justice B.P. Jeevan Reddy Committee on AFSPA (2004–05):** Reviewed the Armed Forces Special Powers Act; recommended **repealing AFSPA, 1958** and incorporating necessary provisions into the Unlawful Activities (Prevention) Act (UAPA).
48. **Anandpur Sahib Resolution (1973):** Passed by Shiromani Akali Dal; demanded restricting Union government powers strictly to 4 subjects: **Defence, Foreign Affairs, Currency, and Communications**, transferring all other subjects and residuary powers to the States.
49. **West Bengal Memorandum on Centre-State Relations (1977):** Published by the Left Front government of West Bengal; demanded replacing the word 'Union' with 'Federation' in the Constitution, repealing Articles 356, 357, and 360, and transferring residuary powers to States.
50. **Drafting Committee of Constituent Assembly (1947–50):** Appointed on **29 August 1947**; chaired by **Dr. B.R. Ambedkar**; comprised 7 members: (1) Dr. B.R. Ambedkar (Chairman); (2) N. Gopalaswami Ayyangar; (3) Alladi Krishnaswami Ayyar; (4) Dr. K.M. Munshi; (5) Syed Mohammad Saadulla; (6) N. Madhava Rau (replaced B.L. Mitter); (7) T.T. Krishnamachari (replaced D.P. Khaitan).
51. **Dhar Commission (1948):** Appointed by CA President Rajendra Prasad; recommended state reorganization on administrative convenience, rejecting linguistic basis.
52. **JVP Committee (1948):** Jawaharlal Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya; formally rejected linguistic state creation in 1949 report.
53. **Fazl Ali Commission (1953–55):** States Reorganisation Commission (Fazl Ali, H.N. Kunzru, K.M. Panikkar); recommended broad linguistic reorganization resulting in 14 States and 6 UTs.
54. **K. Santhanam Committee (1962–64):** Appointed on Prevention of Corruption; recommended the establishment of the **Central Vigilance Commission (CVC)** and code of conduct for ministers.
55. **First Administrative Reforms Commission - ARC (1966–70):** Chaired initially by **Morarji Desai** (later K. Hanumanthaiah); recommended creation of Lokpal and Lokayuktas.
56. **P.V. Rajamannar Committee (1969):** Constituted by Tamil Nadu DMK govt to inspect Centre-State relations; recommended abolition of Art. 356 and Inter-State Council empowerment.
57. **D.S. Kothari Commission (1964–66):** Recommended national education pattern (10+2+3) and 6% of GDP allocation for education.
58. **B.P. Mandal Commission (1979–80):** Second Backward Classes Commission appointed by Morarji Desai govt; identified 3,743 backward castes and recommended **27% reservation for OBCs** in government jobs.
59. **Sarkaria Commission (1983–88):** Appointed on Centre-State relations (Justice R.S. Sarkaria, B. Sivaraman, S.R. Sen); submitted 247 recommendations including permanent Inter-State Council under Art. 263.
60. **M.M. Punchhi Commission (2007–10):** Second Commission on Centre-State relations; recommended localizing emergencies under Art. 355/356 and fixed 5-year tenure for Governors.

⏱ Timeline / Chronology

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1947 — Drafting Committee appointed under Dr. B.R. Ambedkar (29 Aug)
1948 — S.K. Dhar Commission & JVP Committee (Reject language as state reorganisation basis)
1948 — Radhakrishnan Commission on University Education (Led to UGC)
1953 — States Reorganisation Commission (Fazl Ali, Kunzru, Panikkar) & Kaka Kalelkar Commission
1957 — Balwant Rai Mehta Committee (Recommends 3-tier Panchayati Raj & Democratic Decentralisation)
1962 — K. Santhanam Committee on Prevention of Corruption (Recommended CVC)
1964 — D.S. Kothari Education Commission (10+2+3 structure & 6% GDP spending)
1966 — 1st Administrative Reforms Commission (Morarji Desai / K. Hanumanthaiah)
1969 — P.V. Rajamannar Committee on Centre-State Relations (Tamil Nadu Govt)
1974 — Tarkunde Committee (First to recommend voting age 18)
1976 — Swaran Singh Committee (Recommends Fundamental Duties in 42nd CAA)
1977 — Ashok Mehta Committee (2-tier Panchayati Raj) & Shah Commission of Inquiry
1977 — National Police Commission (Dharam Vira; 8 reports)
1979 — B.P. Mandal Commission appointed (27% OBC quota; implemented 1990)
1983 — Sarkaria Commission on Centre-State Relations (Art. 356 extreme last resort)
1985 — G.V.K. Rao Committee ("Grass without roots" warning on PRIs)
1986 — Dr. L.M. Singhvi Committee (First to demand Constitutional status for Panchayats)
1988 — P.K. Thungon & V.N. Gadgil Committees on Panchayati Raj
1990 — Dinesh Goswami Committee on Electoral Reforms (EVMs)
1993 — N.N. Vohra Committee on Criminalisation of Politics
1994 — Dileep Singh Bhuria Committee on Tribal PRIs (Led to PESA 1996)
1998 — Indrajit Gupta Committee on State Funding of Elections
2000 — Justice Venkatachaliah Commission (NCRWC) & Malimath Committee
2005 — 2nd Administrative Reforms Commission (Veerappa Moily; 15 reports)
2007 — Justice M.M. Punchhi Commission on Centre-State Relations
2012 — Justice J.S. Verma Committee on Criminal Law Amendments
2017 — Justice G. Rohini Commission on OBC Sub-Categorisation & Kasturirangan Committee
2020 — 22nd Law Commission & Delimitation Commission for J&K
2023 — High-Level Committee on Simultaneous Elections (Ram Nath Kovind)
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📊 Quick Reference Grid

Master Committees & Commissions Domain Grid

DOMAIN / SUBJECT	COMMITTEE / COMMISSION	YEAR	APPOINTED BY / HEADED BY	LANDMARK SIGNATURE RECOMMENDATION
Anti-Corruption	**K. Santhanam Committee**	1962–64	Lal Bahadur Shastri / Santhanam	Recommended creation of **Central Vigilance Commission (CVC, 1964)**.
Admin Reforms	**1st ARC**	1966–70	Morarji Desai / Hanumanthaiah	Recommended creation of **Lokpal & Lokayuktas** and Inter-State Council.
Admin Reforms	**2nd ARC**	2005–09	Veerappa Moily / Ramachandran	Submitted **15 reports** (Ethics in Governance, RTI, Citizen Centric Admin).
Panchayati Raj	**Balwant Rai Mehta**	1957	Planning Commission	Recommended **3-tier system**; coined "Democratic Decentralisation".
Panchayati Raj	**Ashok Mehta**	1977–78	Janata Party Govt	Recommended **2-tier system** (Mandal Panchayat & Zila Parishad).
Panchayati Raj	**G.V.K. Rao Committee**	1985	Planning Commission	Warned PRIs are becoming **"grass without roots"**; DDC post created.
Panchayati Raj	**L.M. Singhvi Committee**	1986	Rajiv Gandhi Govt	**First to recommend Constitutional Status** for Panchayati Raj.
Panchayati Raj	**V.N. Gadgil Committee**	1988	Congress Party	Direct blueprint for **73rd Constitutional Amendment Act, 1992**.
Tribal Panchayats	**Dileep Singh Bhuria**	1994–95	Ministry of Rural Dev	Recommended tribal Gram Sabha empowerment; led to **PESA Act, 1996**.
Centre-State	**Rajamannar Committee**	1969	DMK Govt (Tamil Nadu)	Abolition of IAS/IPS; repeal of Arts. 356/365; residuary powers to States.
Centre-State	**Sarkaria Commission**	1983–88	Indira Gandhi / Justice Sarkaria	Strong Centre vital; **Art. 356 extreme last resort**; Inter-State Council.
Centre-State	**Punchhi Commission**	2007–10	UPA Govt / Justice Punchhi	**Governor removal by state impeachment**; "Localised Emergency" in Art. 355.
Fundamental Duties	**Swaran Singh Committee**	1976	Indira Gandhi Govt	Recommended Duties; led to **42nd CAA 1976 (Part IVA, Art. 51A)**.
Electoral Reforms	**Tarkunde Committee**	1974–75	Jayaprakash Narayan (JP)	**First to recommend voting age 18** (enacted in 61st CAA 1988).
Electoral Reforms	**Dinesh Goswami**	1990	V.P. Singh Govt	Recommended **Electronic Voting Machines (EVMs)** and anti-defection checks.
Electoral Reforms	**Indrajit Gupta**	1998	All-Party / Indrajit Gupta	Recommended **partial state funding of elections in kind** (not cash).
Backward Classes	**Kaka Kalelkar**	1953–55	President (Art. 340)	**1st Backward Classes Commission**; 2,399 backward castes listed.
Backward Classes	**B.P. Mandal Commission**	1979–80	Morarji Desai (Art. 340)	**2nd Backward Classes Commission**; recommended **27% OBC reservation**.
OBC Sub-Category	**Justice G. Rohini**	2017–23	President (Art. 340)	Sub-categorisation of 27% OBC quota among four distinct tiers.
State Reorganisation	**Fazl Ali Commission**	1953–55	Nehru Govt / Fazl Ali, Kunzru, Panikkar	Accepted language as primary basis; led to **7th CAA 1956** (14 States, 6 UTs).
Constitution Review	**NCRWC (Venkatachaliah)**	2000–02	Vajpayee Govt / Justice Venkatachaliah	Retain parliamentary system; constructive vote of no-confidence.
Simultaneous Polls	**Ram Nath Kovind HLC**	2023–24	Law Ministry / Former President Kovind	Recommended 2-step synchronization for **'One Nation, One Election'**.

🧠 Memory Anchors & Mnemonics

1. Panchayati Raj Committees Ladder: "B-A-G-S-T-G"

- **B (1957): B**alwant Rai Mehta (3-tier)
- **A (1977): A**shok Mehta (2-tier)
- **G (1985): G**VK Rao ("Grass without roots")
- **S (1986):** LM **S**inghvi (Constitutional status)
- **T (1988):** PK **T**hungon (5-year term & SFC)
- **G (1988):** VN **G**adgil (73rd Amendment blueprint)

2. Electoral Reforms Ladder: "T-G-V-I"

- **T (1974): T**arkunde (Voting age 18)
- **G (1990): G**oswami (EVMs & anti-defection checks)
- **V (1993): V**ohra (Criminalisation of politics nexus)
- **I (1998): I**ndrajit Gupta (State funding in kind)

3. Centre-State Relations Ladder: "R-S-P"

- **R (1969): R**ajamannar (Tamil Nadu DMK — radical state autonomy)
- **S (1983): S**arkaria (Union — Art. 356 extreme last resort)
- **P (2007): P**unchhi (Union — Governor impeachment by Assembly)

4. Linguistic State Reorganisation: "D-J-F"

- **D (June 1948): D**har Commission (No to language)
- **J (Dec 1948): J**VP Committee (No to language)
- **F (1953): F**azl Ali Commission (Yes to language)